



# NSW legislation

## State Environmental Planning Policy (Transport and Infrastructure) 2021

Current version for 15 August 2025 to date (accessed 30 September 2025 at 7:47)

Status information

New South Wales

### Status Information

#### Currency of version

Current version for 15 August 2025 to date (accessed 30 September 2025 at 7:47)

Legislation on this site is usually updated within 3 working days after a change to the legislation.

#### Provisions in force

The provisions displayed in this version of the legislation have all commenced.

#### Notes—

- See also [Transport Legislation Amendment Bill 2025](#)

#### Authorisation

This version of the legislation is compiled and maintained in a database of legislation by the Parliamentary Counsel's Office and published on the NSW legislation website, and is certified as the form of that legislation that is correct under section 45C of the [Interpretation Act 1987](#).

File last modified 9 September 2025

### Chapter 1 Preliminary

#### 1.1 Name of Policy

This Policy is [State Environmental Planning Policy \(Transport and Infrastructure\) 2021](#).

#### 1.2 Commencement

This Policy commences on 1 March 2022 and is required to be published on the NSW legislation website.

#### 1.3 Definitions

In this Policy—

***Division 5.1 assessment guidelines for environmental factors*** means the *Guidelines for Division 5.1 assessments—Consideration of environmental factors for health services facilities and schools* published by the Department in October 2024.

**SCPP—new health services facilities and schools** means the *Stakeholder and Community Participation Plan for New Health Services Facilities and Schools* published by the Department in October 2024.

**temporary housing** has the same meaning as in [State Environmental Planning Policy \(Housing\) 2021](#), Chapter 3, Part 14.

**the Act** means the [Environmental Planning and Assessment Act 1979](#).

**Note—**

The Act and the [Interpretation Act 1987](#) contain definitions and other provisions that affect the interpretation and application of this Policy.

## 1.4 Transferred provisions

The [Interpretation Act 1987](#), section 30A is taken to apply to the provisions transferred to this Policy on the commencement of this Policy in the same way as it applies to provisions transferred from a statutory rule to another statutory rule.

**Note—**

The [Interpretation Act 1987](#), section 30A provides—

- (a) the transfer of a provision does not affect the operation or meaning of the provision, and
- (b) a transferred provision is to be construed as if it had not been transferred.

## Chapter 2 Infrastructure

### Part 2.1 Preliminary

**Note.**

Nothing in this Chapter (except section 2.8) affects any requirement under another Act to obtain an approval, licence or permit for or concurrence to any development of a kind specified in Part 2.3. Examples of Acts imposing such requirements include the [Fisheries Management Act 1994](#), [Forestry Act 2012](#), [Heritage Act 1977](#), [Mine Subsidence Compensation Act 1961](#), [Mining Act 1992](#), [National Parks and Wildlife Act 1974](#), [Protection of the Environment Operations Act 1997](#), [Roads Act 1993](#), [Rural Fires Act 1997](#) and [Water Management Act 2000](#).

#### 2.1 Aim of Chapter

The aim of this Chapter is to facilitate the effective delivery of infrastructure across the State by—

- (a) improving regulatory certainty and efficiency through a consistent planning regime for infrastructure and the provision of services, and
- (b) providing greater flexibility in the location of infrastructure and service facilities, and
- (c) allowing for the efficient development, redevelopment or disposal of surplus government owned land, and
- (d) identifying the environmental assessment category into which different types of infrastructure and services development fall (including identifying certain development of minimal environmental impact as exempt development), and
- (e) identifying matters to be considered in the assessment of development adjacent to particular types of infrastructure development, and
- (f) providing for consultation with relevant public authorities about certain development during the assessment process or prior to development commencing, and
- (g) providing opportunities for infrastructure to demonstrate good design outcomes.

#### 2.2 Land to which Chapter applies

Except as otherwise provided by this Chapter, this Chapter applies to the State.

## 2.3 Interpretation—general

- (1) A word or expression used in this Chapter has the same meaning as it has in the Standard Instrument unless it is otherwise defined in this Chapter.
- (2) In this Chapter—

***associated public transport facilities*** for a railway station, public ferry wharf or road means such of the following as are integrated or associated with the station, wharf or road—

- (a) car parks intended for use by commuters,
- (b) public transport interchanges (being locations intended for use by commuters to transfer between and to different kinds of public transport such as buses, trains and ferries),
- (c) bus bays (being locations that are set aside for buses to stop or park for the purpose of picking up and setting down passengers),
- (d) bus layovers.

***Blue Book*** means *Managing Urban Stormwater: Soils & Construction* (4th edition, Landcom, 2004), commonly referred to as the “Blue Book” and as in force at the commencement of [State Environmental Planning Policy \(Infrastructure\) Amendment 2018](#).

***bus layover*** means a location set aside for buses to park during periods between bus journeys.

**Note.**

Bus layovers may (but need not) have amenities for bus drivers to use during periods between bus journeys.

***Coastal Wetlands and Littoral Rainforests Area Map*** has the same meaning as in [State Environmental Planning Policy \(Resilience and Hazards\) 2021](#), Chapter 2.

***consent***—

- (a) when used in relation to the carrying out of development without consent, means development consent and any other type of consent, licence, permission, approval or authorisation that is required by or under an environmental planning instrument, and
- (b) when used in any other context, means development consent.

**Note.**

As a result of paragraph (a) of the definition of ***consent***, development that this Chapter provides may be carried out without development consent may also be carried out without any other consent, licence, permission, approval or authorisation that would otherwise be required by another environmental planning instrument (such as an approval to remove a tree that is subject to a tree preservation order).

Development that does not require consent under Part 4 of the Act and is not a project to which Part 3A of the Act applies or exempt development will be subject to the environmental assessment and approval requirements of Part 5 of the Act.

***consent authority*** has the same meaning as it has in the Act.

***emergency works*** means works carried out in response to—

- (a) a sudden natural event, including a storm, flood, tree fall, bush fire, land slip or coastal inundation, or
- (b) accident, equipment failure or structural collapse, or
- (c) damage caused by vandalism, arson or a pollution incident,

provided the works involve no greater disturbance to soil or vegetation than necessary and are carried out in accordance with all applicable requirements of the Blue Book.

**environmental management works** means—

- (a) works for the purpose of avoiding, reducing, minimising or managing the environmental effects of development (including effects on water, soil, air, biodiversity, traffic or amenity), and
- (b) environmental protection works.

**estimated development cost** has the same meaning as in the [Environmental Planning and Assessment Regulation 2021](#).

**flood liable land** has the same meaning as in the *Flood Risk Management Manual*.

**Flood Risk Management Manual** means the *Flood Risk Management Manual*, ISBN 978-1-923076-17-4, published by the NSW Government in June 2023.

**heritage conservation area** means land identified as a heritage conservation area or place of Aboriginal significance (or by a similar description) in an environmental planning instrument.

**heritage significance** means historic, scientific, cultural, social, archaeological, architectural, natural or aesthetic significance.

**infrastructure facility** means development that is the subject of development controls under Part 2.3.

**Lighting for Roads and Public Spaces Standard** means the following Australian and New Zealand Standards—

- (a) AS/NZS 1158.0:2005, *Lighting for roads and public spaces, Part 0: Introduction*,
- (b) AS/NZS 1158.1.1:2005, *Lighting for roads and public spaces, Part 1.1: Vehicular traffic (Category V) lighting—Performance and design requirements*,
- (c) AS/NZS 1158.1.2:2010, *Lighting for roads and public spaces, Part 1.2: Vehicular traffic (Category V) lighting—Guide to design, installation, operation and maintenance*,
- (d) AS/NZS 1158.2:2005, *Lighting for roads and public spaces, Part 2: Computer procedures for the calculation of light technical parameters for Category V and Category P lighting*,
- (e) AS/NZS 1158.3.1:2005, *Lighting for roads and public spaces, Part 3.1: Pedestrian area (Category P) lighting—Performance and design requirements*,
- (f) AS/NZS 1158.4:2009, *Lighting for roads and public spaces, Part 4: Lighting of pedestrian crossings*,
- (g) AS/NZS 1158.5:2007, *Lighting for roads and public spaces, Part 5: Tunnels and underpasses*,
- (h) AS/NZS 1158.6:2010, *Lighting for roads and public spaces, Part 6: Luminaires*.

**local heritage item** means—

- (a) a place, building, work, relic, tree, archaeological site or Aboriginal object that is identified as a heritage item (or by a similar description) in a local or regional environmental plan, or
- (b) an item of local heritage significance, as defined by the [Heritage Act 1977](#), that is the subject of an interim heritage order in force under that Act or is listed as an item of local heritage significance on the State Heritage Inventory under that Act.

**maintenance** includes repair.

**primary road** means the road to which the front of a dwelling house, or a main building, on a lot faces or is proposed to face.

**public authority**—

- (a) has the same meaning as it has in the Act, and

- (b) in respect of development connected with rail corridors or railway infrastructure facilities, includes the Australian Rail Track Corporation Limited (ACN 081 455 754).

**railway station** includes any station for a metro (within the meaning of the [Transport Administration Act 1988](#)).

**site compatibility certificate** means a certificate issued under section 2.19(5).

**Standard Instrument** means the standard local environmental planning instrument prescribed by the [Standard Instrument \(Local Environmental Plans\) Order 2006](#) made under the Act.

**State heritage item** means an item of State heritage significance, as defined by the [Heritage Act 1977](#), that is the subject of an interim heritage order in force under that Act or listed on the State Heritage Register under that Act.

**State land** means—

- (a) Crown land within the meaning of the [Crown Land Management Act 2016](#), or
- (b) any other land of the Crown or vested in a Minister on behalf of the Crown, or
- (c) land owned by a public authority other than a council.

**telecommunications facility**—see section 2.140.

**the Act** means the [Environmental Planning and Assessment Act 1979](#).

**Transport for NSW** or **TfNSW** means Transport for NSW constituted under the [Transport Administration Act 1988](#).

**waste** has the same meaning as in Schedule 3 to the [Environmental Planning and Assessment Regulation 2000](#).

**written notice** includes notice by electronic mail or facsimile.

#### Note.

The Act and the [Interpretation Act 1987](#) contain definitions and other provisions that affect the interpretation and application of this Chapter.

- (3) If this Chapter provides that development for a particular purpose that may be carried out without consent includes **construction works**, the following works or activities are (subject to and without limiting that provision) taken to be construction works if they are carried out for that purpose—
- (a) accessways,
  - (b) temporary construction yards,
  - (c) temporary lay-down areas for materials or equipment,
  - (d) temporary structures,
  - (e) investigations (including geotechnical and other testing, surveying and the placement of survey marks, and sampling),
  - (f) clearing of vegetation (including any necessary cutting, pruning, ringbarking or removal of trees) and associated rectification and landscaping,
  - (g) demolition,
  - (h) relocation or removal of infrastructure,
  - (i) extraction of extractive materials at the construction site solely for the purpose of the construction.

- (4) If this Chapter provides that development for a particular purpose that may be carried out without consent includes ***routine maintenance works***, the following works or activities are (subject to and without limiting that provision) taken to be routine maintenance works if they are carried out for that purpose—
- (a) routine repairs to or replacement of equipment or assets,
  - (b) temporary construction yards,
  - (c) clearing of vegetation (including any necessary cutting, pruning, ringbarking or removal of trees) and associated rectification and landscaping.
- (5) Notes included in this Chapter are provided for guidance and do not form part of this Chapter.

## 2.4 Interpretation—references to equivalent land use zones

- (1) A reference in this Chapter to a land use zone that is equivalent to a named land use zone is a reference to a land use zone under an environmental planning instrument that is not made as provided by section 3.20(2) of the Act —
- (a) that the Planning Secretary has determined under clause 1.6 of [\*State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008\*](#) is a land use zone in which equivalent land uses are permitted to those permitted in that named land use zone, or
  - (b) if no such determination has been made in respect of the particular zone, that is a land use zone in which (in the opinion of the relevant authority) equivalent land uses are permitted to those permitted in that named land use zone.
- (2) An assessment made by a relevant authority under subsection (1)(b) applies only in respect of the particular development that is proposed to be carried out and more than one such assessment may be made in respect of the same land use zone.
- (3) Despite subsection (1), in relation to land—
- (a) to which an environmental planning instrument that is not made as provided by section 3.20(2) of the Act applies, and
  - (b) to which a draft environmental planning instrument that complies with that section and that has been the subject of community consultation also applies,
- a reference in this Chapter to a lot or land in a named land use zone is a reference to a lot or land specified in a land use zone that is equivalent to such a zone in the last such draft environmental planning instrument that was the subject of such community consultation.
- (4) In subsection (3), ***community consultation*** means community consultation under clause 4 of Schedule 1 to the Act or public exhibition under section 66 of the Act (as continued on by clause 12 of the [\*Environmental Planning and Assessment Regulation 2000\*](#)).
- (5) In this section, ***relevant authority*** means—
- (a) the public authority proposing to carry out the development, or on whose behalf the development is proposed to be carried out, or
  - (b) if the development is to be carried out by or on behalf of a person other than a public authority, the Planning Secretary.

### Note.

Land use zones that are named in this Chapter are those set out in the standard instrument.

## 2.5 Interpretation—references to maps

- (1) A reference in this Chapter to a named map adopted by this Chapter is a reference to a map by that name—
  - (a) approved by the Minister when the map is adopted, and
  - (b) as amended or replaced from time to time by maps declared by environmental planning instruments to amend or replace that map, and approved by the Minister when the instruments are made.
- (2) Any 2 or more named maps may be combined into a single map. In that case, a reference in this Chapter to any such named map is a reference to the relevant part or aspect of the single map.
- (3) Any such maps are to be kept and made available for public access in accordance with arrangements approved by the Minister.

## 2.6 Preconditions to carrying out certain development

For the purposes of this Chapter, and despite any other provision of this Chapter, development that is subject to a precondition that must be satisfied before it may be carried out without development consent is not development that may be carried out without development consent under this Chapter until the precondition is satisfied.

## 2.7 Relationship to other environmental planning instruments

### Note.

This section is subject to section 3.28(4) of the Act.

- (1) Except as provided by subsection (2), if there is an inconsistency between this Chapter and any other environmental planning instrument, whether made before or after the commencement of this Chapter, this Chapter prevails to the extent of the inconsistency.

### Note.

Subsection (1) does not prevent a local environmental plan from making provision about development of a kind specified in Part 2.3 in a particular zone if the provisions of this Chapter dealing with development of that kind do not apply in that zone.

- (2) Except as provided by subsections (2A), (3) and (4), if there is an inconsistency between a provision of this Chapter and any of the following provisions of another environmental planning instrument, the provision of the other instrument prevails to the extent of the inconsistency—
  - (a) [\*State Environmental Planning Policy \(Resilience and Hazards\) 2021\*](#), sections 2.7, 2.8 and 2.16,
  - (b) [\*State Environmental Planning Policy \(Precincts—Central River City\) 2021\*](#), Chapter 2,
  - (c) [\*State Environmental Planning Policy \(Precincts—Eastern Harbour City\) 2021\*](#), Chapter 2,
  - (d) [\*State Environmental Planning Policy \(Precincts—Regional\) 2021\*](#), Chapter 2,
  - (e) [\*State Environmental Planning Policy \(Precincts—Western Parkland City\) 2021\*](#), Chapter 2.
- (2A) Sections 2.44A, 2.80A, 2.93A, 2.110A, 2.126A, 2.137A and 2.159A prevail over [\*State Environmental Planning Policy \(Resilience and Hazards\) 2021\*](#), section 2.7 to the extent of an inconsistency.
- (3) Section 2.54 prevails over [\*State Environmental Planning Policy \(Resilience and Hazards\) 2021\*](#), sections 2.7 and 2.8 to the extent of an inconsistency.
- (4) A provision of this Chapter that permits development for the purpose of emergency works or routine maintenance works to be carried out without consent, or that provides that development for that purpose is exempt development, prevails over [\*State Environmental Planning Policy \(Resilience and Hazards\) 2021\*](#), sections 2.7 and 2.8 to the extent of any inconsistency, but only if any adverse effect on the land concerned is restricted to the minimum possible to allow the works to be carried out.

- (5) For the avoidance of doubt, development to which subsection (2A), (3) or (4) applies is not declared designated development for the purposes of the Act.

## 2.8 Suspension of laws

- (1) The Acts, regulations and provisions of Acts specified below in relation to particular development to which this Chapter applies do not apply to that development to the extent necessary to enable the development to be carried out in accordance with this Chapter or with a consent granted under the Act—
- (a) development to which clause 7(2) of [State Environmental Planning Policy No 54—Northside Storage Tunnel](#) applied immediately before its repeal—so much of the [National Parks and Wildlife Act 1974](#) and the regulations made under that Act as would prevent or restrict the continued operation of the Northside Storage Tunnel (as defined by section 2.125),
  - (b) development to which clause 9(1) of [State Environmental Planning Policy No 63—Major Transport Projects](#) applied immediately before its repeal—section 68 of the [Local Government Act 1993](#) and sections 86, 87 and 91(b) of the [Public Works Act 1912](#),
  - (c) development to which clause 8(1) of [State Environmental Planning Policy \(Sydney Metropolitan Water Supply\) 2004](#) applied immediately before its repeal—Part 4 and Divisions 8 and 9 of Part 6 of the [Heritage Act 1977](#),
  - (d) development to which clause 9(1) of [State Environmental Planning Policy \(Sydney Metropolitan Water Supply\) 2004](#) applied immediately before its repeal—
    - (i) the [Fisheries Management Act 1994](#) and the regulations made under that Act, and
    - (ii) section 68 of the [Local Government Act 1993](#), and
    - (iii) so much of the [National Parks and Wildlife Act 1974](#) and the regulations made under that Act as would prevent or restrict the laying, maintenance or use of seawater inlet and outlet pipelines and tunnelling under Botany Bay National Park, or to a sewer line, for a desalination plant (including a pilot plant) on the Kurnell Peninsula.
- (2) This section does not affect the rights or interests of any public authority under any registered instrument.
- (3) In accordance with clause 28 of the [Environmental Planning and Assessment Act 1979](#), before the making of this Chapter, the Governor approved the making of this section with the concurrence in writing of the Ministers administering the Acts referred to in subsection (1).

## 2.9 Review of Policy

The Minister must ensure that the provisions of this Chapter are reviewed—

- (a) as soon as practicable after the first anniversary of the commencement of this Chapter, and
- (b) at least every 5 years after that commencement.

### 2.9A Savings

An application for a complying development certificate lodged before 1 May 2023 must be determined as if [State Environmental Planning Policy Amendment \(National Construction Code\) 2023](#) had not commenced.

## Part 2.2 General

### Division 1 Consultation

#### 2.10 Consultation with councils—development with impacts on council-related infrastructure or services

- (1) This section applies to development carried out by or on behalf of a public authority that this Chapter provides may be carried out without consent if, in the opinion of the public authority, the development—

- (a) will have a substantial impact on stormwater management services provided by a council, or
  - (b) is likely to generate traffic to an extent that will strain the capacity of the road system in a local government area, or
  - (c) involves connection to, and a substantial impact on the capacity of, any part of a sewerage system owned by a council, or
  - (d) involves connection to, and use of a substantial volume of water from, any part of a water supply system owned by a council, or
  - (e) involves the installation of a temporary structure on, or the enclosing of, a public place that is under a council's management or control that is likely to cause a disruption to pedestrian or vehicular traffic that is not minor or inconsequential, or
  - (f) involves excavation that is not minor or inconsequential of the surface of, or a footpath adjacent to, a road for which a council is the roads authority under the [Roads Act 1993](#) (if the public authority that is carrying out the development, or on whose behalf it is being carried out, is not responsible for the maintenance of the road or footpath).
- (2) A public authority, or a person acting on behalf of a public authority, must not carry out development to which this section applies unless the authority or the person has—
- (a) given written notice of the intention to carry out the development (together with a scope of works) to the council for the area in which the land is located, and
  - (b) taken into consideration any response to the notice that is received from the council within 21 days after the notice is given.

#### **2.11 Consultation with councils—development with impacts on local heritage**

- (1) This section applies to development carried out by or on behalf of a public authority if the development—
- (a) is likely to affect the heritage significance of a local heritage item, or of a heritage conservation area, that is not also a State heritage item, in a way that is more than minor or inconsequential, and
  - (b) is development that this Chapter provides may be carried out without consent.
- (2) A public authority, or a person acting on behalf of a public authority, must not carry out development to which this section applies unless the authority or the person has—
- (a) had an assessment of the impact prepared, and
  - (b) given written notice of the intention to carry out the development, with a copy of the assessment and a scope of works, to the council for the area in which the heritage item or heritage conservation area (or the relevant part of such an area) is located, and
  - (c) taken into consideration any response to the notice that is received from the council within 21 days after the notice is given.

#### **2.12 Consultation with councils—development with impacts on flood liable land**

- (1) (Repealed)
- (2) A public authority, or a person acting on behalf of a public authority, must not carry out, on flood liable land, development that this Chapter provides may be carried out without consent and that will change flood patterns other than to a minor extent unless the authority or person has—
- (a) given written notice of the intention to carry out the development (together with a scope of works) to the council for the area in which the land is located, and

- (b) taken into consideration any response to the notice that is received from the council within 21 days after the notice is given.

### 2.13 Consultation with State Emergency Service—development with impacts on flood liable land

- (1) A public authority, or a person acting on behalf of a public authority, must not carry out development on flood liable land that may be carried out without development consent under a relevant provision unless the authority or person has—
  - (a) given written notice of the intention to carry out the development (together with a scope of works) to the State Emergency Service, and
  - (b) taken into consideration any response to the notice that is received from the State Emergency Service within 21 days after the notice is given.
- (2) Any of the following provisions in Part 2.3 is a *relevant provision*—
  - (a) Division 1 (Air transport facilities),
  - (b) Division 2 (Correctional centres and correctional complexes),
  - (c) Division 6 (Emergency services facilities and bush fire hazard reduction),
  - (d) Division 10 (Health services facilities),
  - (e) Division 14 (Public administration buildings and buildings of the Crown),
  - (f) Division 15 (Railways),
  - (g) Division 16 (Research and monitoring stations),
  - (h) Division 17 (Roads and traffic),
  - (i) Division 20 (Stormwater management systems).
- (3) This section does not apply in relation to the carrying out of minor alterations or additions to, or the demolition of, a building, emergency works or routine maintenance.
- (4) (Repealed)

### 2.14 Consultation with councils—development with impacts on certain land within the coastal zone

- (1) This section applies to development on land that is within a coastal vulnerability area and is inconsistent with a certified coastal management program that applies to that land.
- (2) A public authority, or a person acting on behalf of a public authority, must not carry out development to which this section applies, which this Chapter provides may be carried out without development consent, unless the authority or person has—
  - (a) given written notice of the intention to carry out the development to the council for the local government area in which the land is located, and
  - (b) taken into consideration any response to the notice that is received from the council within 21 days after the notice is given.
- (3) In this section—

*certified coastal management program* has the same meaning as in [State Environmental Planning Policy \(Resilience and Hazards\) 2021](#), Chapter 2.

*coastal vulnerability area* has the same meaning as in the [Coastal Management Act 2016](#).

## 2.15 Consultation with authorities other than councils

- (1) A public authority, or a person acting on behalf of a public authority, must not carry out specified development that this Chapter provides may be carried out without consent unless the authority or person has—
  - (a) given written notice of the intention to carry out the development (together with a scope of works) to the specified authority in relation to the development, and
  - (b) taken into consideration any response to the notice that is received from that authority within 21 days after the notice is given.
- (2) For the purposes of subsection (1), the following development is *specified development* and the following authorities are *specified authorities* in relation to that development—
  - (a) development adjacent to land reserved under the [National Parks and Wildlife Act 1974](#) or to land acquired under Part 11 of that Act—the Office of Environment and Heritage,
  - (b) development on land in Zone C1 National Parks and Nature Reserves or in a land use zone that is equivalent to that zone, other than land reserved under the [National Parks and Wildlife Act 1974](#)—the Office of Environment and Heritage,
  - (c) development comprising a fixed or floating structure in or over navigable waters—Transport for NSW,
  - (d) development that may increase the amount of artificial light in the night sky and that is on land within the dark sky region as identified on the dark sky region map—the Director of the Observatory,

**Note.**

The dark sky region is land within 200 kilometres of the Siding Spring Observatory.

- (e) development on defence communications facility buffer land within the meaning of clause 5.15 of the Standard Instrument—the Secretary of the Commonwealth Department of Defence,

**Note.**

Defence communications facility buffer land is located around the defence communications facility near Morundah. See the *Defence Communications Facility Buffer Map* referred to in clause 5.15 of [Lockhart Local Environmental Plan 2012](#), [Narrandera Local Environmental Plan 2013](#) and [Urana Local Environmental Plan 2011](#).

- (f) development on land in a mine subsidence district within the meaning of the [Mine Subsidence Compensation Act 1961](#)—the Mine Subsidence Board,
  - (g) development on, or reasonably likely to have an impact on, a part of the Willandra Lakes Region World Heritage Property—the World Heritage Advisory Committee and Heritage NSW,
  - (h) development within a Western City operational area specified in the [Western Parkland City Authority Act 2018](#), Schedule 2 with an estimated development cost of \$30 million or more—the Western Parkland City Authority constituted under that Act.
- (3) In this section—
- dark sky region map** means the map marked “Dark Sky Region Map” held in the head office of the Department of Planning and Environment.

**Willandra Lakes Region World Heritage Property** means the land identified as the Willandra Lakes Region World Heritage Property on—

- (a) the [Willandra Lakes Region World Heritage Property Map](#) under [Balranald Local Environmental Plan 2010](#), or
- (b) the [Willandra Lakes Region World Heritage Property Map](#) under [Wentworth Local Environmental Plan 2011](#).

**World Heritage Advisory Committee** means the Willandra Lakes Region World Heritage Advisory Committee established under the [Environment Protection and Biodiversity Conservation Act 1999](#) of the Commonwealth, section 511.

**Note.**

Clause 18A(2) of [State Environmental Planning Policy \(Sydney Region Growth Centres\) 2006](#) requires public authorities (or persons acting on their behalf) to consult with the Department of Planning and Environment before carrying out any development comprising the clearing of native vegetation on certain land within a growth centre (within the meaning of that Policy). The land concerned is land other than the subject land (within the meaning of Part 7 of Schedule 7 to the [Threatened Species Conservation Act 1995](#)). The subject land is generally land to which precinct plans apply under that Policy.

## 2.16 Consideration of Planning for Bush Fire Protection

(1) This section applies to development for the following purposes that this Chapter provides may be carried out without development consent—

- (a) health services facilities,
- (b) correctional centres,
- (c) residential accommodation.

(2) A public authority, or a person acting on behalf of a public authority, must consider *Planning for Bush Fire Protection* before carrying out the development in an area that is bush fire prone land.

(3) In this section—

**bush fire prone land** means land recorded for the time being as bush fire prone land on a map certified under the Act, section 10.3(2).

**Planning for Bush Fire Protection** means the document prescribed by the [Environmental Planning and Assessment Regulation 2021](#), section 271.

## 2.17 Exceptions

(1) Sections 2.10–2.15 do not apply with respect to development to the extent that—

- (a) they would require notice of the intention to carry out the development to be given to a council or public authority from whom an approval is required in order for the development to be carried out lawfully, or
- (b) they would require notice to be given to a council or public authority with whom the public authority that is carrying out the development, or on whose behalf it is being carried out, has an agreed consultation protocol that applies to the development, or
- (c) they would require notice to be given to a council or public authority that is carrying out the development or on whose behalf it is being carried out, or
- (d) the development is exempt development or complying development under any environmental planning instrument (including this Chapter), or
- (e) the development comprises emergency works, or
- (f) the development is carried out in accordance with a code of practice approved by the Minister for the purposes of this section and published in the Gazette.

(2) In this section—

**approval** means any licence, permission or any form of authorisation, other than development consent, under any other law.

**consultation protocol** means an arrangement that—

- (a) is about when and how the parties to the arrangement will consult one another about proposed development, and
- (b) is recorded in writing, and
- (c) is approved in writing on behalf of any public authority that is a party to the arrangement by a person who is authorised to do so.

## Division 2 Additional uses of State land

### Note.

Consent for development under this Division may be granted only if the development is the subject of a certificate of the Planning Secretary certifying that the development is compatible with surrounding land uses. The provisions of this Division extend to the classes of development specified in sections 2.60(2) and 62(1).

### 2.18 Additional uses of certain State land permitted

- (1) In this section, *prescribed State land* means State land that is—
  - (a) not subject to a standard local environmental plan made as provided by section 3.20(2) of the Act, and
  - (b) not zoned for conservation purposes under an environmental planning instrument, and
  - (c) not a forestry area within the meaning of the [Forestry Act 2012](#), and
  - (d) not reserved under the [National Parks and Wildlife Act 1974](#), and
  - (e) not reserved under the [Crown Land Management Act 2016](#) for a public purpose that, in the opinion of the Planning Secretary, is an environmental protection or nature conservation purpose.
- (2) Development on land for a purpose that is permitted without consent by the zoning of that land may be carried out without consent on adjacent land that is prescribed State land despite any local environmental plan applying to that adjacent land.

### Note.

This subsection and subsection (3) apply whether or not the land to which the relevant zoning applies and the adjacent State land (or former State land) are subject to the same environmental planning instruments.

- (3) Development on land for a purpose that is permitted with consent by the zoning of that land may be carried out with consent on adjacent land, despite any local environmental plan applying to that adjacent land, if—
  - (a) there is a valid site compatibility certificate applying to the development, and
  - (b) the adjacent land was prescribed State land when the Planning Secretary issued the certificate.
- (4) However, subsection (3) does not apply in relation to the development if the adjacent land concerned is no longer prescribed State land because it is—
  - (a) a forestry area within the meaning of the [Forestry Act 2012](#), or
  - (b) reserved under the [National Parks and Wildlife Act 1974](#), or
  - (c) reserved under the [Crown Land Management Act 2016](#) for a public purpose that, in the opinion of the Planning Secretary, is an environmental protection or nature conservation purpose.
- (5) This section does not—
  - (a) prevent a consent authority from—
    - (i) granting consent for development on a site by reference to site and design features that are more stringent than those identified in a site compatibility certificate for the same site, or

- (ii) refusing to grant consent for development by reference to the consent authority's own assessment of the compatibility of the development with the surrounding land uses, or
- (b) otherwise limit the matters to which a consent authority may have regard in determining a development application for development to which this section applies.
- (6) Land is adjacent to other land for the purpose of this section even if it is separated from that other land by a road, or road related area, as defined by the [Road Transport \(General\) Act 2005](#).
- (7) In this section, a reference to land **zoned for conservation purposes** means land in any of the following land use zones or in a land use zone that is equivalent to any of those zones—
  - (a) RE1 Public Recreation,
  - (b) C1 National Parks and Nature Reserves,
  - (c) C2 Environmental Conservation,
  - (d) W1 Natural Waterways.

## Division 3 Site compatibility certificates

### 2.19 Site compatibility certificates

- (1) An application for a site compatibility certificate for the purpose of section 2.18, 2.60(3) or 63C(2)(a) may be made to the Planning Secretary—
  - (a) by the owner of the land on which the development is proposed to be carried out, or
  - (b) by any other person with the consent of the owner of that land.
- (2) An application under this section—
  - (a) must be in writing in the form approved by the Planning Secretary, and
  - (b) must be accompanied by such documents and information as the Planning Secretary may require, and
  - (c) must be accompanied by such fee, if any, as is prescribed by the regulations.
- (3) The Planning Secretary may request further documents and information to be furnished in connection with an application under this section.
- (4) Within 7 days after the application is made, the Planning Secretary must provide a copy of the application to the council for the area in which the development concerned is proposed to be carried out, unless the Planning Secretary refuses, before those 7 days have elapsed, to issue a certificate.
- (5) Subject to subsection (6), the Planning Secretary may determine the application by issuing a certificate or refusing to do so.
- (6) The Planning Secretary must not issue a certificate unless the Planning Secretary—
  - (a) has taken into account any comments received from the council within 21 days after the application for the certificate was made, and
  - (b) is of the opinion that the development concerned is compatible with the surrounding land uses having regard to the following matters—
    - (i) the existing uses and approved uses of land in the vicinity of the development,
    - (ii) the impact that the development (including its bulk and scale) is likely to have on the existing uses, approved uses and uses that, in the opinion of the Planning Secretary, are likely to be the preferred future uses of that land,

- (iii) the services and infrastructure that are or will be available to meet the demands arising from the development, and
- (c) is of the opinion that the development concerned is not likely to have an adverse effect on the environment and does not cause any unacceptable environmental risks to the land.
- (7) A certificate may certify that the development to which it relates is compatible with the surrounding land uses only if it satisfies certain requirements specified in the certificate.
- (8) A certificate continues to apply to the land in respect of which it was issued despite any change in the ownership of that land.
- (9) A certificate is valid for 5 years or such other period specified in the certificate.

## Division 4 Exempt development

### Note 1.

Section 4.1 of the Act contains requirements applying to exempt development.

### Note 2.

In addition to the requirements set out in this Chapter in relation to exempt development, adjoining owners' property rights, the applicable common law and other legislative requirements for approvals, licences, permits and authorities still apply. For example, requirements relevant to the kind of exempt development concerned may be contained in the Act, the [Environmental Planning and Assessment Regulation 2000](#), various State environmental planning policies, the [Protection of the Environment Operations Act 1997](#), the [Roads Act 1993](#) and Acts applying to various infrastructure authorities. If the development is in proximity to infrastructure, including water, stormwater and sewer mains, electricity power lines and telecommunications facilities, the relevant infrastructure authority should be contacted before commencing the development.

### 2.20 General requirements for exempt development

- (1) This section applies to any development that this Chapter provides is exempt development.

#### Note.

Section 2.21 and other provisions of this Chapter identify kinds of development that are exempt development if they meet the requirements of this section.

- (2) To be exempt development, the development—

- (a) must meet the relevant deemed-to-satisfy provisions of the *Building Code of Australia*, or if there are no such relevant provisions, must be structurally adequate, and
- (b) must not, if it relates to an existing building—
  - (i) cause the building to contravene the *Building Code of Australia*, or
  - (ii) compromise the fire safety of the building or affect access to any fire exit, and
- (c) must be carried out in accordance with all relevant requirements of the Blue Book, and
- (d) must not be designated development, and

#### Note.

Designated development is defined in section 4.10 of the Act as development that is declared to be designated development by an environmental planning instrument or the regulations.

- (e) if it is likely to affect a State or local heritage item or a heritage conservation area, must involve no more than minimal impact on the heritage significance of the item or area, and
- (f) must not involve the demolition of a building or work that is, or is part of, a State or local heritage item, and
- (g) if it involves the demolition of a building, must be carried out in accordance with Australian Standard AS 2601—2001, *The demolition of structures*, and
- (h) must be installed in accordance with the manufacturer's specifications, if applicable, and

- (i) must not involve the removal or pruning of a tree or other vegetation that requires a permit or development consent for removal or pruning, unless that removal or pruning is undertaken in accordance with a permit or development consent, and

**Note.**

A permit for the removal or pruning of a tree or other vegetation may be granted under a local environmental plan. A development consent for the removal of native vegetation may be granted under the [Native Vegetation Act 2003](#).

- (j) must not involve the removal of asbestos, unless that removal is undertaken in accordance with *Code of practice: How to safely remove asbestos* published by SafeWork NSW in December 2022.

## 2.21 Exempt development carried out by public authorities for purposes in Schedule 1

- (1) Development for a purpose specified in Schedule 1 is exempt development if—
  - (a) it is carried out by or on behalf of a public authority, and
  - (b) it meets the development standards for the development specified in Schedule 1, and
  - (c) it complies with section 2.20.
- (2) This section does not apply to development carried out by public authorities in connection with an existing educational establishment.

**Note.**

Chapter 3 provides for exempt development carried out by public authorities in connection with an existing educational establishment.

- (3) Any other provision of this Chapter prevails over Schedule 1 of this Policy to the extent of any inconsistency.

## Division 5 Complying development

**Note.**

Clause 1.17A of [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#) contains requirements that must be met for development to be complying development.

## 2.22 General requirements for complying development

- (1) This section applies to any development that this Chapter provides is complying development.
- (2) To be complying development, the development must—
  - (a) not be exempt development under this Chapter, and
  - (b) be permissible, with consent, under an environmental planning instrument applying to the land on which the development is carried out, and

**Note.**

Accordingly, development that is permitted to be carried out without consent is not complying development.

- (c) meet the relevant provisions of the *Building Code of Australia*, and
- (d) must be carried out in accordance with the relevant provisions of the Blue Book, and
- (e) before the complying development certificate is issued, have written consent from the relevant roads authority, if required by the [Roads Act 1993](#)—
  - (i) for each opening of a public road required by the development, and
  - (ii) to operate or store machinery, materials or waste required by the development on a road or footpath reserve, and

- (f) if it is the alteration or erection of improvements on land in a mine subsidence district within the meaning of the [Mine Subsidence Compensation Act 1961](#), have the prior approval of the Mine Subsidence Board, and

**Note.**

Information about mine subsidence is information that is a prescribed matter for the purpose of a planning certificate under section 10.7(2) of the Act.

- (g) not involve the removal or pruning of a tree or other vegetation that requires a permit or development consent for removal or pruning, unless that removal or pruning is undertaken in accordance with a permit or development consent, and

**Note.**

A permit for the removal or pruning of a tree or other vegetation may be granted under a local environmental plan. A development consent for the removal of native vegetation may be granted under the [Native Vegetation Act 2003](#).

- (h) not be carried out within 1m of any public sewer, if the development comprises the erection of a building, except with the written approval of the authority that has management or control of that sewer, and
- (i) not involve the removal of asbestos, unless that removal is undertaken in accordance with *Code of practice: How to safely remove asbestos* published by SafeWork NSW in December 2022.

## 2.23 General conditions of complying development certificates

**Note.**

The [Protection of the Environment Operations Act 1997](#) and the [Protection of the Environment Operations \(Noise Control\) Regulation 2017](#) contain provisions relating to noise.

- (1) **General** A complying development certificate for complying development under this Chapter is subject to the conditions specified in this section.

**Note.**

The regulations made under the Act contain additional conditions of a complying development certificate.

- (2) **Conditions applying before works commence** A temporary hoarding or temporary construction site fence must be erected between the work site and adjoining lands before the works begin and must be kept in place until after the completion of works if the works—
- (a) could cause a danger, obstruction or inconvenience to pedestrian or vehicular traffic, or
  - (b) could cause damage to adjoining lands by falling objects, or
  - (c) involve the enclosure of a public place or part of a public place.

**Note.**

See the entry for hoardings in Schedule 1. See also the entry for scaffolding, hoardings and temporary construction site fences in the General Exempt Development Code in [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#).

- (3) Toilet facilities must be available or provided at the work site before works begin and must be maintained until the works are completed at a ratio of one toilet plus one additional toilet for every 20 persons employed at the site.
- (4) Each toilet must—
- (a) be a standard flushing toilet connected to a public sewer, or
  - (b) have an on-site effluent disposal system approved under the [Local Government Act 1993](#), or
  - (c) be a temporary chemical closet approved under the [Local Government Act 1993](#).
- (5) A garbage receptacle must be provided at the work site before works begin and must be maintained until the works are completed.

- (6) **Conditions applying during works** Construction or demolition may only be carried out between 7.00 am and 5.00 pm on Monday to Saturday and no construction or demolition is to be carried out at any time on a Sunday or a public holiday.
- (7) Works must be carried out in accordance with the plans and specifications to which the complying development certificate relates.
- (8) If works involve the demolition of a building, demolition must be carried out in accordance with Australian Standard AS 2601—2001, *The demolition of structures*.
- (9) Erosion and sediment controls must be effectively maintained until the site has been stabilised and landscaped.
- (10) If any object (other than an Aboriginal object) having interest due to its age or association with the past is discovered during the course of the work—
- (a) all work must stop immediately, and
  - (b) the Office of Environment and Heritage must be advised of the discovery.

**Note.**

Depending on the nature and significance of the object, an archaeological assessment and excavation permit under the [Heritage Act 1977](#) may be required before the work can continue.

- (11) If any Aboriginal object (including any evidence of habitation or remains) is discovered during the course of the work—
- (a) all work must stop immediately, and
  - (b) the Chief Executive of the Office of Environment and Heritage must be advised of the discovery in accordance with section 89A of the [National Parks and Wildlife Act 1974](#).

**Note.**

If an Aboriginal object is discovered, an Aboriginal heritage impact permit may be required under the [National Parks and Wildlife Act 1974](#).

- (12) Dirt, sand and other materials relating to the construction or other work comprised in the development and loaded on to any vehicles entering or leaving the site must be covered.
- (13) All vehicles, before leaving the site, must be cleaned of dirt, sand or other materials that have adhered during that construction or other work and could be tracked onto public roads.
- (14) Building, or demolition, materials and equipment must be stored wholly within the work site unless an approval to store them elsewhere is held.
- (15) Demolition materials and waste materials must be sorted, and must be disposed of at a waste or resource management facility.
- (16) The work site must be left clear of waste and debris at the completion of the works.
- (17) **Utility services** If the complying development requires alteration to, or the relocation of, utility services on the lot on which the complying development is carried out, the complying development is not complete until all such works are carried out.
- (18) **Post-works requirements** If—
- (a) the development involves the erection or change of use of a building within a water supply authority's area of operations, and
  - (b) the water supply authority requires a certificate of compliance to be obtained with respect to the erection or change of use of the building,

the building cannot be occupied before such a certificate has been obtained.

(19) In this section—

***certificate of compliance***, in relation to a water supply authority, means a certificate of compliance issued by the water supply authority under the Act under which the water supply authority is constituted.

***water supply authority*** means—

- (a) the Sydney Water Corporation, the Hunter Water Corporation or a water supply authority within the meaning of the [Water Management Act 2000](#), or
- (b) a council or county council exercising water supply, sewerage or stormwater drainage functions under Division 2 of Part 3 of Chapter 6 of the [Local Government Act 1993](#).

## Part 2.3 Development controls

### Division 1 Air transport facilities

#### 2.24 Development permitted without consent

- (1) Development for the purpose of an airport may be carried out by or on behalf of a public authority without consent on land in any of the following land use zones or in a land use zone that is equivalent to any of those zones—
  - (a) RU1 Primary Production,
  - (b) RU2 Rural Landscape,
  - (c) IN4 Working Waterfront,
  - (d) SP1 Special Activities,
  - (e) SP2 Infrastructure,
  - (f) W2 Recreational Waterways,
  - (g) W3 Working Waterways,
  - (h) W4 Working Waterfront.
- (2) Development for the purpose of an air transport facility, being a heliport that is not part of an airport, may be carried out by or on behalf of a public authority without consent on land in any of the following land use zones or in a land use zone that is equivalent to any of these zones—
  - (a) RU1 Primary Production,
  - (b) RU2 Rural Landscape,
  - (c) RU4 Primary Production Small Lots,
  - (c1) E4 General Industrial,
  - (c2) E5 Heavy Industrial,
  - (d) IN1 General Industrial,
  - (e) IN2 Light Industrial,
  - (f) IN3 Heavy Industrial,
  - (g) IN4 Working Waterfront,

- (h) SP1 Special Activities,
- (i) SP2 Infrastructure,
- (j) W2 Recreational Waterways,
- (k) W3 Working Waterways,
- (l) W4 Working Waterfront.

(3) A reference in this section to development for the purpose of an air transport facility includes a reference to development for any of the following purposes if the development is in connection with an air transport facility—

- (a) construction works,
- (b) fencing, drainage or vegetation management.

## 2.25 Development permitted with consent

Development for any of the following purposes may be carried out with consent on land within the boundaries of an existing air transport facility if the development is ancillary to the air transport facility—

- (a) passenger transport facilities,
- (b) facilities for the receipt, forwarding or storage of freight,
- (c) hangars for aircraft storage or maintenance,
- (d) commercial premises,
- (e) industries,
- (f) recreation areas, recreation facilities (indoor) or recreation facilities (outdoor),
- (g) residential accommodation,
- (h) tourist and visitor accommodation.

## Division 2 Correctional centres and correctional complexes

### 2.26 Definitions

In this Division—

***correctional centre*** means—

- (a) any premises declared to be a correctional centre by a proclamation in force under section 225 of the [Crimes \(Administration of Sentences\) Act 1999](#), including any juvenile correctional centre declared under section 225A of that Act, and
- (b) any premises declared to be a detention centre by an order in force under section 5(1) of the [Children \(Detention Centres\) Act 1987](#),

but does not include any police station or court cell complex in which a person is held in custody in accordance with any Act.

***correctional complex*** means any premises declared to be a correctional complex by a proclamation in force under section 224 of the [Crimes \(Administration of Sentences\) Act 1999](#).

***prescribed zone*** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a) RU2 Rural Landscape,
- (b) RU4 Primary Production Small Lots,
- (c) RU6 Transition,
- (c1) MU1 Mixed Use,
- (d) B4 Mixed Use,
- (e) SP1 Special Activities,
- (f) SP2 Infrastructure.

#### **2.27 Development permitted with consent**

- (1) Development for the purpose of correctional centres may be carried out by or on behalf of a public authority with consent on land in a prescribed zone or within the boundaries of an existing correctional complex.
- (2) A reference in this section to development for the purpose of correctional centres includes a reference to development for any of the following purposes if the development is associated with a correctional centre—
  - (a) accommodation for staff,
  - (b) administration buildings,
  - (c) car parks for visitors and staff,
  - (d) educational establishments,
  - (e) group homes,
  - (f) health services facilities,
  - (g) industries,
  - (h) recreational facilities.

#### **2.28 Development permitted without consent**

- (1) Development for any of the following purposes may be carried out by or on behalf of a public authority without consent on any land if the development is carried out within the boundaries of an existing correctional centre—
  - (a) replacement of buildings,
  - (b) alterations of, or additions to, a correctional centre,
  - (c) demolition of buildings.
- (2) Development for any of the following purposes may be carried out by or on behalf of a public authority without consent on any land if the development is carried out within the boundaries of an existing correctional complex—
  - (a) transitional group homes that each contain not more than 5 bedrooms and accommodate fewer residents than the number equal to the number calculated by multiplying the number of bedrooms in the home by 2,
  - (b) sporting facilities or additions to sporting facilities, if the development does not involve clearing of more than 2 hectares of native vegetation,
  - (c) demolition of buildings,
  - (d) replacement of accommodation, administration or other facilities in a correctional complex,

- (e) alterations of, or additions to, a building within a correctional complex,
  - (f) construction or realignment of security fencing with a height of not more than 12 metres above ground level (existing),
  - (g) ancillary facilities, such as car parks, storage buildings, facilities used for the purpose of educating prisoners, administration buildings, utilities and gate houses, if any such facility does not exceed 1 storey and is setback at least 5 metres from any boundary with a residential zone and at least 1 metre from any other zone boundary.
- (3) Development for any of the following purposes may be carried out by or on behalf of a public authority without consent on land identified on the [Correctional Centres Map](#)—
- (a) correctional centres, if the land is identified as “Centre” on the [Correctional Centres Map](#),
  - (b) ancillary facilities, such as car parks, storage buildings, facilities used for the purpose of educating prisoners, administration buildings, utilities and gate houses, provided any such facility is erected within the boundaries of a correctional complex.
- (4) In this section, *Correctional Centres Map* means the [State Environmental Planning Policy \(Infrastructure\) 2007 Correctional Centres Map](#).

## 2.29 Exempt development

Development for any of the following purposes is exempt development if it complies with section 2.20 and is carried out by or on behalf of a public authority within the boundaries of an existing correctional centre—

- (a) demolition of buildings, if the footprint of the building covers an area no greater than 250 square metres,
- (b) at grade car parks,
- (c) outdoor recreational facilities, including playing fields and associated earthworks,
- (d) environmental management works,
- (e) landscaping, including landscape structures or features and irrigation systems (whether or not they use recycled water),
- (f) emergency or maintenance works in relation to security fences.

## 2.30 Complying development

- (1) Development carried out by or on behalf of a public authority on land within the boundaries of an existing correctional centre is complying development if—
- (a) the development consists of the replacement of, construction of, or alterations or additions to accommodation, administration or other facilities, and
  - (b) the development complies with this section and section 2.22 (General requirements for complying development).
- (2) The following are the development standards for complying development under this section—
- (a) **Building height standard.** The building height of a building must not exceed 12 metres.
  - (b) **Side and rear setback standard.** A building must be located at least 5 metres from any side or rear boundary of the land.

## Division 3 Data centres

### 2.31 Development permitted with consent

- (1) Development for the purpose of data centres may be carried out by any person with consent on land in a prescribed zone.
- (2) In this section—

***prescribed zone*** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a1) E3 Productivity Support,
- (a2) E4 General Industrial,
- (a3) E5 Heavy Industrial,
- (a) B5 Business Development,
- (b) B6 Enterprise Corridor,
- (c) B7 Business Park,
- (d) IN1 General Industrial,
- (e) IN2 Light Industrial,
- (f) IN3 Heavy Industrial,
- (g) Zone SP4 Enterprise under the following local environmental plans—
  - (i) [\*Canada Bay Local Environmental Plan 2013\*](#),
  - (ii) [\*Central Coast Local Environmental Plan 2022\*](#),
  - (iii) [\*Penrith Local Environmental Plan 2010\*](#),
  - (iv) [\*Pittwater Local Environmental Plan 2014\*](#),
  - (v) [\*Port Macquarie-Hastings Local Environmental Plan 2011\*](#),
  - (vi) [\*Sutherland Shire Local Environmental Plan 2015\*](#),
  - (vii) [\*The Hills Local Environmental Plan 2019\*](#),
  - (viii) [\*Warringah Local Environmental Plan 2011\*](#).

## Division 3A Dog-proof fences in Western Division of State

### 2.32 Definitions

In this Division—

***border fence*** means the Queensland Border Fence, the South Australian Border Fence and an extended border fence.

***dog-proof fence***, ***Queensland Border Fence*** and ***South Australian Border Fence*** have the same meanings as in the [\*Border Fence Maintenance Act 1921\*](#).

***extended border fence*** means a dog-proof fence that is an extension of the Queensland Border Fence or the South Australian Border Fence.

***relevant land*** means land in the Western Division that is along and in the vicinity of the borders between New South Wales and South Australia and New South Wales and Queensland and includes land in the vicinity of the Queensland Border Fence or the South Australian Border Fence.

**Western Division** has the same meaning as in the [Crown Land Management Act 2016](#).

### 2.33 Development permitted without consent

- (1) Development for the following purposes may be carried out by any person without development consent on relevant land—
  - (a) maintenance or reconstruction of a border fence,
  - (b) the laying of a clay surface alongside a border fence to stabilise it and any associated excavation.
- (2) Development for the purposes of the construction of an extended border fence may be carried out by or on behalf of a public authority without development consent on relevant land.

### 2.34 Exempt development

- (1) Development on relevant land in connection with a dog-proof fence for the following purposes is exempt development—
  - (a) emergency repairs,
  - (b) installation, maintenance or removal of gates, signage or wires.
- (2) Development is exempt development under this section only if the development—
  - (a) complies with section 2.20, and
  - (b) involves no greater disturbance to the ground or native vegetation than necessary, and
  - (c) does not disturb any ground or native vegetation that is more than 8 metres from the dog-proof fence.

## Division 4 Electricity generating works or solar energy systems

### 2.35 Definitions

In this Division—

**electricity generating works** means a building or place used for the following purposes, but does not include a solar energy system—

- (a) making or generating electricity,
- (b) electricity storage.

**prescribed non-residential zone** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a) RU1 Primary Production,
- (b) RU2 Rural Landscape,
- (c) RU3 Forestry,
- (d) RU4 Primary Production Small Lots,
- (e) E4 General Industrial,
- (f) E5 Heavy Industrial,
- (g) IN1 General Industrial,
- (h) IN2 Light Industrial,
- (i) IN3 Heavy Industrial,

- (j) IN4 Working Waterfront,
- (k) SP1 Special Activities,
- (l) SP2 Infrastructure,
- (m) W4 Working Waterfront.

***prescribed residential zone*** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a) Zone R1 General Residential,
- (b) Zone R2 Low Density Residential,
- (c) Zone R3 Medium Density Residential,
- (d) Zone R4 High Density Residential,
- (e) Zone R5 Large Lot Residential,
- (f) Zone RU5 Village.

***prescribed rural zone*** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a) Zone RU1 Primary Production,
- (b) Zone RU2 Rural Landscape,
- (c) Zone RU3 Forestry,
- (d) Zone RU4 Primary Production Small Lots.

***small wind turbine*** means a wind turbine that has a generating capacity of no more than 100kW.

***small wind turbine system*** means a system comprising one or more small wind turbines each of which feed into the same grid or battery bank.

***small-scale battery system*** means a battery system designed only for the purposes of the storage of photovoltaic solar energy generated from a solar energy system.

***solar energy system*** means any of the following systems—

- (a) a photovoltaic electricity generating system used for the primary purpose of generating electricity for a land use —
  - (i) carried out on the land on which the system is located, or
  - (ii) carried out by the owner of the system on adjoining land,
- (b) a solar hot water system,
- (c) a solar air heating system.

***waste or resource management facility*** has the same meaning as in the Standard Instrument.

## 2.36 Development permitted with consent

- (1) Development for the purpose of electricity generating works may be carried out by any person with consent on the following land—

- (a) in the case of electricity generating works comprising a building or place used for the purpose of making or generating electricity using waves, tides or aquatic thermal as the relevant fuel source—on any land,
  - (b) in any other case—any land in a prescribed non-residential zone.
- (2) Development for the purpose of a back-up electricity generating plant that operates for not more than 200 hours in any year may be carried out by any person with consent on any land.
- (3) Development for the purpose of the expansion of existing electricity generating works may be carried out by or on behalf of a public authority with consent on any land that is adjacent to the existing works.
- (4) Consent is not required to carry out any such development on land if the development could, but for subsection (3), be carried out on that land without consent.
- (5) Development for the purpose of, or resulting in, a change of fuel source of an existing coal or gas fired generating works by a proportion of more than 5 per cent in any 12 month period may only be carried out with consent.
- (6) If, under any environmental planning instrument (including this Chapter), development for the purpose of—
- (a) industry, or
  - (b) a waste or resource management facility,
- may be carried out on land with consent, development for the purpose of electricity generating works that generate energy from waste, or from gas generated by waste, may also be carried out by any person with consent on that land.

**Note—**

Thermal energy from waste development is regulated by Division 28.

- (7) Without limiting subsection (1), development for the purpose of a small wind turbine system may be carried out by any person with consent on any land.
- (8) However, subsection (7) only applies in relation to land in a prescribed residential zone if—
- (a) the small wind turbine system has the capacity to generate no more than 10kW, and
  - (b) the height of any ground-mounted small wind turbine in the system from ground level (existing) to the topmost point of the wind turbine is no more than 18m.
- (9) **Solar energy systems** Development for the purpose of a solar energy system may be carried out by any person with consent on any land.

**2.37 Other development permitted with consent where electricity generating works permitted**

If, under any environmental planning instrument (including this Chapter), development for the purpose of coal-fired or gas-fired electricity generating works may be carried out on land with consent, development for the purpose of industry may also be carried out by any person with consent on that land if the industry—

- (a) is located close to the works, and
- (b) provides opportunities for energy efficiency or co-generation in the operation of the works.

**2.38 Development permitted without consent**

- (1) Development for any of the following purposes may be carried out by or on behalf of a public authority without consent on any land—
- (a) the generation or distribution of hydro-electric power using existing dam infrastructure,
  - (b) routine maintenance of, or emergency works relating to, electricity generating works,

(c) the installation of plant that—

- (i) is on the site of, and required in connection with, existing electricity generating works, and
- (ii) does not increase the existing electricity generating capacity of the works by more than 2 percent.

- (2) In subsection (1)(c), **existing electricity generating capacity** of works includes the electricity generating capacity of the works, as changed from time to time as a result of the alteration of the works (other than solely as a result of alterations that have been carried out in reliance on that paragraph).
- (3) If, under any environmental planning instrument (including this Chapter), development for the purpose of sewage treatment plants may be carried out on land without consent, development for the purpose of electricity generating works that generate energy from waste, or from gas generated by waste, may also be carried out by any person without consent on that land.

**Note—**

Thermal energy from waste development is regulated by Division 28.

- (4) **Solar energy systems** Development for the purpose of a solar energy system may be carried out by or on behalf of a public authority without consent on any land if it is ancillary to—

- (a) an existing infrastructure facility, or
- (b) an educational establishment within the meaning of [State Environmental Planning Policy \(Educational Establishments and Child Care Facilities\) 2017](#).

## 2.39 Complying development

- (1) **Small wind turbine systems** Development for the purpose of a small wind turbine system is complying development on any land if—

- (a) the development complies with section 2.22, and
- (b) the land is not in a heritage conservation area, and
- (c) the system is installed no less than—
  - (i) 25 metres—in the case of a system that has a source sound power level of 0–70 dB(A), or
  - (ii) 40 metres—in the case of a system that has a source sound power level of 71–80 dB(A), or
  - (iii) 126 metres—in the case of a system that has a source sound power level of 81–90 dB(A), or
  - (iv) 200 metres—in the case of a system that has a source sound power level of more than 91 dB(A), or
  - (v) 200 metres—in the case of a system that has an unknown source sound power level,
 from any dwelling that is not owned or occupied by the owner of the system, and
- (d) the system is located clear of any works, including power lines, of any relevant network operator (within the meaning of the [Electricity Supply Act 1995](#)) and complies with any requirements of the network operator that relate to clearance from those works, and
- (e) the system is installed in accordance with the manufacturer's specifications or by a person who is endorsed for the design and installation of small wind turbine systems under the Clean Energy Council's wind endorsement scheme, and
- (f) in the case of any ground-mounted small wind turbine in the system—the turbine does not penetrate any obstacle limitation surface shown on any relevant Obstacle Limitation Surface Plan that has been prepared by the operator of an aerodrome or airport operating within 2 kilometres of the proposed development and reported to the Civil Aviation Safety Authority, and

(g) in the case of land in a prescribed residential zone—

(i) the system has the capacity to generate no more than 10kW, and

(ii) if the system is ground-mounted—

(A) the development will result in no more than one small wind turbine being situated on the lot concerned, and

(B) the small wind turbine has a height of not more than 18m above ground level (existing), and

(C) the small wind turbine is not installed forward of any existing building line on the lot concerned that faces a primary road, and

(iii) if the system is not ground-mounted—

(A) the development will result in no more than 2 small wind turbines being situated on the lot concerned, and

(B) each small wind turbine does not protrude more than 3m above any building to which it is attached (as measured from the point of attachment), and

(C) each small wind turbine is not attached to a wall or roof facing a primary road, and

(h) in the case of land in a prescribed non-residential zone—

(i) the system has the capacity to generate no more than 100kW, and

(ii) if the system is ground-mounted—

(A) the development will result in no more than 3 small wind turbines being situated on the lot concerned, and

(B) each small wind turbine has a height of not more than 35m above ground level (existing), and

(iii) if the system is not ground-mounted—

(A) the development will result in no more than 4 small wind turbines being situated on the lot concerned, and

(B) each small wind turbine does not protrude more than 5m above any building to which it is attached (as measured from the point of attachment), and

(i) in the case of land in any land use zone other than a land use zone referred to in paragraph (g) or (h)—

(i) the system has the capacity to generate no more than 100kW, and

(ii) if the system is ground-mounted—

(A) the development will result in no more than 2 small wind turbines being situated on the lot concerned, and

(B) each small wind turbine has a height of not more than 26m above ground level (existing), and

(iii) if the system is not ground-mounted—

(A) the development will result in no more than 4 small wind turbines being situated on the lot concerned, and

(B) each small wind turbine does not protrude more than 5m above any building to which it is attached (as measured from the point of attachment).

(2) **Solar energy systems** Development for the purpose of a solar energy system is complying development on any land if—

- (a) the development complies with section 2.22, and
- (b) the land is not in a heritage conservation area, and
- (c) in the case of development for the purposes of a photovoltaic electricity generating system—the system is installed in accordance with the manufacturer’s specifications or by a person who is accredited by the Clean Energy Council for the installation of photovoltaic electricity generating systems, and
- (d) in the case of development for the purposes of a system other than a photovoltaic electricity generating system—the system is installed in accordance with the manufacturer’s specifications, and
- (e) in the case of a system that is ground-mounted—
  - (i) the total area occupied by the system (together with any other ground-mounted solar energy system on the lot concerned) does not exceed 500m<sup>2</sup>, and
  - (ii) the system has a height of not more than 10m above ground level (existing), and
  - (iii) the system is installed no less than 10m from any adjoining property boundary, and
  - (iv) if the system involves the use of mirrors or lenses to reflect or concentrate sunlight—the system is installed no less than 100m from any dwelling or other building that is not owned or occupied by the owner of the system, and
  - (v) if the solar energy system is a photovoltaic electricity generating system having the capacity to generate 10kW or more—the system is installed no less than 50m from any dwelling that is not owned or occupied by the owner of the system, and
- (f) in the case of a system that is not ground-mounted—
  - (i) the development does not reduce the structural integrity of, or involve structural alterations to, any building to which the system is attached, and

**Note.**

The term **building** is defined in the [Environmental Planning and Assessment Act 1979](#) as including any structure.

- (ii) the system does not involve mirrors or lenses to reflect or concentrate sunlight, and
  - (iii) if the land is in a prescribed residential zone and the system is attached to a wall or roof facing a primary road—the system does not protrude more than 0.5m from the wall or roof (as measured from the point of attachment), and
  - (iv) if the land is in a prescribed residential zone and the system is not attached to a wall or roof facing a primary road—
    - (A) the system does not protrude more than 1.5m from any building to which it is attached (as measured from the point of attachment), and
    - (B) the system is installed no less than 1m from any adjoining property boundary if the system protrudes more than 0.5m from any building to which it is attached (as measured from the point of attachment), and
  - (v) the system does not protrude more than 3m from any building to which it is attached (as measured from the point of attachment) if the land is in a land use zone other than a prescribed residential zone.
- (3) For the purposes of subsection (1)(c), a **source sound power level** is a level that is measured at a wind speed of no less than 8 metres per second and in accordance with the International Standard IEC 61400—11 *Noise Measurement*.

## 2.40 Prohibited development

Development on any land for the purpose of electricity generating works that burn native forest bio-material, within the meaning of the [Protection of the Environment Operations \(General\) Regulation 2022](#), Chapter 9, Part 3, is prohibited.

## 2.41 Exempt development

- (1) **Small wind turbine systems** Development for the purpose of a small wind turbine system is exempt development on land in a prescribed rural zone if—
- (a) it complies with section 2.20 (other than section 2.20(2)(h)), and
  - (b) the system is ground-mounted, and
  - (c) each small wind turbine has a height of not more than 35m from ground level (existing), and
  - (d) each small wind turbine is installed no less than 200m from any dwelling that is not owned or occupied by the owner of the system, and
  - (e) the development will result in no more than 2 small wind turbines being situated on the lot concerned, and
  - (f) each small wind turbine is located clear of any works, including power lines, of any relevant network operator (within the meaning of the [Electricity Supply Act 1995](#)) and complies with any requirements of the network operator that relate to clearance from those works, and
  - (g) each small wind turbine does not penetrate any obstacle limitation surface shown on any relevant Obstacle Limitation Surface Plan that has been prepared by the operator of an aerodrome or airport operating within 2 kilometres of the proposed development and reported to the Civil Aviation Safety Authority, and
  - (h) the system is installed in accordance with the manufacturer's specifications or by a person who is endorsed for the design and installation of small wind systems under the Clean Energy Council's wind endorsement scheme, and
  - (i) if the land contains a State or local heritage item or is in a heritage conservation area—the system is not visible from any road at the point where the road adjoins the property boundary concerned.
- (2) **Wind monitoring towers** The installation of a wind monitoring tower used in connection with investigating or determining the feasibility of a small wind turbine system that has a generating capacity of no more than 1 MW is exempt development on any land if—
- (a) it complies with section 2.20 (other than section 2.20(2)(h)), and
  - (b) the tower is located clear of any works, including power lines, of any relevant network operator (within the meaning of the [Electricity Supply Act 1995](#)) and complies with any requirements of the network operator that relate to clearance from those works, and
  - (c) the tower does not penetrate any obstacle limitation surface shown on any relevant Obstacle Limitation Surface Plan that has been prepared by the operator of an aerodrome or airport operating within 2 kilometres of the proposed development and reported to the Civil Aviation Safety Authority, and
  - (d) the tower is installed in accordance with the manufacturer's specifications or by a person who is endorsed for the design and installation of small wind turbine systems under the Clean Energy Council's wind endorsement scheme, and
  - (e) if the land contains a State or local heritage item or is in a heritage conservation area—the tower is not visible from any road at the point where the road adjoins the property boundary concerned, and
  - (f) in the case of land in a prescribed residential zone—

- (i) there is no other wind monitoring tower installed on the lot concerned, and
    - (ii) the height of the tower from ground level (existing) to the topmost point of the tower is no more than 18m, and
    - (iii) the tower is installed no less than 18m from any dwelling that is not owned or occupied by the owner of the tower, and
  - (g) in the case of land in a prescribed non-residential zone—
    - (i) there are no more than 2 other wind monitoring towers installed on the lot concerned, and
    - (ii) the height of the tower from ground level (existing) to the topmost point of the tower is no more than 35m, and
    - (iii) the tower is installed no less than 35m from any dwelling that is not owned or occupied by the owner of the tower, and
  - (h) in the case of land in any land use zone (other than a land use zone referred to in paragraph (f) or (g))—
    - (i) there is no more than one other wind monitoring tower installed on the lot concerned, and
    - (ii) the height of the tower from ground level (existing) to the topmost point of the tower is no more than 26m, and
    - (iii) the tower is installed no less than 26m from any dwelling that is not owned or occupied by the owner of the tower, and
  - (i) in the case of a development application in relation to the small wind turbine system to be used in connection with the tower that is refused or withdrawn—the tower is demolished within 6 months after the decision to refuse or withdraw the application.
- (3) Development for the purpose of a wind monitoring tower used in connection with the investigation or determination of the feasibility of a wind farm that has a generating capacity of more than 1 MW is exempt development if—
- (a) it complies with section 2.20, and
  - (b) the tower—
    - (i) is erected in accordance with the manufacturer's specifications, and
    - (ii) has a height of not more than 110m, and
    - (iii) is removed within 60 months after its erection is completed, and
  - (c) the site of the tower—
    - (i) is enclosed by a fence that prevents unauthorised entry to the site, and
    - (ii) is not within 100m of any public road, and
    - (iii) is not within 1km of any other wind monitoring tower or a school, and
    - (iv) is not within 1km of any dwelling except with the prior written permission of the owner of the dwelling, and
    - (v) is not within 500m of any State heritage item, and
    - (vi) does not affect a significant view to or from any such item that is identified in a conservation management plan (as defined by clause 3 of the [Heritage Regulation 2005](#)) for the item, and

- (d) before the tower is erected, the Civil Aviation Safety Authority (established under the [Civil Aviation Act 1988](#) of the Commonwealth) is notified in writing of—
- (i) the tower’s “as constructed” longitude and latitude co-ordinates, and
  - (ii) the ground level elevation at the base of the tower, referenced to the Australian Height Datum, and
  - (iii) the height from ground level (existing) to the topmost point of the tower (including all attachments), and
  - (iv) the elevation to the top of the tower (including all attachments), referenced to the Australian Height Datum, and
  - (v) the date on which it is proposed to remove the tower.

(4) **Solar energy systems** Development for the purpose of a solar energy system is exempt development if—

- (a) it complies with section 2.20 (other than section 2.20(2)(f)), and
- (b) in the case of development for the purposes of a photovoltaic electricity generating system—the system is installed in accordance with the manufacturer’s specifications or by a person who is accredited by the Clean Energy Council for the installation of photovoltaic electricity generating systems, and
- (c) in the case of development for the purpose of any solar energy system other than a photovoltaic electricity generating system—the system is installed in accordance with the manufacturer’s specifications, and
- (d) the system does not involve mirrors or lenses to reflect or concentrate sunlight, and
- (e) in the case of a system that is ground-mounted—
  - (i) the total area occupied by the system (together with any other ground-mounted solar energy system on the lot concerned) does not exceed 150m<sup>2</sup>, and
  - (ii) the system has a height of not more than 5m above ground level (existing), and
  - (iii) the system is installed no less than 3m from any adjoining property boundary, and
  - (iv) if the land contains a State or local heritage item or is in a heritage conservation area—the system is not visible from any road at the point where the road adjoins the property boundary concerned, and
  - (v) if the solar energy system is a photovoltaic electricity generating system having the capacity to generate 10kW or more—the system is installed no less than 10m from any dwelling that is not owned or occupied by the owner of the system, and
- (f) in the case of a system that is not ground-mounted—
  - (i) the development does not reduce the structural integrity of, or involve structural alterations to, any building to which the system is attached, and

**Note.**

The term **building** is defined in the [Environmental Planning and Assessment Act 1979](#) as including any structure.

- (ii) if the land is in a prescribed residential zone and the system is attached to a wall or roof facing a primary road—the system does not protrude more than 0.5m from the wall or roof (as measured from the point of attachment), and
- (iii) if the land is in a prescribed residential zone and the system is not attached to a wall or roof facing a primary road—
  - (A) the system does not protrude more than 1m from any building to which it is attached (as measured from the point of attachment), and

- (B) the system is installed no less than 1m from any adjoining property boundary if the system protrudes more than 0.5m from any building to which it is attached (as measured from the point of attachment), and
  - (iv) if the land contains a State or local heritage item or is in a heritage conservation area—
    - (A) the system is not attached to any wall or roof of a building facing a primary road, and
    - (B) the system does not protrude more than 0.5m from any building to which it is attached (as measured from the point of attachment), and
  - (v) the system does not protrude more than 1.5m from any building or structure to which it is attached (as measured from the point of attachment) if the land is in a land use zone other than a prescribed residential zone.
- (5) Development for the purposes of a small-scale battery system is exempt development if—
- (a) the installation of the system complies with section 2.20, and
  - (b) the system complies with AS/NZS 5139:2019 *Electrical installations—Safety of battery systems for use with energy conversion equipment*, and
  - (c) the battery is approved by the Clean Energy Council, and
  - (d) the system is installed by a person accredited by the Clean Energy Council for the installation of small-scale battery systems, and
  - (e) the system is not capable of storing more than 20kWh of energy, and
  - (f) the development does not result in the installation of more than 1 system, and
  - (g) for land containing a heritage item or within a heritage conservation area—the system must be attached to the rear wall of an existing building.

#### **2.42 Determination of development applications for solar or wind electricity generating works on certain land**

- (1) This section applies to development in a regional city for the purposes of electricity generating works using a solar or wind energy source that is—
  - (a) State significant development, or
  - (b) regionally significant development.
- (2) Development consent must not be granted unless the consent authority is satisfied that the development—
  - (a) is located to avoid significant conflict with existing or approved residential or commercial uses of land surrounding the development, and
  - (b) is unlikely to have a significant adverse impact on the regional city's—
    - (i) capacity for growth, or
    - (ii) scenic quality and landscape character.
- (3) In determining whether to grant development consent, the consent authority must consider measures proposed to be included in the development to avoid or mitigate conflicts referred to in subsection (2)(a) or adverse impacts referred to in subsection (2)(b).
- (4) In this section—

***Regional Cities Map*** means the [\*State Environmental Planning Policy \(Infrastructure\) 2007 Regional Cities Map\*](#).

*regional city* means an area of land identified as “subject land” on the [Regional Cities Map](#).

## Division 5 Electricity transmission or distribution

### Subdivision 1 Electricity transmission or distribution networks

#### 2.43 Definitions

In this Division—

*distributor* and *transmission operator* have the same meanings as in the [Electricity Supply Act 1995](#).

*electricity supply authority* means a person or body engaged in the distribution of electricity to the public or in the generation of electricity for supply, directly or indirectly, to the public, whether by statute, franchise agreement or otherwise, and includes—

- (a) an energy services corporation within the meaning of the [Energy Services Corporations Act 1995](#), and
- (b) a transmission operator or distributor that holds a licence under the [Electricity Supply Act 1995](#), and
- (c) Rail Corporation New South Wales constituted under the [Transport Administration Act 1988](#), and
- (d) Sydney Metro constituted under the [Transport Administration Act 1988](#), and
- (e) the Water Administration Ministerial Corporation constituted under the [Water Management Act 2000](#).

*electricity transmission or distribution network* includes the following components—

- (a) above or below ground electricity transmission or distribution lines (including related bridges, cables, conductors, conduits, poles, towers, trenches, tunnels, access structures, access tracks and ventilation structures) and telecommunication facilities that are related to the functioning of the network,
- (b) above or below ground electricity switching stations or electricity substations, feeder pillars or transformer housing, substation yards or substation buildings,
- (c) systems for electricity storage associated with a component specified in paragraphs (a) and (b).

*safety risks* means risks of electrocution, fire risks, risks relating to voltage rises or risks to the integrity of an electricity transmission or distribution network.

#### 2.44 Development permitted without consent—general

- (1) Development for the purpose of an electricity transmission or distribution network may be carried out by or on behalf of an electricity supply authority or public authority without consent on any land. However, such development may be carried out without consent on land reserved under the [National Parks and Wildlife Act 1974](#) only if the development—
  - (a) is authorised by or under that Act, or
  - (b) is, or is the subject of, an existing interest within the meaning of section 39 of that Act, or
  - (c) is carried out on land to which that Act applies over which an easement has been granted and is not contrary to the terms or nature of the easement, or
  - (d) is an electricity work to which section 53 of the [Electricity Supply Act 1995](#) applies.
- (2) In this section, a reference to development for the purpose of an electricity transmission or distribution network includes a reference to development for any of the following purposes if the development is in connection with such a network—
  - (a) construction works (whether or not in a heritage conservation area), including—

- (i) laying and installation of cables and cable pits, co-location of cabling and erection of ventilation and access structures, bridges and tunnel adits, and construction of a tunnel or conduit for an underground cable, and
- (ii) alteration, demolition or relocation of a local heritage item, and
- (iii) alteration or relocation of a State heritage item, and
- (iv) installation of overhead wires and associated component parts, including support structures, and
- (v) construction of access tunnels or access tracks,
- (b) emergency works or routine maintenance works,

**Note.**

See section 2.7(4) regarding emergency works and routine maintenance works on land to which [State Environmental Planning Policy \(Resilience and Hazards\) 2021](#), sections 2.7 and 2.8 apply.

- (c) environmental management works,
- (d) establishment of a new substation or an increase in the area of existing substation yards or the installation of equipment, plant or structures in existing substation yards or substation buildings,
- (e) above or below ground co-location of telecommunications cabling and associated structures,
- (f) an electricity generating unit to provide temporary support to the network, but only if—
  - (i) the combined capacity of all units at the premises where the unit is located, or is intended to be located, does not exceed 5 megawatts, and
  - (ii) none of the units is operated, or is intended to be operated, for more than 200 hours in any 12 month period.

**2.44A Development permitted without consent—coastal wetlands and littoral rainforest**

- (1) This section applies to development that is—
  - (a) on land identified as “coastal wetlands” or “littoral rainforest” on the [Coastal Wetlands and Littoral Rainforests Area Map](#), and
  - (b) for the following purposes—
    - (i) above or below ground electricity transmission or distribution lines,
    - (ii) telecommunication facilities that are related to the functioning of an electricity transmission or distribution network.
- (2) Development to which this section applies may be carried out by or on behalf of an electricity supply authority or a public authority without development consent if—
  - (a) the development does not involve the clearing of native vegetation from coastal wetlands or littoral rainforest, and
  - (b) the electricity supply authority or public authority is satisfied the development—
    - (i) includes adequate measures to minimise adverse impacts on coastal wetlands or littoral rainforest, and
    - (ii) is not likely to significantly impact the biophysical, hydrological or ecological integrity of coastal wetlands or littoral rainforest, and
    - (iii) is not likely to significantly impact the quantity and quality of surface and ground water flows to and from coastal wetlands, and

- (c) the development does not involve earthworks other than earthworks that are ancillary to the following development—
  - (i) geotechnical testing and sampling that involves a drill hole with a diameter of no more than 120mm,
  - (ii) surveying and the placement of survey marks,
  - (iii) boring or directional drilling that does not disturb the surface of coastal wetlands or littoral rainforest and that involves a drill hole with a diameter of no more than 1,800mm,
  - (iv) replacing an electricity pole with a new pole with a diameter of no more than 1,200mm,
  - (v) installing supporting posts for a gate on an existing fence,
  - (vi) creating a trench to lay an electricity line to connect 2 connection points that are no more than 100m apart.

#### **2.45 Notification of certain electricity substation development that may be carried out without consent**

- (1) This section applies to development (other than exempt development) that—
  - (a) is carried out by or on behalf of an electricity supply authority or public authority, and
  - (b) is for the purpose of a new or existing electricity substation of any voltage (including any associated yard, control building or building for housing plant), and
  - (c) is not a project to which Part 3A of the Act applies or State significant infrastructure.
- (2) Before development to which this section applies is carried out, the electricity supply authority or public authority must—
  - (a) give written notice of the intention to carry out the development to the council for the area in which the land is located (unless the authority is that council) and to the occupiers of adjoining land, and
  - (b) take into consideration any response to the notice that is received within 21 days after the notice is given.

#### **2.46 Exempt development**

- (1) Development for any of the following purposes is exempt development if the development is in connection with an electricity transmission or distribution network and complies with section 2.20—
  - (a) installation of cables in existing conduits if the installation involves no greater soil or vegetation disturbance than necessary,
  - (b) maintenance of electricity lines or of poles (or associated structures) for electricity lines,
  - (c) any of the following if the primary purpose of the development is not to increase the capacity of the network—
    - (i) replacement or re-alignment of electricity lines for conveying electricity at a voltage of 66kV or less,
    - (ii) installation or upgrading of electricity lines for conveying electricity at a voltage of 66kV or less that are above or below ground service lines connecting premises to the network,
    - (iii) replacement of poles with similar sized poles, or of associated support structures, for electricity lines for conveying electricity at a voltage of 66kV or less,
    - (iv) re-alignment of poles, or of associated support structures, for electricity lines for conveying electricity at a voltage of 66kV or less,
  - (d) installation, maintenance or replacement of the following—

- (i) existing plant or equipment in an existing fenced area or in an existing building (including pillars, fuses, control points, switches, regulators and protection equipment, but not including outdoor installation of equipment designed to operate (or convey electricity) at a voltage of more than 66kV),
  - (ii) street lighting if the lighting minimises light spill and artificial sky glow in accordance with the Lighting for Roads and Public Spaces Standard,
  - (iii) electricity metering,
  - (iv) electrical conductors on existing structures if the primary purpose of the development is not to increase the capacity of the network,
  - (e) maintenance of existing access tracks in easements or rights of way, or on land subject to section 53 of the [Electricity Supply Act 1995](#), if it is required to facilitate the maintenance of electricity lines,
  - (f) maintenance or replacement of pole substations, if—
    - (i) the primary purpose of the development is not to increase the capacity of the network, and
    - (ii) in the case of replacement of materials, the replacement materials are similar to the materials being replaced and the replacement does not involve any structural alterations,
  - (g) demolition and removal of electricity works if—
    - (i) the demolition is carried out in accordance with AS 2601—2001, *Demolition of structures*, and
    - (ii) the development is not associated with substations containing equipment designed to operate (or convey electricity) at a voltage of more than 66kV, and
    - (iii) the development will not be carried out on sites where soil is likely to be contaminated,
  - (h) emergency works to maintain or restore a supply of electricity,
  - (i) construction, maintenance or realignment of security fencing with a height of not more than 3.2m above ground level (existing),
  - (j) vegetation management that is in accordance with a tree management plan established under clause 37 of the [Electricity Supply \(Safety and Network Management\) Regulation 2014](#),
  - (k) vegetation management that is exempted under clauses 24 and 35(4) of Schedule 5A to the [Local Land Services Act 2013](#),
  - (l) vegetation management that is carried out on category 1-exempt land (within the meaning of section 60D of the [Local Land Services Act 2013](#)),
  - (m) environmental management works in an existing fenced area or in an existing building.
- (2) Section 2.20(2)(i) does not apply in relation to development carried out under subsection (1)(j), (k) or (l).
- (3) To be exempt development, the development specified in subsection (1)(j), (k) and (l) must be carried out in a manner that minimises the risk of soil erosion.

## Subdivision 2 Development likely to affect an electricity transmission or distribution network

### 2.47 Excavation—corridors and transmission circuits

- (1) This section applies to a development application, or an application for modification of a consent, for development that involves the following—

- (a) the penetration of ground to a depth of at least 3m below ground level (existing) on land that is within 10m, measured radially, of the centreline of the following electricity supply corridors, or parts of those corridors—
    - (i) the part of the Picnic Point to Haymarket corridor, as approved by the Minister on 1 February 2002, that runs between Sydney Park and Haymarket,
    - (ii) the Haymarket to Surry Hills corridor, as approved by the Minister on 21 December 2001,
    - (iii) the City West Cable Tunnel corridor, as approved by the Minister on 21 February 2007,
  - (b) the penetration of ground to a depth of at least 0.5m below ground level (existing) on land that is within 15m, measured radially, of the centreline of the Potts Hill to Alexandria underground transmission cable circuit, as approved by the Minister on 14 May 2020.
- (2) Before determining an application to which this section applies, the consent authority must—
- (a) give written notice of the application to the electricity supply authority for the area in which the development is to be carried out, and
  - (b) take into consideration any response to the notice that is received within 21 days after the notice is given, and
  - (c) be satisfied that any safety risks associated with the development or modification to which the application relates have been identified, and
  - (d) take those risks into consideration.

#### **2.48 Determination of development applications—other development**

- (1) This section applies to a development application (or an application for modification of a consent) for development comprising or involving any of the following—
- (a) the penetration of ground within 2m of an underground electricity power line or an electricity distribution pole or within 10m of any part of an electricity tower,
  - (b) development carried out—
    - (i) within or immediately adjacent to an easement for electricity purposes (whether or not the electricity infrastructure exists), or
    - (ii) immediately adjacent to an electricity substation, or
    - (iii) within 5m of an exposed overhead electricity power line,
  - (c) installation of a swimming pool any part of which is—
    - (i) within 30m of a structure supporting an overhead electricity transmission line, measured horizontally from the top of the pool to the bottom of the structure at ground level, or
    - (ii) within 5m of an overhead electricity power line, measured vertically upwards from the top of the pool,
  - (d) development involving or requiring the placement of power lines underground, unless an agreement with respect to the placement underground of power lines is in force between the electricity supply authority and the council for the land concerned.
- (2) Before determining a development application (or an application for modification of a consent) for development to which this section applies, the consent authority must—
- (a) give written notice to the electricity supply authority for the area in which the development is to be carried out, inviting comments about potential safety risks, and

(b) take into consideration any response to the notice that is received within 21 days after the notice is given.

(3) Subsection (2) does not apply to development specified in subsection (1)(b) if the development involves only one or more of the following—

- (a) internal alterations to a building,
- (b) a change of use of an existing building,
- (c) a change to the hours of operation specified in the development consent,
- (d) a subdivision that does not involve construction work.

## Division 6 Emergency services facilities and bush fire hazard reduction

### 2.49 Definitions

In this Division—

**bush fire hazard reduction work** has the same meaning as in the [Rural Fires Act 1997](#).

**bush fire management plan** has the same meaning as in the [Rural Fires Act 1997](#).

**designated fire trail** has the same meaning as in the [Rural Fires Act 1997](#).

**emergency services facility** means a building or place (including a helipad) used in connection with the provision of services by an emergency services organisation, including a police station and related training facilities.

**Fire Trail Standards** means the Fire Trail Standards under section 62K of the [Rural Fires Act 1997](#).

**police station** means a building or place that is used in connection with the provision of police services to the public by the NSW Police Force and may include custodial facilities or premises used for a local area command function.

**prescribed zone** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a) RU1 Primary Production,
- (b) RU2 Rural Landscape,
- (c) RU3 Forestry,
- (d) RU4 Primary Production Small Lots,
- (e) RU5 Village,
- (e1) E1 Local Centre,
- (e2) E2 Commercial Centre,
- (e3) E3 Productivity Support,
- (e4) E4 General Industrial,
- (e5) E5 Heavy Industrial,
- (e6) MU1 Mixed Use,
- (f) B1 Neighbourhood Centre,
- (g) B2 Local Centre,
- (h) B3 Commercial Core,

- (i) B4 Mixed Use,
- (j) B5 Business Development,
- (k) B6 Enterprise Corridor,
- (l) B7 Business Park,
- (m) B8 Metropolitan Centre,
- (n) IN1 General Industrial,
- (o) IN 2 Light Industrial,
- (p) IN3 Heavy Industrial,
- (q) IN4 Working Waterfront,
- (r) SP1 Special Activities,
- (s) SP2 Infrastructure,
- (t) SP4 Enterprise,
- (u) SP5 Metropolitan Centre,
- (v) W4 Working Waterfront.

#### **2.50 Division does not apply to shooting ranges**

This Division does not apply to an emergency services facility that is a shooting range within the meaning of Division 18A.

**Note.**

Development for the purposes of a shooting range is addressed in Division 18A.

#### **2.51 Development permitted with consent**

- (1) Development for the purpose of an emergency services facility may be carried out with consent in a prescribed zone by or on behalf of the NSW Rural Fire Service or an emergency services organisation that is not a public authority.
- (2) Development for the purpose of an emergency services facility may be carried out with consent by or on behalf of a public authority (other than the NSW Rural Fire Service) on any land.
- (3) Development to which subsection (2) applies may only be carried out on land reserved under the [\*National Parks and Wildlife Act 1974\*](#) if it is authorised by or under that Act.

#### **2.52 Development permitted without consent**

- (1) Development for the purpose of an emergency services facility may be carried out by or on behalf of a public authority (other than the NSW Rural Fire Service) without consent in a prescribed zone.
- (2) Development for the purpose of an ambulance facility may be carried out by or on behalf of a public authority without consent on any land.
- (3) Development for any of the following purposes may be carried out by or on behalf of an emergency services organisation without consent on any land—
  - (a) the replacement or alteration of, or an addition to, an existing emergency services facility,
  - (b) the restoration of an emergency services facility due to damage,

- (c) the demolition of an emergency services facility.
- (4) Development to which this section applies may only be carried out on land reserved under the [National Parks and Wildlife Act 1974](#) if it is authorised by or under that Act.
- (5) This section does not permit the erection of any building that exceeds 12m in height or that is located closer than 5m to any property boundary (or an addition to a building resulting in the building exceeding that height or being closer than that distance to any property boundary).
- (6) Despite subsection (5), development for the following purposes may result in a building being located closer than 5 metres to a property boundary—
  - (a) an emergency services facility carried out by or on behalf of Fire and Rescue NSW,
  - (b) an ambulance facility carried out by or on behalf of the Ambulance Service of NSW.
- (6A) Despite subsection (5), development for the purposes of an ambulance facility carried out by or on behalf of the Ambulance Service of NSW may result in a building with a height of more than 12m.
- (7) Before development to which this section applies is carried out, the proponent of the development must—
  - (a) give written notice of the intention to carry out the development to the council for the area in which the land is located (unless the proponent is that council) and to the occupiers of adjoining land, and
  - (b) take into consideration any response to the notice that is received within 21 days after the notice is given.
- (8) Development for the purpose of bush fire hazard reduction work may be carried out by any person without consent on any land that is not within the coastal wetlands and littoral rainforests area if the development is consistent with the applicable bush fire management plan or the direction or agreement relating to the applicable designated fire trail.
- (9) In this section, **coastal wetlands and littoral rainforests area** has the same meaning as in section 6 of the [Coastal Management Act 2016](#), but does not include land identified as “proximity area for coastal wetlands” or “proximity area for littoral rainforest” on the [Coastal Wetlands and Littoral Rainforests Area Map](#).

### 2.53 Exempt development

- (1) Development for any of the following purposes is exempt development if the development complies with section 2.20 and is consistent with the applicable bush fire management plan or the direction or agreement relating to the applicable designated fire trail—
  - (a) maintaining fire trails, or installing or maintaining gates and associated structures on such trails, if the development is consistent with the Fire Trail Standards and does not result in any change in the alignment of fire trails,
  - (b) maintaining asset protection zones or installing or maintaining gates and associated structures on such zones, if the development is consistent with the NSW Rural Fire Service’s publication *Standards for Asset Protection Zones* published on the website of the NSW Rural Fire Service and does not result in any change in the alignment of asset protection zones.
- (2) Section 2.20(2)(i) does not apply to the development referred to in subsection (1) if the vegetation concerned is pruned or removed only so far as generally corresponds to the existing alignment of the formed fire trail or asset protection zone.
- (3) Development for any of the following purposes is exempt development if the development complies with section 2.20—
  - (a) a hose drying rack, if the height of the rack does not exceed 1.5 metres,

- (b) a standby power generator for use by the NSW Rural Fire Service, if the generator is insulated to ensure that noise levels will not exceed 35dB(A) from outside the generator housing,
  - (c) a toilet facility to be used in connection with a fire station, if the facility comprises a standard flushing toilet connected to a public sewer, or an on-site effluent disposal system or temporary chemical closet approved under the [Local Government Act 1993](#),
  - (d) new or replacement paving, if any surface water run-off is directed to a stormwater management system, the work involves no greater soil or vegetation disturbance than necessary and does not involve a new connection with a public road.
- (4) This section does not apply to land within the coastal wetlands and littoral rainforests area (within the meaning of the [Coastal Management Act 2016](#)).

## 2.54 Development on certain coastal wetlands land

- (1) This section applies to land identified as “coastal wetlands” on the [Coastal Wetlands and Littoral Rainforests Area Map](#).
- (2) Development for the purpose of bush fire hazard reduction work (other than establishing or maintaining a fire trail) may be carried out by any person without consent on land to which this section applies if—
  - (a) the land is within 20 metres of a dwelling house, secondary dwelling, dual occupancy, multi dwelling housing, residential flat building, hospital, centre-based child care facility, attached dwelling, boarding house, group home, hostel, semi-detached dwelling, seniors housing, residential accommodation, residential aged care facility or retirement village within the meaning of the [Retirement Villages Act 1999](#), that was in existence immediately before the commencement of this section, and
  - (b) the bush fire hazard reduction work does not involve the use of fire, and
  - (c) the bush fire hazard reduction work is carried out under section 66, 70, 73 or 74E of the [Rural Fires Act 1997](#), and
  - (d) the bush fire hazard reduction work is consistent with the standards relating to bush fire hazard reduction set out in the Department’s and NSW Rural Fire Service’s joint publication *Standards for Bush Fire Hazard Reduction Works in SEPP 14—Coastal Wetlands* published on the website of the Department.
- (3) Development for the purpose of maintaining a fire trail may be carried out by a public authority without consent on land to which this section applies if—
  - (a) the development is consistent with the applicable bush fire management plan or any direction or agreement relating to the applicable fire trail, and
  - (b) the development complies with the Fire Trail Standards, and
  - (c) the development does not involve the use of fire, the widening of a fire trail, any clearing of vegetation (other than of regrowth on a fire trail) or any excavation.

## Division 7 Flood mitigation work

### 2.55 Definition

In this Division—

**flood mitigation work** has the same meaning as it has in the Standard Instrument.

**Note.**

The Standard Instrument defines **flood mitigation work** as follows—

**flood mitigation work** means work designed and constructed for the express purpose of mitigating flood impacts. It involves changing the characteristics of flood behaviour to alter the level, location, volume, speed or timing of flood waters to mitigate flood

impacts. Types of works may include excavation, construction or enlargement of any fill, wall or levee that will alter riverine flood behaviour, local overland flooding, or tidal action so as to mitigate flood impacts.

**Note.**

Examples of flood mitigation work include levees, barrages, causeways, cuttings, embankments, floodgates and detention basins.

## 2.56 Development permitted without consent

- (1) Development for the purpose of flood mitigation work may be carried out by or on behalf of a public authority without consent on any land.
- (2) A reference in this section to development for the purpose of flood mitigation work includes a reference to development for any of the following purposes if the development is in connection with flood mitigation work—
  - (a) construction works,
  - (b) routine maintenance works,
  - (c) environmental management works.

## Division 8 Forestry

**Note.**

This Division does not apply in relation to forestry to which a forest agreement or integrated forestry operations approval under the [Forestry Act 2012](#) applies—see section 69W of that Act. See also the [Native Vegetation Act 2003](#) in relation to the clearing of native vegetation.

## 2.57 Definition

In this Division—

*forestry* has the same meaning as it has in the Standard Instrument.

## 2.58 Development permitted without consent

- (1) Development for the purpose of forestry may be carried out by or on behalf of a public authority without consent on land in Zone RU3 Forestry or an equivalent land use zone.
- (2) A reference in this section to development for the purpose of forestry includes a reference to development for any of the following purposes—
  - (a) operation of portable timber mills,
  - (b) harvesting of products of cultural value from trees, shrubs and other vegetation,
  - (c) forest management activities relating to matters such as Aboriginal cultural heritage, forestry research and forest conservation,
  - (d) environmental management works (such as weed and pest control),
  - (e) facilities and works associated with forestry (such as landscaping, recycled water and biosolids reuse schemes, maintenance depots and bushfire lookouts),
  - (f) outdoor recreational facilities and related amenities for visitors to forests (such as viewing platforms, toilet facilities and garbage collection areas),
  - (g) construction and maintenance of roads, tracks and fire trails to enable or assist anything mentioned in paragraphs (a)–(f).

## Division 9 Bee keeping and grazing

## 2.58A Definitions

In this Division—

**bee keeping** has the same meaning as in the Standard Instrument.

**forest permit** has the same meaning as in the [Forestry Act 2012](#).

**grazing** means grazing of cattle or other livestock.

## 2.58B Development permitted without consent

Development for the purpose of bee keeping or grazing may be carried out without consent on land dedicated as State forest under the [Forestry Act 2012](#), section 14 if—

- (a) for bee keeping—a forest permit in force immediately before 9 November 2022 permitted bee keeping on the land, or
- (b) for grazing—a forest permit in force immediately before 9 November 2022 permitted grazing on the land, or
- (c) the land is in 1 or more of the following zones—
  - (i) RU1 Primary Production,
  - (ii) RU2 Rural Landscape,
  - (iii) RU3 Forestry.

## Division 10 Health services facilities

### 2.59 Definitions

In this Division—

**community participation plan** means the *Community Participation Plan* published by Health Infrastructure in October 2024.

**design guide** means the *Design Guide for Health* published by the Government Architect in April 2023.

**health services facility** has the same meaning as in the Standard Instrument.

**new health services facility** means a health services facility erected on a site—

- (a) in a prescribed zone, and
- (b) on which there is no existing health services facility.

**prescribed zone** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a) RU4 Primary Production Small Lots,
- (b) RU5 Village,
- (c) RU6 Transition,
- (d) R1 General Residential,
- (e) R2 Low Density Residential,
- (f) R3 Medium Density Residential,
- (g) R4 High Density Residential,

- (h) R5 Large Lot Residential,
- (h1) E1 Local Centre,
- (h2) E2 Commercial Centre,
- (h3) E3 Productivity Support,
- (h4) MU1 Mixed Use,
- (i) B1 Neighbourhood Centre,
- (j) B2 Local Centre,
- (k) B3 Commercial Core,
- (l) B4 Mixed Use,
- (m) B5 Business Development,
- (n) B6 Enterprise Corridor,
- (o) B7 Business Park,
- (p) B8 Metropolitan Centre,
- (q) SP1 Special Activities,
- (r) SP2 Infrastructure,
- (s) Zone SP4 Enterprise under the following local environmental plans—
  - (i) [\*Canada Bay Local Environmental Plan 2013\*](#),
  - (ii) [\*Central Coast Local Environmental Plan 2022\*](#),
  - (iii) [\*Penrith Local Environmental Plan 2010\*](#),
  - (iv) [\*Pittwater Local Environmental Plan 2014\*](#),
  - (v) [\*Port Macquarie-Hastings Local Environmental Plan 2011\*](#),
  - (vi) [\*Sutherland Shire Local Environmental Plan 2015\*](#),
  - (vii) [\*The Hills Local Environmental Plan 2019\*](#),
  - (viii) [\*Warringah Local Environmental Plan 2011\*](#),
- (t) SP5 Metropolitan Centre,
- (u) the following zones under [\*State Environmental Planning Policy \(Precincts—Western Parkland City\) 2021\*](#), Chapter 4—
  - (i) Enterprise Zone,
  - (ii) Mixed Use Zone.

## 2.60 Development permitted with consent

- (1) Development for the purpose of health services facilities may be carried out by any person with consent on land in a prescribed zone.
- (2) Development for any of the following purposes may be carried out by or on behalf of a public authority with consent on State land if the development is carried out within the boundaries of an existing health services

facility—

- (a) health research (or development) industries, including medical research (or development) industries,
  - (b) high technology industry for an industrial activity that involves biological, pharmaceutical, medical or paramedical systems, goods or components,
  - (c) any of the following premises that service patients or staff of, or visitors to, the health services facility (or staff of, or visitors to, other premises within the boundaries of the facility)—
    - (i) centre-based child care facilities,
    - (ii) commercial premises,
    - (iii) community facilities,
    - (iv) information and education facilities,
    - (v) recreation areas, recreation facilities (indoor) or recreation facilities (outdoor),
    - (vi) residential accommodation,
  - (d) a building or place used for the training or education of health and other professionals.
- (3) Consent must not be granted for development of a kind referred to in subsection (2)(c) (other than development for the purposes of a centre-based child care facility) unless the consent authority is satisfied that the Planning Secretary has certified in a site compatibility certificate that, in the Planning Secretary's opinion, the development is compatible with the surrounding land uses.
- (4) Nothing in this section—
- (a) prevents a consent authority from—
    - (i) granting consent for development on a site by reference to site and design features that are more stringent than those identified in a site compatibility certificate for the same site, or
    - (ii) refusing to grant consent for development by reference to the consent authority's own assessment of the compatibility of the development with the surrounding land uses, or
  - (b) otherwise limits the matters to which a consent authority may have regard in determining a development application for development of a kind referred to in subsection (2).

## **2.61 Development permitted without consent—existing health services facilities**

- (1) Any of the following development may be carried out by or on behalf of a public authority without consent on any land if the development is carried out within the boundaries of an existing health services facility—
- (a) the erection or alteration of, or addition to, a building that is a health services facility,
  - (b) development for the purposes of restoring or replacing accommodation or administration facilities,
  - (c) demolition of buildings carried out for the purposes of a health services facility,
  - (d) development for the purposes of patient transport facilities, including helipads and ambulance facilities,
  - (e) development for the purposes of any of the following that service patients or staff of, or visitors to, the health services facility, or other premises within the boundaries of the facility—
    - (i) car parks,
    - (ii) centre-based child care facilities,
    - (iii) commercial premises,

- (iv) community facilities,
  - (v) information and education facilities,
  - (vi) recreation areas, recreation facilities (indoor) or recreation facilities (outdoor),
  - (vii) residential accommodation,
  - (f) development for the purposes of health research (or development) industries, including medical research (or development) industries,
  - (g) development for the purposes of high technology industry for an industrial activity that involves biological, pharmaceutical, medical or paramedical systems, goods or components,
  - (h) development for the purposes of a building or place used for the training or education of health and other professionals.
- (2) Development must not be carried out under this section unless—
- (a) the public authority is satisfied that appropriate consultation has been undertaken having regard to—
    - (i) the SCPP—new health services facilities and schools, and
    - (ii) the community participation plan, and
  - (b) the public authority has considered the design guide, and
  - (c) the development will not involve more than 30,000m<sup>2</sup> of gross floor area on the site being created or affected.
- (3) (Repealed)

#### **2.61A Development permitted without consent—new health services facilities**

- (1) Development for the purposes of new health services facilities may be carried out without consent on land in a prescribed zone if—
- (a) the development is carried out by or on behalf of a public authority, and
  - (b) the combined gross floor area of buildings resulting from the development is not more than 2,500m<sup>2</sup>.
- (2) Development must not be carried out under this section unless—
- (a) the public authority is satisfied that appropriate consultation has been undertaken having regard to—
    - (i) the SCPP—new health services facilities and schools, and
    - (ii) the community participation plan, and
  - (b) the public authority has considered the design principles set out in the design guide.

#### **2.62 Notification of carrying out of certain development under section 2.61(1)**

- (1) This section applies to development carried out by or on behalf of a public authority under section 2.61(1) (other than section 2.61(1)(b) or (c)).
- (2) Before development to which this section applies is carried out, the person carrying out the development or the public authority concerned must—
- (a) give written notice of the intention to carry out the development to each of the following—
    - (i) the council for the area in which the relevant land is located (unless the public authority is the council),
    - (ii) the occupiers of any adjoining land, and

(b) take into consideration any response to the notice that is received within 21 days after the notice is given.

(3) In this section, **relevant land** means the land on which the development is proposed to be carried out.

#### **2.62A Notification of carrying out of development under section 2.61A**

(1) This section applies to development permitted under section 2.61A.

(2) Before development to which this section applies is carried out, the public authority must—

(a) give written notice of the intention to carry out the development to—

(i) if the public authority is not the relevant council—the relevant council, and

(ii) Transport for NSW, and

(b) consider any response to the notice that is received within 28 days after the notice is given.

(3) The notice must include—

(a) the information required by the SCPP—new health services facilities and schools, and

(b) the information required by the Division 5.1 assessment guidelines for environmental factors, and

(c) the information required by the community participation plan.

(4) If notice of the intention to carry out development is given under this section to the relevant council or Transport for NSW—

(a) notice is not required to be given under sections 2.10–2.15 to the relevant council or Transport for NSW, and

(b) for notice required to be given under sections 2.10–2.15 to another authority—a reference to 21 days in the section is taken to be a reference to 28 days.

(5) The public authority must also give written notice of the intention to start work at least 2 days before the work starts to—

(a) the occupiers of any dwelling located within 20m of the site boundary of the proposed development, and

(b) if the public authority is not the relevant council—the relevant council.

(6) If the development is carried out by a person on behalf of the public authority, a reference to **public authority** in this section is taken to be a reference to the person.

(7) In this section—

**relevant council** means the council for the area in which the development is proposed to be carried out.

#### **2.63 Exempt development**

(1) Any of the following development is exempt development if it is carried out within the boundaries of an existing health services facility and complies with section 2.20—

(a) development for the purposes of roads and cycleways,

(b) development for the purposes of information boards and other information facilities (except for visitors' centres),

(c) development for the purposes of lighting, if light spill and artificial sky glow is minimised in accordance with the Lighting for Roads and Public Spaces Standard,

- (d) development for the purposes of landscaping, including landscape structures or features (such as art work) and irrigation systems,
- (e) development for the purposes of maintenance depots used solely for the maintenance of a health services facility (or of any other premises within the boundaries of a health services facility),
- (f) environmental management works,
- (g) the removal and replacement, or pruning, of a tree if—
  - (i) the tree has been assessed by a Level 5 qualified arborist as posing a risk to human health or safety, or a risk of damage to infrastructure, and
  - (ii) in the case of removal and replacement of a tree, the replacement tree is planted within the boundaries of the health services facility and is capable of achieving a mature height of 3 metres or more,
- (h) development for the purposes of a building site shed if—
  - (i) the shed is not used for residential purposes, and
  - (ii) any plumbing fixtures are connected to an approved waste water treatment device or an approved connection to the sewer, and
  - (iii) the shed is removed immediately after the completion of the works for which the shed was required, and
  - (iv) the shed is free-standing, prefabricated and constructed of non-reflective materials.

(2) Development for the purposes of relevant signs is exempt development if—

- (a) the development complies with section 2.20, and
- (b) the sign—
  - (i) is located within the boundaries of an existing health services facility or is attached to an existing boundary fence for the facility, and
  - (ii) is not located on a rooftop, and
  - (iii) has a surface area of more than 3.5m<sup>2</sup> and not more than 30m<sup>2</sup>, and
  - (iv) if the sign is attached to an existing boundary fence—does not project more than 1m from the fence, and
- (c) if the sign involves lighting—the lighting complies with AS/NZS 4282:2019, *Control of the obtrusive effects of outdoor lighting*.

(2A) The development specified in subsections (1) and (2) is also exempt development if it is carried out on land that is being used for the purposes of temporary housing, but only if—

- (a) the land is within the boundaries of an existing health services facility, and
- (b) the development complies with section 2.20.

(3) In this section—

**Level 5 qualified arborist** means an arborist with a minimum AQF Level 5 in Arboriculture under the Australian Qualifications Framework, within the meaning of the [Higher Education Act 2001](#), section 7.

**relevant sign** means the following—

- (a) a building identification sign,

- (b) a business identification sign,
- (c) a sign providing information about safety, directions or the local community, other than a sign—
  - (i) involving commercial advertising, or
  - (ii) associated with the use of road infrastructure, including level crossings.

### **2.63A (Repealed)**

### **2.64 Complying development**

- (1) Development for any of the following purposes is complying development if it is carried out within the boundaries of an existing health services facility, and complies with the requirements of this section and section 2.22—
  - (a) a health services facility,
  - (b) a building or place used for the training or education of health and other professionals,
  - (c) commercial premises, providing goods or services to staff or patients of, or visitors to, a health services facility (or to staff of, or visitors to, other premises within the boundaries of a health services facility),
  - (d) any premises to service patients or staff of, or visitors to, a health services facility (or to service staff of, or visitors to, other premises within the boundaries of a health services facility) that consist of an administration building or a car park,
  - (e) demolition of buildings,
  - (f) the removal or pruning of a tree or other vegetation if —
    - (i) the tree is not listed on a register of significant trees kept by the council, and
    - (ii) the tree or vegetation is within 3 metres of a building within the boundaries of the health services facility, and
    - (iii) the tree or vegetation has a height of less than 8 metres, and
    - (iv) in the case of removal of a tree—a replacement tree capable of achieving a mature height of 3 metres or more is planted within the boundaries of the health services facility.
- (2) Development specified in subsection (1)(f) is not required to satisfy section 2.22(2)(g) to be complying development.
- (3) This section does not permit the erection of any building that exceeds 12m in height or is located closer than 5m to any property boundary (or an addition to a building resulting in the building exceeding that height or being closer than that distance to any property boundary).
- (4) The footprint of any building demolished under this section must not exceed 250m<sup>2</sup>.
- (5) Demolition of a building under this section is not complying development if the building is within a heritage conservation area.

**Note.**

Certain development on bush fire prone land (such as a hospital) is not complying development (see section 100B of the [Rural Fires Act 1997](#)).

### **2.65 Complying development—additional condition**

- (1) A complying development certificate for development specified in section 2.64 is subject to the condition that work may be carried out outside the standard hours for construction specified in section 2.23(6) if—

(a) the work only generates noise that is—

- (i) no louder than 5 dB(A) above the rating background level at any adjoining residence in accordance with the *Interim Construction Noise Guideline* (ISBN 978 1 74232 217 9) published by the Department of Environment and Climate Change NSW in July 2009, and
- (ii) no louder than the noise management levels specified in Table 3 of that guideline at other sensitive receivers, or

(b) in an emergency, to avoid the loss of lives or property or to prevent environmental harm.

(2) This condition is in addition to the conditions set out in section 2.23.

## Division 10A Operational land

### 2.66 Definition

In this Division—

*operational land* has the same meaning as in the [Local Government Act 1993](#).

### 2.67 Development permitted without consent

Development for any purpose referred to in section 2.73(3) may be carried out without consent on operational land by or on behalf of a council.

### 2.68 Exempt development

- (1) Development for any purpose referred to in section 2.74(1) is exempt development if carried out on operational land by or on behalf of a council.
- (2) Development is exempt development under this section only if the development—
  - (a) complies with section 2.20, and
  - (b) involves no greater disturbance of native vegetation than necessary, and
  - (c) does not result in an increase in stormwater run-off or erosion.

## Division 11 Public authority precincts

### 2.69 Land to which Division applies

This Division applies to land identified on the State Significant Development Sites Map, within the meaning of [State Environmental Planning Policy \(Planning Systems\) 2021](#), Chapter 2, as being within any of the following sites—

- (a) Barangaroo Site,
- (b) Darling Harbour Site,
- (c) Sydney Olympic Park Site,
- (d) The Rocks Site,
- (e) Blackwattle Bay Precinct Site,
- (f) Central Precinct Site.

### 2.70 Exempt development

- (1) Development for any of the following purposes is exempt development if it is carried out by or on behalf of a public authority on land to which this Division applies—

- (a) roads, cycleways, pedestrian bridges, at grade car parks, ticketing facilities and viewing platforms,
  - (b) recreation facilities (outdoor), other than grandstands,
  - (c) amenity facilities, including toilets, change rooms and food preparation and related facilities for persons using public spaces within the site,
  - (d) information boards and other information facilities (except visitor centres),
  - (e) lighting if the lighting minimises light spill and artificial sky glow in accordance with AS/NZS 1158 Set:2010, *Lighting for roads and public spaces Set*,
  - (f) maintenance depots used solely for the maintenance of the land or structures within the site,
  - (g) environmental management works,
  - (h) landscaping, including landscape structures or features (such as art work) and irrigation systems (whether or not they use recycled water),
  - (i) Christmas trees that comply with subsection (2),
  - (j) demolition of buildings (unless the building is a State or local heritage item or is within a heritage conservation area) so long as the footprint of the building covers an area no greater than 250 square metres,
  - (k) temporary structures.
- (2) The erection, installation or display of Christmas trees is subject to the following requirements—
- (a) subject to paragraph (b), the trees must be no more than 4.5m in height, except that one Christmas tree of no more than 20m in height may be erected on each site to which this Division applies,
  - (b) the trees must be structurally stable with adequate footings or attachments,
  - (c) the trees must not be displayed before 15 November in any year and must not be displayed for more than 8 continuous weeks,
  - (d) the erection or installation of a Christmas tree may start 1 week before the display starts and must be removed during the week following the 8 week display period.

## 2.70A Savings provision

A development application or an application for a complying development certificate lodged, but not finally determined, before the commencement of [State Environmental Planning Policy Amendment \(Blackwattle Bay Precinct\) 2022](#) must be determined as if that Policy had not commenced.

## Division 11A Certain development at the Sydney Cricket Ground

### 2.71 Exempt development

Development for any of the following purposes is exempt development if it is carried out on land identified in Schedule 4A, Part 1 of the [Sporting Venues Authorities Act 2008](#)—

- (a) landscaping (including the installation, maintenance and upgrading of playground or recreational equipment, park furniture, gardens, paving and the like),
- (b) installation, maintenance and upgrading of bus shelters, pedestrian pathways, cycleways, cycle storage racks, visitor information booths, kiosks, street furniture, access ramps for people, shade shelters, awnings, fences, gates, flag poles, public art, catering outlets, bars and restaurants,
- (c) signage to promote events or identify buildings if the signage—
  - (i) is attached to an existing building or an existing pole, and

- (ii) does not project beyond the parapet or eaves of the building to which it is attached, and
- (iii) does not cover any window, door or architectural feature, and
- (iv) is securely fixed to the existing building or existing pole, and
- (v) does not cover any mechanical ventilation inlets or outlets located on any building on which it is carried out, and
- (vi) does not obstruct or interfere with any traffic sign, and
- (vii) complies with AS 4282:1997, *Control of the obtrusive effects of outdoor lighting*,
- (d) installation, maintenance and upgrading of security or emergency services equipment (including fire detection systems, pump houses, fire water tanks, security cameras, lighting, emergency security fencing and barriers to prevent unauthorised access or to ensure public safety) and the internal or external modification of buildings for building security and fire safety reasons,
- (e) installation, maintenance and upgrading of mobile communication facilities, road and traffic management works, solar panels and associated structures and lighting,
- (f) minor alterations and additions to existing facilities (including grandstand seating, lights, light towers, lifts, air conditioning systems, toilets, plant and equipment).

## Division 12 Parks and other public reserves

### 2.72 Definitions

In this Division—

**Crown land manager** has the same meaning as in the [Crown Land Management Act 2016](#).

**Crown managed land** has the same meaning as in the [Crown Land Management Act 2016](#).

**Ministerial Corporation** has the same meaning as in the [Crown Land Management Act 2016](#).

**public reserve** has the same meaning as it has in the [Local Government Act 1993](#), but does not include a Crown reserve that is dedicated or reserved for a public cemetery.

**Secretary** has the same meaning as in the [Crown Land Management Act 2016](#).

### 2.73 Development permitted without consent

- (1) Development for any purpose may be carried out without consent—
  - (a) on land reserved under the [National Parks and Wildlife Act 1974](#), or acquired under Part 11 of that Act, if the development is for a use authorised under that Act, or
  - (b) on land declared under the [Marine Estate Management Act 2014](#) to be a marine park or an aquatic reserve if the development is for a use authorised under that Act, or
- (2) Development for any purpose may be carried out without consent—
  - (a) on Trust lands within the meaning of the [Centennial Park and Moore Park Trust Act 1983](#), by or on behalf of the Centennial Park and Moore Park Trust, or
  - (b) on trust lands within the meaning of the [Parramatta Park Trust Act 2001](#), by or on behalf of the Parramatta Park Trust, or
  - (c) on Crown managed land, by or on behalf of—
    - (i) the Secretary, or

(ii) a Crown land manager of the land (or an administrator of the manager), or

(iii) the Ministerial Corporation, or

(iv) the Minister administering the [Crown Land Management Act 2016](#),  
if the development is for the purposes of implementing a plan of management adopted for the land under the Act referred to above in relation to the land or in accordance with the [Local Government Act 1993](#) in relation to Crown managed land managed by a council.

(3) Any of the following development may be carried out by or on behalf of a public authority without consent on land owned or controlled by the public authority—

(a) development for any of the following purposes—

- (i) roads, pedestrian pathways, cycleways, single storey car parks, ticketing facilities, viewing platforms and pedestrian bridges,
- (ii) recreation areas and recreation facilities (outdoor), but not including grandstands,
- (iii) visitor information centres, information boards and other information facilities,
- (iv) lighting, if light spill and artificial sky glow is minimised in accordance with the Lighting for Roads and Public Spaces Standard,
- (v) landscaping, including landscape structures or features (such as art work) and irrigation systems,
- (vi) amenities for people using the reserve, including toilets and change rooms,
- (vii) food preparation and related facilities for people using the reserve,
- (viii) maintenance depots,
- (ix) portable lifeguard towers,

(b) environmental management works,

(c) demolition of buildings (other than any building that is, or is part of, a State or local heritage item or is within a heritage conservation area).

**Note.**

The term **building** is defined in the [Environmental Planning and Assessment Act 1979](#) as including any structure.

## 2.74 Exempt development

(1) Development for any of the following purposes that is carried out in the prescribed circumstances is exempt development—

(a) construction or maintenance of—

- (i) walking tracks, raised walking paths (including boardwalks), ramps, stairways or gates, or
- (ii) bicycle-related storage facilities, including bicycle racks and other bicycle parking facilities (except for bicycle paths), or
- (iii) handrail barriers or vehicle barriers, or
- (iv) ticketing machines or park entry booths, or
- (v) viewing platforms with an area not exceeding 100m<sup>2</sup>, or
- (vi) sporting facilities, including goal posts, sight screens and fences, if the visual impact of the development on surrounding land uses is minimal, or

- (vii) play equipment if adequate safety measures (including soft landing surfaces) are provided and, in the case of the construction of such equipment, so long as the equipment is situated at least 1.2m away from any fence, or
  - (viii) seats, picnic tables, barbecues, bins (including frames and screening), shelters or shade structures, or
  - (ix) portable lifeguard towers if the footprint of the tower covers an area no greater than 20 square metres, or
  - (x) temporary structures,
  - (b) routine maintenance of playing fields and other infrastructure, including landscaping,
  - (c) routine maintenance of roads that provide access to or within those playing fields, including landscaping,
  - (d) environmental management works.
- (2) Development is carried out in the *prescribed circumstances* if the development is carried out—
- (a) on land referred to in section 2.73(1) by or on behalf of a public authority, or
  - (b) on land referred to in section 2.73(2)(a) or (b) by or on behalf of the Centennial Park and Moore Park Trust or the Parramatta Trust, as the case may be, or
  - (c) on land owned or controlled by a public authority by or on behalf of the public authority, or
  - (d) on Crown managed land, by or on behalf of—
    - (i) the Secretary, or
    - (ii) a Crown land manager of the land (or an administrator of the manager), or
    - (iii) the Ministerial Corporation, or
    - (iv) a council having control of the land under section 48 of the [Local Government Act 1993](#), or
    - (v) the Minister administering the [Crown Land Management Act 2016](#).
- (3) Development is exempt development under this section only if the development—
- (a) complies with section 2.20, and
  - (b) involves no greater disturbance of native vegetation than necessary, and
  - (c) does not result in an increase in stormwater run-off or erosion.

## Division 12A Pipelines and pipeline corridors

### Subdivision 1 Pipelines

#### 2.75 Development permitted without consent

- (1) Development for the purpose of a pipeline may be carried out by any person without consent on any land if the pipeline is subject to a licence under the [Pipelines Act 1967](#) or a licence or authorisation under the [Gas Supply Act 1996](#).
- (2) Development for the purpose of a gas pipeline may be carried out by or on behalf of a public authority without consent on any land.
- (3) However, subsections (1) and (2) apply with respect to land in Zone C1 National Parks and Nature Reserves or an equivalent land use zone only if the development—
  - (a) is authorised by or under the [National Parks and Wildlife Act 1974](#), or

- (b) is, or is the subject of, an existing interest within the meaning of section 39 of that Act, or
  - (c) is carried out on land to which that Act applies over which an easement has been granted and is not contrary to the terms or nature of the easement.
- (4) In this section, a reference to development for the purpose of a pipeline includes a reference to development for any of the following purposes if the development is in connection with a pipeline—
- (a) construction works,
  - (b) emergency works or routine maintenance works.

## 2.76 Exempt development

- (1) Development for any of the following purposes is exempt development if the development is in connection with a pipeline that is the subject of a licence or authorisation under the [Gas Supply Act 1996](#) and complies with section 2.20—
- (a) installation, maintenance or replacement of—
    - (i) gas metering at gas customers' premises, or
    - (ii) gas customer service lines connecting customers' premises to a gas distribution network,
  - (b) maintenance or emergency works or routine maintenance to protect the pipeline, the environment or the public, if the works involve no greater soil or vegetation disturbance than necessary.
- (2) Development for any of the following purposes is exempt development if the development is in connection with a gas pipeline that is the subject of a licence under the [Pipelines Act 1967](#) and complies with section 2.20—
- (a) maintenance or emergency works to protect the pipeline, the environment or the public, if the works involve no greater soil or vegetation disturbance than necessary,
  - (b) installation, maintenance, realignment or replacement of security fencing with a height of not more than 3.2m above ground level (existing),
  - (c) installation, maintenance or replacement of—
    - (i) pipeline markers, if they involve no greater soil or vegetation disturbance than necessary, or
    - (ii) temporary fencing around work sites or open excavations, or,
    - (iii) temporary structures associated with site compounds for construction or maintenance projects (such as demountable buildings) but only if any temporary building is not more than one storey high, or
    - (iv) cathodic protection systems, or
    - (v) controls over access to gas control facilities or to associated roads and facilities,
  - (d) maintenance of—
    - (i) existing access tracks or gates along pipeline corridors, if the maintenance involves no greater soil or vegetation disturbance than necessary, or
    - (ii) gas control facilities (including painting, servicing or replacement of existing equipment and maintenance of, or minor alterations to, enclosures or buildings),
  - (e) excavations to expose pipelines for inspection or testing, and the creation of temporary stockpiles associated with pipeline maintenance, if—
    - (i) measures to control stockpile erosion or movement of sediment from the stockpiles are in place, and
    - (ii) there is no greater soil or vegetation disturbance than necessary.

## Subdivision 2 Development adjacent to pipeline corridors

### 2.77 Determination of development applications

- (1) Before determining a development application for development adjacent to land in a pipeline corridor, the consent authority must—
  - (a) be satisfied that the potential safety risks or risks to the integrity of the pipeline that are associated with the development to which the application relates have been identified, and
  - (b) take those risks into consideration, and
  - (c) give written notice of the application to the pipeline operator concerned within 7 days after the application is made, and
  - (d) take into consideration any response to the notice that is received from the pipeline operator within 21 days after the notice is given.
- (2) Land is in a ***pipeline corridor*** for the purposes of this section if the land is located—
  - (a) within the licence area of a pipeline for gas, or for petroleum or other liquid fuels, licensed under the [Pipelines Act 1967](#), or
  - (b) within 20m of the centreline (measured radially) of a relevant pipeline, or
  - (c) within 20m of land the subject of an easement for a relevant pipeline.
- (3) The following pipelines for gas, or for petroleum or other liquid fuels, are ***relevant pipelines*** for the purposes of this section—
  - (a) the pipelines with licence numbers 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 32, 33, 35 and 42 licensed under the [Pipelines Act 1967](#),
  - (b) the Clyde to Gore Bay pipeline.

## Division 13 Port, wharf or boating facilities

### 2.78 Interpretation

- (1) In this Division—

***navigation and emergency response facilities*** means facilities for—

- (a) water traffic control, safe navigation and other safety purposes (such as beacons, navigation towers, radar towers, communication facilities, vessel monitoring facilities, lighthouses, buoys, marine markers, pilot stations, jetties, breakwaters or training walls), and
- (b) emergency response, including rescue stations and emergency communication facilities and jetties.

***port facilities*** has the same meaning as in the Standard Instrument.

***prescribed zone*** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a1) E4 General Industrial,
- (a2) E5 Heavy Industrial,
- (a3) MU1 Mixed Use,
- (a) B4 Mixed Use,
- (b) B8 Metropolitan Centre,

- (c) IN1 General Industrial,
- (d) IN3 Heavy Industrial,
- (e) IN4 Working Waterfront,
- (f) SP1 Special Activities,
- (g) SP2 Infrastructure,
- (h) SP3 Tourist,
- (h1) SP4 Enterprise,
- (h2) SP5 Metropolitan Centre,
- (i) RE1 Public Recreation,
- (j) W2 Recreational Waterways,
- (k) W3 Working Waterways,
- (l) W4 Working Waterfront,

and includes any waterbody that is unzoned under any environmental planning instrument.

***public ferry wharf*** means a wharf or any associated facilities used for the purposes of public passenger services provided by ferries.

***wharf or boating facilities*** has the same meaning as in the Standard Instrument.

- (2) In sections 2.80 and 2.80A, a reference to development for the purposes of port facilities, navigation and emergency response facilities, wharf or boating facilities or associated public transport facilities for a public ferry wharf includes a reference to the operation of the facilities and to development for the following purposes if the development is carried out in connection with the facilities—
  - (a) construction works, including dredging or land reclamation, if the dredging or land reclamation is required for the construction of the facilities,
  - (b) routine maintenance works,
  - (c) environmental management works,
  - (d) alteration, demolition or relocation of a local heritage item,
  - (e) alteration or relocation of a State heritage item.
- (3) In sections 2.80 and 2.80A, a reference to development for the purposes of port facilities includes a reference to development for the following purposes if the development is carried out in connection with port facilities—
  - (a) dredging, or bed profile levelling, of existing navigation channels,
  - (b) dredging, or bed profile levelling, to create new navigation channels.
- (4) In sections 2.80 and 2.80A, a reference to development for the purposes of navigation and emergency response facilities, wharf or boating facilities or associated public transport facilities for a public ferry wharf includes a reference to development for the purposes of dredging, or bed profile levelling, of existing navigation channels, if the dredging or levelling is carried out—
  - (a) for safety reasons, or

- (b) in connection with existing navigation and emergency response facilities, wharf or boating facilities or associated public transport facilities for a public ferry wharf.

## 2.79 Application of Division

This Division does not apply to land within the Lease Area within the meaning of [State Environmental Planning Policy \(Three Ports\) 2013](#).

## 2.80 Development permitted without consent—general

- (1) Development for the purpose of port facilities may be carried out—
  - (a) by or on behalf of the Newcastle Port Corporation or Transport for NSW without consent on land in a prescribed zone or (providing the development is directly related to an existing port facility) on any other land, or
  - (b) by or on behalf of any other public authority without consent on land in a prescribed zone.
- (2) The following development may be carried out by or on behalf of a public authority without consent on any land—
  - (a) development for the purposes of navigation and emergency response facilities,
  - (b) environmental management works associated with a port facility or a wharf or boating facility,
  - (c) emergency works associated with a navigation and emergency response facility or a port facility.
- (3) Subdivision of land in the area of a port managed by the Newcastle Port Corporation, being subdivision that is required to facilitate operations at the port, may be carried out by the Newcastle Port Corporation without consent.
- (4) Development for the purpose of wharf or boating facilities may be carried out by or on behalf of a public authority without consent on any land. However, such development may be carried out on land reserved under the [National Parks and Wildlife Act 1974](#) only if the development is authorised by or under that Act.
- (5) To avoid doubt, subsection (4) does not permit the subdivision of any land.
- (6) Development for the purposes of associated public transport facilities for a public ferry wharf may be carried out by or on behalf of a public authority without consent on any land. However, such development may be carried out on land reserved under the [National Parks and Wildlife Act 1974](#) only if the development is authorised by or under that Act.
- (7)–(9) (Repealed)

## 2.80A Development permitted without consent—coastal wetlands and littoral rainforest

- (1) This section applies to land identified as “coastal wetlands” or “littoral rainforest” on the [Coastal Wetlands and Littoral Rainforests Area Map](#).
- (2) Development for the purposes of port facilities or wharf or boating facilities may be carried out by or on behalf of a public authority without development consent if—
  - (a) the development does not involve the clearing of native vegetation from coastal wetlands or littoral rainforest, and
  - (b) the public authority is satisfied the development—
    - (i) includes adequate measures to minimise adverse impacts on coastal wetlands or littoral rainforest, and
    - (ii) is not likely to significantly impact the biophysical, hydrological or ecological integrity of coastal wetlands or littoral rainforest, and

- (iii) is not likely to significantly impact the quantity and quality of surface and ground water flows to and from coastal wetlands, and
- (c) the development does not involve earthworks other than earthworks that are ancillary to the following development—
  - (i) geotechnical testing and sampling that involves a drill hole with a diameter of no more than 120mm,
  - (ii) surveying and the placement of survey marks,
  - (iii) boring or directional drilling that does not disturb the surface of coastal wetlands or littoral rainforest and that involves a drill hole with a diameter of no more than 1,800mm,
  - (iv) replacing an electricity pole with a new pole with a diameter of no more than 1,200mm,
  - (v) installing supporting posts for a gate on an existing fence,
  - (vi) creating a trench to lay an electricity line to connect 2 connection points that are no more than 100m apart.

### 2.81 Development permitted with consent

- (1) The erection or use of a structure (within an existing port facility or public ferry wharf) that is associated with retail premises, business premises or industrial premises that are not directly related to the operation of the port or wharf may be carried out by any person with consent on land in a prescribed zone or on unzoned land.
- (2) Subdivision of any land in the area of a port managed by the Newcastle Port Corporation may be carried out by any person with consent.
- (3) Dredging may be carried out by any person with consent on any land.
- (4) Development for the purpose of a facility for maintaining vessels may be carried out by any person with consent on land in a prescribed zone or on unzoned land.
- (5) Nothing in this section requires a person to obtain consent for development of any kind that the person is permitted by section 2.80, 2.80A or 2.82 to carry out without consent.

### 2.82 Exempt development

Development for any of the following purposes is exempt development if it is lawfully carried out on land in the area of a port that is managed by the Newcastle Port Corporation, or is vested in Transport for NSW, and complies with section 2.20—

- (a) awnings or canopies,
- (b) adjustment of boundaries between lots or consolidation of lots, if it will not result in—
  - (i) a change in the area of any lot by more than 10 per cent, or
  - (ii) the creation of an additional lot or of a legal right to erect a building on a lot, or
  - (iii) a reduction in vehicular access to any lot, in loading and unloading areas on any lot or in areas used for car parks, or
  - (iv) a breach of any requirements under an environmental planning instrument relating to a minimum area of open space or of landscaping, or
  - (v) a lot that depends on the use of the services provided to, or utilities of, another lot,
- (c) building alterations, including—

(i) non-structural alterations to the exteriors of buildings (such as painting, plastering, cement rendering, cladding, attaching fittings and decorative work), where the alterations do not involve the use of external combustible cladding within the meaning of the [Environmental Planning and Assessment \(Development Certification and Fire Safety\) Regulation 2021](#), and

(ii) interior alterations to buildings that do not affect the load bearing capacity of any load bearing component of a building,

(d) demolition of a building—

(i) that has a gross floor area of not more than 500m<sup>2</sup>, or

(ii) the erection of which is exempt development under this Chapter,

**Note.**

The term **building** is defined in the [Environmental Planning and Assessment Act 1979](#) as including any structure.

(e) minor installations for securing or accessing vessels (such as bollards, ladders, ramps, gantries, railings and mooring points), including the removal of those installations,

(f) minor installations for protecting wharves or vessels (such as cathodic protection systems and fenders), including the removal of those installations,

(g) emergency services equipment (including replacement or augmentation of fire systems, pumphouses, fire water tanks and other essential fire safety facilities),

(h) a flagpole that—

(i) has a height above ground level (existing) of not more than 30m or (if attached to or mounted on a building) extends not more than 10m above the highest point of the roof of the building, and

(ii) is located no closer than 20m from any boundary of a property on which residential accommodation is located, and

(iii) does not display any commercial advertisements for or about anything other than the Newcastle Port Corporation (in the case of the area of a port managed by it) or Transport for NSW (in the case of the area of a port vested in it) or any business operating in those areas,

(i) hail netting that—

(i) has a height above ground level (existing) of not more than 12m, and

(ii) is dark in colour,

(j) paving, or an at-grade car park (including access to or from the car park), that—

(i) is ancillary or incidental to a lawful use of the land, and

(ii) is designed so that any surface water run-off is directed to a stormwater management system or landscaped area,

(k) landscaping, including landscape structures or features (such as art work),

(l) marking out of roads,

(m) structures for external lighting if—

(i) any obtrusive effects of the external lighting (if new) are controlled in accordance with AS 4282—1997, *Control of the obtrusive effects of outdoor lighting*, and

(ii) the structures have a height above ground level (existing) of not more than 35m or (if attached to or mounted on a building) do not extend more than 10m above the highest point of the roof of the building,

- (n) pedestrian ramps, pathways or stairways (other than escalators or travelators),
- (o) escalators, or travelators, that are designed to ensure that any noise emitted by them does not exceed 5dB(A) above ambient background noise level (as measured at any adjoining property boundary),
- (p) pollution control facilities, occupational health and safety measures and environmental management works (including such facilities and works associated with liquid petroleum gas storage containers or fuel storage tanks) that satisfy any applicable pollution control provisions and guidelines and are not inconsistent with, or in contravention of, an existing development consent or undertaken for the purpose of remediating contaminated land,
- (q) retaining walls (not including sea walls) that—
  - (i) provide for the retaining of fill to a height above ground level (existing) of not more than 2m and excavation to a depth below ground level (existing) of not more than 1m, and
  - (ii) are constructed so as to not impede the natural flow of stormwater or surface water run-off,
- (r) hoardings or scaffolding in the circumstances specified in Schedule 1,
- (s) security fencing or security boom gate (whether or not installed along a road frontage) that has a height (in the case of a security fence) of not more than 3.5m,
- (t) safety or security barriers, including jersey barriers, earth berms and bollards,
- (u) traffic monitoring and security cameras and other facilities for tracking vessels or trucks, port navigation or security (including radar, communication or microwave receivers and the like),
- (v) directional or safety signs that comply with AS 1319—1994, *Safety signs for the occupational environment* and AS 4282—1997, *Control of the obtrusive effects of outdoor lighting*,
- (w) public notices that—
  - (i) are displayed by a public authority, and
  - (ii) contain only warning, safety, security or instructive information (whether or not conveyed by a graphic),
- (x) business identification signs that—
  - (i) are flush to or painted on a wall, and
  - (ii) have an area of not more than 25m<sup>2</sup>, and
  - (iii) are not more than 10m wide or long, and
  - (iv) if flush to a wall, do not project more than 0.3m out from the wall and do not extend vertically above or laterally beyond the wall, and
  - (v) are not illuminated, and
  - (vi) relate to the business carried out on the land,
- (y) without limiting paragraph (v), (w) or (x), a change in the display on, or the maintenance or replacement of, an existing sign that does not involve a change in the area, form or shape of the sign,
- (z) a temporary structure if—
  - (i) the structure is used for a period totalling not more than 12 months, and
  - (ii) any car parks and directional or safety signage associated with the use of the structure is located on the same site as the structure, and

- (iii) any waste associated with use of the structure is disposed of lawfully,
- (za) utilities and service facilities that have a height of not more than 3m above ground level (existing), including pipelines (but not including pipelines for fuel or hazardous materials or pipelines that are the subject of a licence under the [Pipelines Act 1967](#) or above ground or overhead power facilities),
- (zb) minor vegetation management carried out for the purpose of maintaining the security or safety of the designated port concerned and that involves no more disturbance of vegetation than is necessary for that purpose,
- (zc) investigations of the physical properties of soil, rock or seabed (including geotechnical and other testing, surveying and sampling to investigate those physical properties),
- (zd) movable plant and equipment,
- (ze) a port facility, but only in the circumstances specified in clause 21 of Schedule 1 to [State Environmental Planning Policy \(Three Ports\) 2013](#) (relating to the change of use of port facilities), and the maintenance of a port facility if—
  - (i) the facility is not a petroleum terminal, and
  - (ii) the facility was not, before the change of use, a petroleum terminal, and
  - (iii) the maintenance work does not involve dredging or bed profile levelling, and
  - (iv) the maintenance work involves no greater waterway bed, soil or vegetation disturbance than necessary,
- (zf) washbays,
- (zg) rainwater or grey water tanks used by any business at the designated port that, together with any other rainwater or grey water tanks used by the business, have a total storage capacity of not more than 20,000 litres of water,
- (zh) maintenance, removal and replacement of moorings and navigation marks if—
  - (i) they are not located in a marine park or aquatic reserve (within the meaning of the [Marine Estate Management Act 2014](#)), and
  - (ii) they are not moved to a different location, and
  - (iii) the work involves no greater waterway bed, soil or vegetation disturbance than necessary,
- (zi) emergency works to protect port facilities, navigation facilities, wharf or boating facilities, the environment or the public, but only if the work involves no greater waterway bed, soil or vegetation disturbance than necessary.

### 2.83 Complying development

- (1) Development for any of the following purposes is complying development if it is lawfully carried out on land in the area of a port that is managed by the Newcastle Port Corporation, or is vested in Transport for NSW, and complies with section 2.22—
  - (a) addition to, or alteration (including internal alteration) of, a building that does not result in—
    - (i) the gross floor area of the building being the lesser of 25 per cent or 500m<sup>2</sup> greater than it was immediately before the commencement of this Chapter, or
    - (ii) the building having a height (including the addition or alteration) of more than 12m above ground level (existing),
  - (b) a new building that—
    - (i) has a gross floor area of not more than 500m<sup>2</sup> or is not more than 1 storey high, and
    - (ii) has a height above ground level (existing) of not more than 12m, and

- (iii) except in the case of a security booth, is erected no closer than 1m from any adjoining property boundary (unless the adjoining property is owned or managed by the Port Corporation), and
  - (iv) in the case of food premises, including a canteen or kiosk, is designed, constructed and fitted-out in accordance with Australian Standard AS 4674—2004, *Design, construction and fit-out of food premises*,
- (c) demolition, carried out in accordance with Australian Standard AS 2601—2001, *The demolition of structures*, of a building—
  - (i) that has a gross floor area not exceeding 2,000m<sup>2</sup>, or
  - (ii) the erection of which is complying development under this section,
- (d) fences or gates (including security boom gates) that have a height (when closed, in the case of boom gates) of not more than 5m above ground level (existing),
- (e) buildings (including switch rooms or security booths) or sheds that—
  - (i) have a floor space area of not more than 500m<sup>2</sup>, and
  - (ii) are one storey high and have a height above ground level (existing) of not more than 10m, and
  - (iii) are not within 10m of any boundary,
- (f) retaining walls (other than seawalls) that—
  - (i) have a height of not more than 3m above ground level (existing), and
  - (ii) if they have a height of more than 1m, are certified by a structural engineer as having a satisfactory design and structure and as having been constructed in accordance with the specifications of that design, and
  - (iii) comply with—
    - (A) AS 3700—2011, *Masonry structures* and AS 3700 Supp 1—2004, *Masonry structures—Commentary (Supplement to AS 3700—2001)*, and
    - (B) AS/NZS 1170.1:2002, *Structural design actions Part 1: Permanent, imposed and other actions* and AS/NZS 1170.1 Supp1:2002, *Structural design actions—Permanent, imposed and other actions—Commentary (Supplement to AS/NZS 1170.1:2002)*, and
    - (C) if the structure is made of timber, AS 1720:1—1997/Amdt 1—1998, *Timber structures (known as the SAA Timber Structures Code)—Design methods*,
- (g) removal of existing cranes, replacement of existing cranes with smaller cranes or with cranes of the same capacity, or installation of crane rails for an existing crane, if—
  - (i) the development is not inconsistent with or in contravention of an existing consent, and
  - (ii) in the case of the replacement of cranes or installation of crane rails, the new cranes or crane rails are certified by a structural engineer as having a satisfactory design and as having been erected or installed in accordance with the specifications of that design,
- (h) liquid petroleum gas storage containers that—
  - (i) together have a capacity to store, at any one time, a total of not more than 3 tonnes of gas for each business, and
  - (ii) comply with the relevant requirements of AS 1940—2004, *The storage and handling of flammable and combustible liquids* and Australian and New Zealand Standard AS/NZS 1596:2008, *The storage and*

*handling of LP Gas,*

- (i) fuel storage tanks that—
  - (i) together have a capacity to store, at any one time, a total of not more than 50,000 litres of fuel for each business, and
  - (ii) comply with the relevant requirements of Australian Standard AS 1940—2004, *The storage and handling of flammable and combustible liquids*,
- (j) fire water tanks that together have a capacity to store, at any one time, a total of not more than 1,500 tonnes of water for each business,
- (k) new or replacement paving, if the area being paved is not more than 5,000m<sup>2</sup> and the development is not inconsistent with or in contravention of an existing consent,
- (l) satellite dishes or telecommunications facilities, if—
  - (i) the development will result in there being not more than one dish or one facility on the site at any one time, and
  - (ii) the dish or facility is made of non-reflective materials, has a height of not more than 12m above ground level (existing) and a diameter of not more than 3m,

## **2.84 Complying development conditions—additional conditions**

A complying development certificate for development referred to in section 2.83 is subject to the following conditions (in addition to the conditions set out in section 2.23)—

- (a) at the following stages, the principal certifying authority must be given the following survey certificates prepared by a registered land surveyor—
  - (i) before any form work below any ground floor slab or any addition to the ground floor slab, for a new building or addition is completed or (if there is no such form work) before the concrete is poured for the ground floor slab or addition to the ground floor slab—a survey certificate showing the location of the proposed new building or addition relative to the property boundaries,
  - (ii) at the completion of the lowest floor of any building or any addition to the lowest floor—a survey certificate confirming that the levels correspond to the levels shown on the plans in respect of which the complying development certificate is issued,
- (b) to control dust emissions from the site, suitable screens or barricades must be erected prior to any demolition, excavation or building work,
- (c) following removal of any friable asbestos from the site, a certificate from a suitably qualified person must be provided to the principal certifying authority certifying that no such asbestos remains on site and a copy of the certificate must be forwarded, before any other work begins, to the following—
  - (i) the Newcastle Port Corporation if the land is in the area of a port managed by it,
  - (ii) Transport for NSW if the land is in the area of a port vested in it,
  - (iii) the Department of Planning and Environment,
  - (iv) the council.

## **Division 14 Public administration buildings and buildings of the Crown**

### **2.85 Definitions**

In this Division—

**prescribed zone** means any of the following land use zones or a land use zone that is equivalent to any of those zones

- 
- (a1) E2 Commercial Centre,
- (a2) E3 Productivity Support,
- (a3) MU1 Mixed Use,
- (a) B3 Commercial Core,
- (b) B4 Mixed Use,
- (c) B5 Business Development,
- (d) B6 Enterprise Corridor,
- (e) B7 Business Park,
- (f) B8 Metropolitan Centre,
- (g) SP1 Special Activities,
- (h) SP2 Infrastructure,
- (i) Zone SP4 Enterprise under the following local environmental plans—
  - (i) [\*Canada Bay Local Environmental Plan 2013\*](#),
  - (ii) [\*Central Coast Local Environmental Plan 2022\*](#),
  - (iii) [\*Penrith Local Environmental Plan 2010\*](#),
  - (iv) [\*Pittwater Local Environmental Plan 2014\*](#),
  - (v) [\*Port Macquarie-Hastings Local Environmental Plan 2011\*](#),
  - (vi) [\*Sutherland Shire Local Environmental Plan 2015\*](#),
  - (vii) [\*The Hills Local Environmental Plan 2019\*](#),
  - (viii) [\*Warringah Local Environmental Plan 2011\*](#),
- (j) SP5 Metropolitan Centre.

**public administration building** has the same meaning as it has in the Standard Instrument.

**Note.**

The Standard Instrument defines **public administration building** as follows—

**public administration building** means a building used as offices or for administrative or other like purposes by the Crown, a statutory body, a council or an organisation established for public purposes, and includes a courthouse or a police station.

## 2.86 Existing buildings of the Crown

This Chapter does not restrict or prohibit, or enable the restriction or prohibition of, the use of existing buildings of the Crown by the Crown.

## 2.87 Sections 2.88 and 2.89 not applicable to police stations

Sections 2.88 and 2.89 do not apply to development for the purpose of police stations within the meaning of Division 6 of Part 2.3.

## 2.88 Development permitted with consent

- (1) Development for the purpose of public administration buildings may be carried out by or on behalf of a public authority with consent on land in a prescribed zone.
- (2) Development for the purpose of public administration buildings that are ancillary to and located on the same land as another infrastructure facility may be carried out by or on behalf of a public authority with consent if—
  - (a) the development application for the public administration building is determined at the same time as the development application for the infrastructure facility, and development for the public administration building is to be carried out at the same time as development for the infrastructure facility, or
  - (b) development for the purposes of the public administration building is to be carried out on land on which an existing infrastructure facility is located.

## 2.89 Development permitted without consent

- (1) Development for any of the following purposes may be carried out by or on behalf of a public authority without consent—
  - (a) alterations of or additions to a public administration building,
  - (b) restoration of a damaged public administration building,
  - (c) demolition of a public administration building,
  - (d) replacement of a public administration building if the height of the building does not exceed 12 metres and the setback is at least 5 metres.
- (2) Development for the purpose of a public administration building that is ancillary to and located on the same land as an infrastructure facility may be carried out by or on behalf of a public authority without consent if—
  - (a) development for the purpose of the infrastructure facility may be carried out without consent on that land, and
  - (b) the approval of the activity (within the meaning of Part 5 of the Act) includes an approval for the public administration building, and development for the public administration building is to be carried out at the same time as development for the infrastructure facility.

## 2.90 Exempt development

Any of the following development is exempt development if the development complies with section 2.20—

- (a) development for the purposes of landscaping in the grounds of a public administration building, including landscape structures or features (such as art work),
- (b) use of a building as a public administration building following a change of use of the building as commercial premises.

### Note.

Subdivision 10A of Division 1 of Part 2 of [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#) contains provisions relating to a change of use from a public administration building to business premises, office premises, shops and kiosks.

# Division 15 Railways

## Subdivision 1 Railways and rail infrastructure facilities

### 2.91 Interpretation

- (1) In this Division—

**ARTC** means Australian Rail Track Corporation Ltd (ACN 081 455 754).

**ARTC arrangement** means a lease, licence agreement or other arrangement under Part 8A of the [Transport Administration Act 1988](#).

**freight** includes livestock, containers, liquids, materials, plant and equipment, vehicles and vessels.

**Interim Metro Corridor** means land shown on a rail corridors map as—

- (a) CBD Metro (Zone A—Above Ground Including Cut & Cover Tunnel), or
- (b) CBD Metro (Zone B—Tunnel), or
- (c) CBD Metro Station Extent.

**interim rail corridor** means the Interim Metro Corridor, the Interim Rail Link Corridor or the Interim Sydney Metro West Corridor.

**Interim Rail Link Corridor** means land shown on a rail corridors map as—

- (a) CBD Rail Link (Zone B—Tunnel), or

**Interim Sydney Metro West Corridor** means land shown on a rail corridors map as Sydney Metro West Tunnel.

**major development** has the same meaning it has in Part 4 of the [City of Sydney Act 1988](#).

**prescribed zone** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a1) E4 General Industrial,
- (a2) E5 Heavy Industrial,
- (a) IN1 General Industrial,
- (b) IN2 Light Industrial,
- (c) IN3 Heavy Industrial,
- (d) SP1 Special Activities,
- (e) SP2 Infrastructure.

**rail authority** for a rail corridor means—

- (a) in relation to a rail corridor that is vested in or owned by ARTC or is the subject of an ARTC arrangement—ARTC, and
- (b) in relation to any other rail corridor—Transport for NSW.

**rail corridor** means land—

- (a) that is owned, leased, managed or controlled by a public authority for the purpose of a railway or rail infrastructure facilities, or
- (b) that is zoned under an environmental planning instrument predominantly or solely for development for the purpose of a railway or rail infrastructure facilities, or
- (c) in respect of which the Minister has granted approval under Part 3A or Division 5.2 or (before its repeal) Division 4 of Part 5 of the Act, or consent under Part 4 of the Act, for the carrying out of development (or for a concept plan for a project comprising or including development) for the purpose of a railway or rail infrastructure facilities.

**Note.**

Copies of the Minister's approvals are available on the website of the Department of Planning and Environment.

***rail corridors map*** means the maps marked as follows and held in the head office of the Department of Planning and Environment—

- (a) *State Environmental Planning Policy (Infrastructure) 2007—Interim Rail Corridor—CBD Rail Link & CBD Metro*,
- (b) [\*State Environmental Planning Policy \(Transport and Infrastructure\) 2021—Interim Rail Corridor—Sydney Metro West\*](#).

***rail infrastructure facilities*** include—

- (a) railway tracks, associated track structures, cuttings, drainage systems, fences, tunnels, ventilation shafts, emergency accessways, bridges, embankments, level crossings and roads, pedestrian and cycleway facilities, and
- (b) signalling, train control, communication and security systems, and
- (c) power supply (including overhead power supply) systems, and
- (d) railway stations, station platforms and areas in a station complex that commuters use to get access to the platforms, and
- (e) public amenities for commuters, and
- (f) associated public transport facilities for railway stations, and
- (g) facilities for the assembly, maintenance and stabling of rolling stock, and
- (h) facilities for the dismantling and stabling of rolling stock taken out of service, and
- (i) refuelling depots, garages, maintenance facilities and storage facilities that are for the purposes of a railway, and
- (j) railway workers' facilities, and
- (k) rail freight terminals, sidings and freight intermodal facilities, and
- (l) buildings for or related to railway purposes,

but do not include buildings or works that are for residential, retail or business purposes and unrelated to railway purposes.

***RailCorp*** means Rail Corporation New South Wales constituted under the [\*Transport Administration Act 1988\*](#).

- (2) A reference in this Division to rail infrastructure facilities includes a reference to any facilities, buildings, works or infrastructure related to light rail purposes.
- (3) In sections 2.92 and 2.93A, a reference to development for the purposes of a railway or rail infrastructure facilities includes a reference to the operation of a railway and to development for the following purposes if the development is carried out in connection with a railway or rail infrastructure facilities—
  - (a) construction works, whether or not in a heritage conservation area, including—
    - (i) temporary crushing plants, or temporary concrete batching plants, that are in or adjacent to a rail corridor and used solely in connection with the construction of a railway, and
    - (ii) track support earthworks, and

- (iii) alteration, demolition or relocation of a local heritage item, and
- (iv) alteration or relocation of a State heritage item, and
- (v) temporary buildings, or temporary facilities for the management of railway construction, that are in or adjacent to a rail corridor,

(b) emergency works or routine maintenance works,

**Note—**

See section 2.7(4) regarding emergency works and routine maintenance works on land to which [State Environmental Planning Policy \(Resilience and Hazards\) 2021](#), sections 2.7 and 2.8 apply.

- (c) maintenance of an existing rail infrastructure facility,
- (d) environmental management works.

## **2.92 Development permitted without consent—rail infrastructure facilities generally**

- (1) Development for the purpose of a railway or rail infrastructure facilities may be carried out by or on behalf of a public authority without consent on any land. However, such development may be carried out without consent on land reserved under the [National Parks and Wildlife Act 1974](#) only if the development—
  - (a) is authorised by or under that Act, or
  - (b) is, or is the subject of, an existing interest within the meaning of section 39 of that Act, or
  - (c) is on land to which that Act applies over which an easement has been granted and is not contrary to the terms or nature of the easement.
- (2) (Repealed)
- (3) Development for the following purposes may be carried out by or on behalf of a rail authority for a rail corridor without consent on land in a prescribed zone—
  - (a) any of the following if the development is carried out in a car park intended for use by commuters that is owned, leased, managed or controlled by a rail authority—
    - (i) vehicle share car parking,
    - (ii) vehicle hire,
    - (iii) vehicle servicing and cleaning,
  - (b) markets if the development is carried out on land used for the purpose of a railway station or on any land that is owned, leased, managed or controlled by a rail authority no more than once per calendar month.

## **2.93 Development permitted without consent—particular rail infrastructure facilities**

Development for the purpose of any of the following railways or railway projects as described in Schedule 2 may be carried out by or on behalf of a public authority without consent on any land—

- (a) the Sydney Airport Rail Link,
- (b) the Parramatta Rail Link,
- (c) the Southern Sydney Freight Line,
- (d) the Rail Clearways Program.

**2.93A Development permitted without consent—coastal wetlands and littoral rainforest**

- (1) This section applies to land identified as “coastal wetlands” or “littoral rainforest” on the [\*Coastal Wetlands and Littoral Rainforests Area Map\*](#).
- (2) Development for the purposes of railways or rail infrastructure facilities may be carried out by or on behalf of a public authority without development consent if—
  - (a) the development does not involve the clearing of native vegetation from coastal wetlands or littoral rainforest, and
  - (b) the public authority is satisfied the development—
    - (i) includes adequate measures to minimise adverse impacts on coastal wetlands or littoral rainforest, and
    - (ii) is not likely to significantly impact the biophysical, hydrological or ecological integrity of coastal wetlands or littoral rainforest, and
    - (iii) is not likely to significantly impact the quantity and quality of surface and ground water flows to and from coastal wetlands, and
  - (c) the development does not involve earthworks other than earthworks that are ancillary to the following development—
    - (i) geotechnical testing and sampling that involves a drill hole with a diameter of no more than 120mm,
    - (ii) surveying and the placement of survey marks,
    - (iii) boring or directional drilling that does not disturb the surface of coastal wetlands or littoral rainforest and that involves a drill hole with a diameter of no more than 1,800mm,
    - (iv) replacing an electricity pole with a new pole with a diameter of no more than 1,200mm,
    - (v) installing supporting posts for a gate on an existing fence,
    - (vi) creating a trench to lay an electricity line to connect 2 connection points that are no more than 100m apart.

**2.94 Development permitted with consent**

- (1) Development for one or more of the following purposes, other than development specified in section 2.92, may be carried out by a person with consent—
  - (a) the following in a rail corridor, if the development is carried out wholly or partly above a railway station—
    - (i) residential accommodation,
    - (ii) tourist and visitor accommodation,
    - (iii) commercial premises,
    - (iv) community facilities,
    - (v) public administration buildings,
    - (vi) artisan food and drink industries,
    - (vii) recreation areas,
    - (viii) recreation facilities (indoor),
  - (b) commercial premises, community facilities, public administration buildings, artisan food and drink industries, recreation areas or recreation facilities (indoor) in—

- (i) a railway complex, including in an area used by commuters to access station platforms, or
- (ii) below a railway complex but above ground,

**Example—**

Circular Quay

- (c) the following in a transport interchange, other than an at-grade transport interchange, if the premises are located on the ground floor of the interchange or have street frontage—
    - (i) commercial premises,
    - (ii) community facilities,
    - (iii) public administration buildings,
    - (iv) artisan food and drink industries,
    - (v) recreation areas,
    - (vi) recreation facilities (indoor),
  - (d) bus interchanges that are integrated or associated with railway stations, but that are not owned, leased, managed or controlled by a public authority,
  - (e) markets, recreation areas or temporary structures, if the development is carried out on land that is owned, leased, managed or controlled by ARTC or Transport for NSW.
- (1A) Development for one or more of the following purposes, other than development specified in section 2.92, may be carried out by a person with consent on land in a prescribed zone—
- (a) rail freight terminals, rail freight sidings or rail freight intermodal facilities,
  - (b) commercial premises in a car park intended for use by commuters, other than an at-grade car park, if the premises—
    - (i) are located on the ground floor of the car park, or
    - (ii) have street frontage,
  - (c) car parks intended for use by commuters that are not owned, leased, managed or controlled by a public authority.
- (2) Nothing in this section requires a public authority to obtain consent for development that is permitted without consent by section 2.92 and 2.93A.

**2.95 Exempt development—public authorities**

- (1) Development for any of the following purposes is exempt development if it is carried out by or on behalf of a public authority, is in connection with a railway or rail infrastructure facilities and complies with section 2.20, involves no greater disturbance to the ground or vegetation than necessary, and does not result in an increase in stormwater drainage or run-off from the site concerned—
  - (a) routine maintenance (including removal of graffiti or debris, maintenance or replacement of lighting, mechanical systems, electrical equipment or air monitoring equipment and replacement of screening of overhead bridges),
  - (b) emergency works to protect railway infrastructure facilities, the environment or the public,
  - (c) maintenance or replacement of identification, directional or safety signs that does not involve a change in their location or size,

- (d) maintenance of existing access roads,
  - (e) slope stability works that are required for safety reasons,
  - (f) erection, maintenance or replacement of safety barriers,
  - (g) construction, maintenance, replacement or realignment of security fencing with a height of not more than 3.2m above ground level (existing),
  - (h) reconstruction, maintenance or replacement of culverts or drains,
  - (i) upgrading or maintenance of landscaping, or vegetation management, that—
    - (i) does not involve construction works, and
    - (ii) involves the replacement (if any) of existing materials with similar materials only,
  - (j) installation, maintenance or replacement of—
    - (i) temporary structures, or temporary signs, associated with alternative transport arrangements necessitated by rail track work or railway maintenance, or
    - (ii) other signs that comply with any relevant requirements of AS 1319—1994, *Safety signs for the occupational environment* and AS 4282—1997, *Control of the obtrusive effects of outdoor lighting*.
- (1A) The use of a railway station room for the purposes of commercial premises, community facilities or public administration buildings is exempt development if the development—
- (a) is carried out by or on behalf of a public authority, and
  - (b) complies with section 2.20, and
  - (c) does not affect the load-bearing capacity of a load-bearing component of the building in which the room is located.
- (1B) If the room is used for the purposes of food and drink premises, the room must be designed, constructed and fitted-out in accordance with Australian Standard AS 4674—2004, *Design, construction and fit-out of food premises*, published in February 2004.
- (2) For the purposes of this section, development carried out by or on behalf of a lessee or licensee of ARTC, Sydney Metro or Transport for NSW is taken to be carried out by or on behalf of ARTC, Sydney Metro or Transport for NSW if the development is required or authorised to be carried out by the lease or licence.
- (3) In this section—
- railway station room*** means a room that—
- (a) is located on a station platform or in an area of a railway complex used by commuters to access station platforms, and
  - (b) was previously used for railway purposes.

**Note—**

See also section 2.21 in relation to exempt development carried out by public authorities for purposes specified in Schedule 1.

## 2.96 Exempt development

Development for the purposes of automatic teller machines, coffee carts or vending machines is exempt development if—

- (a) the development complies with section 2.20, and

- (b) is located on station platforms or in areas of a railway complex used by commuters to access station platforms.

### 2.96A Complying development

- (1) The use of a railway station room for the purposes of commercial premises, community facilities or public administration buildings is complying development if the development—
  - (a) complies with section 2.22, and
  - (b) does not affect the load-bearing capacity of a load-bearing component of the building in which the room is located.
- (2) If the development involves internal alterations, the alterations must not involve structural alterations.
- (3) If the room is used for the purposes of food and drink premises, the room must be designed, constructed and fitted-out in accordance with Australian Standard AS 4674—2004, *Design, construction and fit-out of food premises*, published in February 2004.
- (4) In this section—
 

**railway station room** means a room that—

  - (a) is located on a station platform or in an area of a railway complex used by commuters to access station platforms, and
  - (b) was previously used for railway purposes.

## Subdivision 2 Development in or adjacent to rail corridors and interim rail corridors—notification and other requirements

### 2.97 Development involving access via level crossings

- (1) This section applies to development that involves—
  - (a) a new level crossing, or
  - (b) the conversion into a public road of a private access road across a level crossing, or
  - (c) a likely significant increase in the total number of vehicles or the number of trucks using a level crossing as a result of the development.
- (2) Before determining a development application for development to which this section applies, the consent authority must—
  - (a) within 7 days after the application is made, give written notice of the application to the rail authority for the rail corridor, and
  - (b) take into consideration—
    - (i) any response to the notice that is received within 21 days after the notice is given, and
    - (ii) the implications of the development for traffic safety including the costs of ensuring an appropriate level of safety, having regard to existing traffic characteristics and any likely change in traffic at level crossings as a result of the development, and
    - (iii) the feasibility of access for the development that does not involve use of level crossings.
- (3) Subject to subsection (5), the consent authority must not grant consent to development to which this section applies without the concurrence of the rail authority for the rail corridor.
- (4) In determining whether to provide concurrence, the rail authority must take into account—
  - (a) any rail safety or operational issues associated with the aspects of the development, and

(b) the implications of the development for traffic safety including the cost of ensuring an appropriate level of safety, having regard to existing traffic and any likely change in traffic at level crossings as a result of the development.

- (5) The consent authority may grant consent to development to which this section applies without the concurrence of the rail authority for the rail corridor if 21 days have passed since the consent authority gave notice under subsection (2)(a) and the rail authority has not granted or refused to grant concurrence.
- (6) The consent authority must provide the rail authority for the rail corridor with a copy of the determination of the application within 7 days after the determination is made.
- (7) In this section—

*level crossing* means a level crossing over railway lines.

*traffic* includes rail, road and pedestrian traffic.

## 2.98 Development adjacent to rail corridors

- (1) This section applies to development on land that is in or adjacent to a rail corridor, if the development—
- (a) is likely to have an adverse effect on rail safety, or
  - (b) involves the placing of a metal finish on a structure and the rail corridor concerned is used by electric trains, or
  - (c) involves the use of a crane in air space above any rail corridor, or
  - (d) is located within 5 metres of an exposed overhead electricity power line that is used for the purpose of railways or rail infrastructure facilities.

### Note.

Section 2.48 also contains provisions relating to development that is within 5 metres of an exposed overhead electricity power line.

- (2) Before determining a development application for development to which this section applies, the consent authority must—
- (a) within 7 days after the application is made, give written notice of the application to the rail authority for the rail corridor, and
  - (b) take into consideration—
    - (i) any response to the notice that is received within 21 days after the notice is given, and
    - (ii) any guidelines that are issued by the Planning Secretary for the purposes of this section and published in the Gazette.
- (3) Despite subsection (2), the consent authority is not required to comply with subsection (2)(a) and (b)(i) if the development application is for development on land that is in or adjacent to a rail corridor vested in or owned by ARTC or the subject of an ARTC arrangement.
- (4) Land is adjacent to a rail corridor for the purpose of this section even if it is separated from the rail corridor by a road or road related area within the meaning of the [Road Transport Act 2013](#).

## 2.99 Excavation in, above, below or adjacent to rail corridors

- (1) This section applies to development (other than development to which section 2.101 applies) that involves the penetration of ground to a depth of at least 2m below ground level (existing) on land—
- (a) within, below or above a rail corridor, or

- (b) within 25m (measured horizontally) of a rail corridor, or
  - (c) within 25m (measured horizontally) of the ground directly below a rail corridor, or
  - (d) within 25m (measured horizontally) of the ground directly above an underground rail corridor.
- (2) Before determining a development application for development to which this section applies, the consent authority must—
- (a) within 7 days after the application is made, give written notice of the application to the rail authority for the rail corridor, and
  - (b) take into consideration—
    - (i) any response to the notice that is received within 21 days after the notice is given, and
    - (ii) any guidelines issued by the Planning Secretary for the purposes of this section and published in the Gazette.
- (3) Subject to subsection (5), the consent authority must not grant consent to development to which this section applies without the concurrence of the rail authority for the rail corridor to which the development application relates.
- (4) In deciding whether to provide concurrence, the rail authority must take into account—
- (a) the potential effects of the development (whether alone or cumulatively with other development or proposed development) on—
    - (i) the safety or structural integrity of existing or proposed rail infrastructure facilities in the rail corridor, and
    - (ii) the safe and effective operation of existing or proposed rail infrastructure facilities in the rail corridor, and
  - (b) what measures are proposed, or could reasonably be taken, to avoid or minimise those potential effects.
- (5) The consent authority may grant consent to development to which this section applies without the concurrence of the rail authority concerned if—
- (a) the rail corridor is owned by or vested in ARTC or is the subject of an ARTC arrangement, or
  - (b) in any other case, 21 days have passed since the consent authority gave notice under subsection (2)(a) and the rail authority has not granted or refused to grant concurrence.

#### **2.100 Impact of rail noise or vibration on non-rail development**

- (1) This section applies to development for any of the following purposes that is on land in or adjacent to a rail corridor and that the consent authority considers is likely to be adversely affected by rail noise or vibration—
- (a) residential accommodation,
  - (b) a place of public worship,
  - (c) a hospital,
  - (d) an educational establishment or centre-based child care facility.
- (2) Before determining a development application for development to which this section applies, the consent authority must take into consideration any guidelines that are issued by the Planning Secretary for the purposes of this section and published in the Gazette.

- (3) If the development is for the purposes of residential accommodation, the consent authority must not grant consent to the development unless it is satisfied that appropriate measures will be taken to ensure that the following LAeq levels are not exceeded—
  - (a) in any bedroom in the residential accommodation—35 dB(A) at any time between 10.00 pm and 7.00 am,
  - (b) anywhere else in the residential accommodation (other than a garage, kitchen, bathroom or hallway)—40 dB(A) at any time.

## 2.101 Development within or adjacent to interim rail corridor

- (1) This section applies to development that is—
  - (a) on the land shown as “Zone A” on a rail corridors map and has an estimated development cost of more than \$200,000, or
  - (b) on the land shown as “Zone B” on a rail corridors map and—
    - (i) involves the penetration of ground to a depth of at least 2m below ground level (existing), or
    - (ii) has an estimated development cost of more than \$200,000 and involves the erection of a structure that is 10 or more metres high or an increase in the height of a structure so that it is more than 10m, or
  - (c) on the land shown as “Sydney Metro West Tunnel” on a rail corridors map and involves the penetration of ground to a depth of at least 2m below ground level (existing).
- (2) Before determining a development application to which this section applies, the consent authority must give written notice of the application to the rail authority for the interim rail corridor in which the development is to be carried out (*the relevant rail authority*) within 7 days after the application is made.
- (3) Except as provided by subsection (5), consent must not be granted to development to which this section applies without the concurrence of the relevant rail authority.
- (4) In determining whether to provide concurrence, the relevant rail authority is to take into account the likely effect of the development on—
  - (a) the practicability and cost of carrying out rail expansion projects on the land in the future, and
  - (b) without limiting paragraph (a), the structural integrity or safety of, or ability to operate, such a project, and
  - (c) without limiting paragraph (a), the land acquisition costs and the costs of construction, operation or maintenance of such a project.
- (5) The consent authority may grant consent to development to which this section applies without the concurrence of the relevant rail authority if—
  - (a) the consent authority has given the relevant rail authority notice of the development application, and
  - (b) 21 days have passed since that notice was given and the relevant rail authority has not granted or refused to grant concurrence.
- (6) The consent authority must provide the relevant rail authority with a copy of the determination of the application within 7 days after the determination is made.
- (7) In this section—
 

*rail authority* means the following—

  - (a) for the Interim Metro Corridor or the Interim Rail Link Corridor—Transport for NSW,
  - (b) for the Interim Sydney Metro West Corridor—Sydney Metro constituted under the [Transport Administration Act 1988](#).

### 2.102 Major development within Interim Metro Corridor

- (1) This section applies to land within the City of Sydney that is within the Interim Metro Corridor.
- (2) A consent authority must—
  - (a) give written notice of an application for consent to major development on land to which this section applies to the Secretary of the Department of Transport within 7 days of receiving the application, and
  - (b) before determining the application, take into account any submissions made by that Secretary within 21 days after giving the notice.
- (3) A consent authority must not grant consent to major development on land to which this section applies if the development would have an adverse effect on the viability of the proposed metro, including by increasing the likely cost of developing the proposed metro.
- (4) For the purposes of determining whether a proposed major development could have an adverse effect on the viability of the proposed metro, a consent authority may rely on a certificate issued by the Secretary of the Department of Transport that certifies whether or not there would be any such adverse effect.
- (5) The consent authority must provide the Secretary of the Department of Transport with a copy of the determination of the application within 7 days after the determination is made.

### 2.103 Development near proposed metro stations

- (1) This section applies to land shown as CBD Metro Station Extent on a rail corridors map and land that is adjacent to that land.
- (2) A consent authority must not grant consent to development on land to which this section applies unless it has taken into consideration—
  - (a) whether the proposed development will adversely affect the development and operation of a proposed metro station, including by impeding access to, or egress from, the proposed metro station, and
  - (b) whether the proposed development will encourage the increased use of public transport.

## Division 16 Research and monitoring stations

### 2.104 Definitions

In this Division—

***monitoring station*** means a facility operated for the principal purpose of monitoring weather, noise, air, water, groundwater or environmental impacts.

***prescribed zone*** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a) RU1 Primary Production,
- (b) RU2 Rural Landscape,
- (c) RU3 Forestry,
- (d) RU4 Primary Production Small Lots,
- (e) RU5 Village,
- (f) IN4 Working Waterfront,
- (g) SP1 Special Activities,

- (h) SP2 Infrastructure,
- (i) W2 Recreational Waterways,
- (j) W3 Working Waterways,
- (k) W4 Working Waterfront.

**research station** means a facility operated by a public authority for the principal purpose of agricultural, environmental, fisheries, forestry, minerals or soil conservation research, and includes any associated facility for education, training, administration or accommodation.

#### 2.105 Development permitted with consent

Development for the purpose of research stations may be carried out by or on behalf of a public authority with consent on land in a prescribed zone.

#### 2.106 Development permitted without consent

- (1) Development for any of the following purposes connected with an existing research station may be carried out by or on behalf of a public authority without consent on land in a prescribed zone—
  - (a) maintenance or operation of the research station,
  - (b) replacement of buildings,
  - (c) demolition of buildings,
  - (d) minor alterations of or additions to the research station,
 if the development does not involve the clearing of more than 2 hectares of native vegetation.
- (2) Development for the purpose of a monitoring station (other than development to which section 2.107 applies) may be carried out by or on behalf of a public authority without consent on any land.

#### 2.107 Exempt development

Development for the purpose of a monitoring station is exempt development if it complies with section 2.20 and is carried out on land within Zone C1 National Parks and Nature Reserves or a prescribed zone or on land acquired under Part 11 of the [National Parks and Wildlife Act 1974](#).

### Division 17 Roads and traffic

#### Subdivision 1 Roads and road infrastructure facilities

##### 2.108 Interpretation

- (1) In this Division—

**accredited bus service operator** means a person who is—

- (a) accredited under Division 1 of Part 2 of the [Passenger Transport Act 1990](#) to carry on a public passenger service, within the meaning of that Act, by means of a bus, or
- (b) accredited under Part 2 of the [Passenger Transport Act 2014](#) to operate a public passenger service, within the meaning of that Act, by means of a bus.

**AS 1428** means the following publications—

- (a) Australian Standard AS 1428.1—2009, *Design for access and mobility, Part 1: General requirements for access—New building work*,

- (b) Australian Standard AS 1428.2—1992, *Design for access and mobility, Part 2: Enhanced and additional requirements—Buildings and facilities*,
- (c) Australian and New Standard AS/NZS 1428.4.1:2009, *Design for access and mobility, Part 4.1: Means to assist the orientation of people with vision impairment—Tactile ground surface indicators*,
- (d) Australian Standard AS 1428.5—2010, *Design for access and mobility, Part 5: Communication for people who are deaf or hearing impaired*.

**bus depot** means premises used for the servicing, repair, garaging or parking of buses.

**classified road** has the same meaning as it has in the Standard Instrument.

**Note.**

The Standard Instrument defines **classified road** (by reference to the [Roads Act 1993](#)) to mean any of the following—

- (a) a main road,
- (b) a highway,
- (c) a freeway,
- (d) a controlled access road,
- (e) a secondary road,
- (f) a tourist road,
- (g) a tollway,
- (h) a transitway,
- (i) a State work.

See the [Roads Act 1993](#) for the meanings of the terms listed above.

**Disability Standards** means *Disability Standards for Accessible Public Transport 2002* made under the [Disability Discrimination Act 1992](#) of the Commonwealth.

**prescribed zone** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a1) E3 Productivity Support,
- (a2) E4 General Industrial,
- (a3) E5 Heavy Industrial,
- (a4) MU1 Mixed Use,
- (a) B4 Mixed Use,
- (b) B6 Enterprise Corridor,
- (c) B8 Metropolitan Centre,
- (d) IN1 General Industrial,
- (e) IN2 Light Industrial,
- (f) IN3 Heavy Industrial,
- (g) SP1 Special Activities,
- (h) SP2 Infrastructure,

- (i) SP4 Enterprise,
- (j) SP5 Metropolitan Centre.

**public road** means—

- (a) any road that is opened or dedicated as a public road, whether under the [Roads Act 1993](#) or any other Act or law, and
- (b) any road that is declared to be a public road for the purposes of the [Roads Act 1993](#).

**regular bus service** means a public passenger service (within the meaning of the [Passenger Transport Act 2014](#)) that is conducted by bus according to regular routes and timetables and does not include a tourist service or a community transport service (within the meaning of the [Passenger Transport Act 2014](#)).

**road corridor** means—

- (a) land that is used for the purposes of a road or road infrastructure facilities and owned or managed by a public authority, or
- (b) any land in respect of which the Minister has granted approval under Part 3A or Division 5.2 or (before its repeal) Division 4 of Part 5 of the Act, or consent under Part 4 of the Act, for the carrying out of development for the purpose of a road or road infrastructure facilities.

**road infrastructure facilities** includes—

- (a) tunnels, ventilation shafts, emergency accessways, vehicle or pedestrian bridges, causeways, road-ferries, retaining walls, toll plazas, toll booths, security systems, bus lanes, transit lanes, transitways, transitway stations, rest areas and road related areas (within the meaning of the [Road Transport Act 2013](#)), and
- (b) associated public transport facilities for roads used to convey passengers by means of regular bus services, and
- (c) bus layovers that are integrated or associated with roads (whether or not the roads are used to convey passengers by means of regular bus services), and
- (d) bus depots, and
- (e) bus stops and bus shelters, and
- (f) traffic control facilities (within the meaning of Part 6 of the [Transport Administration Act 1988](#)), TfNSW road safety training facilities and safety works, and
- (g) premises used for the purposes of testing and inspecting heavy vehicles (within the meaning of the [Road Transport Act 2013](#)) under the TfNSW Heavy Vehicle Authorised Inspection Scheme.

- (2) In sections 2.109, 2.110A and 2.112, a reference to development for the purposes of road infrastructure facilities includes a reference to development for the following purposes if the development is carried out in connection with a road or road infrastructure facilities—

- (a) construction works, whether or not in a heritage conservation area, including—
  - (i) temporary buildings or facilities for the management of construction, if they are in or adjacent to a road corridor, and
  - (ii) creation of embankments, and
  - (iii) extraction and stockpiling of extractive materials if—
    - (A) the extraction and stockpiling are ancillary to road construction, or

- (B) the materials are used solely for road construction and the extraction and stockpiling take place in or adjacent to a road corridor, and
- (iv) temporary crushing or concrete batching plants, if they are used solely for road construction and are on or adjacent to a road corridor, and
- (v) temporary roads that are used solely during road construction,
- (b) emergency works or routine maintenance works,

**Note—**

See section 2.7(4) regarding emergency works and routine maintenance works on land to which [State Environmental Planning Policy \(Resilience and Hazards\) 2021](#), sections 2.7 and 2.8 apply.

- (c) alterations or additions to an existing road, such as widening, narrowing, duplication or reconstruction of lanes and changing the alignment or strengthening of the road,
- (d) environmental management works, if the works are in or adjacent to a road corridor.

**2.109 Development permitted without consent—general**

- (1) Development for the purpose of a road or road infrastructure facilities may be carried out by or on behalf of a public authority without consent on any land. However, such development may be carried out without consent on land reserved under the [National Parks and Wildlife Act 1974](#) only if the development—
  - (a) is authorised by or under the [National Parks and Wildlife Act 1974](#), or
  - (b) is, or is the subject of, an existing interest within the meaning of section 39 of that Act, or
  - (c) is on land to which that Act applies over which an easement has been granted and is not contrary to the terms or nature of the easement.
- (2) Development for any of the following purposes may be carried out by or on behalf of a public authority without consent on land in a prescribed zone—
  - (a) bus depots,
  - (b) permanent road maintenance depots and associated infrastructure (such as garages, sheds, tool houses, storage yards, training facilities and workers' amenities).
- (2A) The following development for the purposes of bus depots may be carried out by or on behalf of a public authority without consent on land within the boundaries of an existing bus depot—
  - (a) the erection of a building that is—
    - (i) no more than 12.5m high, and
    - (ii) not located within 5m of a property boundary for a lot in a residential or conservation zone,
  - (b) the demolition of a building.
- (3) (Repealed)

**2.110 Development permitted without consent—particular roads or road projects**

Development for the purpose of any of the following roads or road projects (as described in Schedule 2) may be carried out by or on behalf of a public authority without consent—

- (a) the Eastern Distributor,
- (b) the Cross City Tunnel,
- (c) the Lane Cove Tunnel,

- (d) the Tugun Bypass,
- (e) the Liverpool—Parramatta Transitway,
- (f) the North-West Sydney Transitway Network.

#### **2.110A Development permitted without consent—coastal wetlands and littoral rainforest**

- (1) This section applies to land identified as “coastal wetlands” or “littoral rainforest” on the [\*Coastal Wetlands and Littoral Rainforests Area Map\*](#).
- (2) Development for the purposes of roads or road infrastructure facilities may be carried out by or on behalf of a public authority without development consent if—
  - (a) the development does not involve the clearing of native vegetation from coastal wetlands or littoral rainforest, and
  - (b) the public authority is satisfied the development—
    - (i) includes adequate measures to minimise adverse impacts on coastal wetlands or littoral rainforest, and
    - (ii) is not likely to significantly impact the biophysical, hydrological or ecological integrity of coastal wetlands or littoral rainforest, and
    - (iii) is not likely to significantly impact the quantity and quality of surface and ground water flows to and from coastal wetlands, and
  - (c) the development does not involve earthworks other than earthworks that are ancillary to the following development—
    - (i) geotechnical testing and sampling that involves a drill hole with a diameter of no more than 120mm,
    - (ii) surveying and the placement of survey marks,
    - (iii) boring or directional drilling that does not disturb the surface of coastal wetlands or littoral rainforest and that involves a drill hole with a diameter of no more than 1,800mm,
    - (iv) replacing an electricity pole with a new pole with a diameter of no more than 1,200mm,
    - (v) installing supporting posts for a gate on an existing fence,
    - (vi) creating a trench to lay an electricity line to connect 2 connection points that are no more than 100m apart.

#### **2.111 Notification of carrying out of certain development under section 2.109, 2.110 or 2.110A without consent**

- (1) This section applies to development that may be carried out by or on behalf of a public authority without consent under section 2.109, 2.110 or 2.110A for any of the following purposes—
  - (a) car parks intended for use by commuters using regular bus services,
  - (b) bus depots,
  - (c) permanent road maintenance depots and associated infrastructure (such as garages, sheds, tool houses, storage yards, training facilities and workers’ amenities).
- (2) Before development to which this section applies is carried out on land, the public authority concerned must—
  - (a) give written notice of the intention to carry out the development to the council for the area in which the land is located (unless the public authority is that council) and to the occupiers of adjoining land, and
  - (b) take into consideration any response to the notice that is received within 21 days after giving the notice.

### 2.112 Development permitted with consent

- (1) Development for the purpose of a road or road infrastructure facilities may be carried out by any person with consent on land within a special area within the meaning of the [Water NSW Act 2014](#).
- (2) Development for any of the following purposes may be carried out by any person with consent on land in a prescribed zone—
  - (a) car parks intended for use by commuters using regular bus services,
  - (b) bus depots,
  - (c) permanent road maintenance depots and associated infrastructure (such as garages, sheds, tool houses, storage yards, training facilities and workers' amenities),
  - (d) retail or business premises in a car park (other than an at-grade car park) that is intended for use by commuters using regular bus services, but only if the premises are located on the ground floor of the car park or have street frontage,
  - (e) retail or business premises in a public transport interchange (other than an at-grade interchange) on a route used to convey passengers by means of regular bus services, but only if the premises are located on the ground floor of the interchange or have street frontage.
- (3) Nothing in this section requires a public authority to obtain consent for development that is permitted without consent by section 2.109, 2.110, 2.110A or 2.113.

### 2.113 Exempt development

- (1) Development for any of the following purposes is exempt development if it is carried out by or on behalf of a public authority or the Minister responsible for Crown roads (within the meaning of the [Roads Act 1993](#)) in connection with a road or road infrastructure facilities and complies with section 2.20—
  - (a) erection, installation, maintenance, reconstruction or replacement of any of the following, and any associated landscaping works—
    - (i) security fencing with a height above ground level (existing) of not more than 3.2m,
    - (ii) safety barriers or systems, including Jersey barriers,
    - (iii) directional, safety or other advisory signs relating to road works or the use of existing road infrastructure facilities,
    - (iv) pedestrian and cyclist facilities (such as footpaths, street lighting, kerb adjustments and ramps, pedestrian fences, refuges, holding rails, and bollards),
    - (v) slope stability works that are required for safety reasons and minor road safety improvements,
    - (vi) minor road pavement or shoulder work (such as patching, grading, re-sheeting, sealing and re-sealing),
    - (vii) street furniture (such as seats, bins and directional signs) and any associated kerb construction, access paths and ramps, lighting and signage that complies with AS:1428.2 and the Disability Standards,
    - (viii) removal from or addition to existing traffic lights of items such as signal displays, loops or buttons,
    - (ix) roadside facilities and rest areas, if the development does not involve the installation of toilets and involves no greater disturbance to the ground or vegetation than necessary,
    - (x) street lighting, if any replacement involves the replacement of existing materials with similar materials only and if the lighting minimises light spill and artificial sky glow in accordance with the Lighting for Roads and Public Spaces Standard,

- (xi) pavement and road surface markings (such as bus lane markings), lane delineators, electric pavement lights, detection loops and traffic counters,
  - (xii) kerb and guttering,
  - (xiii) culverts, drains and other works to improve the quality or control of stormwater runoff,
  - (xiv) public transport information display and ticketing systems,
  - (b) repair or replacement of lighting, mechanical systems, electrical equipment or air monitoring equipment, replacement of screening of overhead bridges and removal of graffiti or debris,
  - (c) emergency works to protect a road or road infrastructure facilities, the environment or the public, but only if they involve no greater disturbance to soil or vegetation than necessary,
  - (d) upgrading or maintenance of landscaping, or vegetation management (such as weed spraying, slashing and pruning), that—
    - (i) does not involve construction works, and
    - (ii) involves the replacement (if any) of existing materials with similar materials only,
  - (e) installation, replacement or maintenance of temporary structures (such as temporary bus stops, bus shelters or signs) that are associated with alternative transport arrangements necessitated by road works or road maintenance and that are removed as soon as practicable.
- (2) The construction of bus stops or bus shelters (including the construction or installation of any associated kerbs, access paths or ramps, lighting or signage) carried out by or on behalf of a public authority, or an accredited bus service operator providing regular bus services at those stops or shelters, is exempt development if—
- (a) the development complies with section 2.20, and
  - (b) the stops or shelters—
    - (i) have a height above the footpath of not more than 3.2 metres, and
    - (ii) have only non-reflective finishes, and
    - (iii) do not obstruct the line of sight of vehicular traffic or pedestrian traffic, and
  - (c) the design of any associated kerbs, access paths and ramps, lighting and signage is in accordance with AS 1428 and the Disability Standards.
- (3) The display of commercial advertisements on bus stops or bus shelters is not exempt development under this section.
- (4) Development for the purposes of maintaining bus stops or bus shelters (including maintaining any associated kerbs, access paths or ramps, lighting or signage) by or on behalf of a public authority, or an accredited bus service operator providing regular bus services at those stops or shelters, is exempt development if the development—
- (a) complies with section 2.20, and
  - (b) does not involve giving the shelter or stop a reflective finish, and
  - (c) does not cause the design of any associated kerbs, access paths or ramps, lighting or signage to be inconsistent with AS 1428 or the Disability Standards.
- (5) Without limiting section 2.21, development for a purpose specified in Schedule 1 is exempt development if the development—
- (a) is carried out by or on behalf of an accredited bus service operator providing a regular bus service, and

- (b) is carried out on land within the boundaries of an existing bus depot, and
- (c) meets the development standards for the development specified in Schedule 1, and
- (d) complies with section 2.20.

(6) In this section—

***relevant development control plan*** means, in relation to a bus stop or bus shelter, a development control plan (as in force on the commencement of this Chapter) that has been adopted by the council for the local government area in which the stop or shelter is located.

## 2.114 Complying development

Development on land within the boundaries of an existing bus depot is complying development if it is carried out by or on behalf of a public authority, or an accredited bus service operator who is operating a regular bus service, complies with section 2.22 and consists of—

- (a) the addition to or alteration of office premises, a shed, a garage or a kiosk in existence before the commencement of this section, but only if, on completion of the addition or alteration—
  - (i) the gross floor area of the office premises, shed, garage or kiosk is not more than 25% greater than it was immediately before the commencement of this section, and
  - (ii) the height of the office premises, shed, garage or kiosk is not more than 12m above ground level (existing), and
  - (iii) the office premises, shed, garage or kiosk is located no closer than 5m from any adjoining property boundary, or
- (b) the erection of a canteen, or kiosk, for the use of employees, but only if the canteen or kiosk—
  - (i) has a gross floor area of not more than 100m<sup>2</sup>, and
  - (ii) has a height of not more than 12m above ground level (existing), and
  - (iii) is designed, constructed and fitted-out in accordance with Australian Standard AS 4674—2004, *Design, construction and fit-out of food premises*, and
  - (iv) is located no closer than 5m from any adjoining property boundary, or
- (c) the erection of an amenity facility (such as a toilet block or showers) for the use of employees, but only if the facility—
  - (i) has a gross floor area of not more than 100m<sup>2</sup>, and
  - (ii) has a height of not more than 10m above ground level (existing), and
  - (iii) is located no closer than 5m from any adjoining property boundary, or
- (d) the demolition of any of the following buildings—
  - (i) a building having a gross floor area of not more than 250m<sup>2</sup>,
  - (ii) a building the erection of which is exempt development under this Chapter,
  - (iii) a building the erection of which is complying development under this section, or
- (e) the erection of a fence or a gate (including a security boom gate) having a height of not more than 5m above ground level (existing), or
- (f) the erection of a building consisting of a switch room, security booth, shed or the like, but only if—

- (i) the gross floor area of the building is not more than 500m<sup>2</sup>, and
- (ii) the building is 1 storey high, and
- (iii) the height of the building is not more than 12m above ground level (existing), and
- (iv) the building is located no closer than 5m from any adjoining property boundary, or
- (g) the erection of a rainwater or grey water tank having a storage capacity of not more than 20,000 litres of water, or
- (h) the installation or replacement of paving, but only if—
  - (i) any uncontaminated stormwater that traverses the new paving is directed to a stormwater management system, and
  - (ii) in a case where it is proposed that there be any fuel stored or any refuelling on the paved area—the paved area is bunded so that any fuel spilled on the paved area is contained.

**Note.**

The relevant water supply authority should be contacted in relation to any controls on the disposal of contaminated liquids.

**2.115 Complying development certificate conditions—additional conditions**

A complying development certificate for development referred to in section 2.114 is subject to the following conditions (in addition to the conditions set out in section 2.23)—

- (a) suitable screens or barricades must be erected prior to any demolition, excavation or building work in order to control dust emissions from the site,
- (b) in the case of development referred to in section 2.114(b), (c) or (f)—the principal certifying authority for the development must be given the following survey certificates prepared by a registered land surveyor—
  - (i) before any form work below the ground floor slab is completed or (if there is no such form work) before the concrete is poured for the ground floor slab—a survey certificate showing the location of the proposed building relative to the property boundaries,
  - (ii) on completion of the lowest floor—a survey certificate confirming that the levels correspond to the levels shown on the plans in respect of which the complying development certificate is issued.

**Subdivision 2 Development in or adjacent to road corridors and road reservations****2.116 Development other than road facilities on public roads**

- (1) Development may be carried out with consent on a public road that is unzoned land for any purpose that may be carried out (either with or without consent) on land adjoining the road.
- (2) Development for any purpose may be carried out by a public authority without consent on a public road that is unzoned land.

**2.117 Highway service centres in road corridors**

- (1) Development for the purpose of a highway service centre may be carried out in a road corridor for a freeway, main road or tollway only with consent.
- (2) In this section, *freeway*, *main road* and *tollway* have the same meanings as in the [Roads Act 1993](#).

**2.118 Development on proposed classified road**

- (1) Consent for development for any of the following purposes on land reserved for the purposes of a classified road (but before the land is declared to be a classified road) may be granted only with the concurrence of TfNSW—

- (a) subdivision that results in the creation of an additional lot with dwelling entitlements,
  - (b) development with an estimated development cost greater than \$185,000,
  - (c) development for the purpose of dwellings that are, or any other building that is, to be held under strata title.
- (2) Before determining a development application (or an application for modification of a consent) for development to which this section applies, the consent authority must—
- (a) give written notice of the application to TfNSW within 7 days after the application is made, and
  - (b) take into consideration any response to the notice that is received within 21 days after the notice is given.
- (3) In deciding whether to grant concurrence to proposed development under this section, TfNSW must take the following matters into consideration—
- (a) the need to carry out development for the purposes of a classified road or a proposed classified road,
  - (b) the imminence of acquisition of the land by TfNSW,
  - (c) the likely additional cost to TfNSW resulting from the carrying out of the proposed development.
- (4) The consent authority must give TfNSW a copy of the determination of the application within 7 days after the determination is made.
- (5) The consent authority may grant consent to development to which this section applies without the concurrence of TfNSW if—
- (a) the consent authority has given the chief executive officer notice of the development application, and
  - (b) 21 days have passed since giving the notice and the chief executive officer has not granted or refused to grant the concurrence.

#### **2.119 Development with frontage to classified road**

- (1) The objectives of this section are—
- (a) to ensure that new development does not compromise the effective and ongoing operation and function of classified roads, and
  - (b) to prevent or reduce the potential impact of traffic noise and vehicle emission on development adjacent to classified roads.
- (2) The consent authority must not grant consent to development on land that has a frontage to a classified road unless it is satisfied that—
- (a) where practicable and safe, vehicular access to the land is provided by a road other than the classified road, and
  - (b) the safety, efficiency and ongoing operation of the classified road will not be adversely affected by the development as a result of—
    - (i) the design of the vehicular access to the land, or
    - (ii) the emission of smoke or dust from the development, or
    - (iii) the nature, volume or frequency of vehicles using the classified road to gain access to the land, and
  - (c) the development is of a type that is not sensitive to traffic noise or vehicle emissions, or is appropriately located and designed, or includes measures, to ameliorate potential traffic noise or vehicle emissions within the site of the development arising from the adjacent classified road.

## 2.120 Impact of road noise or vibration on non-road development

- (1) This section applies to development for any of the following purposes that is on land in or adjacent to the road corridor for a freeway, a tollway or a transitway or any other road with an annual average daily traffic volume of more than 20,000 vehicles (based on the traffic volume data published on the website of TfNSW) and that the consent authority considers is likely to be adversely affected by road noise or vibration—
  - (a) residential accommodation,
  - (b) a place of public worship,
  - (c) a hospital,
  - (d) an educational establishment or centre-based child care facility.
- (2) Before determining a development application for development to which this section applies, the consent authority must take into consideration any guidelines that are issued by the Planning Secretary for the purposes of this section and published in the Gazette.
- (3) If the development is for the purposes of residential accommodation, the consent authority must not grant consent to the development unless it is satisfied that appropriate measures will be taken to ensure that the following LAeq levels are not exceeded—
  - (a) in any bedroom in the residential accommodation—35 dB(A) at any time between 10 pm and 7 am,
  - (b) anywhere else in the residential accommodation (other than a garage, kitchen, bathroom or hallway)—40 dB(A) at any time.
- (3A) Subsection (3) does not apply to a building to which [State Environmental Planning Policy \(Housing\) 2021](#), Chapter 3, Part 7 applies.
- (4) In this section, *freeway*, *tollway* and *transitway* have the same meanings as they have in the [Roads Act 1993](#).

## 2.121 Excavation in or immediately adjacent to corridors

- (1) This section applies to development that involves the penetration of ground to a depth of at least 3m below ground level (existing) on land that is the road corridor of any of the following roads or road projects (as described in Schedule 2)—
  - (a) the Eastern Distributor,
  - (b) the Cross City Tunnel,
  - (c) the Lane Cove Tunnel,
  - (d) the Tugun Bypass,
  - (e) the Liverpool—Parramatta Transitway,
  - (f) the North-West Sydney Transitway Network,
  - (g) the Gore Hill Freeway,
  - (h) the Western Distributor,
  - (i) Southern Cross Drive,
  - (j) the Cahill Expressway,
  - (k) General Holmes Drive,
  - (l) the Hume Motorway,

- (m) the M1 Pacific Motorway,
  - (n) the M2,
  - (o) the M4,
  - (p) the M5,
  - (q) the M4–M5 link,
  - (r) the M7,
  - (s) NorthConnex,
  - (t) the Sydney Harbour Tunnel,
  - (u) the King Georges Road Interchange,
  - (v) the Pacific Highway.
- (2) Before determining a development application (or an application for modification of a consent) for development to which this section applies, the consent authority must—
- (a) give written notice of the application to TfNSW within 7 days after the application is made, and
  - (b) take into consideration—
    - (i) any response to the notice that is received within 21 days after the notice is given, and
    - (ii) any guidelines that are issued by the Planning Secretary for the purposes of this section and published in the Gazette, and
    - (iii) any implications of the ground penetration for the structural integrity of the road or project, and
    - (iv) any cost implications for the road or project of the ground penetration.
- (3) The consent authority must provide TfNSW with a copy of the determination of the application within 7 days after the determination is made.

## 2.122 Traffic-generating development

- (1) This section applies to development specified in Column 1 of the Table to Schedule 3 that involves—
- (a) new premises of the relevant size or capacity, or
  - (b) an enlargement or extension of existing premises, being an alteration or addition of the relevant size or capacity.
- (2) In this section, *relevant size or capacity* means—
- (a) in relation to development on a site that has direct vehicular or pedestrian access to any road (except as provided by paragraph (b))—the size or capacity specified opposite that development in Column 2 of the Table to Schedule 3, or
  - (b) in relation to development on a site that has direct vehicular or pedestrian access to a classified road or to a road that connects to a classified road where the access (measured along the alignment of the connecting road) is within 90m of the connection—the size or capacity specified opposite that development in Column 3 of the Table to Schedule 3.
- (3) A public authority, or a person acting on behalf of a public authority, must not carry out development to which this section applies that this Chapter provides may be carried out without consent unless the authority or person has—

- (a) given written notice of the intention to carry out the development to TfNSW in relation to the development, and
  - (b) taken into consideration any response to the notice that is received from TfNSW within 21 days after the notice is given.
- (4) Before determining a development application for development to which this section applies, the consent authority must—
- (a) give written notice of the application to TfNSW within 7 days after the application is made, and
  - (b) take into consideration—
    - (i) any submission that RMS provides in response to that notice within 21 days after the notice was given (unless, before the 21 days have passed, TfNSW advises that it will not be making a submission), and
    - (ii) the accessibility of the site concerned, including—
      - (A) the efficiency of movement of people and freight to and from the site and the extent of multi-purpose trips, and
      - (B) the potential to minimise the need for travel by car and to maximise movement of freight in containers or bulk freight by rail, and
    - (iii) any potential traffic safety, road congestion or parking implications of the development.
- (5) The consent authority must give TfNSW a copy of the determination of the application within 7 days after the determination is made.

#### **2.122A Traffic-generating development—exemption for Accelerated TOD Precincts**

- (1) Section 2.122 does not apply to development for the purposes of residential accommodation on land identified as an “Accelerated TOD Precinct” on the [Accelerated Transport Oriented Development Precincts Rezoning Areas Map](#).
- (2) This section does not apply in relation to—
  - (a) a development application made, but not finally determined, before the commencement of this section, or
  - (b) a development application made on or after 30 November 2027.
- (3) In this section—

*Accelerated Transport Oriented Development Precincts Rezoning Areas Map* has the same meaning as in [State Environmental Planning Policy \(Housing\) 2021](#).

### **Subdivision 3 Electric vehicle charging units**

#### **2.123 Definitions**

In this Subdivision—

***advertising-enabled EV charging unit***—

- (a) means an EV charging unit that includes a screen or other display capable of displaying advertisements, and
- (b) includes an advertisement displayed on the screen or other display.

***electricity supply authority*** and ***electricity transmission or distribution network*** have the same meanings as in this Part, Division 5.

***EV charging unit*** means electric vehicle supply equipment intended to be used to deliver electricity to charge the battery of an electric vehicle.

**installation** includes construction or erection.

**street furniture**—

- (a) includes parking meters, telephone booths, rubbish bins or recycling bins, planter boxes, street signs, benches and bollards, and
- (b) does not include electricity or lighting poles or bus stops.

#### **2.124 Development permitted without consent—electricity supply authorities and public authorities**

Development for the purposes of installing an EV charging unit may be carried out by or on behalf of an electricity supply authority or a public authority without consent if—

- (a) the unit is installed on land owned or controlled by an electricity supply authority or a public authority, and
- (b) the unit is installed on a footpath adjacent to an area where a motor vehicle may lawfully be parked, and
- (c) the unit is not installed on, or attached to, an existing building other than—
  - (i) an electricity substation that is part of an electricity transmission or distribution network, or
  - (ii) an electricity or lighting pole that is part of an electricity transmission or distribution network and to which a transformer is not attached, or
  - (iii) street furniture, and
- (d) for a unit that is not installed on, or attached to, an existing building—the unit is installed—
  - (i) if installed near a kerb—at least 30cm behind the face of the kerb, or
  - (ii) otherwise—at least 1m from a public road, and
- (e) the unit is installed in accordance with specifications or instructions issued by the manufacturer of the unit, and
- (f) the unit complies with the following standards—
  - (i) AS/NZS 3000:2018, *Electrical installations*,
  - (ii) AS/NZS 4417.2:2020, *Regulatory compliance mark for electrical and electronic equipment, Part 2: Specific requirements for particular regulatory applications*, and
- (g) the unit does not obstruct the following—
  - (i) vehicular, cyclist or pedestrian access to or from, or entry into, a building,
  - (ii) cyclist or pedestrian movement along a cycleway or footpath, and
- (h) the unit does not obstruct access to, or interfere with, a structure, device, fixture or equipment used for firefighting or fire protection, including a fire hydrant, and
- (h1) for an advertising-enabled EV charging unit—the unit is not installed on land in a residential zone, and
- (i) for an advertising-enabled EV charging unit—each screen or display of the unit—
  - (i) is integrated within the frame of the unit, and
  - (ii) complies with AS/NZS 4282:2019, *Control of the obtrusive effects of outdoor lighting*, and
  - (iii) if illuminated—is not animated, flashing or moving.

#### **2.124A Development permitted with consent—generally**

- (1) Development for the purposes of installing an EV charging unit may be carried out with consent if—

- (a) the unit does not obstruct the following—
  - (i) vehicular, cyclist or pedestrian access to or from, or entry into, a building,
  - (ii) cyclist or pedestrian movement along a cycleway or footpath, and
- (b) the unit does not obstruct access to, or interfere with, a structure, device, fixture or equipment used for firefighting or fire protection, including a fire hydrant, and
- (c) for an advertising-enabled EV charging unit—
  - (i) the unit is not installed on land in a residential zone, and
  - (ii) each screen or display of the unit—
    - (A) complies with AS/NZS 4282:2019, *Control of the obtrusive effects of outdoor lighting*, and
    - (B) if illuminated—is not animated, flashing or moving.
- (2) (Repealed)

#### **2.124B Development permitted with consent—residential premises**

- (1) Development for the purposes of installing an EV charging unit may be carried out with consent on relevant public land if—
  - (a) the unit is installed adjacent to an area where a motor vehicle may lawfully be parked, and
  - (b) the consent authority is satisfied the unit is—
    - (i) for the non-commercial use of an owner or occupier of the adjacent residential premises, and
    - (ii) connected to the electricity meter of the owner or occupier, and
  - (c) all cables providing electrical power to the unit are located underground, and
  - (d) the unit is able to be fully retracted underground when not in use, and
  - (e) the unit is installed in accordance with specifications or instructions issued by the manufacturer of the unit.
- (2) This section does not apply to an advertising-enabled EV charging unit.
- (3) In this section—

***relevant public land*** means public land that—

- (a) immediately adjoins a public road, and
- (b) is adjacent to residential premises.

#### **2.124C Development permitted with consent—buildings used for recharging or exchanging batteries**

Development involving the erection of a building used for the purposes of recharging or exchanging the batteries of electric vehicles may be carried out with consent on land adjoining a public road—

- (a) in a prescribed zone, or
- (b) on which there is an existing service station, highway service centre or car washing facility.

#### **2.124D Exempt development—certain premises**

- (1) Development for the purposes of installing an EV charging unit is exempt development if—
  - (a) the development complies with section 2.20, and

- (b) the unit is installed—
  - (i) in or adjacent to a parking space associated with a building, or
  - (ii) in relevant premises and adjacent to an area where a motor vehicle may lawfully be parked, and
- (c) (Repealed)
- (d) the unit complies with the following standards—
  - (i) AS/NZS 3000:2018, *Electrical installations*,
  - (ii) AS/NZS 4417.2:2020, *Regulatory compliance mark for electrical and electronic equipment, Part 2: Specific requirements for particular regulatory applications*,
  - (iii) if the unit is installed in a service station or highway service centre—AS/NZS IEC 60079.10.1:2022, *Explosive atmospheres, Part 10.1: Classification of areas—Explosive gas atmospheres*, and
- (e) the unit does not obstruct vehicular or pedestrian access to or from, or entry into, a building, and
- (f) the unit does not extend onto or above a public road, and
- (g) the unit is not installed on an electricity or lighting pole, and
- (g1) for an advertising-enabled EV charging unit—the unit is not installed on land in a residential zone, and
- (h) for an advertising-enabled EV charging unit—each screen or display of the unit—
  - (i) is integrated within the frame of the unit, and
  - (ii) does not have a surface area greater than 3m<sup>2</sup>, and
  - (iii) complies with AS/NZS 4282:2019, *Control of the obtrusive effects of outdoor lighting*, and
  - (iv) if illuminated—is not animated, flashing or moving.

(2) In this section—

***relevant premises*** means the following—

- (a) a bus depot,
- (b) a car park,
- (c) a car washing facility,
- (d) a highway service centre,
- (e) a public administration building,
- (f) a road maintenance depot,
- (g) a service station.

**2.124E Exempt development—existing electricity or lighting poles**

Development for the purposes of installing an EV charging unit on an existing electricity or lighting pole is exempt development if—

- (a) the development complies with section 2.20, and
- (b) the unit is installed on, or attached to, an existing electricity or lighting pole that is—
  - (i) not a pole to which a transformer is attached, and

- (ii) part of an electricity transmission or distribution network, and
- (iii) adjacent to an area where a motor vehicle may lawfully be parked, and
- (c) the unit does not contain batteries capable of storing a total of more than 1kWh of energy, and
- (d) the unit does not obstruct the following—
  - (i) vehicular, cyclist or pedestrian access to or from, or entry into, a building,
  - (ii) cyclist or pedestrian movement along a cycleway or footpath, and
- (e) the unit does not obstruct access to, or interfere with, a structure, device, fixture or equipment used for firefighting or fire protection, including a fire hydrant, and
- (f) the charging cables of the unit are able to be fully contained within the unit when the unit is not in use, and
- (g) when the charging cables of the unit are fully contained within the unit, no part of the unit extends onto or above a public road, and
- (g1) for an advertising-enabled EV charging unit—the unit is not installed on land in a residential zone, and
- (h) for an advertising-enabled EV charging unit—each screen or display of the unit—
  - (i) is integrated within the frame of the unit, and
  - (ii) does not have a surface area greater than 3m<sup>2</sup>, and
  - (iii) complies with AS/NZS 4282:2019, *Control of the obtrusive effects of outdoor lighting*, and
  - (iv) if illuminated—is not animated, flashing or moving.

#### **2.124F Exempt development—existing street furniture**

Development for the purposes of installing an EV charging unit carried out by or on behalf of an electricity supply authority or a public authority is exempt development if—

- (a) the development complies with section 2.20, and
- (b) the unit is installed on, or attached to, an existing piece of street furniture, and
- (c) the unit is installed adjacent to an area where a motor vehicle may lawfully be parked, and
- (d) the unit complies with the following standards—
  - (i) AS/NZS 3000:2018, *Electrical installations*,
  - (ii) AS/NZS 4417.2:2020, *Regulatory compliance mark for electrical and electronic equipment, Part 2: Specific requirements for particular regulatory applications*, and
- (e) the unit does not obstruct the following—
  - (i) vehicular, cyclist or pedestrian access to or from, or entry into, a building,
  - (ii) cyclist or pedestrian movement along a cycleway or footpath, and
- (f) the unit does not obstruct access to, or interfere with, a structure, device, fixture or equipment used for firefighting or fire protection, including a fire hydrant, and
- (g) the charging cables of the unit are able to be fully contained within the unit when the unit is not in use, and
- (h) when the charging cables of the unit are fully contained within the unit, no part of the unit extends onto or above a public road, and

- (h1) for an advertising-enabled EV charging unit—the unit is not installed on land in a residential zone, and
- (i) for an advertising-enabled EV charging unit—each screen or display of the unit—
  - (i) is integrated within the frame of the unit, and
  - (ii) does not have a surface area greater than 3m<sup>2</sup>, and
  - (iii) complies with AS/NZS 4282:2019, *Control of the obtrusive effects of outdoor lighting*, and
  - (iv) if illuminated—is not animated, flashing or moving.

## Division 18 Sewerage systems

### 2.125 Definitions

In this Division—

*biosolids treatment facility*, *sewage reticulation system*, *sewage treatment plant*, *sewerage system* and *water recycling facility* have the same meanings as in the Standard Instrument.

*Northside Storage Tunnel* means—

- (a) a tunnel running from Thorn Street, Hunters Hill to the North Head Sewage Treatment Plant, Manly, and
- (b) a branch tunnel to Scotts Creek, and
- (c) branch bores to two outlets at Tarban Creek, namely, the Huntley's Point submain and the Woolwich submain, and
- (d) a branch shaft to South Willoughby, and
- (e) a branch tunnel to Shelly Beach.

*prescribed zone* means any of the following land use zones or a land use zone that is equivalent to any of those zones —

- (a) RU1 Primary Production,
- (b) RU2 Rural Landscape,
- (c) RU4 Primary Production Small Lots,
- (c1) E4 General Industrial,
- (c2) E5 Heavy Industrial,
- (d) IN1 General Industrial,
- (e) IN3 Heavy Industrial,
- (f) SP1 Special Activities,
- (g) SP2 Infrastructure.

### 2.126 Development permitted with or without consent

- (1) Development is carried out in the *prescribed circumstances* if the development—
  - (a) is carried out by or on behalf of a public authority, or
  - (b) consists of the construction or operation of water industry infrastructure, within the meaning of the [Water Industry Competition Act 2006](#), and a scheme approval under that Act is required before the development may be carried out.

- (2) Development for the purpose of sewage treatment plants or biosolids treatment facilities may be carried out without consent on land in a prescribed zone in the prescribed circumstances.
- (3) In any other circumstances, development for the purpose of sewage treatment plants or biosolids treatment facilities may be carried out with consent on land in a prescribed zone.
- (4) Development for the purpose of water recycling facilities may be carried out without consent on land in a prescribed zone in the prescribed circumstances.
- (5) In any other circumstances, development for the purpose of water recycling facilities may be carried out with consent if—
  - (a) the land on which the development is carried out is in a prescribed zone, or
  - (b) the development is ancillary to an existing land use.
- (6) Development for the purpose of sewage reticulation systems may be carried out without consent on any land in the prescribed circumstances.
- (7) In any other circumstances, development for the purpose of sewage reticulation systems may be carried out with consent on any land.
- (8) Development for the purpose of water recycling facilities or sewage reticulation systems may be carried out on land reserved under the [\*National Parks and Wildlife Act 1974\*](#) only if the development is authorised by or under that Act.
- (9) Development for the purpose of the Northside Storage Tunnel may be carried out by or on behalf of Sydney Water Corporation without consent on land in any of the following local government areas—
  - (a) Hunters Hill,
  - (b) Lane Cove,
  - (c) Leichhardt,
  - (d) Manly,
  - (e) Mosman,
  - (f) North Sydney,
  - (g) Willoughby.
- (10) A reference in this Division to development for the purpose of a sewerage system of any kind includes a reference to development for any of the following purposes if the development is in connection with the sewerage system—
  - (a) pumping stations, pipelines and tunnels,
  - (b) temporary storage, including reservoirs, and transfer works to reticulate sewage or treated effluent,
  - (c) effluent and biosolids reuse schemes,
  - (d) sewage or effluent treatment systems, including artificial wetlands,
  - (e) power supply to the development,
  - (f) energy generating works,
  - (g) construction works,
  - (h) routine maintenance works,

- (i) environmental management works,
- (j) maintenance depots.

(11) (Repealed)

#### **2.126A Development permitted without consent—coastal wetlands and littoral rainforest**

- (1) This section applies to land identified as “coastal wetlands” or “littoral rainforest” on the [\*Coastal Wetlands and Littoral Rainforests Area Map\*](#).
- (2) Development for the purposes of sewage reticulation systems may be carried out by or on behalf of a public authority without development consent if—
  - (a) the development does not involve the clearing of native vegetation on coastal wetlands or littoral rainforests, and
  - (b) the public authority is satisfied the development—
    - (i) includes adequate measures to minimise adverse impacts on coastal wetlands or littoral rainforest, and
    - (ii) is not likely to significantly impact the biophysical, hydrological or ecological integrity of coastal wetlands or littoral rainforest, and
    - (iii) is not likely to significantly impact the quantity and quality of surface and ground water flows to and from coastal wetlands, and
  - (c) the development does not involve earthworks other than earthworks that are ancillary to the following development—
    - (i) geotechnical testing and sampling that involves a drill hole with a diameter of no more than 120mm,
    - (ii) surveying and the placement of survey marks,
    - (iii) boring or directional drilling that does not disturb the surface of coastal wetlands or littoral rainforest and that involves a drill hole with a diameter of no more than 1,800mm,
    - (iv) replacing an electricity pole with a new pole with a diameter of no more than 1,200mm,
    - (v) installing supporting posts for a gate on an existing fence,
    - (vi) creating a trench to lay an electricity line to connect 2 connection points that are no more than 100m apart.

#### **2.127 Exempt development**

Development for any of the following purposes carried out by or on behalf of a public authority is exempt development if the development is in connection with a sewerage system and complies with section 2.20—

- (a) emergency works or emergency maintenance to protect a sewerage system, if they involve no greater soil or vegetation disturbance than necessary,
- (b) routine maintenance or associated landscaping works, including the following, if any disturbance to soil or vegetation is no greater than necessary—
  - (i) removal of litter, silt or debris from any part of the sewerage system,
  - (ii) harvesting of macrophytes associated with a treatment system,
  - (iii) excavations to expose a pipeline for inspection or testing and the creation of temporary stockpiles associated with pipeline maintenance or replacement,

- (iv) flushing or relining of a pipeline if access is by a manhole,
- (v) maintenance of access tracks or fire trails (including access tracks along or to corridors, pipelines or other infrastructure),
- (vi) painting, servicing or minor alteration of existing equipment,
- (vii) alterations to existing enclosures or buildings,
- (viii) maintenance or replacement of sewerage system components that does not increase capacity (or increases capacity only to a minimal extent),
- (c) installation or maintenance of a cathodic protection system or trunk drainage channel pipeline marker,
- (d) works for safety or security, such as—
  - (i) construction, maintenance or realignment of security fencing that has a height above ground level (existing) of not more than 3.2m, or
  - (ii) temporary fencing around work sites or around open excavations, or
  - (iii) maintenance of existing gates or installation of new gates, or
  - (iv) slope stability works,
- (e) temporary structures associated with maintenance projects, but only if the structure has only one storey.

## Division 18A Shooting ranges

### 2.128 Definitions

In this Division—

***lawful shooting range*** means a shooting range that—

- (a) is approved under the [Firearms Act 1996](#) and the regulations under that Act, and
- (b) was not established at a time when the carrying out of development on the land concerned for the purposes of a shooting range was prohibited.

***range danger area*** means an area adjoining that part of a shooting range where firearm shooting takes place (together with relevant air space) within which there may be a danger to persons or property arising from firearm shooting.

***shooting range*** means a recreation facility (outdoor) or an emergency services facility (within the meaning of Division 6) used for the purposes of any firearm shooting competition, training or practice, and includes the range danger area.

### 2.129 Shooting ranges permissible with consent

- (1) Development may be carried out by any person with consent—
  - (a) for the purposes of a shooting range on land on which there is a lawful shooting range, or
  - (b) for the purposes of a range danger area on land adjoining any such lawful shooting range.
- (2) This section does not require consent to carry out development on land if that development could, but for this section, be carried out on that land without consent (including under section 2.130 or 2.131).

### 2.130 Development carried out by NSW Police Force

Development may be carried out by or on behalf of the NSW Police Force without consent for the purposes of a shooting range on land on which there is a lawful shooting range.

### 2.131 Exempt development

- (1) This section applies to land that is part of or adjoining a lawful shooting range if the land is in any of the following land use zones or a land use zone that is equivalent to any of those zones—
  - (a) RU1 Primary Production,
  - (b) RU2 Rural Landscape,
  - (c) RU3 Forestry,
  - (d) RU4 Primary Production Small Lots,
  - (e) SP1 Special Activities,
  - (f) SP2 Infrastructure,
  - (g) RE1 Public Recreation,
  - (h) RE2 Private Recreation,
  - (i) C2 Environmental Conservation,
  - (j) C3 Environmental Management.
- (2) The use of land to which this section applies for the purposes of a range danger area (including the erection of the fencing and signs required by this subsection) is exempt development if—
  - (a) secure fencing is erected to prevent access to the range danger area and that fencing—
    - (i) is constructed using post and wire or post and rail (and not of masonry), and
    - (ii) if on bush fire prone land—is constructed of non-combustible material or hardwood, and
    - (iii) if it is electrical fencing—is constructed in accordance with AS/NZS 3014:2003 *Electrical installations—Electric fences*, and
    - (iv) if it is on a flood control lot (within the meaning of [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#))—does not redirect or interrupt the flow of surface or ground water on the lot, and
  - (b) signage is affixed to that fencing—
    - (i) so that it is located regularly along the fencing and each sign can be clearly seen from each adjacent sign with a sign also being at each entrance in the fencing, and
    - (ii) each sign contains the words “Firearms range—Danger keep out” (or similar) in font that is clearly legible to a person approaching the fence from outside the range danger area.

**Note 1.**

Development cannot be carried out on land without the consent of the owner of the land.

**Note 2.**

The approval under the [Firearms Act 1996](#) for the shooting range may specify additional requirements that must be complied with in relation to a range danger area.

## Division 19 Soil conservation works

### 2.132 Definition

In this Division—

**soil conservation works** means development necessary—

- (a) to avoid, manage or mitigate the effects of salinity, acid sulfate soils, acid soils or sodic soils, or
- (b) to avoid, manage or mitigate the effects of erosion.

### 2.133 Development permitted without consent

- (1) Development for the purpose of soil conservation works may be carried out by or on behalf of a public authority without consent on any land.
- (2) A reference in this section to development for the purpose of soil conservation works includes a reference to development for any of the following purposes if the development is in connection with soil conservation works—
  - (a) construction works,
  - (b) routine maintenance works,
  - (c) emergency works, including works associated with landslides,
  - (d) environmental management works.

## Division 19A State sport and recreation centres

### 2.134 Definition

In this Division—

**State sport and recreation centre** means the land identified as the subject land on the following maps—

- (a) *State Environmental Planning Policy (Infrastructure) 2007 Sports and Recreation Berry Land Application Map*,
- (b) *State Environmental Planning Policy (Infrastructure) 2007 Sports and Recreation Borambola Land Application Map*,
- (c) *State Environmental Planning Policy (Infrastructure) 2007 Sports and Recreation Broken Bay Land Application Map*,
- (d) *State Environmental Planning Policy (Infrastructure) 2007 Sports and Recreation Jindabyne Land Application Map*,
- (e) *State Environmental Planning Policy (Infrastructure) 2007 Sports and Recreation Lake Ainsworth Land Application Map*,
- (f) *State Environmental Planning Policy (Infrastructure) 2007 Sports and Recreation Lake Burrendong Land Application Map*,
- (g) *State Environmental Planning Policy (Infrastructure) 2007 Sports and Recreation Lake Keepit Land Application Map*,
- (h) *State Environmental Planning Policy (Infrastructure) 2007 Sports and Recreation Milson Island Land Application Map*,
- (i) *State Environmental Planning Policy (Infrastructure) 2007 Sports and Recreation Myuna Land Application Map*,
- (j) *State Environmental Planning Policy (Infrastructure) 2007 Sports and Recreation Sydney Academy Land Application Map*.

**2.135 Development permitted with or without consent**

- (1) Development for any of the following purposes may be carried out by or on behalf of the State Sporting Venues Authority with consent on land comprised in a State sport and recreation centre—

agriculture, animal boarding or training establishments, backpackers' accommodation, bed and breakfast accommodation, boat launching ramps, boat sheds, camping grounds, community facilities, entertainment facilities, farm stay accommodation, function centres, information and education facilities, kiosks, markets, medical centres, public administration buildings, recreation facilities (indoor), recreation facilities (major), recreation facilities (outdoor), restaurants or cafes, take away food or drink premises, water recreation structures

- (2) Nothing in subsection (1) requires consent to be granted for the carrying out of development on land comprised in a State sport and recreation centre if that development could, but for that subsection, be carried out on the land without consent.

- (3) Development for any of the following purposes may be carried out by or on behalf of the State Sporting Venues Authority without consent on land comprised in a State sport and recreation centre—

environmental facilities, recreation areas

**Division 20 Stormwater management systems****2.136 Interpretation**

- (1) In this Division—

*stormwater management system* means—

- (a) works for the collection, detention, harvesting, distribution or discharge of stormwater (such as channels, aqueducts, pipes, drainage works, embankments, detention basins and pumping stations), and
  - (b) stormwater quality control systems (such as waste entrapment facilities, artificial wetlands, sediment ponds and riparian management), and
  - (c) stormwater reuse schemes.
- (2) In sections 2.137 and 2.137A, a reference to development for the purposes of stormwater management systems includes a reference to development for the following purposes if the development is carried out in connection with a stormwater management system—
- (a) construction works,
  - (b) routine maintenance works, including maintenance dredging to remove sediment build-up in a stormwater canal or at exit points into natural waterways if the sediment build-up affects the efficiency of the stormwater management system,
  - (c) environmental management works,
  - (d) buildings, including buildings containing amenities for staff, that have a height of no more than 12m above ground level (existing).

**2.137 Development permitted without consent—general**

Development for the purposes of stormwater management systems may be carried out by or on behalf of a public authority without development consent.

**2.137A Development permitted without consent—coastal wetlands and littoral rainforest**

- (1) This section applies to land identified as “coastal wetlands” or “littoral rainforest” on the [Coastal Wetlands and Littoral Rainforests Area Map](#).

- (2) Development for the purposes of stormwater management systems may be carried out by or on behalf of a public authority without development consent if—
- (a) the development does not involve the clearing of native vegetation from coastal wetlands or littoral rainforest, and
  - (b) the public authority is satisfied the development—
    - (i) includes adequate measures to minimise adverse impacts on coastal wetlands or littoral rainforest, and
    - (ii) is not likely to significantly impact the biophysical, hydrological or ecological integrity of coastal wetlands or littoral rainforest, and
    - (iii) is not likely to significantly impact the quantity and quality of surface and ground water flows to and from coastal wetlands, and
  - (c) the development does not involve earthworks other than earthworks that are ancillary to the following development—
    - (i) geotechnical testing and sampling that involves a drill hole with a diameter of no more than 120mm,
    - (ii) surveying and the placement of survey marks,
    - (iii) boring or directional drilling that does not disturb the surface of coastal wetlands or littoral rainforest and that involves a drill hole with a diameter of no more than 1,800mm,
    - (iv) replacing an electricity pole with a new pole with a diameter of no more than 1,200mm,
    - (v) installing supporting posts for a gate on an existing fence,
    - (vi) creating a trench to lay an electricity line to connect 2 connection points that are no more than 100m apart.

### **2.138 Development permitted with consent**

Development for the purpose of a stormwater management system may be carried out by any person with consent on any land.

### **2.139 Exempt development**

- (1) Development for any of the following purposes carried out by or on behalf of a public authority is exempt development if the development is in connection with a stormwater management system—
- (a) emergency works or emergency maintenance to protect a stormwater management system,
  - (b) routine maintenance or associated landscaping works, including the following—
    - (i) removal of litter, silt or debris from any part of the stormwater management system,
    - (ii) harvesting of macrophytes associated with a treatment system,
    - (iii) excavations to expose a pipeline for inspection or testing and temporary stockpiles associated with pipeline maintenance or repair,
    - (iv) flushing or relining of a pipeline where access is by a manhole,
    - (v) maintenance of access tracks along corridors, pipelines and other infrastructure,
    - (vi) painting, servicing or minor alteration of existing equipment,
    - (vii) alterations to existing enclosures or buildings,

- (c) installation, maintenance or replacement of a cathodic protection system or trunk drainage channel pipeline marker,
  - (d) works for safety or security, such as—
    - (i) construction, maintenance or realignment of security fencing that has a height above ground level (existing) of not more than 3.2m, or
    - (ii) temporary fencing around work sites or around open excavations, or
    - (iii) maintenance of existing gates or installation of new gates,
  - (e) temporary structures associated with maintenance projects, but only if the structure has only one storey.
- (2) Development is exempt development under this section only if the development—
- (a) complies with section 2.20, and
  - (b) involves no greater soil or vegetation disturbance than necessary, and
  - (c) does not involve any increase in stormwater drainage or run-off from the site concerned.

## Division 21 Telecommunications and other communication facilities

### Note.

The installation of telecommunications facilities identified as low impact facilities by a determination made under clause 6(3) of Schedule 3 to the [Telecommunications Act 1997](#) of the Commonwealth may be exempt under that Schedule from State laws.

### 2.140 Definitions

In this Division and Schedule 4—

*ancillary facilities* to a telecommunications facility means any of the following—

- (a) safety rails, fences or guards,
- (b) staircases or ladders,
- (c) steel walkways,
- (d) spreader beams supporting shelters,
- (e) screens or shrouds,
- (f) cable trays,
- (g) pole, rail or pedestal mounts,
- (h) electromagnetic energy, safety or operational signage,
- (i) anti-climbing devices,
- (j) power supply such as cabling, standby generators or small solar arrays,
- (k) raised platforms on flood liable land,
- (l) band-pass filters that pass radio frequency in both directions through a common connector while providing isolation between ports,

#### For example—

A triplexer, splitter or combiner.

- (m) remote radio transceivers that connect to an operator radio control panel through an electrical or wireless interface,

**For example—**

A remote radio unit or remote radio head.

- (n) low-noise amplifiers mounted to or near the antenna in mobile masts or base transceiver stations.

**For example—**

A tower mounted amplifier or mast head amplifier.

**array of antennas** means two or more antennas connected and arranged in a regular structure to form a single antenna.

**carrier** has the same meaning as in the [Telecommunications Act 1997](#) of the Commonwealth.

**Civil Aviation Safety Authority** means the Civil Aviation Safety Authority established under the [Civil Aviation Act 1988](#) of the Commonwealth.

**co-location purpose** means for the purpose of placing the telecommunications facilities of two or more carriers on the same support structure.

**directional antenna** means an antenna that focuses a narrow beam in a single specific direction, and includes an array of such antennas.

**Electromagnetic Radiation Standard** means the *Radiocommunications (Electromagnetic Radiation — Human Exposure) Standard 2014* made under section 162 of the [Radiocommunications Act 1992](#) of the Commonwealth.

**emergency**, in relation to a telecommunications facility, means circumstances in which the facility must be installed without delay to protect—

- (a) the integrity of a telecommunications network or a facility, or
- (b) the health or safety of persons, or
- (c) the environment, or
- (d) property, or
- (e) the maintenance of an adequate level of service.

**equivalent land use zone**, in relation to a named land use zone, means a land use zone that is equivalent to the named land use zone.

**Note.**

Land use zones that are named in this Chapter are those set out in the Standard Instrument. See also section 2.4 for the meaning of a land use zone that is equivalent to a named land use zone.

**fibre access node** means a facility that houses equipment for the purposes of a fibre to the premises distribution network.

**fibre to the premises distribution network** means an extensive network of optical fibre cables reaching all the way to the particular premises to which communications services are provided.

**heritage item** means a local heritage item or a State heritage item.

**interconnect point** means a facility that contains connection points for connection to a distribution network by wholesale or retail telecommunications service providers.

**maintenance activities**, in relation to a telecommunications facility, means painting, restoration or minor replacement of materials, elements, components, equipment or fixtures that comprise the facility for the purposes of maintaining or ensuring the proper functioning of the facility.

**microcell installation** means an installation that comprises one or more antennas and associated equipment cabinets for use in supplementing a mobile phone network in heavy usage areas by providing localised additional coverage or extra call capacity (or both).

**Mobile Phone Base Station Code** means the *Mobile Phone Base Station Deployment Code* C564:2020 published by Communications Alliance Ltd.

**omnidirectional antenna** means an antenna that sends or receives signals equally in all directions, and includes—

- (a) an array of such antennas, and
- (b) such an antenna for repeater installations, global positioning systems and the like.

**panel antenna** means a directional antenna that is flat and has a panel-like appearance.

**premises connection device** means an external or pole mounted enclosure used in fibre to the premises distribution networks.

**Radiation Protection Standard** means the Radiation Protection Standard entitled *Maximum Exposure Levels to Radiofrequency Fields—3 kHz to 300 GHz (2002, Radiation Protection Series No 3, as republished in 2016)* published by the Australian Radiation Protection and Nuclear Safety Agency.

**riser pole** means a structure, involving a support and post, attached to a building and extending vertically to facilitate a connection to premises by providing a safe clearance height.

**subscriber connection** means an installation for the sole purpose of connecting premises to a telecommunications network.

**support mount**, in relation to a telecommunications facility, means a structure to support the facility, but does not include a tower.

**telecommunications facility** means—

- (a) any part of the infrastructure of a telecommunications network, or
- (b) any line, cable, optical fibre, fibre access node, interconnect point, equipment, apparatus, tower, mast, antenna, dish, tunnel, duct, hole, pit, pole or other structure in connection with a telecommunications network, or
- (c) any other thing used in or in connection with a telecommunications network.

**telecommunications network** has the same definition as it has in the Standard Instrument.

**Note.**

The Standard Instrument defines **telecommunications network** as follows—

**telecommunications network** means a system, or series of systems, that carries, or is capable of carrying, communications by means of guided or unguided electromagnetic energy, or both.

**tower** means a freestanding ground-based structure that supports a telecommunications facility at a height where it can satisfactorily send and receive radio waves, but does not include the facility.

**yagi antenna** means an antenna that radiates in only one direction, consisting of one or two dipoles connected to the transmitting or receiving circuit, and several insulated dipoles all parallel and about equally spaced in a line.

## 2.141 Development permitted without consent

- (1) Development for the purposes of telecommunications facilities (including radio facilities) may be carried out by a public authority without consent on any land.
- (2) Before a public authority undertakes the development of a tower or mast under this section, the public authority must—

- (a) give written notice of the authority's intention to carry out the development to—
    - (i) if the authority is not the council of the area in which the development will be carried out—the council of the area, and
    - (ii) the occupiers of land adjoining the proposed development, and
  - (b) take into consideration any response to the notice that is received within 21 days after the notice is given, and
  - (c) take into consideration any guidelines concerning site selection, design, construction or operating principles for telecommunications facilities that are issued by the Planning Secretary for the purposes of this section and published in the Gazette.
- (2A) Subsection (2)(a)(ii) does not apply if the proposed development will be located more than 2km from the boundary of the adjoining land.
- (3) Development for the purpose of co-locating telecommunications network cables on electricity or cable poles or with underground electricity or cable facilities, other than subscriber connections, may be carried out by any person without consent on any land.
  - (4) To avoid doubt, development does not cease to be development permitted under subsection (3) if a cable is not co-located on a pole for safety reasons.
  - (5) Development for the purpose of subscriber connections, other than development of a kind specified in section 2.144, may be carried out by any person without consent on any land unless the subscriber's premises, or any land traversed by the connection, is a State or local heritage item or is located in a heritage conservation area.
  - (6) Development for the purposes of an underground telecommunications network cable, other than subscriber connections, may be carried out by any person without consent on any land if the existing electricity or telecommunications network cable facilities are located underground.
  - (7) Before carrying out development to which subsection (6) applies, a person must—
    - (a) give written notice of the intention to carry out the development to the council for the area in which the land is located, and
    - (b) take into consideration any response to the notice that is received within 21 days after the notice is given.
  - (8) Development for the purposes of a new or existing fibre access node (including the extension of the area of an existing fibre access node or the installation of equipment, plant or structures in an existing fibre access node or an associated building) may be carried out by any person without consent on any land.
  - (9) Before carrying out development to which subsection (8) applies that is not a project to which Part 3A of the Act applies or State significant infrastructure, a person must—
    - (a) give written notice of the intention to carry out the development to the council for the area in which the land is located and to the occupiers of adjoining and adjacent land, and
    - (b) take into consideration any response to the notice that is received within 21 days after the notice is given.

#### **2.142 Development permitted without consent—submarine cables**

Development for the purpose of submarine telecommunication cables (and any attached devices) laid on or under the seabed beneath the coastal waters of the State and below the mean high water mark, being cables used for communications between Australia and other countries, may be carried out by any person without consent on any land.

## 2.143 Development permitted with consent

- (1) Development for the purposes of telecommunications facilities, other than development in section 2.141 or development that is exempt development under section 2.20 or 2.144, may be carried out by any person with consent on any land.
- (2) Before determining a development application for development to which this section applies, the consent authority must take into consideration any guidelines concerning site selection, design, construction or operating principles for telecommunications facilities that are issued by the Planning Secretary for the purposes of this section and published in the Gazette.

## 2.144 Exempt development

- (1) Development carried out by or on behalf of any person on land in connection with a telecommunications facility is exempt development if—
  - (a) it is for any of the purposes specified in Part 1 of Schedule 4, and
  - (b) it meets the development standards (if any) for the development specified in Part 1 of Schedule 4, and
  - (c) it complies with section 2.20, and
  - (d) the land on which the development is proposed to be carried out is not located in an environmentally sensitive area within the meaning of [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#), and
  - (e) in the case of development that is development of a kind to which the Mobile Phone Base Station Code applies—
    - (i) it complies with that Code, and
    - (ii) it is designed, installed and operated so that the maximum human exposure levels to radio frequency emissions comply with the Radiation Protection Standard, and

### Note.

If the development is for a co-location purpose, then the new telecommunications facility must be designed, installed and operated so that the resultant cumulative levels of radio frequency emissions of the co-located telecommunications facilities are within the maximum human exposure levels set out in the Radiation Protection Standard.

- (f) in the case of development for the purpose of boring or directional drilling in connection with a telecommunications facility or for the purpose of an underground conduit or cable deployed by either trench or direct burial—
  - (i) access to business premises is not restricted between the hours of 7 am and 5 pm, Monday to Friday, or such other hours agreed to by the relevant local government authority (ie, any hours within the range of 7 am to 5 pm), and
  - (ii) where the development is on land in Zone R1, R2, R3, R4, R5 or RU5 or an equivalent land use zone—not more than 100 metres of excavation is left open at any time and vehicle access to each affected property is not lost for more than 8 hours in total, and
- (g) it complies with any relevant site and height requirements specified by the [Civil Aviation Regulations 1988](#), [Airports \(Protection of Airspace\) Regulations 1996](#) or [Defence \(Areas Control\) Regulations 1989](#) of the Commonwealth, and

### Note

See the Advisory Circular 139-08(0) entitled *Reporting of Tall Structures* issued by the Civil Aviation Safety Authority in 2005 concerning these requirements.

- (h) it does not penetrate any obstacle limitation surface shown on any relevant Obstacle Limitation Surface Plan that has been prepared by the operator of an aerodrome or airport operating within 30 kilometres of the proposed development and reported to the Civil Aviation Safety Authority, and

- (2) Despite subsection (1), development for any of the purposes specified in items 1, 2 or 3 of Part 1 of Schedule 4 is exempt development only if it is carried out by or on behalf of a public authority, a carrier or an emergency services organisation.

## 2.145 Complying development

- (1) Development carried out by or on behalf of any person on land in connection with a telecommunications facility (other than exempt development under section 2.21 or 2.144) is complying development if—
  - (a) it is for any of the purposes specified by Part 2 of Schedule 4, and
  - (b) it meets the development standards (if any) for the development specified in Part 2 of Schedule 4, and
  - (c) it complies with the requirements of this section and section 2.22.
- (2) To be complying development, the development—
  - (a) must not be carried out on land located in an environmentally sensitive area within the meaning of [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#), and
  - (b) in the case of development that involves the installation of equipment—must be carried out in accordance with the applicable specifications (if any) of the manufacturer for the installation of such equipment, and
  - (c) in the case of development that is development of a kind to which the Mobile Phone Base Station Code applies—must—
    - (i) comply with that Code, and
    - (ii) be designed, installed and operated so that the maximum human exposure levels to radio frequency emissions comply with the Radiation Protection Standard, and

### Note.

If the development is for a co-location purpose, then the new telecommunications facility must be designed, installed and operated so that the resultant cumulative levels of radio frequency emissions of the co-located telecommunications facilities are within the maximum human exposure levels set out in the Radiation Protection Standard.

- (d) must comply with any relevant site and height requirements specified by the [Civil Aviation Regulations 1988](#), [Airports \(Protection of Airspace\) Regulations 1996](#) or [Defence \(Areas Control\) Regulations 1989](#) of the Commonwealth, and

### Note

See the Advisory Circular 139-08(0) entitled *Reporting of Tall Structures* issued by the Civil Aviation Safety Authority in 2005 concerning these requirements.

- (e) must not penetrate any obstacle limitation surface shown on any relevant Obstacle Limitation Surface Plan that has been prepared by the operator of an aerodrome or airport operating within 30 kilometres of the proposed development and reported to the Civil Aviation Safety Authority, and
- (3) Despite subsection (1), development for any of the purposes specified in items 1, 2 or 3 of Part 2 of Schedule 4 is complying development only if it is carried out by or on behalf of a public authority, a carrier or an emergency services organisation.
- (4) Before carrying out development involving the erection of a tower or mast under this section, a person must—
  - (a) give written notice of the person's intention to carry out the development to—

- (i) if the authority is not the council of the area in which the development will be carried out—the council of the area, and
  - (ii) the occupiers of land adjoining the land on which the development will be carried out, and
- (b) consider all responses to the notice received within 21 days after the notice is given.

#### 2.146 Complying development certificates—additional conditions

A complying development certificate for development that is complying development under this Division is subject to the following conditions—

- (a) the conditions set out in section 2.23,
- (b) if the development is part of infrastructure for a public mobile phone network—the principal certifying authority must, before work commences, be given—
  - (i) in the case of development that will produce electromagnetic radiation—a report in the format required by the Australian Radiation Protection and Nuclear Safety Agency that shows the predicted levels of electromagnetic energy surrounding the development comply with the safety limits imposed by the Australian Communications and Media Authority and the Electromagnetic Radiation Standard, and
  - (ii) a report showing compliance with the Mobile Phone Base Station Code.

#### 2.147 Relationship of this Division with [Telecommunications Act 1997](#) of Commonwealth

- (1) If a carrier is authorised to carry out development for a particular purpose by Division 2, 3 or 4 of Part 1 of Schedule 3 to the [Telecommunications Act 1997](#) of the Commonwealth, this Division does not authorise or permit the carrier to carry out development for that purpose otherwise than in accordance with the authority given by that Act.
- (2) If the development that a carrier proposes to carry out is not authorised by Division 2, 3 or 4 of Part 1 of Schedule 3 to the [Telecommunications Act 1997](#) of the Commonwealth, nothing in this Division prevents the carrier from carrying out development for that purpose in a manner authorised or permitted by this Division.

#### 2.148 Application of amendments made by [State Environmental Planning Policy \(Infrastructure\) Amendment \(Telecommunications Facilities\) 2010](#)

A consent authority is not required to have regard to guidelines issued for the purposes of section 2.143(2) (as inserted by [State Environmental Planning Policy \(Infrastructure\) Amendment \(Telecommunications Facilities\) 2010](#)) in relation to development applications made, but not finally determined, before the commencement of that subsection.

## Division 22 Travelling stock reserves

#### 2.149 Definitions

In this Division—

*local board* means a local board established under Division 2 of Part 3 of the [Local Land Services Act 2013](#).

*travelling stock reserve* has the same meaning as in the [Local Land Services Act 2013](#).

#### 2.150 Development permitted without consent

- (1) Development for the purpose of maintaining or managing a travelling stock reserve, other than development of a kind specified in section 2.151, may be carried out by or on behalf of a public authority or a local board without consent on land within the reserve.
- (2) Subsection (1) does not authorise the carrying out of development for any of the following purposes—

- (a) the erection of a building or the reconstruction or alteration of a building so as materially to affect its design or purpose,
- (b) any development designed to change the use or purpose of the reserve.

### 2.151 Development permitted with consent

Development for any of the following purposes may be carried out with consent by or on behalf of a public authority or a local board on land within a travelling stock reserve—

- (a) the erection of buildings, or the reconstruction or alteration of buildings in such a way as to materially affect their design or purpose,
- (b) any development designed to change the use or purpose of the travelling stock reserve.

## Division 23 Waste or resource management facilities

### 2.152 Definitions

In this Division—

***prescribed zone*** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a) RU1 Primary Production,
- (b) RU2 Rural Landscape,
- (b1) E4 General Industrial,
- (b2) E5 Heavy Industrial,
- (c) IN1 General Industrial,
- (d) IN3 Heavy Industrial,
- (e) SP1 Special Activities,
- (f) SP2 Infrastructure.

***resource recovery facility, waste disposal facility, waste or resource management facility and waste or resource transfer station*** have the same meanings as in the Standard Instrument.

### 2.153 Development permitted with consent

- (1) Development for the purpose of waste or resource management facilities, other than development referred to in subsection (2), may be carried out by any person with consent on land in a prescribed zone.
- (2) Development for the purposes of a waste or resource transfer station may be carried out by any person with consent on—
  - (a) land in a prescribed zone, or
  - (b) land in any of the following land use zones or equivalent land use zones—
    - (ia) E3 Productivity Support,
    - (i) B5 Business Development,
    - (ii) B6 Enterprise Corridor,
    - (iii) IN2 Light Industrial,

- (iv) IN4 Working Waterfront,
- (v) W4 Working Waterfront, or
- (c) land on which development for any of the following purposes is permitted with consent under any environmental planning instrument—
  - (i) industry,
  - (ii) business premises or retail premises,
  - (iii) freight transport facilities.
- (3) Development for the purpose of the recycling of construction and demolition material, or the disposal of virgin excavated natural material (within the meaning of Schedule 1 to the [Protection of the Environment Operations Act 1997](#)) or clean fill, may be carried out by any person with consent on land on which development for the purpose of industries, extractive industries or mining may be carried out with consent under any environmental planning instrument.

**Note—**

Thermal energy from waste development is regulated by Division 28.

## **2.154 Exempt development**

- (1) Any of the following development is exempt development if the development is in connection with a waste or resource management facility—
  - (a) emergency works to protect a waste or resource management facility,
  - (b) development for the purposes of routine maintenance or associated landscaping works, including the following—
    - (i) works carried out to maintain access tracks,
    - (ii) removal of litter or debris from stormwater quality control systems,
  - (c) development for the purposes of investigations (including geotechnical and other testing, surveying and sampling) in the circumstances specified in Schedule 1,
  - (d) internal alterations to buildings in the circumstances specified in Schedule 1, but only if the alterations do not increase the capacity of the facility (or increase the capacity only to a minimal extent),
  - (e) demolition and replacement of weighbridges,
  - (f) installation of shelters over weighbridges,
  - (g) demolition and replacement of storage sheds.
- (2) Development is exempt development under this section only if the development—
  - (a) complies with section 2.20, and
  - (b) involves no greater soil or vegetation disturbance than necessary, and
  - (c) does not involve any increase in stormwater drainage or run-off from the site concerned.

## **2.155 Exempt development—disposal of drug exhibit waste**

- (1) Development for the purposes of the incineration of drug exhibit waste in a facility that has the written approval of the NSW Police Force is exempt development if the development is carried out in compliance with the following requirements—

- (a) the only drug exhibit waste incinerated is waste received from the NSW Police Force,
- (b) that waste is contained in drug bags made of polyethylene, or polypropylene, that is chlorine-free,
- (c) the combustion chamber used for the incineration of that waste and its casing is as airtight as reasonably possible,
- (d) during the incineration of that waste in that combustion chamber, combustion gases within the chamber are at or above 850°C for a minimum of 2 seconds,
- (e) the plant used for the incineration is fitted with monitoring and control equipment to monitor and ensure compliance with paragraph (d) and that equipment is maintained in working condition and used during any incineration of that waste,
- (f) no more than 50 kilograms of that waste is placed into, or otherwise contained in, the combustion chamber for incineration at any one time.

(2) In this section—

***drug exhibit waste*** means any prohibited drug or prohibited plant—

- (a) that is listed in Schedule 1 to the [Drug Misuse and Trafficking Act 1985](#), and
- (b) that was collected, seized or confiscated by, or surrendered to, the NSW Police Force, and
- (c) that is no longer required by the NSW Police Force.

**Note.**

Part 3A of the [Drug Misuse and Trafficking Act 1985](#) contains provisions about the destruction of exhibits (including the disposal of prohibited plants and prohibited drugs) and requires the destruction of exhibits to occur in the presence of police officers.

## **2.156 Additional permitted uses—Castlereagh Liquid Waste Disposal Depot**

(1) In this section—

***depot*** means the Castlereagh Liquid Waste Disposal Depot.

***depot site*** means the land shown edged heavy black on the map marked “*State Environmental Planning Policy (Infrastructure) 2007—Castlereagh Liquid Waste Disposal Depot*” held in the head office of the Department of Planning and Environment.

- (2) Development for any of the following purposes may be carried out by any person without consent on the depot site—
  - (a) monitoring or mitigating pollution as a result of the operation of the depot,
  - (b) rehabilitation of land.
- (3) Development for any of the following purposes may be carried out by any person with consent on the depot site—
  - (a) disposal of inert waste,
  - (b) resource recovery or recycling facilities.

## **2.157 Determination of development applications**

- (1) In determining a development application for development for the purpose of the construction, operation or maintenance of a landfill for the disposal of waste, including putrescible waste, the consent authority must take the following matters into consideration—

- (a) whether there is a suitable level of recovery of waste, such as by using alternative waste treatment or the composting of food and garden waste, so that the amount of waste is minimised before it is placed in the landfill, and
- (b) whether the development—
  - (i) adopts best practice landfill design and operation, and
  - (ii) reduces the long term impacts of the disposal of waste, such as greenhouse gas emissions or the offsite impact of odours, by maximising landfill gas capture and energy recovery, and
- (c) if the development relates to a new or expanded landfill—
  - (i) whether the land on which the development is located is degraded land such as a disused mine site, and
  - (ii) whether the development is located so as to avoid land use conflicts, including whether it is consistent with any regional planning strategies or locational principles included in the publication *EIS Guideline: Landfilling* (Department of Planning, 1996), as in force from time to time, and
- (d) whether transport links to the landfill are optimised to reduce the environmental and social impacts associated with transporting waste to the landfill.

(2) In this section—

***putrescible waste*** means general solid waste (putrescible) within the meaning of clause 49 of Schedule 1 to the [\*Protection of the Environment Operations Act 1997\*](#).

## Division 24 Water supply systems

### 2.158 Definitions

In this Division—

***prescribed zone*** means any of the following land use zones or a land use zone that is equivalent to any of those zones—

- (a) RU1 Primary Production,
- (b) RU2 Rural Landscape,
- (c) RU4 Primary Production Small Lots,
- (c1) B7 Business Park, but only for the Port Stephens local government area,
- (c1) E4 General Industrial,
- (c2) E5 Heavy Industrial,
- (d) IN1 General Industrial,
- (e) IN3 Heavy Industrial,
- (f) SP1 Special Activities,
- (g) SP2 Infrastructure.

***water reticulation system*** has the same meaning as in the Standard Instrument but also includes water supply reservoirs.

***water storage facility***, ***water supply system*** and ***water treatment facility*** have the same meanings as in the Standard Instrument.

**2.159 Development permitted without consent—general**

- (1) Development for the purpose of water reticulation systems may be carried out by or on behalf of a public authority without consent on any land.
- (2) Development for the purpose of water storage facilities may be carried out without consent if it is carried out by or on behalf of—
  - (a) any public authority on land in Zone RU1 Primary Production, Zone RU2 Rural Landscape, Zone SP1 Special Activities, Zone SP2 Infrastructure or an equivalent land use zone, or
  - (b) Water NSW on land within the Sydney catchment area within the meaning of the [Water NSW Act 2014](#).
- (2A) Development for the purposes of the maintenance or replacement of existing water storage facilities may be carried out by or on behalf of a public authority without consent on any land.
- (3) A reference in subsections (2) and (2A) to development for the purpose of water storage facilities, includes a reference to development for any of the following purposes—
  - (a) catchment management works,
  - (b) recreation areas associated with a water storage facility.
- (4) Development for the purpose of water treatment facilities may be carried out by or on behalf of a public authority without consent on land in a prescribed zone.
- (5) Development for the purpose of a water supply system may be carried out on land reserved under the [National Parks and Wildlife Act 1974](#) only if it is authorised by or under that Act.
- (6) In this Division, a reference to development for the purpose of a water supply system of any kind includes a reference to development for any of the following purposes if the development is in connection with the water supply system—
  - (a) dams, reservoirs, weirs, levees, spillways and fishways,
  - (b) catchment management works,
  - (c) groundwater investigation works, groundwater bore stations, borefields, minewater works and the like,
  - (d) access ways,
  - (e) water intakes, pumping stations, pipelines, channels, tunnels, canals and aqueducts,
  - (f) gauging and monitoring equipment,
  - (g) power supply to the water supply system,
  - (h) hydro-electric power generation equipment and associated connections to the electricity network,
  - (i) construction works,
  - (j) emergency works and routine maintenance works,
  - (k) environmental management works,
  - (l) schemes for the reuse of water treatment residuals,
  - (m) maintenance depots.
- (7) Development for any of the following purposes may be carried out by or on behalf of Water NSW without consent on any land—

- (a) investigations into the availability of groundwater (including mine water), extraction of groundwater or mine water, and associated water reticulation systems,
- (b) development to enable access to deep water extraction in dams within the Sydney catchment area within the meaning of the [Water NSW Act 2014](#), including investigations, associated works or equipment and construction works and other water supply infrastructure, such as the Megarrity's Creek Water Pumping Station and other Warragamba Emergency Scheme works.

#### **2.159A Development permitted without consent—coastal wetlands and littoral rainforest**

- (1) This section applies to land identified as “coastal wetlands” or “littoral rainforest” on the [Coastal Wetlands and Littoral Rainforests Area Map](#).
- (2) Development for the purposes of water supply systems may be carried out by or on behalf of a public authority without development consent if—
  - (a) the development does not involve the clearing of native vegetation from coastal wetlands or littoral rainforest, and
  - (b) the public authority is satisfied the development—
    - (i) includes adequate measures to minimise adverse impacts on coastal wetlands or littoral rainforest, and
    - (ii) is not likely to significantly impact the biophysical, hydrological or ecological integrity of coastal wetlands or littoral rainforest, and
    - (iii) is not likely to significantly impact the quantity and quality of surface and ground water flows to and from coastal wetlands, and
  - (c) the development does not involve earthworks other than earthworks that are ancillary to the following development—
    - (i) geotechnical testing and sampling that involves a drill hole with a diameter of no more than 120mm,
    - (ii) surveying and the placement of survey marks,
    - (iii) boring or directional drilling that does not disturb the surface of coastal wetlands or littoral rainforest and that involves a drill hole with a diameter of no more than 1,800mm,
    - (iv) replacing an electricity pole with a new pole with a diameter of no more than 1,200mm,
    - (v) installing supporting posts for a gate on an existing fence,
    - (vi) creating a trench to lay an electricity line to connect 2 connection points that are no more than 100m apart.

#### **2.160 Development permitted without consent—desalination plants**

Development for the purpose of a desalination plant or a pilot desalination plant, including development for any of the following purposes, may be carried out by or on behalf of Sydney Water Corporation without consent on any land—

- (a) the Kurnell Desalination Plant,
- (b) a pilot desalination plant on the Kurnell Peninsula.

#### **2.161 Development permitted with consent**

- (1) Development for the purpose of water reticulation systems may be carried out by any person with consent on any land.

- (2) Development for the purpose of water treatment facilities may be carried out by any person with consent on land in a prescribed zone.
- (3) Nothing in this section requires a public authority to obtain consent for development that is permitted without consent by section 2.159 or 2.159A.

## 2.162 Exempt development

Development for the following purposes carried out by or on behalf of a public authority is exempt development if the development is in connection with a water supply system and complies with section 2.20 and if it involves no greater soil or vegetation disturbance than necessary and no increase in stormwater drainage or run-off from the site —

- (a) emergency works or emergency maintenance to protect a water supply system,
- (b) routine maintenance or associated landscaping works,
- (c) removal of litter, silt or debris from any part of the water supply system,
- (d) harvesting of macrophytes associated with a treatment system,
- (e) excavations to expose a pipeline for inspection or testing and temporary stockpiles associated with pipeline maintenance or replacement,
- (f) installation or maintenance of a trunk drainage channel pipeline marker,
- (g) installation, maintenance or replacement of a cathodic protection system,
- (h) flushing or relining of a pipeline where access is by a manhole,
- (i) maintenance of access tracks or fire trails (including access tracks along or to corridors, pipelines or other infrastructure),
- (j) painting, servicing or minor alteration of existing equipment,
- (k) alterations to existing enclosures or buildings,
- (l) maintenance or replacement of components of water supply systems that does not increase capacity (or increases capacity only to a minimal extent),
- (m) any of the following in relation to water meters—
  - (i) installation of water meters having a height, width and depth no greater than 1.2m, 300mm and 1.5m, respectively,
  - (ii) installation of bollards (to protect water meters from vehicles) having a height no greater than 1.2m,
  - (iii) maintenance or decommissioning of water meters,
- (n) any of the following in relation to telemetric equipment that is associated with dams, weirs or reservoirs—
  - (i) installation of telemetric equipment having a width and height no greater than 600mm and 2m, respectively,
  - (ii) maintenance or decommissioning of telemetric equipment,
- (o) works for safety or security, such as—
  - (i) construction, maintenance or realignment of security fencing that has a height above ground level (existing) of not more than 3.2m, or
  - (ii) temporary fencing around work sites or around open excavations, or
  - (iii) maintenance of existing gates or installation of new gates, or

- (iv) slope stability works,
- (p) temporary structures associated with maintenance projects, but only if the structure has only one storey,
- (q) public recreational facilities within a drinking water catchment area.

#### **2.163 Determination of development applications**

- (1) This section applies to development on land identified as “affected land” on the [\*State Environmental Planning Policy \(Infrastructure\) 2007 Water Supply Infrastructure Map\*](#).
- (2) Development consent must not be granted to development to which this section applies unless the consent authority is satisfied the development is consistent with the *Guideline for Development Adjacent to the Upper Canal and Warragamba Pipelines*, published by Water NSW in September 2021.

### **Division 25 Waterway or foreshore management activities**

#### **2.164 Definition**

In this Division—

***waterway or foreshore management activities*** means—

- (a) riparian corridor and bank management, including erosion control, bank stabilisation, resnagging, weed management, revegetation and the creation of foreshore access ways, and
- (b) instream management or dredging to rehabilitate aquatic habitat or to maintain or restore environmental flows or tidal flows for ecological purposes, and
- (c) coastal management and beach nourishment, including erosion control, dune or foreshore stabilisation works, headland management, weed management, revegetation activities and foreshore access ways, and
- (d) salt interception schemes to improve water quality in surface freshwater systems, and
- (e) installation or upgrade of waterway gauging stations for water accounting purposes.

#### **2.165 Development permitted without consent**

- (1) Development for the purpose of waterway or foreshore management activities may be carried out by or on behalf of a public authority without consent on any land.
- (2) To avoid doubt, subsection (1) does not permit the subdivision of any land.
- (3) In this section, a reference to development for the purpose of waterway or foreshore management activities includes a reference to development for any of the following purposes if the development is in connection with waterway or foreshore management activities—
  - (a) construction works,
  - (b) routine maintenance works,
  - (c) emergency works, including works required as a result of flooding, storms or erosion,
  - (d) environmental management works.
- (4) Development for the purpose of temporary works for or associated with drought relief may be carried out by or on behalf of a public authority without consent, but only if the development is—
  - (a) carried out on land publicly identified by the Minister for Primary Industries as being in drought, and
  - (b) removed, and the area rehabilitated, within 4 months after the date on which the area is no longer so identified.

**Note.**

Areas of NSW that are in drought are identified on the website of the Department of Primary Industries.

**2.165A Development permitted without consent—landscape rehydration infrastructure works**

- (1) Development for the purposes of landscape rehydration infrastructure works may be carried out by a person without consent on land in the following zones—
- (a) Zone RU1 Primary Production,
  - (b) Zone RU2 Rural Landscape,
  - (c) Zone RU4 Primary Production Small Lots.

**Note—**

This development requires a controlled activity approval under the [Water Management Act 2000](#) and may require a licence under the [Crown Land Management Act 2016](#).

- (2) In this section—

***landscape rehydration infrastructure works*** means works involving placing permeable structures on the bed of a stream to reduce erosion and maintain or restore flows for ecological purposes, not including works designed to impound water or impede the passage of fish.

**Division 25A****2.166, 2.167 (Repealed)****Division 26 Special provisions****2.168 Complying development—connections to Sydney and Hunter water supply and sewerage**

- (1) Development (including any associated earthworks or demolition) involved in installing a pipeline is complying development if the pipeline—
- (a) connects to a relevant utility operator's water reticulation system and supplies water to land on which the whole or part of the development is carried out, or
  - (b) connects to a relevant utility operator's sewage reticulation system and collects and conveys sewage from land on which the whole or part of the development is carried out.
- (2) Development is complying development under this section only if—
- (a) the development complies with section 2.22 (General requirements for complying development), and
  - (b) the development is carried out by a person who is neither a relevant utility operator nor acting on behalf of a relevant utility operator, and
  - (c) the pipeline is—
    - (i) no more than 375mm in diameter and no more than 1km in length, and
    - (ii) if more than 500m in length—installed no more than 6m below ground level (existing), and
  - (d) the land on which the development is carried out is not an environmentally sensitive area within the meaning of [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#).
- (3) In this section—

***relevant utility operator*** means the Sydney Water Corporation or the Hunter Water Corporation.

## 2.169 Complying development certificate—additional conditions for connections to Sydney and Hunter sewerage and water supply

- (1) A complying development certificate for development referred to in section 2.168 is subject to the conditions specified in this section (in addition to the conditions set out in section 2.23).
- (2) **Compliance with requirements of the Sydney Water Corporation or the Hunter Water Corporation** Any relevant requirements of the Sydney Water Corporation or the Hunter Water Corporation in relation to the development must be complied with.
- (3) **Notification of adjoining owners** The person having the benefit of the complying development certificate must give at least 7 days' notice in writing of the intention to commence the works to the owner or occupier of any dwelling that is situated within 20m of the lot on which the works will be carried out.
- (4) **Earthworks** If any earthworks are carried out—
  - (a) those earthworks (including any structural support, or other related structure for the purposes of the development) must not redirect the flow of any surface or ground water or cause sediment to be transported onto an adjoining property, and
  - (b) those earthworks (including any structural support, or other related structure for the purposes of the development) must not cause a danger to life or property or damage to any adjoining building or structure on the lot or to any building or structure on any adjoining lot, and
  - (c) any excavation must be carried out in accordance with *Excavation Work, Code of Practice* (ISBN 978 0 642 78544 2), published in March 2015 by Safe Work Australia, and
  - (d) any fill brought to the site must contain only virgin excavated natural material (within the meaning of Schedule 1 to the [Protection of the Environment Operations Act 1997](#)).
- (5) **Demolition** Any demolition work must be carried out in accordance with Australian Standard AS 2601—2001, *The demolition of structures*.

## 2.169 (Repealed)

## Division 27 Temporary health services facilities, early education and care facilities and schools

### 2.170 Development permitted without consent

- (1) This section applies to the following land at Wardell—
  - (a) Lot 74, DP 1005240, 50 Bath Street,
  - (b) Lot 75, DP 1005240, Pine Street.
- (2) Development for the purposes of health services facilities, early education and care facilities and schools is permitted without development consent if all of the following apply—
  - (a) the development will only be used temporarily in relation to persons displaced as a result of a natural disaster,
  - (b) the development is carried out by or on behalf of a public authority,
  - (c) the development is carried out within 5 years of the natural disaster occurring,
  - (d) the development is carried out on land that—
    - (i) is supplied with water and electricity, and
    - (ii) is provided with sewerage and drainage services, and

- (iii) has access to communal amenities,
- (e) each building is—
  - (i) erected in a way that does not adversely affect the amenity of the land or the health and safety of persons, including by mitigating the risk of fire, and
  - (ii) removed within 5 years of being erected or as soon as possible after a permanent building is erected to replace the temporary building, whichever occurs first.
- (3) To avoid doubt, a reference to an existing health services facility in Division 10 or an existing school in Part 3.4 extends to a health services facility or school erected under this section.
- (4) In this section—

*health services facility* does not include—

  - (a) patient transport facilities, including helipads and ambulance facilities, or
  - (b) a hospital.

## Division 28 Thermal energy from waste development

### 2.171 Prohibited development

- (1) Development is prohibited if it—
  - (a) involves, or is carried out to enable, the thermal treatment of waste involving or resulting in energy recovery from the waste, and
  - (b) is on land identified on the [Thermal Energy From Waste Prohibition Map—Greater Sydney](#), and
  - (c) is prohibited by the [Protection of the Environment Operations \(General\) Regulation 2022](#), Chapter 9, Part 4.
- (2) This section prevails to the extent of an inconsistency over—
  - (a) another provision of this Policy, and
  - (b) the provisions of another environmental planning instrument.
- (3) A word or expression used in this section has the same meaning as in the [Protection of the Environment Operations \(General\) Regulation 2022](#), Chapter 9, Part 4.
- (4) In this section—

*Thermal Energy From Waste Prohibition Map—Greater Sydney* means the [State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Thermal Energy from Waste Prohibition Map—Greater Sydney](#).

## Division 29 Cemeteries

### Subdivision 1 Preliminary

#### 2.172 Application of division

- (1) To be exempt or complying development under this division, the development must—
  - (a) be carried out in an existing or approved cemetery, and
  - (b) not disturb human remains.
- (2) A heading to a section in Schedule 4A is part of the schedule.

## 2.173 Definitions

In this division—

***Acid Sulfate Soils Map*** means a map in an environmental planning instrument that identifies land containing acid sulfate soil.

***approved cemetery*** means a cemetery for which a development consent is in force but for which construction has not been completed.

***burial area*** means an area, within a cemetery, in which human remains are buried or are intended to be buried.

***cemetery*** includes a crematorium that is within the cemetery.

***existing burial area*** does not include a burial area for which a complying development certificate has been issued under Schedule 4A, section 20.

***foreshore area*** means the land between a foreshore building line and the mean high water mark of an adjacent waterbody (natural).

***non-urban land*** means land in the following—

- (a) a rural zone,
- (b) a conservation zone,
- (c) Zone R5 Large Lot Residential.

## Subdivision 2 Exempt development

### 2.174 Exempt development

- (1) Development specified in Schedule 4A, Part 1 is exempt development if—
  - (a) the development complies with the requirements of this subdivision, and
  - (b) the development complies with the development standards specified in Schedule 4A, Part 1.
- (2) If the development is likely to affect a State or local heritage item or a heritage conservation area, the development must be carried out in accordance with any applicable heritage conservation management plan.
- (3) The development must not be carried out on the following land—
  - (a) a declared area of outstanding biodiversity value under the [Biodiversity Conservation Act 2016](#),
  - (b) declared critical habitat under the [Fisheries Management Act 1994](#), Part 7A,
  - (c) a wetland,
  - (d) a wilderness area within the meaning of the [Wilderness Act 1987](#).
- (4) The development must not interfere with the following—
  - (a) a registered easement,
  - (b) a sewer main,
  - (c) a water main,
  - (d) an existing drainage fixture,
  - (e) the natural surface flow of water.

- (5) The development must not redirect the flow of surface or ground water or cause sediment to be transported onto an adjoining property.

### 2.175 Conditions of existing development consents

The development must not contravene a condition of a development consent, other than a complying development certificate, that applies to the land on which the development is carried out relating to the following—

- (a) burial plots,
- (b) car parking,
- (c) contaminated land,
- (d) environmental management,
- (e) heritage,
- (f) hours of operation,
- (g) landscaping,
- (h) loading and transportation of material,
- (i) noise,
- (j) traffic generation,
- (k) vehicular movement,
- (l) visitor numbers,
- (m) waste management.

## Subdivision 3 Complying development

### 2.176 Complying development

- (1) Development specified in Schedule 4A, Part 2 is complying development if—
- (a) the development complies with the requirements of this subdivision, and
  - (b) the development complies with the development standards specified in Schedule 4A, Parts 2 and 3.
- (2) The development must not be carried out on the following land—
- (a) land within a special area within the meaning of the [Water NSW Act 2014](#),
  - (b) land that is reserved for a public purpose in an environmental planning instrument,
  - (c) land identified on an [Acid Sulfate Soils Map](#) as “Class 1”,
  - (d) land identified on an [Acid Sulfate Soils Map](#) as “Class 2”, unless a preliminary soil assessment of the land indicates that an acid sulfate soil management plan is not required,
  - (e) if the development involves excavation deeper than 1m—land identified on an [Acid Sulfate Soils Map](#) as “Class 3” or “Class 4”, unless a preliminary soil assessment of the land indicates that an acid sulfate soil management plan is not required,
  - (f) land that is significantly contaminated land within the meaning of the [Contaminated Land Management Act 1997](#),
  - (g) land subject to a property vegetation plan,

- (h) land subject to a private land conservation agreement under the [Biodiversity Conservation Act 2016](#) or that is a set aside area under the [Local Land Services Act 2013](#), section 60ZC,
  - (i) land identified by an environmental planning instrument as being—
    - (i) within a buffer area, or
    - (ii) within a river front area, or
    - (iii) within an ecologically sensitive area, or
    - (iv) environmentally sensitive land, or
    - (v) within a protected area,
  - (j) land identified by an environmental planning instrument, a development control plan or a policy adopted by the council as being or affected by—
    - (i) a coastline hazard, or
    - (ii) a coastal hazard, or
    - (iii) a coastal erosion hazard,
  - (k) land in a foreshore area.
- (3) The development may be carried out on bush fire prone land only if—
- (a) the development conforms to the specifications and requirements of *Planning for Bush Fire Protection* relevant to the development, and
  - (b) there are no polymer sheathed flexible gas supply lines to gas meters adjacent to a dwelling on the land or on adjoining land.
- (4) A complying development certificate for development specified in Schedule 4A, Part 2 is subject to the conditions specified in Schedule 4A, Part 4.
- (5) In this section—

***Acid Sulfate Soils Assessment Guidelines*** means the *Acid Sulfate Soils Assessment Guidelines* published by the NSW Acid Sulfate Soils Management Advisory Committee in August 1998.

***preliminary soil assessment*** means an assessment prepared in accordance with—

- (a) the Acid Sulfate Soils Manual, and
- (b) the *Acid Sulfate Soils Assessment Guidelines*.

## 2.177 Removal and pruning of trees and vegetation

The development is not required to satisfy the requirements of section 2.22(2)(g), to the extent that it relates to a permit or approval required under an environmental planning instrument, in relation to the removal or pruning of a tree or other vegetation if—

- (a) for a tree—the tree is not listed as a significant tree on a register kept by the council, and
- (b) the tree or vegetation is within 3m of the development, and
- (c) the tree or vegetation has a height of less than 8m, and
- (d) for the removal of a tree—a replacement tree capable of achieving a mature height of 3m or more is planted within the boundaries of the cemetery, and

- (e) no more than 250m<sup>2</sup> of native vegetation is removed.

## 2.178 Heritage development

- (1) The development must not be carried out on land that—
  - (a) comprises an item listed on the State Heritage Register under the [Heritage Act 1977](#) or on which an item is located, or
  - (b) is subject to an interim heritage order under that Act or on which an item subject to an interim heritage order is located, or
  - (c) is identified as an item of environmental heritage or a heritage item by an environmental planning instrument or on which an item is located.
- (2) Subsection (1)(a) or (b) does not apply if the development—
  - (a) is consistent with a conservation management plan endorsed by the Heritage Council under the [Heritage Act 1977](#), section 38A, or
  - (b) has been granted an exemption under that Act, section 57(2), or
  - (c) is subject to an exemption under that Act, section 57(1A) or (3), or
  - (d) is consistent with an approval granted under that Act, section 63.
- (3) Subsection (1)(a) does not apply if the development will be carried out on a part of the land not described or mapped on the State Heritage Register.
- (4) Subsection (1)(c) does not apply if—
  - (a) the council of the area in which the development is proposed to be carried out is satisfied the development will not adversely affect the heritage significance of the item, or
  - (b) the development will be carried out on a part of the land that is not described or mapped in the environmental planning instrument.

## 2.179 Conditions of existing development consents

The development must not contravene a condition of a development consent, other than a complying development certificate, that applies to the land on which the development is carried out relating to the following—

- (a) burial plots,
- (b) car parking,
- (c) contaminated land,
- (d) environmental management,
- (e) heritage,
- (f) hours of operation,
- (g) landscaping,
- (h) loading and transportation of material,
- (i) noise,
- (j) storage or disposal of material,
- (k) traffic generation,

- (l) vehicular movement,
- (m) visitor numbers,
- (n) waste management,
- (o) water management.

## Chapter 3 Educational establishments and child care facilities

### Part 3.1 Preliminary

#### 3.1 Aims of Chapter

The aim of this Chapter is to facilitate the effective delivery of educational establishments and early education and care facilities across the State by—

- (a) improving regulatory certainty and efficiency through a consistent planning regime for educational establishments and early education and care facilities, and
- (b) simplifying and standardising planning approval pathways for educational establishments and early education and care facilities (including identifying certain development of minimal environmental impact as exempt development), and
- (c) establishing consistent State-wide assessment requirements and design considerations for educational establishments and early education and care facilities to improve the quality of infrastructure delivered and to minimise impacts on surrounding areas, and
- (d) allowing for the efficient development, redevelopment or use of surplus government-owned land (including providing for consultation with communities regarding educational establishments in their local area), and
- (e) providing for consultation with relevant public authorities about certain development during the assessment process or prior to development commencing, and
- (f) aligning the NSW planning framework with the National Quality Framework that regulates early education and care services, and
- (g) ensuring that proponents of new developments or modified premises meet the applicable requirements of the National Quality Framework for early education and care services, and of the corresponding regime for State regulated education and care services, as part of the planning approval and development process, and
- (h) encouraging proponents of new developments or modified premises and consent authorities to facilitate the joint and shared use of the facilities of educational establishments with the community through appropriate design.

#### 3.2 Land to which Chapter applies

This Chapter applies to the State.

#### 3.3 Interpretation

- (1) A word or expression used in this Chapter has the same meaning as it has in the Standard Instrument unless it is otherwise defined in this Chapter.

##### Note.

In particular, the following terms are as defined by the Standard Instrument—

**centre-based child care facility** means—

- (a) a building or place used for the education and care of children that provides any one or more of the following—

- (i) long day care,
- (ii) occasional child care,
- (iii) out-of-school-hours care (including vacation care),
- (iv) preschool care, or
- (b) an approved family day care venue (within the meaning of the [Children \(Education and Care Services\) National Law \(NSW\)](#)),

**Note.**

An approved family day care venue is a place, other than a residence, where an approved family day care service (within the meaning of the [Children \(Education and Care Services\) National Law \(NSW\)](#)) is provided.

but does not include—

- (c) a building or place used for home-based child care or school-based child care, or
- (d) an office of a family day care service (within the meanings of the [Children \(Education and Care Services\) National Law \(NSW\)](#)), or
- (e) a babysitting, playgroup or child-minding service that is organised informally by the parents of the children concerned, or
- (f) a child-minding service that is provided in connection with a recreational or commercial facility (such as a gymnasium) to care for children while the children's parents are using the facility, or
- (g) a service that is concerned primarily with providing lessons or coaching in, or providing for participation in, a cultural, recreational, religious or sporting activity, or providing private tutoring, or
- (h) a child-minding service that is provided by or in a health services facility, but only if the service is established, registered or licensed as part of the institution operating in the facility.

**early education and care facility** means a building or place used for the education and care of children, and includes any of the following—

- (a) a centre-based child care facility,
- (b) home-based child care,
- (c) school-based child care.

**educational establishment** means a building or place used for education (including teaching), being—

- (a) a school, or
- (b) a tertiary institution, including a university or a TAFE establishment, that provides formal education and is constituted by or under an Act.

**gross floor area** means the sum of the floor area of each floor of a building measured from the internal face of external walls, or from the internal face of walls separating the building from any other building, measured at a height of 1.4 metres above the floor, and includes—

- (a) the area of a mezzanine, and
- (b) habitable rooms in a basement or an attic, and
- (c) any shop, auditorium, cinema, and the like, in a basement or attic,

but excludes—

- (d) any area for common vertical circulation, such as lifts and stairs, and
- (e) any basement—

- (i) storage, and
- (ii) vehicular access, loading areas, garbage and services, and
- (f) plant rooms, lift towers and other areas used exclusively for mechanical services or ducting, and
- (g) car parking to meet any requirements of the consent authority (including access to that car parking), and
- (h) any space used for the loading or unloading of goods (including access to it), and
- (i) terraces and balconies with outer walls less than 1.4 metres high, and
- (j) voids above a floor at the level of a storey or storey above.

**ground level (existing)** means the existing level of a site at any point.

**home-based child care** means a family day care residence (within the meaning of the [Children \(Education and Care Services\) National Law \(NSW\)](#)) at which the education and care service is provided at any one time to no more than 7 children (including any child of the person providing the service) all of whom are under the age of 13 years and no more than 4 of whom are children who do not ordinarily attend school.

**Note.**

A family day care residence is a residence at which a family day care educator educates and cares for children as part of a family day care service—see the [Children \(Education and Care Services\) National Law \(NSW\)](#).

**school** means a government school or non-government school within the meaning of the [Education Act 1990](#).

**school-based child care** means a building or place within a school that is used to provide out-of-school-hours care (including vacation care) for school children only.

**Note.**

Accordingly, a building or place within a school that is used to provide out-of-school-hours care for both school children and pre-school children is not school-based child care.

(2) In this Chapter—

**Acid Sulfate Soils Map** means a map in an environmental planning instrument that identifies land containing acid sulfate soil.

**Blue Book** means *Managing Urban Stormwater: Soils and Construction* (4th edition, Landcom, 2004), as in force at the commencement of this Chapter.

**bush fire attack level-40 (BAL-40)** has the same meaning as in AS 3959:2018, *Construction of buildings in bushfire-prone areas*.

**campus student accommodation**, in relation to a school, university or TAFE establishment, means residential accommodation that is—

- (a) associated with the school, university or TAFE establishment, and
- (b) principally for students enrolled at the school, university or TAFE establishment, and
- (c) not located on land outside the boundaries of the school, university or TAFE establishment, and
- (d) designed primarily for shared living with common spaces and shared facilities provided for residents.

**Child Care Planning Guideline** means the Child Care Planning Guideline approved by the Planning Secretary and published in the Gazette on 1 October 2021.

**draft heritage conservation area** means an area of land identified as a heritage conservation area or place of Aboriginal heritage significance in a local environmental plan that has been subject to community consultation.

**draft heritage item** means a building, work, place, tree, archaeological site or Aboriginal object that is identified as a heritage item in a local environmental plan that has been subject to community consultation.

**environmental management works** means—

- (a) works for the purpose of avoiding, reducing, minimising or managing the environmental effects of development (including effects on water, soil, air, biodiversity, traffic or amenity), and
- (b) environmental protection works.

**flame zone (BAL-FZ)** has the same meaning as in AS 3959:2018, *Construction of buildings in bushfire-prone areas*.

**flood control lot** has the same meaning as in [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#).

**Flood Risk Management Manual** means the *Flood Risk Management Manual*, ISBN 978-1-923076-17-4, published by the NSW Government in June 2023.

**foreshore area** means the land between a foreshore building line and the mean high water mark of an adjacent waterbody (natural).

**grasslands** has the same meaning as in *Planning for Bush Fire Protection*.

**heritage conservation area** means land identified as a heritage conservation area or place of Aboriginal significance (or by a similar description) in an environmental planning instrument.

**interim rail corridor** has the same meaning as it has in clause 78 of [State Environmental Planning Policy \(Infrastructure\) 2007](#).

**Level 5 qualified arborist** means an arborist with a minimum AQF level 5 in Arboriculture under the Australian Qualifications Framework (within the meaning of section 7 of the [Higher Education Act 2001](#)).

**local heritage item** means—

- (a) a building, work, place, relic, tree or archaeological site that is identified as a heritage item (or by a similar description) in a local environmental plan, or
- (b) an Aboriginal object or a place declared under section 84 of the [National Parks and Wildlife Act 1974](#) to be an Aboriginal place for the purposes of that Act, or
- (c) an item of local heritage significance, as defined by the [Heritage Act 1977](#), that is the subject of an interim heritage order in force under that Act or is listed as an item of local heritage significance on the State Heritage Inventory under that Act.

**National Quality Framework** means the national education and care services quality framework within the meaning of the [Children \(Education and Care Services\) National Law \(NSW\)](#).

**Planning for Bush Fire Protection** means the document prescribed by the [Environmental Planning and Assessment Regulation 2021](#), section 271.

**rail corridor** means land—

- (a) that is owned, leased, managed or controlled by a public authority for the purpose of a railway or rail infrastructure facilities, or
- (b) that is zoned under an environmental planning instrument predominantly or solely for development for the purpose of a railway or rail infrastructure facilities, or
- (c) in respect of which the Minister has granted approval under Part 3A or Division 5.2 or (before its repeal) Division 4 of Part 5 of the Act, or consent under Part 4 of the Act, for the carrying out of development (or for a concept plan for a project comprising or including development) for the purpose of a railway or rail infrastructure facilities.

**Note.**

Copies of the Minister's approvals are available on the website of the Department of Planning and Environment.

***rail infrastructure facilities*** include—

- (a) railway tracks, associated track structures, cuttings, drainage systems, fences, tunnels, ventilation shafts, emergency accessways, bridges, embankments, level crossings and roads, pedestrian and cycleway facilities, and
- (b) signalling, train control, communication and security systems, and
- (c) power supply (including overhead power supply) systems, and
- (d) railway stations, station platforms and areas in a station complex that commuters use to get access to the platforms, and
- (e) public amenities for commuters, and
- (f) associated public transport facilities for railway stations, and
- (g) facilities for the assembly, maintenance and stabling of rolling stock, and
- (h) facilities for the dismantling and stabling of rolling stock taken out of service, and
- (i) refuelling depots, garages, maintenance facilities and storage facilities that are for the purposes of a railway, and
- (j) railway workers' facilities, and
- (k) rail freight terminals, sidings and freight intermodal facilities, and
- (l) buildings for or related to railway purposes,

but do not include buildings or works that are for residential, retail or business purposes and unrelated to railway purposes.

***railway station*** includes any station for a metro railway (within the meaning of the [Transport Administration Act 1988](#)).

***site compatibility certificate*** means a certificate issued under section 3.14(5).

***Standard Instrument*** means the standard local environmental planning instrument prescribed by the [Standard Instrument \(Local Environmental Plans\) Order 2006](#) made under the Act.

***State heritage item*** means an item of State heritage significance, as defined by the [Heritage Act 1977](#), that is the subject of an interim heritage order in force under that Act or listed on the State Heritage Register under that Act.

***State land*** means—

- (a) Crown land within the meaning of the [Crown Land Management Act 2016](#), or
- (b) any other land of the Crown or vested in a Minister on behalf of the Crown, or
- (c) land owned by a public authority other than—
  - (i) a council or other body established under the [Local Government Act 1993](#), or
  - (ii) (to the extent that it is prescribed as a public authority under the Act) a non-government school.

***TAFE establishment*** has the same meaning as in the [Technical and Further Education Commission Act 1990](#).

***tertiary institution*** means a tertiary institution, including a university or a TAFE establishment, that provides formal education and is constituted by or under an Act.

*the Act* means the [Environmental Planning and Assessment Act 1979](#).

*the Regulation* means the [Environmental Planning and Assessment Regulation 2000](#).

*university* means an Australian university within the meaning of the [Higher Education Act 2001](#).

**Note.**

The Act and the [Interpretation Act 1987](#) contain definitions and other provisions that affect the interpretation and application of this Chapter.

- (3) If this Chapter provides that development for a particular purpose that may be carried out without development consent includes **construction works**, the following works or activities are (subject to and without limiting that provision) taken to be construction works if they are carried out for that purpose—
  - (a) accessways,
  - (b) temporary construction yards,
  - (c) temporary lay-down areas for materials or equipment,
  - (d) temporary structures,
  - (e) conduct of investigations,
  - (f) clearing of vegetation (including any necessary cutting, pruning or removal of trees) and associated rectification and landscaping,
  - (g) demolition,
  - (h) relocation or removal of infrastructure,
  - (i) extraction of extractive materials at the construction site solely for the purpose of the construction.
- (4) A reference in this Chapter to an existing educational establishment or early education and care facility or other building or facility is a reference to one that is being lawfully used for the purpose concerned.
- (5) A reference in this Chapter—
  - (a) to a development application, includes a reference to an application for modification to a development consent, and
  - (b) to development consent, includes a reference to the grant of an application for modification to a development consent.
- (6) A reference in this Chapter to a lot or to land in a named land use zone is a reference—
  - (a) to land that, under an environmental planning instrument made as provided by section 3.20(2) of the Act, is in a land use zone specified in the Standard Instrument, and
  - (b) to land that, under an environmental planning instrument that is not made as provided by section 3.20(2) of the Act, is in a land use zone in which equivalent land uses are permitted to those permitted in the named land use zone.
- (7) Notes included in this Chapter do not form part of this Chapter.
- (8) A requirement in this Chapter that a building be no more than a specified number of storeys high is a requirement that the building be no more than the specified number of storeys higher than ground level (existing).

### 3.4 Giving written notice

For the purposes of this Chapter, a written notice may be given to a person—

- (a) by delivering it to the person personally, or
- (b) by sending it by pre-paid post to the address of the person, or
- (c) by sending it by electronic transmission to an address specified by the person for giving of the notice.

### 3.5 Preconditions to carrying out certain development

For the purposes of this Chapter, and despite any other provision of this Chapter, development that is subject to a precondition that must be satisfied before it may be carried out without development consent is not development that may be carried out without development consent under this Chapter until the precondition is satisfied.

**Note.**

For preconditions to carrying out development referred to in this section, see Division 1 of Part 3.2 and sections 3.38, 3.48 and 3.55.

### 3.6 Relationship to other environmental planning instruments

- (1) If there is an inconsistency between this Chapter and another environmental planning instrument, whether made before or after the commencement of this Chapter, this Chapter prevails to the extent of the inconsistency.
- (2) In particular, without limiting subsection (1) and despite any other provision of this Chapter, the following provisions do not apply to development carried out under this Chapter on land to which those provisions apply—
  - (a) clause 8.10 of [Gosford Local Environmental Plan 2014](#),
  - (b) clause 6.2 of [Pittwater Local Environmental Plan 2014](#),
  - (c) clause 6.12 of [Randwick Local Environmental Plan 2012](#),
  - (d) clause 6.9 of [Ryde Local Environmental Plan 2010](#),
  - (e) clause 6.8 of [Ryde Local Environmental Plan 2014](#),
  - (f) Part 5.4 and clause 36 of [State Environmental Planning Policy \(Penrith Lakes Scheme\) 1989](#),
  - (g) clause 6.6 of Appendix 1 (Oran Park and Turner Road Precinct Plan) of [State Environmental Planning Policy \(Sydney Region Growth Centres\) 2006](#),
  - (h) clause 6.9 of Appendix 7 (Schofields Precinct Plan) of [State Environmental Planning Policy \(Sydney Region Growth Centres\) 2006](#),
  - (i) clause 7.20 of [Sydney Local Environmental Plan 2012](#),
  - (j) clause 7.13 of [Tweed Local Environmental Plan 2014](#).

**Note.**

The provisions referred to in this subsection require the preparation of a development control plan as a prerequisite to the grant of development consent for development on land to which they apply.

- (3) Despite any other provision of this Chapter, if there is an inconsistency between this Chapter and any of the following Policies, the other Policy prevails to the extent of the inconsistency—
  - (a) [State Environmental Planning Policy No 14—Coastal Wetlands](#),
  - (b) [State Environmental Planning Policy No 26—Littoral Rainforests](#),
  - (c) [State Environmental Planning Policy No 71—Coastal Protection](#),
  - (d) [State Environmental Planning Policy \(State and Regional Development\) 2011](#),
  - (e) [State Environmental Planning Policy \(Three Ports\) 2013](#).

- (4) The fact that another environmental planning instrument (other than one referred to in subsection (3)) and this Chapter specify the same development as either exempt or complying development does not of itself make this Chapter and the instrument inconsistent for the purposes of subsection (1). Accordingly, that development may be carried out under this Chapter or that other instrument.

**Note.**

The [Environmental Planning and Assessment Regulation 2000](#) specifies that a person must refer to the environmental planning instrument under which the development is complying development in an application for a complying development certificate.

- (5) [State Environmental Planning Policy \(Biodiversity and Conservation\) 2021](#), Chapter 13 prevails over this Policy, Chapter 3, other than section 3.20, to the extent of an inconsistency.

### 3.7 Review of Policy

The Minister must ensure that the provisions of this Chapter are reviewed—

- (a) as soon as is reasonably practicable after the first anniversary of the commencement of this Chapter, and
- (b) as soon as is reasonably practicable—
  - (i) after any review of the National Quality Framework undertaken by the Federal, State and Territory Governments, or
  - (ii) after the end of each 5-year period following the commencement of this Chapter, if no review of the National Quality Framework referred to in subparagraph (i) occurs within that period.

## Part 3.2 General

### Division 1 Consultation and notification

#### 3.8 Consultation with councils—development with impacts on council-related infrastructure or services

- (1) This section applies to development carried out by or on behalf of a public authority that this Chapter provides may be carried out without development consent if, in the opinion of the public authority, the development—
- (a) will have a substantial impact on stormwater management services provided by a council, or
  - (b) is likely to generate traffic to an extent that will strain the capacity of the road system in a local government area, or
  - (c) involves connection to, and a substantial impact on the capacity of, any part of a sewerage system owned by a council, or
  - (d) involves connection to, and use of a substantial volume of water from, any part of a water supply system owned by a council, or
  - (e) involves the installation of a temporary structure on, or the enclosing of, a public place that is under a council's management or control that is likely to cause a disruption to pedestrian or vehicular traffic that is not minor or inconsequential, or
  - (f) involves excavation that is not minor or inconsequential of the surface of, or a footpath adjacent to, a road for which a council is the roads authority under the [Roads Act 1993](#) (if the public authority that is carrying out the development, or on whose behalf it is being carried out, is not responsible for the maintenance of the road or footpath).
- (2) A public authority, or a person acting on behalf of a public authority, must not carry out development to which this section applies unless the authority or the person has—
- (a) given written notice of the intention to carry out the development (together with a scope of works) to the council for the area in which the land is located, and

- (b) taken into consideration any response to the notice that is received from the council within 21 days after the notice is given.

### 3.9 Consultation with councils—development with impacts on local heritage

- (1) This section applies to development carried out by or on behalf of a public authority if the development—
  - (a) is likely to affect the heritage significance of a local heritage item, or of a heritage conservation area, that is not also a State heritage item in a way that is more than minimal, and
  - (b) is development that this Chapter provides may be carried out without development consent.
- (2) A public authority, or a person acting on behalf of a public authority, must not carry out development to which this section applies unless the authority or the person has—
  - (a) had an assessment of the impact prepared, and
  - (b) given written notice of the intention to carry out the development, with a copy of the assessment and a scope of works, to the council for the area in which the local heritage item or heritage conservation area (or the relevant part of such an area) is located, and
  - (c) taken into consideration any response to the notice that is received from the council within 21 days after the notice is given.

### 3.10 Notification of councils and State Emergency Service—development on flood liable land

- (1) A public authority, or a person acting on behalf of a public authority, must not carry out, on flood liable land, development that this Chapter provides may be carried out without development consent (other than demolition of buildings or structures, or internal works to existing buildings) unless the authority or person has—
  - (a) given written notice of the intention to carry out the development (together with a scope of works) to the council for the area in which the land is located and the State Emergency Service, and
  - (b) taken into consideration any responses to the notice that are received from the council and State Emergency Service within 21 days after the notice is given.

- (2) In this section—

*flood liable land* has the same meaning as in the *Flood Risk Management Manual*.

### 3.11 Consideration of Planning for Bush Fire Protection

- (1) This section applies to development for the purposes of an educational establishment or school-based child care that this Chapter provides may be carried out without development consent.
- (2) A public authority, or a person acting on behalf of a public authority, must consider *Planning for Bush Fire Protection* before carrying out the development in an area that is bush fire prone land.
- (3) In this section—

*bush fire prone land* means land recorded for the time being as bush fire prone land on a map certified under the Act, section 10.3(2).

### 3.12 Consultation with public authorities other than councils

- (1) A public authority, or a person acting on behalf of a public authority, must not carry out specified development that this Chapter provides may be carried out without development consent unless the authority or person has—
  - (a) given written notice of the intention to carry out the development (together with a scope of works) to the specified authority in relation to the development, and

- (b) taken into consideration any response to the notice that is received from that authority within 21 days after the notice is given.

(2) For the purposes of subsection (1), the following development is ***specified development*** and the following authorities are ***specified authorities*** in relation to that development—

- (a) development adjacent to land reserved under the [National Parks and Wildlife Act 1974](#) or acquired under Part 11 of that Act—an appropriate Public Service employee designated by the Minister for Energy and Environment,
- (b) development on land immediately adjacent to a rail corridor that—
  - (i) is likely to have an adverse effect on rail safety, or
  - (ii) if the rail corridor concerned is used by electric trains, involves the placing of a metal finish on a structure, or
  - (iii) involves the use of a crane in air space above any rail corridor,
 the rail authority for the rail corridor,
- (c) development that may increase the amount of artificial light in the night sky and that is on land within the dark sky region as identified on the dark sky region map—the Director of the Observatory,

**Note.**

The dark sky region is land within 200 kilometres of the Siding Spring Observatory.

- (d) development on land in a mine subsidence district within the meaning of the [Coal Mine Subsidence Compensation Act 2017](#)—Subsidence Advisory NSW.

(3) For the purposes of subsection (1), development for the purpose of an existing school is ***specified development***, in relation to which Transport for NSW is the ***specified authority***, if—

- (a) the site has access to a road and the development will result in the school being able to accommodate 50 or more additional students, or
- (b) the site has access to—
  - (i) a classified road, or
  - (ii) a road (the ***connecting road***) that connects, within 90 metres (measured along the alignment of the connecting road) of the access point, to a classified road,
 and the development will result in the provision of an additional 50 or more car parking spaces, or
- (c) no road to which the site has access is classified and the development will result in the provision of an additional 200 or more car parking spaces, or
- (d) the development will result in—
  - (i) a new vehicular or pedestrian access point to the school from a public road, or
  - (ii) a change in location of an existing vehicular or pedestrian access point to the school from a public road, or
- (e) the development will involve excavation to a depth of 3 or more metres below ground level (existing) on land within or immediately adjacent to a classified road within the meaning of the [Roads Act 1993](#).

(4) In this section—

**ARTC** means Australian Rail Track Corporation Ltd (ACN 081 455 754).

**ARTC arrangement** means a lease, licence agreement or other arrangement under Part 8A of the [Transport Administration Act 1988](#).

**dark sky region map** means the map marked “*Dark Sky Region Map*” held in the head office of the Department.

**rail authority** for a rail corridor means—

- (a) in relation to a rail corridor that is vested in or owned by ARTC or is the subject of an ARTC arrangement—the chief executive officer of ARTC, and
- (b) in relation to a rail corridor that is vested in or owned by RailCorp—the Chief Executive of RailCorp, and
- (c) in relation to any other rail corridor—the Secretary of the Department of Transport.

**RailCorp** means Rail Corporation New South Wales constituted under the [Transport Administration Act 1988](#).

**Note.**

Clause 18A(2) of [State Environmental Planning Policy \(Sydney Region Growth Centres\) 2006](#) requires public authorities (or persons acting on their behalf) to consult with the Department before carrying out any development comprising the clearing of native vegetation on certain land within a growth centre (within the meaning of that Policy). The land concerned is land other than the subject land (within the meaning of Part 7 of Schedule 7 to the [Threatened Species Conservation Act 1995](#)). The subject land is generally land to which precinct plans apply under that Policy.

### 3.13 Exceptions

(1) Sections 3.8–3.12 do not apply with respect to development to the extent that—

- (a) they would require notice of the intention to carry out the development to be given to a council or public authority from whom an approval is required in order for the development to be carried out lawfully, or
- (b) they would require notice to be given to a council or public authority with whom the public authority that is carrying out the development, or on whose behalf it is being carried out, has an agreed consultation protocol that applies to the development, or
- (c) they would require notice to be given to a council or public authority that is carrying out the development or on whose behalf it is being carried out, or
- (d) the development is exempt development under any environmental planning instrument (including this Chapter), or
- (e) the development comprises emergency works that—
  - (i) involve no greater disturbance to soil or vegetation than necessary, and
  - (ii) are carried out in accordance with all applicable requirements of the Blue Book.

(2) In this section—

**approval** means any licence, permission or any form of authorisation, other than development consent, under any other law.

**consultation protocol** means an arrangement that—

- (a) is about when and how the parties to the arrangement will consult one another about proposed development, and
- (b) is recorded in writing, and
- (c) is approved in writing on behalf of any public authority that is a party to the arrangement by a person who is authorised to do so.

**emergency works** means works for the purpose of maintaining or restoring an educational establishment or early education and care facility, or equipment, in order to ensure public safety or to protect buildings or the environment due to—

- (a) a sudden natural event, including a storm, flood, tree fall, bush fire, land slip or coastal inundation, or
- (b) accident, equipment failure or structural collapse, or
- (c) damage caused by vandalism or arson.

## Division 2 Site compatibility certificates

### 3.14 Site compatibility certificates

- (1) An application for a site compatibility certificate for the purpose of section 3.15 may be made to the relevant planning panel—
  - (a) by the owner of the land on which the development is proposed to be carried out, or
  - (b) by any other person with the consent of the owner of that land.
- (2) An application under this section—
  - (a) must be in writing in the form approved by the relevant planning panel, and
  - (b) must be accompanied by—
    - (i) information demonstrating that the proposal is not inconsistent with the relevant district plan made under Division 3.1 of the Act (*district plan*), and
    - (ii) any other document or information required by the relevant planning panel to accompany the application, and
  - (c) must be accompanied by the fee, if any, prescribed by the regulations.
- (3) The relevant planning panel may request further documents and information to be furnished in connection with an application under this section.
- (4) Within 7 days after the application is made, the relevant planning panel must provide a copy of the application to the council for the area in which the development concerned is proposed to be carried out, unless the relevant planning panel refuses, before those 7 days have elapsed, to issue a certificate.
- (5) Subject to subsection (6), the relevant planning panel may determine the application by issuing a certificate or refusing to do so.
- (6) The relevant planning panel must not issue a certificate unless the relevant planning panel—
  - (a) has taken into account any comments received from the council within 21 days after the application for the certificate was made, and
  - (b) is of the opinion that the development concerned is compatible with the surrounding land uses having regard to the following matters—
    - (i) the existing uses and approved uses of land in the vicinity of the development,
    - (ii) the impact that the development (including its bulk and scale) is likely to have on the existing uses, approved uses and uses that, in the opinion of the relevant planning panel, are likely to be the preferred future uses of that land,
    - (iii) the services and infrastructure that are or will be available to meet the demands arising from the development, and

- (c) is of the opinion that the development concerned is not likely to have an adverse effect on the environment and does not cause any unacceptable environmental risks to the land, and
  - (d) is of the opinion that the development concerned is in the public interest, and will deliver social, economic and environmental benefits to the wider community, and
  - (e) is of the opinion that the development concerned is consistent with the relevant district plan.
- (7) A certificate may certify that the development to which it relates is compatible with the surrounding land uses only if it satisfies certain requirements specified in the certificate.
  - (8) A certificate continues to apply to the land in respect of which it was issued despite any change in the ownership of that land.
  - (9) A certificate is valid for 5 years or any lesser period specified in the certificate.
  - (10) In this section—

*relevant planning panel* means a Sydney district or regional planning panel for the particular part of the State concerned.

## Division 3 Additional uses of State land

### Note.

Consent for development under this Division may be granted only if the development is the subject of a certificate of the relevant planning panel certifying that the development is compatible with surrounding land uses.

### 3.15 Additional uses of certain State land permitted

- (1) Development for a purpose that is permitted under this Chapter without development consent on relevant land by the zoning of the relevant land may be carried out without development consent on adjacent prescribed State land.
- (2) Development for a purpose that is permitted under this Chapter with development consent on relevant land by the zoning of the relevant land may be carried out with development consent on adjacent prescribed State land, if there is a valid site compatibility certificate applying to the development.
- (3) Subsections (1) and (2) apply despite any local environmental plan that applies to the adjacent land.
- (4) However, subsection (2) does not apply in relation to the development if the adjacent land concerned is no longer prescribed State land because it is—
  - (a) a forestry area within the meaning of the [Forestry Act 2012](#), or
  - (b) reserved under the [National Parks and Wildlife Act 1974](#), or
  - (c) reserved under the [Crown Land Management Act 2016](#) for a public purpose that, in the opinion of the relevant planning panel, is an environmental protection or nature conservation purpose.
- (5) This Chapter does not—
  - (a) prevent a consent authority from—
    - (i) granting consent for development on land by reference to site and design features that are more stringent than those identified in a site compatibility certificate for the same land, or
    - (ii) refusing to grant consent for development on the grounds of the consent authority's own assessment of the compatibility of the development with the surrounding land uses, or
  - (b) otherwise limit the matters to which a consent authority may have regard in determining a development application for development to which this section applies.

- (6) Land is adjacent to other land for the purpose of this section even if it is separated from that other land by a road, or road related area, as defined by the [Road Transport Act 2013](#).
- (7) This section does not apply to development for the purposes of campus student accommodation.
- (8) In this section—

***prescribed State land*** means State land other than the following land—

- (a) land in the following zones under an environmental planning instrument—
  - (i) Zone RE1 Public Recreation,
  - (ii) Zone C1 National Parks and Nature Reserves,
  - (iii) Zone C2 Environmental Conservation,
  - (iv) Zone W1 Natural Waterways,
- (b) land in a forestry area within the meaning of the [Forestry Act 2012](#),
- (c) land reserved under the [National Parks and Wildlife Act 1974](#),
- (d) land reserved under the [Crown Land Management Act 2016](#) for a public purpose that, in the opinion of the relevant planning panel, is an environmental protection or nature conservation purpose.

***relevant land*** means—

- (a) for subsection (1)—land that is prescribed State land on which a school or TAFE establishment is located, and
- (b) for subsection (2)—land that was prescribed State land when the site compatibility certificate was issued and on which a school or TAFE establishment is located.

***relevant planning panel*** has the same meaning as in section 3.14.

## Division 4 Exempt development

### Note.

In addition to the requirements set out in this Chapter in relation to exempt development, adjoining owners' property rights, the applicable common law and other legislative requirements for approvals, licences, permits and authorities still apply. For example, requirements relevant to the kind of exempt development concerned may be contained in the Act, the [Environmental Planning and Assessment Regulation 2000](#), various State environmental planning policies, the [Protection of the Environment Operations Act 1997](#), the [Roads Act 1993](#) and Acts applying to various infrastructure authorities. If the development is in proximity to infrastructure, including water, stormwater and sewer mains, electricity power lines and telecommunications facilities, the relevant infrastructure authority should be contacted before commencing the development.

### 3.16 General requirements for exempt development

- (1) This section applies to any development that this Chapter provides is exempt development.

#### Note.

Section 3.17 and other provisions of this Chapter identify kinds of development that are exempt development if they meet the requirements of this section.

- (2) Development that is specified in an exempt development code that meets the standards specified for that development and that complies with the requirements of this Division for exempt development is exempt development for the purposes of this Chapter.
- (3) To be exempt development, the development—
  - (a) must meet the relevant deemed-to-satisfy provisions of the *Building Code of Australia*, or if there are no such relevant provisions, must be structurally adequate, and
  - (b) must not, if it relates to an existing building—

- (i) cause the building to contravene the *Building Code of Australia*, or
- (ii) compromise the fire safety of the building or affect access to any fire exit, and
- (c) must be carried out in accordance with all relevant requirements of the Blue Book, and
- (d) must not be designated development, and

**Note.**

Designated development is defined in section 4.10 of the Act as development that is declared to be designated development by an environmental planning instrument or the regulations.

- (e) if it is likely to affect a State or local heritage item or a heritage conservation area—must involve no more than minimal impact on the heritage significance of the item or area, and be in accordance with any applicable heritage conservation management plan, and
- (f) must be installed in accordance with the manufacturer's specifications, if applicable, and
- (g) must not involve the removal or pruning of a tree or other vegetation that requires a permit or approval, unless the removal or pruning is undertaken in accordance with a permit or approval, and

**Note—**

A permit or approval may be granted under [State Environmental Planning Policy \(Vegetation in Non-Rural Areas\) 2017](#).

- (h) must not involve the removal of asbestos, unless that removal is undertaken in accordance with *Code of practice: How to safely remove asbestos* published by SafeWork NSW in December 2022, and
- (i) must not be carried out on land that is in a declared area of outstanding biodiversity value under the [Biodiversity Conservation Act 2016](#) or declared critical habitat under the [Fisheries Management Act 1994](#), Part 7A, and
- (j) must not be carried out on land in a wilderness area within the meaning of the [Wilderness Act 1987](#).

## (4) In this section—

**exempt development code** means any of the following codes—

- (a) the General Exempt Development Code set out in Division 1 of Part 2 of [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#),
- (b) the Advertising and Signage Exempt Development Code set out in Division 2 of Part 2 of that Policy,
- (c) the Temporary Uses and Structures Exempt Development Code set out in Division 3 of Part 2 of that Policy.

**Note.**

A service approval is required to operate an early education and care facility that is an education and care service to which the [Children \(Education and Care Services\) National Law \(NSW\)](#) applies or a State regulated education and care service to which the [Children \(Education and Care Services\) Supplementary Provisions Act 2011](#) applies. Approved services are subject to various operational requirements under that legislation, including requirements for the physical environment of the approved service.

### 3.17 Exempt development for Schedule 5 purposes carried out by public authorities in connection with educational establishments

- (1) Development for a purpose specified in Schedule 5 is exempt development if—
  - (a) it is carried out by or on behalf of a public authority in connection with—
    - (i) an existing educational establishment, or
    - (ii) existing campus student accommodation on land within the boundaries of the educational establishment, or

- (iii) an existing educational establishment or existing campus student accommodation on land within the boundaries of the educational establishment that is being used for the purposes of temporary housing.

- (b) it meets the development standards for the development specified in Schedule 5.

**Note.**

Exempt development must also comply with the general requirements in section 3.16.

- (2) Development for the purposes of security fences specified in Schedule 5 may also be carried out in connection with an educational establishment that is not existing but for which development consent has been granted.

## Division 5 Complying development

### 3.18 General requirements for complying development

- (1) This section applies to any development that this Chapter provides is complying development.
- (2) To be complying development, the development must—
  - (a) meet the general requirements for complying development set out in clause 1.17A of [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#), and
  - (b) not be exempt development under this Chapter, and
  - (c) be permissible, with development consent, under an environmental planning instrument applying to the land on which the development is carried out, and

**Note.**

Accordingly, development that is permitted to be carried out without development consent is not complying development.

- (d) meet the relevant provisions of the *Building Code of Australia*, and
- (e) not involve the removal or pruning of a tree or other vegetation that requires a permit or approval, unless the removal or pruning is undertaken in accordance with a permit or approval, and

**Note—**

A permit or approval may be granted under [State Environmental Planning Policy \(Biodiversity and Conservation\) 2021](#), Chapter 2.

- (f) not be carried out within 1 metre of any public sewer, if the development comprises the erection of a building, except with the written approval of the authority that has management or control of that sewer, and
- (g) if it is on land that is—
  - (i) within or above a rail corridor or interim rail corridor, or
  - (ii) within 25 metres (measured horizontally) of a rail corridor or interim rail corridor, or
  - (iii) within 25 metres (measured horizontally) of the ground directly above an underground rail corridor or an underground interim rail corridor,
 not involve excavation to a depth greater than 2 metres below ground level (existing) on the land, and
- (h) if it is on land that is in or immediately adjacent to a rail corridor, must not involve the use of a crane in the air space above any rail corridor.

**Note.**

A service approval is required to operate an early education and care facility that is an education and care service to which the [Children \(Education and Care Services\) National Law \(NSW\)](#) applies or a State regulated education and care service to which the [Children \(Education and Care Services\) Supplementary Provisions Act 2011](#) applies. Approved services are subject to

various operational requirements under that legislation, including requirements for the physical environment of the approved service.

- (3) To be complying development, the development must not be carried out on—
- (a) land that is reserved for a public purpose in an environmental planning instrument, or
  - (b) land identified on an Acid Sulfate Soils Map as being Class 1 or Class 2, or
  - (c) land that is significantly contaminated land within the meaning of the [Contaminated Land Management Act 1997](#), or
  - (d) land that is subject to a biobanking agreement under Part 7A of the [Threatened Species Conservation Act 1995](#) or a property vegetation plan approved under the [Native Vegetation Act 2003](#), or
  - (e) land identified by an environmental planning instrument as being—
    - (i) within a buffer area, or
    - (ii) within a river front area, or
    - (iii) within an ecologically sensitive area, or
    - (iv) environmentally sensitive land, or
    - (v) within a protected area, or
  - (f) land that is identified by an environmental planning instrument, a development control plan or a policy adopted by the council as being or affected by—
    - (i) a coastline hazard, or
    - (ii) a coastal hazard, or
    - (iii) a coastal erosion hazard, or
  - (g) land in a foreshore area, or
  - (h) unsewered land—
    - (i) in the Sydney Drinking Water Catchment under [State Environmental Planning Policy \(Biodiversity and Conservation\) 2021](#), Chapter 6, or
    - (ii) in any other drinking water catchment identified in any other environmental planning instrument.
- (4) Development referred to in [State Environmental Planning Policy \(Planning Systems\) 2021](#), Schedule 1, section 15(2) is not complying development under this Chapter.

**Note 1.**

Accordingly, [State Environmental Planning Policy \(Planning Systems\) 2021](#), section 2.8 does not apply in relation to that development.

**Note 2.**

[State Environmental Planning Policy \(Planning Systems\) 2021](#), Schedule 1, section 15(2) declares to be State significant development, development that has an estimated development cost of more than \$50 million for the purposes of the erection of a building, or alterations or additions to an existing building, at an existing school.

### 3.19 Land on which complying development may not be carried out—bush fire prone land

- (1) To be complying development for the purposes of this Chapter, the development must not be carried out on land in bush fire attack level-40 (BAL-40) or the flame zone (BAL-FZ).

**Note.**

More information about the categories of bush fire attack, including the flame zone, can be found in Table A1.7 of *Planning for Bush Fire Protection*.

- (2) For the purposes of this Chapter, land is not in bush fire attack level-40 (BAL-40) or the flame zone (BAL-FZ) if —
- (a) the council or a person who is recognised by the NSW Rural Fire Service as a suitably qualified consultant in bush fire risk assessment determines, in accordance with the methodology specified in *Planning for Bush Fire Protection*, that the land is not in bush fire attack level-40 (BAL-40) or the flame zone (BAL-FZ), or
  - (b) in the case of development carried out on grasslands—the development conforms to the specifications and requirements of Table 7.9a of *Planning for Bush Fire Protection* that are relevant to the development.
- (3) Nothing in this section prevents complying development being carried out on part of a lot that is not land referred to in subsection (1) even if other parts of the lot are such land.

**Note—**

Development to which the [Rural Fires Act 1997](#), section 100B(1) applies is not complying development under this chapter.

### 3.20 Development affecting certain trees or vegetation

Complying development under this Chapter is not required to satisfy the requirements of section 3.18(2)(e), to the extent that it relates to a permit or approval required under an environmental planning instrument, in respect of the removal or pruning of a tree or other vegetation if—

- (a) in the case of any tree, it is not listed as a significant tree on a register kept by the council, and
- (b) the tree or vegetation is within 3 metres of the development, and
- (c) the tree or vegetation has a height that is less than 8 metres.

### 3.21 General conditions of complying development certificates

**Note.**

The [Protection of the Environment Operations Act 1997](#) and the [Protection of the Environment Operations \(Noise Control\) Regulation 2017](#) contain provisions relating to noise.

- (1) **General** A complying development certificate for complying development under this Chapter is subject to the conditions specified in this section.

**Note.**

The regulations made under the Act contain additional conditions of a complying development certificate, including conditions relating to the *Building Code of Australia*, requirements under the [Home Building Act 1989](#), BASIX and asbestos removal.

- (2) **Conditions applying before works commence** A temporary hoarding or temporary construction site fence must be erected between the work site and adjoining land before the works begin and must be kept in place until after the completion of works if the works—
- (a) could cause a danger, obstruction or inconvenience to pedestrian or vehicular traffic, or
  - (b) could cause damage to adjoining land by falling objects, or
  - (c) involve the enclosure of a public place or part of a public place.

**Note.**

See the entry for hoardings in Schedule 5. See also the entry for scaffolding, hoardings and temporary construction site fences in the General Exempt Development Code in [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#).

- (3) Toilet facilities must be available or provided at the work site before works begin and must be maintained until the works are completed at a ratio of one toilet plus one additional toilet for every 20 persons employed at the site.
- (4) Each toilet must—
  - (a) be a standard flushing toilet connected to a public sewer, or
  - (b) have an on-site effluent disposal system approved under the [Local Government Act 1993](#), or
  - (c) be a temporary chemical closet approved under the [Local Government Act 1993](#).
- (5) A garbage receptacle must be provided at the work site before works begin and must be maintained until the works are completed.
- (6) **Conditions applying during works** Construction or demolition may only be carried out between 7.00 am and 5.00 pm on Monday to Saturday and no construction or demolition is to be carried out at any time on a Sunday or a public holiday.
- (7) Works must be carried out in accordance with the plans and specifications to which the complying development certificate relates.
- (8) Run-off and erosion controls must be effectively maintained until the site has been stabilised and landscaped.
- (9) If any object having interest due to its age or association with the past is uncovered during the course of the work—
  - (a) all work must stop immediately in that area, and
  - (b) an appropriate Public Service employee designated by the Minister for Energy and Environment must be advised of the discovery.

**Note.**

Depending on the significance of the object uncovered, an archaeological assessment and excavation permit under the [Heritage Act 1977](#) may be required before further the work can continue.

- (10) If any Aboriginal object (including evidence of habitation or remains) is discovered during the course of the work—
  - (a) all excavation or disturbance of the area must stop immediately in that area, and
  - (b) the Secretary of the Department of Planning and Environment must be advised of the discovery in accordance with section 89A of the [National Parks and Wildlife Act 1974](#).

**Note.**

If an Aboriginal object is discovered, an Aboriginal heritage impact permit may be required under the [National Parks and Wildlife Act 1974](#).

- (11) Dirt, sand and other materials relating to the construction or other work comprised in the development and loaded on to any vehicles entering or leaving the site must be covered.
- (12) All vehicles, before leaving the site, must be cleaned of dirt, sand or other materials that have adhered during that construction or other work and could be tracked onto public roads.
- (13) Building, or demolition, materials and equipment must be stored wholly within the work site unless an approval to store them elsewhere is held.
- (14) Demolition materials and waste materials must be sorted, and must be disposed of at a waste or resource management facility.

**Note.**

The [Protection of the Environment Operations Act 1997](#) and the [Protection of the Environment Operations \(Waste\) Regulation 2014](#) contain provisions relating to waste.

- (15) The work site must be left clear of waste and debris at the completion of the works.
- (16) **Utility services** If the complying development requires alteration to, or the relocation of, utility services on the lot on which the complying development is carried out, the complying development is not complete until all such works are carried out.
- (17) **Post-works requirements** If—
- (a) the development involves the erection or change of use of a building within a water supply authority's area of operations, and
  - (b) the water supply authority requires a certificate of compliance to be obtained with respect to the erection or change of use of the building,
- the building cannot be occupied before such a certificate has been obtained.
- (18) In this section—
- certificate of compliance**, in relation to a water supply authority, means a certificate of compliance issued by the water supply authority under the Act under which the water supply authority is constituted.
- water supply authority** means—
- (a) the Sydney Water Corporation, the Hunter Water Corporation or a water supply authority within the meaning of the [Water Management Act 2000](#), or
  - (b) a council or county council exercising water supply, sewerage or stormwater drainage functions under Division 2 of Part 3 of Chapter 6 of the [Local Government Act 1993](#).

### Part 3.3 Early education and care facilities—specific development controls

#### Note 1.

A service approval is required to operate an early education and care facility that is an education and care service to which the [Children \(Education and Care Services\) National Law \(NSW\)](#) applies or a State regulated education and care service to which the [Children \(Education and Care Services\) Supplementary Provisions Act 2011](#) applies. Approved services are subject to various operational requirements under that legislation, including requirements for the physical environment of the approved service.

#### Note 2.

Complying development controls specifically for school-based child care are provided for in section 3.41.

### 3.22 Centre-based child care facility—concurrence of Regulatory Authority required for certain development

- (1) This section applies to development for the purpose of a centre-based child care facility if—
- (a) the floor area of the building or place does not comply with regulation 107 (indoor unencumbered space requirements) of the [Education and Care Services National Regulations](#), or
  - (b) the outdoor space requirements for the building or place do not comply with regulation 108 (outdoor unencumbered space requirements) of those Regulations.
- (2) The consent authority must not grant development consent to development to which this section applies except with the concurrence of the Regulatory Authority.
- (3) The consent authority must, within 7 days of receiving a development application for development to which this section applies—
- (a) forward a copy of the development application to the Regulatory Authority, and

(b) notify the Regulatory Authority in writing of the basis on which the Authority's concurrence is required and of the date it received the development application.

- (4) In determining whether to grant or refuse concurrence, the Regulatory Authority is to consider any requirements applicable to the proposed development under the [Children \(Education and Care Services\) National Law \(NSW\)](#).
- (5) The Regulatory Authority is to give written notice to the consent authority of the Authority's determination within 28 days after receiving a copy of the development application under subsection (3).

**Note.**

The effect of section 4.13(11) of the Act is that if the Regulatory Authority fails to inform the consent authority of the decision concerning concurrence within the 28 day period, the consent authority may determine the development application without the concurrence of the Regulatory Authority and a development consent so granted is not voidable on that ground.

- (6) The consent authority must forward a copy of its determination of the development application to the Regulatory Authority within 7 days after making the determination.
- (7) In this section—

**Regulatory Authority** means the Regulatory Authority for New South Wales under the [Children \(Education and Care Services\) National Law \(NSW\)](#) (as declared by section 9 of the [Children \(Education and Care Services\) National Law Application\) Act 2010](#)).

**Note.**

Concurrence to development may be granted subject to conditions. A development consent subject to concurrence may be voidable if it is granted not subject to any conditions of the concurrence. (See section 4.13 of the Act.)

### 3.23 Centre-based child care facility—matters for consideration by consent authorities

Before determining a development application for development for the purpose of a centre-based child care facility, the consent authority must take into consideration any applicable provisions of the *Child Care Planning Guideline*, in relation to the proposed development.

### 3.24 Centre-based child care facility in certain zones—additional matters for consideration by consent authorities

- (1) The object of this section is to minimise land use conflicts with existing developments on surrounding land and to ensure the safety and health of people using or visiting a centre-based child care facility on land in a prescribed zone.
- (2) The consent authority must consider the following matters before determining a development application for development for the purpose of a centre-based child care facility on land in a prescribed zone—
- (a) whether the proposed development is compatible with neighbouring land uses, including its proximity to restricted premises, sex services premises or hazardous land uses,
  - (b) whether the proposed development has the potential to restrict the operation of existing industrial land uses,
  - (c) whether the location of the proposed development will pose a health or safety risk to children, visitors or staff.
- (3) The matters referred to in subsection (2) are in addition to any other matter that the consent authority must consider before determining a development application for development for the purpose of a centre-based child care facility.
- (4) In this section—

**prescribed zone** means any of the following land use zones—

- (a) Zone E4 General Industrial,

- (b) Zone E5 Heavy Industrial,
- (c) Zone IN1 General Industrial,
- (d) Zone IN2 Heavy Industrial.

### 3.25 Centre-based child care facility—floor space ratio

- (1) Development consent must not be granted for the purposes of a centre-based child care facility in Zone R2 Low Density Residential if the floor space ratio for the building on the site of the facility exceeds 0.5:1.
- (2) This section does not apply if another environmental planning instrument or a development control plan sets a maximum floor space ratio for the centre-based child care facility.

### 3.26 Centre-based child care facility—non-discretionary development standards

- (1) The object of this section is to identify development standards for particular matters relating to a centre-based child care facility that, if complied with, prevent the consent authority from requiring more onerous standards for those matters.
- (2) The following are non-discretionary development standards for the purposes of section 4.15(2) and (3) of the Act in relation to the carrying out of development for the purposes of a centre-based child care facility—
  - (a) **location**—the development may be located at any distance from an existing or proposed early education and care facility,
  - (b) **indoor or outdoor space**
    - (i) for development to which regulation 107 (indoor unencumbered space requirements) or 108 (outdoor unencumbered space requirements) of the [Education and Care Services National Regulations](#) applies—the unencumbered area of indoor space and the unencumbered area of outdoor space for the development complies with the requirements of those regulations, or
    - (ii) for development to which clause 28 (unencumbered indoor space and useable outdoor play space) of the [Children \(Education and Care Services\) Supplementary Provisions Regulation 2012](#) applies—the development complies with the indoor space requirements or the useable outdoor play space requirements in that clause,
  - (c) **site area and site dimensions**—the development may be located on a site of any size and have any length of street frontage or any allotment depth,
  - (d) **colour of building materials or shade structures**—the development may be of any colour or colour scheme unless it is a State or local heritage item or in a heritage conservation area.
- (3) To remove doubt, this section does not prevent a consent authority from—
  - (a) refusing a development application in relation to a matter not specified in subsection (2), or
  - (b) granting development consent even though any standard specified in subsection (2) is not complied with.

### 3.27 Centre-based child care facility—development control plans

- (1) A provision of a development control plan that specifies a requirement, standard or control in relation to any of the following matters (including by reference to ages, age ratios, groupings, numbers or the like, of children) does not apply to development for the purpose of a centre-based child care facility—
  - (a) operational or management plans or arrangements (including hours of operation),
  - (b) demonstrated need or demand for child care services,
  - (c) proximity of facility to other early education and care facilities,

(d) any matter relating to development for the purpose of a centre-based child care facility contained in—

(i) the design principles set out in Part 2 of the *Child Care Planning Guideline*, or

(ii) the matters for consideration set out in Part 3 or the regulatory requirements set out in Part 4 of that Guideline (other than those concerning building height, side and rear setbacks or car parking rates).

(2) This section applies regardless of when the development control plan was made.

### 3.28 Mobile child care—exempt development

(1) Development for the purpose of mobile child care is exempt development for the purposes of this Chapter if it meets the standards specified for the development in subsections (2)–(4).

**Note.**

Exempt development must also comply with the general requirements in section 3.16.

(2) The development must not be on any of the following land—

(a) land within a flood control lot,

(b) land identified on an Acid Sulfate Soils Map as being Class 1 or Class 2,

(c) land that is significantly contaminated land within the meaning of the [\*Contaminated Land Management Act 1997\*](#),

(d) land that is identified by an environmental planning instrument, a development control plan or a policy adopted by the council as being or affected by a coastline hazard, a coastal hazard or a coastal erosion hazard,

(e) bush fire prone land.

(3) The premises on which the development is carried out—

(a) must provide or have convenient access to adequate sanitary facilities for use by staff and children attending the service, and

(b) must not be located within 200 metres (measured from the closest boundary of the lot on which the development is proposed) from any restricted premises, sex services premises, pub or registered club.

(4) If the development involves the erection of a temporary structure, it—

(a) must not restrict any car parking required to be provided by a condition of a development consent applying to the land or any vehicular or pedestrian access to or from the land unless that parking and access is on land owned, controlled or managed by a council or public authority and that council or public authority has given its written consent to the temporary use of the land for the erection of the temporary structure, and

(b) must not redirect the flow of any surface water or ground water, or cause sediment to be transported, onto an adjoining property, and

(c) must be erected on a surface that is sufficiently firm and level to sustain the structure while in use, and

(d) must meet any development standard for the erection of a temporary structure imposed by a local environmental plan applying to the land that sets a separation distance to a side or rear boundary with adjoining land that is under different ownership.

**Note.**

In addition to the requirements set out in this Chapter in relation to exempt development, adjoining owners' property rights, the applicable common law and other legislative requirements for approvals, licences, permits and authorities still apply.

- (5) Subsection (4)(d) does not apply in respect of adjoining land that is owned by the council or other public authority if the council or public authority has consented in writing to the development standard not applying.

- (6) In this section—

***education and care service*** means a service that provides care (other than residential care) or care and education, whether directly or indirectly, for one or more children under the age of 6 years who do not ordinarily attend school (disregarding any children who are related to the person providing the care).

***mobile child care*** means an education and care service that visits premises, an area or a place for the purpose of providing child care, but does not include any of the following—

- (a) a babysitting, playgroup or child-minding service that is organised informally by the parents of the children concerned,
- (b) a service involving medical or clinical care provided by a hospital,
- (c) a service that is concerned primarily with the provision of private tutoring, or lessons or coaching in, or providing for participation in, a cultural, recreational, religious or sporting activity.

### **3.29 Temporary emergency relocation of early education and child care facility—exempt development**

- (1) Development for the purpose of an early education and care facility is exempt development for the purposes of this Chapter if—
- (a) the building or place to be used for the development already exists, and
  - (b) the development—
    - (i) is necessary to enable an early education and care facility to be temporarily relocated following, or in anticipation of, an emergency, and
    - (ii) meets the standards specified for the development in this section.

**Note.**

Exempt development must also comply with the general requirements in section 3.16.

- (2) The standards for the development are as follows—
- (a) the development must be carried out within, and the period of the temporary use must not exceed, 12 months, starting from the date on which a service approval to operate the relocated early education and care facility is granted,
  - (b) the development must not be on any of the following land—
    - (i) land within a flood control lot,
    - (ii) land identified on an Acid Sulfate Soils Map as being Class 1 or Class 2,
    - (iii) land that is significantly contaminated land within the meaning of the [Contaminated Land Management Act 1997](#),
    - (iv) land that is identified by an environmental planning instrument, a development control plan or a policy adopted by the council as being or affected by a coastline hazard, a coastal hazard or a coastal erosion hazard,
    - (v) bush fire prone land,
  - (c) the premises on which the development is carried out—
    - (i) must provide or have convenient access to adequate sanitary facilities for use by staff and children attending the service, and

- (ii) must not be located within 200 metres (measured from the closest boundary of the lot on which the development is proposed) from any restricted premises, sex services premises, pub or registered club.

(3) In this section—

**emergency** means an emergency due to an actual or imminent occurrence (such as fire, flood, storm, earthquake, explosion, terrorist act, accident, epidemic or warlike action) which endangers, or threatens to endanger, the safety or health of persons in the early education and care facility or destroys or damages, or threatens to destroy or damage, the facility.

### 3.30 Home-based child care—exempt development

Development carried out by or on behalf of any person for the purpose of home-based child care is exempt development for the purposes of this Chapter if it is not carried out on bush fire prone land.

**Note 1.**

No standards are specified for this development. However, exempt development must comply with the general requirements in section 3.16.

**Note 2.**

The elements that must comprise this type of development are specified in the definition for this development in the Standard Instrument (see also the note to section 3.3(1) of this Chapter). If all the elements are not present, the development is not development to which this section applies.

### 3.31 Home-based child care—complying development

- (1) Development carried out by or on behalf of any person for the purpose of home-based child care is complying development for the purposes of this Chapter if it complies with this section.

**Note.**

Complying development must also comply with the general requirements in section 3.18 (other than section 3.18(2)(c)).

- (2) The use of the dwelling used for home-based child care (the **dwelling**) as a dwelling must be permitted, with or without development consent, under an environmental planning instrument applying to the land on which the development is carried out.
- (3) If the development is carried out on bush fire prone land, the following standards also apply—
  - (a) an asset protection zone that is not on a slope exceeding 18 degrees and that is in accordance with *Planning for Bush Fire Protection* must be established for the dwelling,
  - (b) a bush fire emergency management and evacuation plan must be prepared in accordance with the following—
    - (i) *Development Planning A guide to developing a Bush Fire Emergency Management and Evacuation Plan*, published by the NSW Rural Fire Service in December 2014,
    - (ii) AS 3745—2010, *Planning for emergencies in facilities*,
  - (c) any associated access way is on land that is—
    - (i) not in bush fire attack level-40 (BAL-40) or the flame zone (BAL-FZ), or

**Note.**

See section 3.19 in relation to when land is not in bush fire attack level-40 (BAL-40) or the flame zone (BAL-FZ).

    - (ii) grasslands,
  - (d) the lot on which the development is carried out (the **relevant lot**) must have direct access to a public road or a road vested in or maintained by the council,
  - (e) there must be—

- (i) a reticulated water supply connection to the relevant lot and a fire hydrant within 70m of the part of the development carried out on bush fire prone land, or
- (ii) a 10,000 L capacity water tank on the relevant lot,
- (f) mains electricity must be connected to the relevant lot,
- (g) reticulated or bottled gas on the relevant lot must be installed and maintained in accordance with AS/NZS 1596:2014, *The storage and handling of LP Gas* and the requirements of relevant authorities (such as the requirement that metal piping must be used),
- (h) any gas cylinders on the relevant lot that are within 10m of a dwelling must—
  - (i) have the release valves directed away from the dwelling, and
  - (ii) be enclosed on the hazard side of the installation, and
  - (iii) have metal connections to and from the cylinders,
- (i) there must be no polymer sheathed flexible gas supply lines to gas meters adjacent to any dwelling on the relevant lot or an adjoining lot.

**Note.**

The requirements relating to the construction of buildings in bush fire prone areas set out in the *Building Code of Australia* also apply.

- (4) Section 3.18(2)(c) does not apply to complying development under this section.

**3.32 Out-of-school hours care at existing universities—complying development**

- (1) Development carried out by or on behalf of any person for the purpose of out-of-school hours care (including vacation care) for primary school children is complying development for the purposes of this Chapter if it complies with this section.

**Note.**

Complying development must also comply with the general requirements in section 3.18.

- (2) The standards specified for the development are as follows—
- (a) the development must be carried out in an existing building within the boundaries of an existing university,
  - (b) the development must not involve new building works,
  - (c) the building—
    - (i) must not be located on bush fire prone land, and
    - (ii) must not be located on land within a flood control lot,
  - (d) the building's premises must not be licensed to sell alcohol or to operate gaming machines,
  - (e) the premises on which the development is carried out—
    - (i) must have a floor area that complies with regulation 107 (indoor unencumbered space requirements) of the [Education and Care Services National Regulations](#), and
    - (ii) must have outdoor space that complies with regulation 108 (outdoor unencumbered space requirements) of those Regulations, and
    - (iii) must have a dedicated entrance, and
    - (iv) must have exclusive access to, and use of, on-site, age appropriate (K–Year 6) sanitary facilities during hours of operation, and

(v) must have a documented and accessible emergency and fire evacuation plan, and

(vi) must not be located within or adjacent to any building in which is located any restricted premises, sex services premises, pub or registered club.

(3) Nothing in this section authorises the carrying out of development in contravention of any existing condition of the development consent currently operating (other than a complying development certificate) that applies to any part of the university, relating to hours of operation, noise, car parking, vehicular movement, traffic generation, loading, waste management, landscaping or student or staff numbers.

### 3.33 Out-of-school hours care at existing TAFE establishments—complying development

(1) Development carried out by or on behalf of any person for the purpose of out-of-school hours care (including vacation care) for primary school children is complying development for the purposes of this Chapter if it complies with this section.

**Note.**

Complying development must also comply with the general requirements in section 3.18.

(2) The standards specified for the development are as follows—

(a) the development must be carried out in an existing building within the boundaries of an existing TAFE establishment,

(b) the development must not involve new building works,

(c) the building—

(i) must not be located on bush fire prone land, and

(ii) must not be located on land within a flood control lot,

(d) the building's premises must not be licensed to sell alcohol or to operate gaming machines,

(e) the premises on which the development is carried out—

(i) must have a floor area that complies with regulation 107 (indoor unencumbered space requirements) of the [Education and Care Services National Regulations](#), and

(ii) must have outdoor space that complies with regulation 108 (outdoor unencumbered space requirements) of those Regulations, and

(iii) must have a dedicated entrance, and

(iv) must have exclusive access to, and use of, on-site, age appropriate (K–Year 6) sanitary facilities during hours of operation, and

(v) must have a documented and accessible emergency and fire evacuation plan, and

(vi) must not be located within or adjacent to any building in which is located any restricted premises, sex services premises, pub or registered club.

(3) Nothing in this section authorises the carrying out of development in contravention of any existing condition of the development consent currently operating (other than a complying development certificate) that applies to any part of the TAFE establishment, relating to hours of operation, noise, car parking, vehicular movement, traffic generation, loading, waste management, landscaping or student or staff numbers.

## Part 3.4 Schools—specific development controls

### 3.34 Interpretation

(1) In this Part—

**approved government school** means a school that is—

- (a) an approved school, and
- (b) a government school.

**approved school** means a school for which development consent has been granted, other than an existing school.

**campervan** has the same meaning as in the [Local Government \(Manufactured Home Estates, Caravan Parks, Camping Grounds and Moveable Dwellings\) Regulation 2021](#).

**caravan** has the same meaning as in the [Local Government \(Manufactured Home Estates, Caravan Parks, Camping Grounds and Moveable Dwellings\) Regulation 2021](#).

**design guide** means the *Design Guide for Schools* published by the Government Architect NSW in May 2025.

**government school** has the same meaning as in the [Education Act 1990](#).

**moveable dwelling** has the same meaning as in the [Local Government Act 1993](#), but does not include a campervan, caravan or tent.

**non-government school** has the same meaning as in the [Education Act 1990](#).

**prescribed zone** means any of the following land use zones—

- (a) Zone RU2 Rural Landscape,
- (b) Zone RU4 Primary Production Small Lots,
- (c) Zone RU5 Village,
- (d) Zone RU6 Transition,
- (e) Zone R1 General Residential,
- (f) Zone R2 Low Density Residential,
- (g) Zone R3 Medium Density Residential,
- (h) Zone R4 High Density Residential,
- (i) Zone R5 Large Lot Residential,
- (i1) Zone E1 Local Centre,
- (i2) Zone E2 Commercial Centre,
- (i3) Zone E3 Productivity Support,
- (i4) Zone MU1 Mixed Use,
- (j) Zone B1 Neighbourhood Centre,
- (k) Zone B2 Local Centre,
- (l) Zone B3 Commercial Core,
- (m) Zone B4 Mixed Use,
- (n) Zone B5 Business Development,
- (o) Zone B6 Enterprise Corridor,

- (p) Zone B7 Business Park,
- (q) Zone B8 Metropolitan Centre,
- (r) Zone SP1 Special Activities,
- (s) Zone SP2 Infrastructure,
- (s1) Zone SP4 Enterprise under the following local environmental plans—
  - (i) [\*Canada Bay Local Environmental Plan 2013\*](#),
  - (ii) [\*Central Coast Local Environmental Plan 2022\*](#),
  - (iii) [\*Penrith Local Environmental Plan 2010\*](#),
  - (iv) [\*Pittwater Local Environmental Plan 2014\*](#),
  - (v) [\*Port Macquarie-Hastings Local Environmental Plan 2011\*](#),
  - (vi) [\*Sutherland Shire Local Environmental Plan 2015\*](#),
  - (vii) [\*The Hills Local Environmental Plan 2019\*](#),
  - (viii) [\*Warringah Local Environmental Plan 2011\*](#),
- (s2) Zone SP5 Metropolitan Centre,
- (t) Zone C4 Environmental Living,
- (u) the following zones under [\*State Environmental Planning Policy \(Precincts—Western Parkland City\) 2021\*](#)—
  - (i) Employment
  - (ii) Tourism,
  - (iii) Urban,
  - (iv) 1 Urban Development.

**relevant preschool** means a centre-based child care facility that provides only preschool care for children who are 3–5 years of age.

**staff accommodation**, for a school, means the following if used for the accommodation of staff employed to work at the school—

- (a) residential accommodation,
- (b) moveable dwellings.

**stakeholder and community participation plan** means the *Stakeholder and Community Participation Plan* published by the Department of Education in October 2024.

- (2) In this Part, development for the purposes of a school does not include development for the purposes of campus student accommodation.

### 3.35 Development for purposes of campus student accommodation

- (1) Despite section 3.34(2), development for the purposes of campus student accommodation may be carried out by a person with development consent on land within the boundaries of the school.
- (2) Development consent must not be granted if the development involves the subdivision of land.

- (3) Development consent must not be granted unless the consent authority has considered the design quality of the development, evaluated in accordance with the design quality principles set out in Schedule 8.
- (4) For the purposes of subsection (3), a reference in Schedule 8 to a school is taken to include a reference to campus student accommodation.

### 3.36 Schools—development permitted with consent

- (1) Development for the purpose of a school may be carried out by any person with development consent on land in a prescribed zone.
- (2) Development for a purpose specified in section 3.40(1) or 3.41(2)(e) may be carried out by any person with development consent on land within the boundaries of an existing or approved school.
- (3) Development for the purpose of a school may be carried out by any person with development consent on land that is not in a prescribed zone if it is carried out on land within the boundaries of an existing or approved school.
- (4) Subsection (3) does not require development consent to carry out development on land if that development could, but for this Chapter, be carried out on that land without development consent.
- (5) A school (including any part of its site and any of its facilities) may be used, with development consent, for the physical, social, cultural or intellectual development or welfare of the community, whether or not it is a commercial use of the establishment.
- (6) Before determining a development application for development of a kind referred to in subsection (1), (3) or (5), the consent authority must take into consideration—
  - (a) the design quality of the development when evaluated in accordance with the design quality principles set out in Schedule 8, and
  - (b) whether the development enables the use of school facilities (including recreational facilities) to be shared with the community.
- (7) Subject to subsection (8), the requirement in subsection (6)(a) applies to the exclusion of any provision in another environmental planning instrument that requires, or that relates to a requirement for, excellence (or like standard) in design as a prerequisite to the granting of development consent for development of that kind.
- (8) A provision in another environmental planning instrument that requires a competitive design process to be held as a prerequisite to the granting of development consent does not apply to development to which subsection (6) (a) applies that has an estimated development cost of less than \$50 million.
- (9) A provision of a development control plan that specifies a requirement, standard or control in relation to development of a kind referred to in subsection (1), (2), (3) or (5) is of no effect, regardless of when the development control plan was made.
- (10) Development for the purpose of a centre-based child care facility may be carried out by any person with development consent on land within the boundaries of an existing or approved school.
- (11) In this section—

*estimated development cost* has the same meaning as in the [Environmental Planning and Assessment Regulation 2021](#).

### 3.37 Existing or approved government schools—development permitted without consent

- (1) Development for any of the following purposes may be carried out by or on behalf of a public authority without development consent on land within the boundaries of an existing or approved government school—
  - (a) construction, operation or maintenance of any of the following—

- (i) a library or an administration building,
- (ii) a portable classroom, including a modular or prefabricated classroom,
- (iii) a permanent classroom,
- (iv) a kiosk or shop selling school-related goods to students and staff, such as books, stationery or school uniforms,
- (v) a cafeteria or canteen carried out in accordance with AS 4674—2004 *Design, construction and fit-out of food premises*,
- (vi) a car park,
- (vii) a building to be used for the purposes of a relevant preschool,
- (viii) a hall with an associated covered outdoor learning area or kiosk,
- (ix) a sporting field or any type of court used for sports that uses synthetic turf,
- (x) staff accommodation,
- (b) minor alterations or additions, such as—
  - (i) internal fitouts, or
  - (ii) alterations or additions to address work health and safety requirements or to provide access for people with a disability, or
  - (iii) alterations or additions to the external facade of a building that do not increase the building envelope (for example, porticos, balcony enclosures or covered walkways),
- (c) restoration, replacement or repair of damaged buildings or structures,
- (d) security measures, including fencing, lighting and security cameras,
- (e) demolition of structures or buildings (unless a State heritage item or local heritage item),
- (f) if the land is in a prescribed zone—construction, operation or maintenance of a building associated with the operation of the school.
- (2) A building resulting from development carried out under subsection (1)(a) or (f) must not have a height of more than the greater of—
  - (a) the maximum height permitted for a building under an environmental planning instrument applying to the land on which the development is proposed to be carried out, or
  - (b) 4 storeys.
- (3), (4) (Repealed)
- (5) A reference in this section to development for a purpose referred to in subsection (1)(a), (b) or (c) includes a reference to development for the purpose of construction works in connection with the purpose referred to in subsection (1)(a), (b) or (c).
- (5A) A public authority, or a person acting on behalf of a public authority, must not carry out development under this section unless the authority or person has considered the following—
  - (a) the design quality of the development, evaluated in accordance with the design quality principles set out in Schedule 8,
  - (b) the design principles set out in the design guide.

(6) This section does not apply to development for the purposes of campus student accommodation.

(7) (Repealed)

**Note.**

Section 100B(3) of the [Rural Fires Act 1997](#) requires a person to obtain a bush fire safety authority under that Act before developing bush fire prone land for a special fire protection purpose such as a school.

**3.37A New government schools—development permitted without consent**

- (1) Development for the purposes of a government school may be carried out by or on behalf of a public authority without consent on land—
  - (a) in a prescribed zone, and
  - (b) on which there is no existing or approved school.
- (2) A building resulting from development carried out on land under this section must not have a height of more than the greater of—
  - (a) the maximum height permitted for a building under an environmental planning instrument applying to the land, and
  - (b) 4 storeys.
- (3) Development must not be carried out under this section unless—
  - (a) the public authority is satisfied that appropriate consultation has been undertaken having regard to—
    - (i) the SCPP—new health services facilities and schools, and
    - (ii) the *stakeholder and community participation plan*, and
  - (b) the public authority has considered—
    - (i) the design quality of the development, evaluated in accordance with the design quality principles set out in Schedule 8, and
    - (ii) the design principles set out in the design guide.
- (4) In this section—

***government school*** includes the following—

  - (a) a relevant preschool,
  - (b) staff accommodation.

**3.38A Notification of carrying out of development under section 3.37A**

- (1) This section applies to development permitted under section 3.37A.
- (2) Before development to which this section applies is carried out, the public authority must—
  - (a) give written notice of the intention to carry out the development to—
    - (i) if the public authority is not the relevant council—the relevant council, and
    - (ii) Transport for NSW, and
  - (b) consider any response to the notice that is received within 28 days after the notice is given.
- (3) A notice given under subsection (2)(a) must include—

- (a) the information required by the SCPP—new health services facilities and schools, and
  - (b) the information required by the Division 5.1 assessment guidelines for environmental factors, and
  - (c) the information required by the stakeholder and community participation plan.
- (4) If notice of the intention to carry out development is given under this section to the relevant council or Transport for NSW—
- (a) notice is not required to be given under sections 3.8–3.10 or 3.12 to the relevant council or Transport for NSW, and
  - (b) for notice required to be given under sections 3.8–3.10 or 3.12 to another authority—a reference to 21 days in the section is taken to be a reference to 28 days.
- (5) The public authority must also give written notice of the intention to start work at least 2 days before the work starts to—
- (a) the occupiers of any dwelling located within 20m of the site boundary of the proposed development, and
  - (b) if the public authority is not the relevant council—the relevant council.
- (6) If the development is carried out by a person on behalf of the public authority, a reference to **public authority** in this section is taken to be a reference to the person.
- (7) In this section—

**relevant council** means the council for the area in which the development is proposed to be carried out.

### 3.38 Notification of carrying out of certain development under section 3.37

- (1) This section applies to development to which section 3.37(1)(a) applies.
- (2) Before development to which this section applies is carried out, the proponent of the development must—
  - (a) give written notice of the intention to carry out the development to the council for the area in which the land is located (unless the proponent is that council) and to the occupiers of adjoining land, and
  - (b) take into consideration any response to the notice that is received within 21 days after the notice is given.

### 3.39 Existing and approved schools—exempt development

- (1) Development for any of the following purposes is exempt development if it is on land within the boundaries of an existing or approved school and complies with any requirements of this subsection that apply to the development—
  - (a) an awning or canopy attached to a building, that is more than 1 metre from any property boundary,
    - (a1) an awning or canopy associated with a sporting field or any type of court used for sport,
  - (b) the removal or pruning of a tree that has been assessed by a Level 5 qualified arborist as posing a risk to human health or safety or of damage to infrastructure, but only if a replacement tree that is capable of achieving a mature height of 3 metres or more is planted within the grounds of the school,
  - (c) landscaping, including irrigation schemes (whether using recycled or other water),
  - (d) play equipment where adequate safety provisions (including soft landing surfaces) are provided, but only if any structure is more than 1.2 metres from any fence,
  - (e) routine maintenance (including earthworks associated with playing field regrading or landscaping),

- (f) walking paths (including raised walking paths), boardwalks, ramps, minor pedestrian bridges, stairways, gates, seats, barbecues, shelters and shade structures,
- (g) a sporting field or any type of court used for sport, other than a sporting field or court that uses synthetic turf,
- (h) the use of existing facilities or buildings for the purposes of school-based child care between the hours of 7:00am and 7:00pm on a weekday only, whether or not it is a commercial use of the establishment,
- (i) the use of existing facilities or buildings for the physical, social, cultural or intellectual development or welfare of the community, whether or not it is a commercial use of the establishment,
- (i1) the use of existing facilities or buildings for the purposes of a relevant preschool that provides preschool care for no more than 50 children,
- (j) an amenities building or workshop—
  - (i) that is not more than 1 storey high, and
  - (ii) that is more than 5 metres from any property boundary with land in a residential zone and more than 1 metre from any property boundary with land in any other zone,
- (k) environmental management works,
- (l) a short-term portable classroom (including its removal)—
  - (i) that is not more than 1 storey high, and
  - (ii) that is more than 5 metres from any property boundary with land in a residential zone and more than 1 metre from any property boundary with land in any other zone, and
  - (iii) that is removed within 48 months of being installed,
- (m) demolition of buildings or structures that are not a State or local heritage item or within a heritage conservation area if—
  - (i) the demolition is carried out in accordance with AS 2601–2001, *The demolition of structures*, and
  - (ii) the demolition covers an area of 250m<sup>2</sup> or less,
- (n) bike parking and bike storage.

**Note.**

Exempt development must also comply with the general requirements in section 3.16.

- (2) Section 3.16(3)(g), to the extent that it relates to a permit or approval required under an environmental planning instrument, does not apply in relation to development carried out under subsection (1)(b).
- (3) Development for a purpose specified in Schedule 5 that is carried out by a person other than a public authority is exempt development if—
  - (a) it is carried out on land within the boundaries of an existing or approved school, and
  - (b) it meets the development standards for the development specified in Schedule 5.

**Note 1.**

Exempt development must also comply with the general requirements in section 3.16.

**Note 2.**

Section 3.17 covers development carried out by or on behalf of a public authority.

- (4) This section applies to development for the purposes of existing campus student accommodation on land within the boundaries of the existing school with which the accommodation is associated only.
- (5) The development specified in subsection (1) is also exempt development if it is carried out on land that is being used for the purposes of temporary housing, but only if that land is within the boundaries of an existing or approved school.
- (6) Development for a purpose specified in Schedule 5 that is carried out by a person other than a public authority is also exempt development if—
  - (a) it is carried out on land being used for the purposes of temporary housing, and
  - (b) the land is within the boundaries of an existing or approved school, and
  - (c) the development meets the development standards for the development specified in Schedule 5.

### 3.40 Existing and approved schools—complying development

- (1) Development carried out by or on behalf of any person on land within the boundaries of an existing or approved school is complying development if—
  - (a) it consists of the construction of, or alterations or additions to, any of the following—
    - (i) a library, an administration building or office premises for the purposes of the school,
    - (ii) a gym, indoor sporting facility or hall,
    - (iii) a teaching facility (including a classroom or lecture theatre), laboratory, trade facility or training facility,
    - (iv) a cafeteria or canteen that is carried out in accordance with AS 4674—2004, *Design, construction and fit-out of food premises*, published by Standards Australia on 11 February 2004,
    - (v) a kiosk or shop selling school-related goods to students and staff, such as books, stationery or school uniforms,
    - (vi) a hall with associated covered outdoor learning area or kiosk,
    - (vii) an outdoor learning or play area and associated awning or canopy,
    - (viia) a building to be used for the purposes of a relevant preschool,
    - (viib) for a non-government school—a car park,
    - (viii) demolition of buildings or structures that are not a State or local heritage item or within a heritage conservation area if—
      - (A) the demolition is carried out in accordance with AS 2601—2001, *The demolition of structures*, and
      - (B) the demolition covers an area of more than 250m<sup>2</sup>,
    - (ix) minor alterations or additions (such as internal fitouts, structural upgrades, or alterations or additions to enable plant or equipment to be installed, to address work health and safety requirements or to provide access for people with a disability),
    - (x) restoration, replacement or repair of a damaged building or structure, and
  - (b) it complies with this section.
- (2) Development carried out by or on behalf of any person on land within the boundaries of an existing or approved school is complying development if—

(a) it is an alteration or addition referred to in subsection (1) or section 3.41(2)(e) that is carried out for the purpose of a change of use to another use specified in subsection (1), and

(b) it complies with this section.

(2A) The use of existing facilities or buildings for the purposes of a relevant preschool that provides preschool care for 50 or more children is complying development if the development complies with this section.

(3) Development carried out by or on behalf of any person on land within the boundaries of an existing or approved school for the purposes of campus student accommodation is complying development if the development—

(a) involves only—

(i) a minor alteration or addition to a building that does not result in an increase in the gross floor area or height of the building, or

**Example—**

Minor alterations and additions include internal fitouts, structural upgrades, or alterations or additions to enable plant or equipment to be installed, to address work health and safety requirements or to provide access for people with a disability.

(ii) the restoration, replacement or repair of a damaged building that does not result in an increase in the gross floor area or height of the building, and

(b) complies with this section.

(4) Except as provided by subsection (3), development for the purposes of campus student accommodation is not complying development under this section.

(5) The development standards for complying development under this section (other than for development referred to in subsection (1)(a)(viii), (ix) or (x)) are set out in Schedule 6.

(6) Development that will result in the erection of a building over a registered easement is not complying development under this section.

(7) Nothing in this section authorises the carrying out of development in contravention of any existing condition of the development consent currently operating (other than a complying development certificate) that applies to any part of the school, relating to hours of operation, noise, car parking, vehicular movement, traffic generation, loading, waste management, landscaping or student or staff numbers.

(8) The reference to an existing condition of a development consent that relates to student or staff numbers in subsection (7) does not include children attending or staff of a relevant preschool.

**Note 1—**

Complying development must also comply with the general requirements in section 3.18.

**Note 2—**

Development to which the [Rural Fires Act 1997](#), section 100B(1) applies is not complying development under this Chapter.

### **3.41 School-based child care—complying development**

(1) Development carried out by or on behalf of any person for the purpose of school-based child care is complying development for the purposes of this Chapter if it complies with this section.

**Note.**

Complying development must also comply with the general requirements in section 3.18.

(2) The standards specified for the development are as follows—

(a) the development must be carried out within the boundaries of an existing or approved school,

- (b) the development must not be on bush fire prone land,
- (c) the current use of the premises must not be an existing use within the meaning of section 4.65 of the Act,
- (d) if there is no existing condition on development consent applying to the school relating to the hours of operation—the school-based child care must not operate on a Saturday or Sunday, or before 7.00 am or after 7.00 pm on a weekday,
- (e) if the development consists of the construction of, or alterations or additions to, school-based child care—the development must comply with the standards set out in Schedule 6.

**Note.**

A service approval is required to operate an early education and care facility that is an education and care service to which the [Children \(Education and Care Services\) National Law \(NSW\)](#) applies or a State regulated education and care service to which the [Children \(Education and Care Services\) Supplementary Provisions Act 2011](#) applies. Approved services are subject to various operational requirements under that legislation, including requirements for the physical environment of the approved service (for example, minimum requirements for indoor and outdoor space).

- (3) Nothing in this section authorises the carrying out of development in contravention of any existing condition of the development consent currently operating (other than a complying development certificate) that applies to any part of the school, relating to hours of operation, noise, car parking, vehicular movement, traffic generation, loading, waste management, landscaping or student or staff numbers.

**3.42 Complying development certificates—additional conditions**

A complying development certificate for development that is complying development under this Part is subject to the following conditions (in addition to the conditions set out in section 3.18)—

- (a) any demolition work must be carried out in accordance with AS 2601—2001 *The demolition of structures*, published by Standards Australia on 13 September 2001,
- (b) any removal or pruning of vegetation must be carried out in accordance with AS 4970—2009 *Protection of trees on development sites*,
- (c) development must be carried out in accordance with all relevant requirements of the Blue Book,
- (d) the person having the benefit of the complying development certificate must give at least 2 days notice in writing of the intention to commence the works to the owner or occupier of any dwelling that is situated within 20 metres of the lot on which the works will be carried out.

**3.43 State significant development for the purpose of schools—application of development standards in environmental planning instruments**

Development consent may be granted for development for the purpose of a school that is State significant development even though the development would contravene a development standard imposed by this or any other environmental planning instrument under which the consent is granted.

**Part 3.5 Universities—specific development controls****3.44 Interpretation**

- (1) In this Part—

*prescribed zone* means—

- (a) any land within the boundaries of an existing university, or
- (b) any of the following land use zones—
  - (i) Zone RU2 Rural Landscape,
  - (ii) Zone RU4 Primary Production Small Lots,

- (iii) Zone RU5 Village,
- (iv) Zone RU6 Transition,
- (v) Zone R1 General Residential,
- (vi) Zone R2 Low Density Residential,
- (vii) Zone R3 Medium Density Residential,
- (viii) Zone R4 High Density Residential,
- (ix) Zone R5 Large Lot Residential,
- (ixa) Zone E1 Local Centre,
- (ixb) Zone E2 Commercial Centre,
- (ixc) Zone E3 Productivity Support,
- (ixd) Zone MU1 Mixed Use,
- (x) Zone B1 Neighbourhood Centre,
- (xi) Zone B2 Local Centre,
- (xii) Zone B3 Commercial Core,
- (xiii) Zone B4 Mixed Use,
- (xiv) Zone B5 Business Development,
- (xv) Zone B6 Enterprise Corridor,
- (xvi) Zone B7 Business Park,
- (xvii) Zone B8 Metropolitan Centre,
- (xviii) Zone SP1 Special Activities,
- (xix) Zone SP2 Infrastructure,
- (xixa) Zone SP4 Enterprise under the following local environmental plans—
  - (A) [\*Canada Bay Local Environmental Plan 2013\*](#),
  - (B) [\*Central Coast Local Environmental Plan 2022\*](#),
  - (C) [\*Penrith Local Environmental Plan 2010\*](#),
  - (D) [\*Pittwater Local Environmental Plan 2014\*](#),
  - (E) [\*Port Macquarie-Hastings Local Environmental Plan 2011\*](#),
  - (F) [\*Sutherland Shire Local Environmental Plan 2015\*](#),
  - (G) [\*The Hills Local Environmental Plan 2019\*](#),
  - (H) [\*Warringah Local Environmental Plan 2011\*](#),
- (xixb) Zone SP5 Metropolitan Centre,
- (xx) Zone C4 Environmental Living.

- (2) In this Part, development for the purposes of a university does not include development for the purposes of campus student accommodation.

### **3.45 Development for purposes of campus student accommodation**

- (1) Despite section 3.44(2), development for the purposes of campus student accommodation may be carried out by a person with development consent on land within the boundaries of the university.
- (2) Development consent must not be granted if the development involves the subdivision of land.
- (3) Development consent must not be granted unless the consent authority has considered the design quality of the development, evaluated in accordance with the design quality principles set out in Schedule 8.
- (4) For the purposes of subsection (3), a reference in Schedule 8 to a school is taken to include a reference to campus student accommodation.

### **3.46 Universities—development permitted with consent**

- (1) Development for the purpose of a university may be carried out by any person with development consent on land in a prescribed zone.
- (2) Development for a purpose specified in section 3.50(1) may be carried out by any person with development consent on land within the boundaries of an existing university.
- (3) Development for the purpose of a university may be carried out by any person with development consent on land that is not in a prescribed zone if it is carried out on land within the boundaries of an existing university.
- (4) Subsection (3) does not require development consent to carry out development on land if that development could, but for this Chapter, be carried out on that land without development consent.
- (5) A university (including any part of its site and any of its facilities) may be used, with development consent, for the physical, social, cultural or intellectual development or welfare of the community, whether or not it is a commercial use of the establishment.
- (6) Development for the following purposes may be carried out with development consent on land within the boundaries of an existing university—
  - (a) centre-based child care facilities,
  - (b) high technology industries.

### **3.47 Universities—development permitted without consent**

- (1) Development for any of the following purposes may be carried out by or on behalf of a public authority without development consent on land within the boundaries of an existing university—
  - (a) construction, operation or maintenance, more than 5 metres from any property boundary with land in a residential zone and more than 1 metre from any property boundary with land in any other zone, of—
    - (i) a library or an administration building that is not more than 2 storeys high, or
    - (ii) a teaching facility (including a classroom or lecture theatre), laboratory, trade facility or training facility that is not more than 2 storeys high, or
    - (iii) an environmental facility, including a greenhouse or glass house, that is not more than 2 storeys high, or
    - (iv) an information and education facility that is not more than 2 storeys high, or
    - (v) a storage or maintenance facility that is not more than 2 storeys high, or
    - (vi) a car park that is not more than 2 storeys high, or

- (vii) an outdoor learning or play area and associated awnings or canopies, or
  - (viii) a kiosk or shop selling university-related goods to students and staff, such as books, stationery or university merchandise, that is not more than 2 storeys high, or
  - (ix) a cafeteria or canteen that is not more than 2 storeys high and carried out in accordance with AS 4674—2004, *Design, construction and fit-out of food premises*, published by Standards Australia on 11 February 2004, or
  - (x) a high technology industry, other than a data centre, that is not more than 2 storeys high,
- (b) minor alterations or additions to a building, such as—
- (i) internal fitouts, structural upgrades, alterations or additions to enable plant or equipment to be installed, or
  - (ii) alterations or additions to address work health and safety requirements or to provide access for people with a disability,
- (c) restoration, replacement or repair of damaged buildings or structures,
- (d) demolition of structures or buildings (unless a State heritage item or local heritage item).
- (2) However, subsection (1) applies only to development that—
- (a) does not require an alteration of transport or traffic arrangements, and
  - (b) does not cause the contravention of any existing condition of the development consent currently operating (other than a complying development certificate) that applies to the university relating to hours of operation, noise, car parking, vehicular movement, traffic generation, loading, waste management, landscaping or student or staff numbers, and
  - (c) complies with—
    - (i) any development standard that sets a maximum floor space ratio, and
    - (ii) any development standard that sets a maximum gross floor area,
 

for a building on the land, imposed under a local environmental plan, and
  - (d) if the development involves an alteration or addition to a building—
    - (i) does not extend the gross floor area of the existing building by more than 50%, and
    - (ii) does not result in the building having a gross floor area of more than 2,000 square metres, and
  - (e) if the development is on a site with an area of—
    - (i) 2,000 square metres or less—does not result in the floor space ratio for all buildings on the site exceeding 1:1, or
    - (ii) more than 2,000 square metres—does not extend the existing gross floor area for all buildings on the site by more than 2,000 square metres.
- (3) A reference in this section to development for a purpose referred to in subsection (1)(a), (b) or (c) includes a reference to development for the purpose of construction works in connection with the purpose referred to in subsection (1)(a), (b) or (c).
- (4) This section does not apply to development for the purposes of campus student accommodation.
- (5) In this section—

*site* means one or more lots that are contiguous and owned by the same entity.

### **3.48 Notification of carrying out of certain development without consent**

- (1) This section applies to development to which section 3.47(1)(a) applies.
- (2) Before development to which this section applies is carried out, the proponent of the development must—
  - (a) give written notice of the intention to carry out the development to the council for the area in which the land is located (unless the proponent is that council) and to the occupiers of adjoining land, and
  - (b) take into consideration any response to the notice that is received within 21 days after the notice is given.

### **3.49 Existing universities—exempt development**

- (1) Development for any of the following purposes is exempt development if it is on land within the boundaries of an existing university and complies with any requirements of this subsection that apply to the development—
  - (a) an awning or canopy attached to a building, that is more than 1 metre from any property boundary,
  - (b) the removal or pruning of a tree that has been assessed by a Level 5 qualified arborist as posing a risk to human health or safety or of damage to infrastructure, but only if a replacement tree that is capable of achieving a mature height of 3 metres or more is planted within the grounds of the university,
  - (c) landscaping, including irrigation schemes (whether using recycled or other water),
  - (d) play equipment where adequate safety provisions (including soft landing surfaces) are provided, but only if any structure is more than 1.2 metres from any fence,
  - (e) routine maintenance (including earthworks associated with playing field regrading or landscaping, and maintenance of existing access roads),
  - (f) cycleways, walking paths (including raised walking paths), boardwalks, ramps, minor pedestrian bridges, stairways, gates, seats, barbecues, shelters and shade structures,
  - (g) a recreation facility (outdoor), including a playing field (but not including a grandstand or other viewing structure),
  - (h) an amenities building—
    - (i) that is not more than 1 storey high, and
    - (ii) that is more than 5 metres from any property boundary with land in a residential zone and more than 1 metre from any property boundary with land in any other zone,
  - (i) environmental management works,
  - (j) a portable or temporary teaching facility, office amenities, storage facility, maintenance facility, office or kiosk (including its removal)—
    - (i) that is not more than 1 storey high, and
    - (ii) that is more than 5 metres from any property boundary with land in a residential zone and more than 1 metre from any property boundary with land in any other zone, and
    - (iii) that is removed within 7 days after the use ends,

**Note.**

See Schedule 5 for the development standards for a portable office.

- (k) demolition of development that would be exempt development under this or any other environmental planning instrument if it were being constructed or installed, if it is not carried out on or in a State or local

heritage item or a draft heritage item or in a heritage conservation area or a draft heritage conservation area.

**Note.**

Exempt development must also comply with the general requirements in section 3.16.

- (2) Section 3.16(3)(g), to the extent that it relates to a permit or approval required under an environmental planning instrument, does not apply in relation to development carried out under subsection (1)(b).
- (3) Development for a purpose specified in Schedule 5 that is carried out by a person other than a public authority is exempt development if—
  - (a) it is carried out on land within the boundaries of an existing university, and
  - (b) it meets the development standards for the development specified in Schedule 5.

**Note 1.**

Exempt development must also comply with the general requirements in section 3.16.

**Note 2.**

Section 3.17 covers development carried out by or on behalf of a public authority.

- (4) This section applies to development for the purposes of existing campus student accommodation on land within the boundaries of the existing university with which the accommodation is associated only.
- (5) The development specified in subsection (1) is also exempt development if it is carried out on land that is being used for the purposes of temporary housing, but only if that land is within the boundaries of an existing university.
- (6) Development for a purpose specified in Schedule 5 that is carried out by a person other than a public authority is also exempt development if—
  - (a) it is carried out on land being used for the purposes of temporary housing, and
  - (b) the land is within the boundaries of an existing university, and
  - (c) the development meets the development standards for the development specified in Schedule 5.

### **3.50 Existing universities—complying development**

- (1) Development carried out by or on behalf of any person on land within the boundaries of an existing university is complying development if—
  - (a) it consists of the construction of, or alterations or additions to, any of the following—
    - (i) a library or an administration building or office premises for the purposes of the university,
    - (ii) a recreation facility (indoor) or recreation facility (outdoor),
    - (iii) a teaching facility (including a classroom or lecture theatre), laboratory, trade facility or training facility,
    - (iv) food and drink premises (other than pubs or bars) to provide for students or staff (or both) that are carried out in accordance with AS 4674—2004, *Design, construction and fit-out of food premises*, published by Standards Australia on 11 February 2004,
    - (v) one or more shops for students or staff (or both),
    - (vi) a hall, including a hall with an associated covered outdoor learning area or kiosk,
    - (vii) an environmental facility, including a greenhouse or glass house,

- (viii) an information and education facility,
  - (ix) a community facility,
  - (x) a storage or maintenance facility,
  - (xi) an amenities building,
  - (xii) demolition of a building (unless a State heritage item or local heritage item),
  - (xiii) minor alterations or additions (such as internal fitouts, structural upgrades, alterations or additions to enable plant or equipment to be installed, or alterations or additions to address work health and safety requirements or to provide access for people with a disability),
  - (xiv) restoration, replacement or repair of a damaged building or structure, and
- (b) it complies with this section.
- (2) Development carried out by or on behalf of any person on land within the boundaries of an existing university is complying development if—
- (a) it is carried out on land in a prescribed zone, and
  - (b) it is an alteration or addition referred to in subsection (1) that is carried out for the purpose of a change of use to another use specified in subsection (1), and
  - (c) it complies with this section.
- (3) Development carried out by or on behalf of any person on land within the boundaries of an existing university for the purposes of campus student accommodation is complying development if the development—
- (a) involves only—
    - (i) a minor alteration or addition to a building that does not result in an increase in the gross floor area or height of the building, or

**Example—**

Minor alterations and additions include internal fitouts, structural upgrades, or alterations or additions to enable plant or equipment to be installed, to address work health and safety requirements or to provide access for people with a disability.

  - (ii) the restoration, replacement or repair of a damaged building that does not result in an increase in the gross floor area or height of the building, and
- (b) complies with this section.
- (4) Except as provided by subsection (3), development for the purposes of campus student accommodation is not complying development under this section.
- (5) The development standards for complying development under this section are set out in Schedule 7.
- (6) Development that will result in the erection of a building over a registered easement is not complying development under this section.
- (7) Section 3.18(2)(e), to the extent that it relates to a permit or approval required under an environmental planning instrument, does not apply in relation to development carried out under this section.
- (8) Nothing in this section authorises the carrying out of development in contravention of any existing condition of the development consent currently operating (other than a complying development certificate) that applies to any part of the university, relating to hours of operation, noise, car parking, vehicular movement, traffic generation, loading, waste management, landscaping or student or staff numbers.

(9) In this section—

*site* means one or more lots that are contiguous and owned by the same entity.

**Note—**

Complying development must also comply with the general requirements in section 3.18.

## **Part 3.6 TAFE establishments—specific development controls**

### **3.51 Interpretation**

(1) In this Part—

*prescribed zone* means—

(a) any land within the boundaries of an existing TAFE establishment, or

(b) any of the following land use zones—

- (i) Zone RU1 Primary Production,
- (ii) Zone RU2 Rural Landscape,
- (iii) Zone RU4 Primary Production Small Lots,
- (iv) Zone RU5 Village,
- (v) Zone RU6 Transition,
- (vi) Zone R1 General Residential,
- (vii) Zone R2 Low Density Residential,
- (viii) Zone R3 Medium Density Residential,
- (ix) Zone R4 High Density Residential,
- (x) Zone R5 Large Lot Residential,
- (xa) Zone E1 Local Centre,
- (xb) Zone E2 Commercial Centre,
- (xc) Zone E3 Productivity Support,
- (xd) Zone E4 General Industrial,
- (xe) Zone MU1 Mixed Use,
- (xi) Zone B1 Neighbourhood Centre,
- (xii) Zone B2 Local Centre,
- (xiii) Zone B3 Commercial Core,
- (xiv) Zone B4 Mixed Use,
- (xv) Zone B5 Business Development,
- (xvi) Zone B6 Enterprise Corridor,
- (xvii) Zone B7 Business Park,
- (xviii) Zone B8 Metropolitan Centre,

- (xix) Zone IN1 General Industrial,
- (xx) Zone IN2 Light Industrial,
- (xxi) Zone SP1 Special Activities,
- (xxii) Zone SP2 Infrastructure,
- (xxiia) Zone SP4 Enterprise under the following local environmental plans—
  - (A) [\*Canada Bay Local Environmental Plan 2013\*](#),
  - (B) [\*Central Coast Local Environmental Plan 2022\*](#),
  - (C) [\*Penrith Local Environmental Plan 2010\*](#),
  - (D) [\*Pittwater Local Environmental Plan 2014\*](#),
  - (E) [\*Port Macquarie-Hastings Local Environmental Plan 2011\*](#),
  - (F) [\*Sutherland Shire Local Environmental Plan 2015\*](#),
  - (G) [\*The Hills Local Environmental Plan 2019\*](#),
  - (H) [\*Warringah Local Environmental Plan 2011\*](#),
- (xxiib) Zone SP5 Metropolitan Centre,
- (xxiii) Zone C4 Environmental Living.

- (2) In this Part, development for the purposes of a TAFE establishment does not include development for the purposes of campus student accommodation.

### **3.52 Development for purposes of campus student accommodation**

- (1) Despite section 3.51(2), development for the purposes of campus student accommodation may be carried out by a person with development consent on land within the boundaries of the TAFE establishment.
- (2) Development consent must not be granted if the development involves the subdivision of land.
- (3) Development consent must not be granted unless the consent authority has considered the design quality of the development, evaluated in accordance with the design quality principles set out in Schedule 8.
- (4) For the purposes of subsection (3), a reference in Schedule 8 to a school is taken to include a reference to campus student accommodation.

### **3.53 TAFE establishments—development permitted with consent**

- (1) Development for the purpose of a TAFE establishment may be carried out by any person with development consent on land in a prescribed zone.
- (2) Development for a purpose specified in section 3.57(1) may be carried out by any person with development consent on land within the boundaries of an existing TAFE establishment.
- (3) Development for the purpose of a TAFE establishment may be carried out by any person with development consent on land that is not in a prescribed zone if it is carried out on land within the boundaries of an existing TAFE establishment.
- (4) A TAFE establishment (including any part of its site and any of its facilities) may be used, with development consent, for the physical, social, cultural or intellectual development or welfare of the community, whether or not it is a commercial use of the establishment.

- (5) Subsection (3) does not require development consent to carry out development on land if that development could, but for this Chapter, be carried out on that land without development consent.
- (6) Development for the purpose of a centre-based child care facility may be carried out by any person with development consent on land within the boundaries of an existing TAFE establishment.

### 3.54 TAFE establishments—development permitted without consent

- (1) Development for any of the following purposes may be carried out by or on behalf of a public authority without development consent on land within the boundaries of an existing TAFE establishment—
  - (a) construction, operation or maintenance, more than 5 metres from any property boundary with land in a residential zone and more than 1 metre from any property boundary with land in any other zone, of—
    - (i) a library or an administration building that is not more than 2 storeys high, or
    - (ii) a teaching facility (including a classroom or lecture theatre), laboratory, trade facility or training facility that is not more than 2 storeys high, or
    - (iii) food and drink premises (other than pubs or bars) to provide for students or staff (or both) that are not more than 2 storeys high and are carried out in accordance with AS 4674—2004, *Design, construction and fit-out of food premises*, published by Standards Australia on 11 February 2004, or
    - (iv) one or more shops for students or staff (or both) that are not more than 2 storeys high, or
    - (v) a car park that is not more than 1 storey high, or
    - (vi) an environmental facility, including a greenhouse or glass house, that is not more than 2 storeys high, or
    - (vii) an information and education facility that is not more than 2 storeys high, or
    - (viii) a storage or maintenance facility that is not more than 2 storeys high, or
    - (ix) an outdoor learning or play area and associated awnings or canopies,
  - (b) minor alterations or additions, such as—
    - (i) internal fitouts, structural upgrades, alterations or additions to enable plant or equipment to be installed, or
    - (ii) alterations or additions to address work health and safety requirements or to provide access for people with a disability,
  - (c) restoration, replacement or repair of damaged buildings or structures,
  - (d) demolition of buildings or structures (unless a State heritage item or local heritage item).
- (2) However, subsection (1) applies only to development that—
  - (a) does not require an alteration of transport or traffic arrangements, and
  - (b) does not cause the contravention of any existing condition of the development consent currently operating (other than a complying development certificate) that applies to the TAFE establishment relating to hours of operation, noise, car parking, vehicular movement, traffic generation, loading, waste management, landscaping or student or staff numbers, and
  - (c) complies with—
    - (i) any development standard that sets a maximum floor space ratio, and
    - (ii) any development standard that sets a maximum gross floor area,

for a building on the land, imposed under a local environmental plan, and

(d) if the development involves an alteration or addition to a building—

(i) does not extend the gross floor area of the existing building by more than 50%, and

(ii) does not result in the building having a gross floor area of more than 2,000 square metres, and

(e) if the development is on a site with an area of—

(i) 2,000 square metres or less—does not result in the floor space ratio for all buildings on the site exceeding 1:1, or

(ii) more than 2,000 square metres—does not extend the existing gross floor area for all buildings on the site by more than 2,000 square metres.

(3) Nothing in this section authorises the carrying out of development in contravention of any existing condition of the development consent currently operating (other than a complying development certificate) that applies to any part of the TAFE establishment, relating to hours of operation, noise, car parking, vehicular movement, traffic generation, loading, waste management, landscaping or student or staff numbers.

(4) A reference in this section to development for a purpose referred to in subsection (1)(a), (b) or (c) includes a reference to development for the purpose of construction works in connection with the purpose referred to in subsection (1)(a), (b) or (c).

(5) This section does not apply to development for the purposes of campus student accommodation.

(6) In this section—

*site* means one or more lots that are contiguous and owned by the same entity.

### **3.55 Notification of carrying out of certain development without consent**

(1) This section applies to development to which section 3.54(1)(a) applies.

(2) Before development to which this section applies is carried out, the proponent of the development must—

(a) give written notice of the intention to carry out the development to the council for the area in which the land is located (unless the proponent is that council) and to the occupiers of adjoining land, and

(b) take into consideration any response to the notice that is received within 21 days after the notice is given.

### **3.56 Existing TAFE establishments—exempt development**

(1) Development for any of the following purposes is exempt development if it is on land within the boundaries of an existing TAFE establishment and complies with any requirements in this subsection that apply to the development—

(a) an awning or canopy attached to a building, that is not within 1 metre of any property boundary,

(b) the removal or pruning of a tree that has been assessed by a Level 5 qualified arborist as posing a risk to human health or safety or of damage to infrastructure, but only if a replacement tree that is capable of achieving a mature height of 3 metres or more is planted within the grounds of the TAFE establishment,

(c) landscaping, including irrigation schemes (whether using recycled or other water),

(d) play equipment where adequate safety provisions (including soft landing surfaces) are provided, but only if any structure is more than 1.2 metres from any fence,

(e) routine maintenance (including earthworks associated with playing field regrading or landscaping, and maintenance of existing access roads),

- (f) cycleways, walking paths (including raised walking paths), boardwalks, ramps, minor pedestrian bridges, stairways, gates, seats, barbecues, shelters and shade structures,
- (g) a recreation facility (outdoor), including a playing field (but not including a grandstand or other viewing structure),
- (h) the use of existing facilities or buildings for the purposes of providing a respite day care centre,
- (i) an amenities building that is not more than 1 storey high and is more than 5 metres from any property boundary,
  - (i) that is not more than 1 storey high, and
  - (ii) that is more than 5 metres from any property boundary with land in a residential zone and more than 1 metre from any property boundary with land in any other zone,
- (j) environmental management works,
- (k) a portable or temporary teaching facility, office amenities, storage facility, maintenance facility, office or kiosk (including its removal)—
  - (i) that is not more than 1 storey high, and
  - (ii) that is more than 5 metres from any property boundary with land in a residential zone and more than 1 metre from any property boundary with land in any other zone,

**Note.**

See Schedule 5 for the development standards for a portable office.

- (l) demolition of development that would be exempt development under this or any other environmental planning instrument if it were being constructed or installed, if it is not carried out on or in a heritage item or in a heritage conservation area.

**Note.**

Exempt development must also comply with the general requirements in section 3.16.

- (2) Section 3.16(3)(g), to the extent that it relates to a permit or approval required under an environmental planning instrument, does not apply in relation to development carried out under subsection (1)(b).
- (3) Development for a purpose specified in Schedule 5 that is carried out by a person other than a public authority is exempt development if—
  - (a) it is carried out on land within the boundaries of an existing TAFE establishment, and
  - (b) it meets the development standards for the development specified in Schedule 5.

**Note 1.**

Exempt development must also comply with the general requirements in section 3.16.

**Note 2.**

Section 3.17 covers development carried out by or on behalf of a public authority.

- (4) This section applies to development for the purposes of existing campus student accommodation on land within the boundaries of the existing TAFE establishment with which the accommodation is associated only.
- (5) The development specified in subsection (1) is also exempt development if it is carried out on land that is being used for the purposes of temporary housing, but only if that land is within the boundaries of an existing TAFE establishment.

- (6) Development for a purpose specified in Schedule 5 that is carried out by a person other than a public authority is also exempt development if—
- (a) it is carried out on land being used for the purposes of temporary housing, and
  - (b) the land is within the boundaries of an existing TAFE establishment, and
  - (c) the development meets the development standards for the development specified in Schedule 5.

### 3.57 Existing TAFE establishments—complying development

- (1) Development carried out by or on behalf of any person on land within the boundaries of an existing TAFE establishment is complying development if—
- (a) it consists of the construction of, or alterations or additions to, any of the following—
    - (i) a library or an administration building or office premises for the purposes of the TAFE establishment,
    - (ii) a recreation facility (indoor) or recreation facility (outdoor),
    - (iii) a teaching facility (including a classroom or lecture theatre), laboratory, trade facility or training facility,
    - (iv) food and drink premises (other than pubs or bars) to provide for students or staff (or both) that is carried out in accordance with AS 4674—2004, *Design, construction and fit-out of food premises*, published by Standards Australia on 11 February 2004,
    - (v) one or more shops for students or staff (or both),
    - (vi) a hall, including a hall with an associated covered outdoor learning area or kiosk,
    - (vii) an environmental facility, including a greenhouse or glass house,
    - (viii) an information and education facility,
    - (ix) a community facility,
    - (x) a storage or maintenance facility,
    - (xi) an outdoor learning or play area and associated awnings or canopies,
    - (xii) an amenities building,
    - (xiii) demolition of a building (unless a State heritage item or local heritage item),
    - (xiv) minor alterations or additions (such as internal fitouts, structural upgrades, alterations or additions to enable plant or equipment to be installed, or alterations or additions to address work health and safety requirements or to provide access for people with a disability),
    - (xv) restoration, replacement or repair of a damaged building or structure, and
  - (b) it complies with this section.
- (2) Development carried out by or on behalf of any person on land within the boundaries of an existing TAFE establishment is complying development if—
- (a) it is an alteration or addition referred to in subsection (1) that is carried out for the purpose of a change of use to another use specified in subsection (1), and
  - (b) it complies with this section.
- (3) Development carried out by or on behalf of any person on land within the boundaries of an existing TAFE establishment for the purposes of campus student accommodation is complying development if the development

—  
(a) involves only—

- (i) a minor alteration or addition to a building that does not result in an increase in the gross floor area or height of the building, or

**Example—**

Minor alterations and additions include internal fitouts, structural upgrades, or alterations or additions to enable plant or equipment to be installed, to address work health and safety requirements or to provide access for people with a disability.

- (ii) the restoration, replacement or repair of a damaged building that does not result in an increase in the gross floor area or height of the building, and

(b) complies with this section.

- (4) Except as provided by subsection (3), development for the purposes of campus student accommodation is not complying development under this section.
- (5) The development standards for complying development under this section are set out in Schedule 7.
- (6) Development that will result in the erection of a building over a registered easement is not complying development under this section.
- (7) Nothing in this section authorises the carrying out of development in contravention of any existing condition of the development consent currently operating (other than a complying development certificate) that applies to any part of the TAFE establishment, relating to hours of operation, noise, car parking, vehicular movement, traffic generation, loading, waste management, landscaping or student or staff numbers.

**Note—**

Complying development must also comply with the general requirements in section 3.18.

## Part 3.7 General development controls

### 3.58 Traffic-generating development

- (1) This section applies to development for the purpose of an educational establishment—
  - (a) that will result in the educational establishment being able to accommodate 50 or more additional students, and
  - (b) that involves—
    - (i) an enlargement or extension of existing premises, or
    - (ii) new premises,on a site that has direct vehicular or pedestrian access to any road.
- (2) Before determining a development application for development to which this section applies, the consent authority must—
  - (a) give written notice of the application to Transport for NSW (*TfNSW*) within 7 days after the application is made, and
  - (b) take into consideration the matters referred to in subsection (3).
- (3) The consent authority must take into consideration—
  - (a) any submission that TfNSW provides in response to that notice within 21 days after the notice was given (unless, before the 21 days have passed, TfNSW advises that it will not be making a submission), and

(b) the accessibility of the site concerned, including—

- (i) the efficiency of movement of people and freight to and from the site and the extent of multi-purpose trips, and
- (ii) the potential to minimise the need for travel by car, and

(c) any potential traffic safety, road congestion or parking implications of the development.

(4) The consent authority must give TfNSW a copy of the determination of the application within 7 days after the determination is made.

## Chapter 4 Major infrastructure corridors

### 4.1 Aims of Chapter

The aims of this Chapter are as follows—

- (a) to identify land that is intended to be used in the future as an infrastructure corridor,
- (b) to establish appropriate planning controls for the land for the following purposes—
  - (i) to allow the ongoing use and development of the land until it is needed for the future infrastructure corridor,
  - (ii) to protect the land from development that would adversely impact on or prevent the land from being used as an infrastructure corridor in the future.

### 4.2 Definitions

(1) A word or expression used in this Chapter has the same meaning as it has in the Standard Instrument unless it is otherwise defined in this Chapter.

(2) In this Chapter—

***estimated development cost*** has the same meaning as in the [Environmental Planning and Assessment Regulation 2021](#).

***future infrastructure corridor*** means land shown as within Zone SP2 Infrastructure on the [Future Infrastructure Corridor Map](#).

***Future Infrastructure Corridor Map*** means the [State Environmental Planning Policy \(Major Infrastructure Corridors\) 2020—Future Infrastructure Corridor Map](#).

***Standard Instrument*** means the standard instrument set out in the [Standard Instrument \(Local Environmental Plans\) Order 2006](#).

***the Act*** means the [Environmental Planning and Assessment Act 1979](#).

#### Note.

The Act and the [Interpretation Act 1987](#) contain definitions and other provisions that affect the interpretation and application of this Chapter.

(3) Notes included in this Chapter do not form part of this Chapter.

### 4.3 Land to which Chapter applies

This Chapter applies to all land within a future infrastructure corridor and the adjacent land referred to in section 4.9(1)(b)–(d).

#### 4.4 Relationship with other environmental planning instruments

- (1) Subject to subsection (2), in the event of an inconsistency between this Chapter and another environmental planning instrument, whether made before or after the commencement of this Chapter, this Chapter prevails to the extent of the inconsistency.
- (2) This Chapter does not restrict or prohibit the carrying out of development, by or on behalf of a public authority, that is permitted to be carried out with or without development consent, or that is exempt development, under [State Environmental Planning Policy \(Infrastructure\) 2007](#).

#### 4.5 Maps

- (1) A reference in this Chapter to a named map adopted by this Chapter is a reference to a map by that name—
  - (a) approved by the Minister when the map is adopted, and
  - (b) as amended or replaced from time to time by maps declared by environmental planning instruments to amend or replace that map, and approved by the Minister when the instruments are made.
- (2) Any 2 or more named maps may be combined into a single map. In that case, a reference in this Chapter to any such named map is a reference to the relevant part or aspect of the single map.
- (3) Any such maps are to be kept and made available for public access in accordance with arrangements approved by the Minister.
- (4) For the purposes of this Chapter, a map may be in, and may be kept and made available in, electronic or paper form, or both.

#### 4.6 Zone SP2 Infrastructure

- (1) **Objectives of zone** The objectives of Zone SP2 Infrastructure are as follows—
  - (a) to provide for infrastructure and related uses,
  - (b) to prevent development that is not compatible with or that may detract from the provision of infrastructure.
- (2) **Permitted without consent** Development for any of the following purposes is permitted without development consent on land within Zone SP2 Infrastructure—  
 Nil
- (3) **Permitted with consent** Development for any of the following purposes is permitted only with development consent on land within Zone SP2 Infrastructure—  
 The purpose shown on the [Future Infrastructure Corridor Map](#), including any development that is ordinarily incidental or ancillary to development for that purpose; Roads
- (4) **Prohibited** Development for any of the following purposes is prohibited on land within Zone SP2 Infrastructure—  
 Any development not specified in subsection (2) or (3)
- (5) **Miscellaneous** For the purposes of this section—
  - (a) land is within Zone SP2 Infrastructure if the land is shown on the [Future Infrastructure Corridor Map](#) as being within that zone, and
  - (b) the consent authority must have regard to the objectives for development in that zone when determining a development application in respect of land within the zone, and
  - (c) a reference to a type of building or other thing is a reference to development for the purposes of that type of building or other thing, and

- (d) a reference to a type of building or other thing does not include (despite any definition in this Chapter or the Standard Instrument) a reference to a type of building or other thing referred to separately in the section.

(6) **National parks and other reserved land** Despite subsections (2)–(4), if land within Zone SP2 Infrastructure is land reserved under the [\*National Parks and Wildlife Act 1974\*](#)—

- (a) development for uses authorised under that Act is permitted without consent, and
- (b) no development is permitted with consent, and
- (c) any development not specified in paragraphs (a) or (b) is prohibited.

(7) This section is subject to the other provisions of this Chapter.

#### **4.7 Development in future infrastructure corridor for previously permitted uses of land**

(1) Despite section 4.6, development may be carried out with development consent on land within a future infrastructure corridor, but only if—

- (a) the development is of a kind that could be carried out on the land under an applicable environmental planning instrument immediately before the land was included within a future infrastructure corridor, and
- (b) where the proposed development has an estimated development cost of more than \$200,000—Transport for NSW grants concurrence to the proposed development, and
- (c) the development is consistent with the aims of this Chapter.

(2) Before determining a development application (or an application for modification of a consent) for development to which subsection (1)(b) applies, the consent authority must—

- (a) within 7 days after the application is made, give written notice of the application to Transport for NSW, and
- (b) take into consideration—
  - (i) any response to the notice that is received within 21 days after the notice is given, and
  - (ii) any guidelines issued by the Planning Secretary for the purposes of this section and published in the Gazette.

(3) In deciding whether to grant concurrence to proposed development under this section, Transport for NSW must take the following matters into consideration—

- (a) the need to carry out the proposed development on the land,
- (b) the timing of carrying out the proposed development and the proposed timing for constructing infrastructure in the future infrastructure corridor,
- (c) the likely additional cost of constructing infrastructure in the future infrastructure corridor resulting from the carrying out of the proposed development.

(4) Despite subsection (1)(b), the consent authority may grant consent to development to which that subsection applies without the concurrence of Transport for NSW if 21 days have passed since the consent authority gave notice under subsection (2)(a) and Transport for NSW has not granted or refused to grant concurrence.

#### **4.8 Subdivision of land prohibited**

(1) The subdivision of land within a future infrastructure corridor is prohibited.

(2) Despite subsection (1), a subdivision for the purpose of a realignment of boundaries that does not create or include any additional lot (or part lot) within a future infrastructure corridor is permitted with development consent.

#### 4.9 Excavation in, above, below or adjacent to future infrastructure corridors

- (1) This section applies to development that involves the penetration of ground to a depth of at least 2 metres below ground level (existing) on land—
  - (a) within, below or above a future infrastructure corridor, or
  - (b) within 25 metres (measured horizontally) of a future infrastructure corridor, or
  - (c) within 25 metres (measured horizontally) of the ground directly below a future infrastructure corridor, or
  - (d) within 25 metres (measured horizontally) of the ground directly above an underground future infrastructure corridor.
- (2) Before determining a development application (or an application for modification of a consent) for development to which this section applies, the consent authority must—
  - (a) within 7 days after the application is made, give written notice of the application to Transport for NSW, and
  - (b) take into consideration—
    - (i) any response to the notice that is received within 21 days after the notice is given, and
    - (ii) any guidelines issued by the Planning Secretary for the purposes of this section and published in the Gazette.
- (3) The consent authority must not grant consent to development to which this section applies without the concurrence of Transport for NSW.
- (4) In deciding whether to provide concurrence, Transport for NSW must take into account—
  - (a) the potential effects of the development (whether alone or cumulatively with other development or proposed development) on—
    - (i) the safety or structural integrity of existing or proposed infrastructure in the future infrastructure corridor, and
    - (ii) the safe and effective operation of existing or proposed future infrastructure in the future infrastructure corridor, and
  - (b) what measures are proposed, or could reasonably be taken, to avoid or minimise those potential effects.
- (5) Despite subsection (3), the consent authority may grant consent to development to which this section applies without the concurrence of Transport for NSW if 21 days have passed since the consent authority gave notice under subsection (2)(a) and Transport for NSW has not granted or refused to grant concurrence.

#### 4.10 Acquisition of land zoned under this Chapter

The authority of the State that will be the relevant authority to acquire any land within a future infrastructure corridor, if the land is required to be acquired under Division 3 of Part 2 of the [Land Acquisition \(Just Terms Compensation\) Act 1991](#), is Transport for NSW.

### Chapter 5 Three ports—Port Botany, Port Kembla and Port of Newcastle

#### Part 5.1 Preliminary

##### 5.1 Aims of Chapter

The aims of this Chapter are as follows—

- (a) to provide a consistent planning regime for the development and delivery of infrastructure on land in Port Botany, Port Kembla and the Port of Newcastle,

- (b) to allow the efficient development, re-development and protection of land at Port Botany, Port Kembla and the Port of Newcastle for port purposes,
- (c) to identify certain development within the Lease Area as exempt development or complying development,
- (d) to specify matters to be considered in determining whether to grant consent to development adjacent to development for port purposes,
- (e) to provide for development at Port Botany that does not, by its nature or scale, constitute an actual or potential obstruction or hazard to aircraft,
- (f) to identify certain development as State significant development or State significant infrastructure,
- (g) to ensure that land around the Lease Area is maintained for port-related and industrial uses, including heavy industry on land around Port Kembla.

## 5.2 Definitions

- (1) In this Chapter—

***Additional Permitted Uses Map*** means the [\*State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Three Ports Additional Permitted Uses Map\*](#).

***approved project*** means a transitional Part 3A project within the meaning of Schedule 6A to the Act that is an approved project.

***Australian Dangerous Goods Code*** means the *Australian Code for the Transport of Dangerous Goods by Road and Rail*, 7th edition, approved by the Australian Transport Council.

***capital dredging*** means dredging that is carried out for the purpose of—

- (a) constructing a new navigational channel, or
  - (b) re-opening a discontinued navigational channel, or
  - (c) deepening, widening or extending an existing navigational channel (other than for maintenance purposes),
- for berthing or navigation purposes.

***Channel User Licence Agreement*** means an agreement between Transport for NSW and the Port Operator under which the Port Operator is authorised to use certain channels and berthing boxes.

***combustible liquid*** has the same meaning as in the [\*Work Health and Safety Regulation 2017\*](#).

***Council*** means—

- (a) in relation to land within the City of Botany Bay area—the Council of the City of Botany Bay, or
- (b) in relation to land within the Randwick City area—Randwick City Council, or
- (c) in relation to land within the Wollongong City area—Wollongong City Council, or
- (d) in relation to land within the Newcastle City area—Newcastle City Council.

***dangerous goods*** has the same meaning as it has in the [\*Dangerous Goods \(Road and Rail Transport\) Act 2008\*](#).

***demolition*** includes the dismantling or removal of a building.

***dispensing facility*** means a fuel transfer facility that is intended for the dispensing of liquids from a storage tank to the fuel tank of a vehicle or vessel.

***dredging*** means the removal of material from the sea or harbour bed or the bed of a river.

**environmental management works** means—

- (a) works for the purpose of avoiding, reducing, minimising or managing the environmental effects of development (including effects on water, soil, air, biodiversity, traffic or amenity), and
- (b) environmental protection works.

**estimated development cost** has the same meaning as in the [Environmental Planning and Assessment Regulation 2021](#).

**freight** means any item, goods or produce being transported and includes containers (whether empty or otherwise), gases, livestock, liquids, minerals, plant and equipment, raw materials, vehicles and vessels.

**Height of Buildings Map** means the [State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Three Ports Height of Buildings Map](#).

**heritage item**—see section 5.31(8).

**Heritage Map** means the [State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Three Ports Heritage Map](#).

**Intertrade Industrial Park** means the land identified on the [Intertrade Industrial Park Map](#).

**Intertrade Industrial Park Map** means the [State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Three Ports Intertrade Industrial Park Map](#).

**Land Application Map** means the [State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Three Ports Land Application Map](#).

**Land Zoning Map** means the [State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Three Ports Land Zoning Map](#).

**Lease Area** means the area shown edged in red and identified as “Port Botany Lease Area” or “Port Kembla Lease Area” or Port of Newcastle Lease Area on the [Lease Area Map](#).

**Lease Area Map** means the [State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Three Ports Lease Area Map](#).

**local heritage item** means a heritage item within the meaning of section 5.31 that is not a State heritage item.

**maintenance dredging** means dredging and bed levelling for the purpose of maintaining an existing navigational channel at the depth and width specified for the purpose of maintenance dredging in the Channel User Licence Agreement or any Crown lease that authorises the use of that channel.

**major hazard facility** has the same meaning as in the [Work Health and Safety Regulation 2017](#).

**Mayfield Bulk Liquid Storage Tanks Area** means the area shown edged heavy black on the [Mayfield Bulk Liquid Storage Tanks Map](#).

**Mayfield Bulk Liquid Storage Tanks Map** means the [State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Three Ports Mayfield Bulk Liquid Storage Tanks Map](#).

**navigation and emergency response facilities** means facilities for—

- (a) water traffic control, safe navigation and other safety purposes (such as beacons, navigation towers, radar towers, communication facilities, vessel monitoring facilities, lighthouses, buoys, marine markers, pilot stations, jetties, breakwaters or training walls), and
- (b) emergency response, including rescue stations and emergency communication facilities and jetties.

**navigational channel** includes an access channel, swing basin, berthing box or other navigable area.

**Newcastle LUSS** means the *Port of Newcastle Land Use Safety Study Final Report*, dated 10 October 2017.

**Outer Harbour Map** means the [\*State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Three Ports Outer Harbour Map\*](#).

**Port Botany LUSS** means the *Port Botany Land Use Safety Study Overview Report*, published by Planning NSW in 1996.

**Port Corporation** means the Port Corporation established under the [\*Ports and Maritime Administration Act 1995\*](#).

**port facilities** means facilities on land in the Lease Area, or the Intertrade Industrial Park, used in connection with the carrying of freight and persons by water from one port to another for business or commercial purposes, and includes any of the following—

- (a) facilities for the embarkation or disembarkation of passengers onto or from any vessels, including public ferry wharves,
- (b) facilities for the loading or unloading of freight onto or from vessels and freight receipt, processing, land transport and storage facilities,
- (c) wharves for commercial fishing operations,
- (d) refuelling, launching, berthing, mooring, storage or maintenance facilities for any vessel,
- (e) sea walls or training walls,
- (f) administration and port operations buildings and facilities,
- (g) communication, security and safety facilities,
- (h) utilities and services, road and rail infrastructure, pipelines and car parks.

**Port Operator** means—

- (a) in relation to Botany Bay—the port operator (within the meaning of the [\*Ports and Maritime Administration Act 1995\*](#)) of the port of Botany Bay, and
- (b) in relation to Port Kembla—the port operator (within the meaning of that Act) of the port of Port Kembla, and
- (c) in relation to the Port of Newcastle—the port operator (within the meaning of that Act) of the Port of Newcastle.

**public authority** includes the Port Operator.

**reclamation work** means any work (other than work undertaken in connection with maintenance dredging) that involves—

- (a) using any material (such as sand, soil, silt, gravel, concrete, oyster shells, tyres, timber or rocks) to fill in or reclaim land submerged by water (whether permanently or intermittently), or
- (b) depositing any such material on land submerged by water (whether permanently or intermittently) for the purpose of constructing anything over that land (such as a bridge but not a seawall, groyne or jetty), or
- (c) draining water from land submerged by water (whether permanently or intermittently) for the purpose of its reclamation.

**Referral Area Map** means the [\*State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Three Ports Referral Area Map\*](#).

**State heritage item** means an item of State heritage significance, within the meaning of the [Heritage Act 1977](#), that is the subject of an interim heritage order in force under that Act or listed on the State Heritage Register under that Act.

**the Act** means the [Environmental Planning and Assessment Act 1979](#).

**virgin excavated natural material** has the same meaning as in the [Protection of the Environment Operations Act 1997](#), Schedule 1, clause 50(1).

**Note.**

The Act and the [Interpretation Act 1987](#) contain definitions and other provisions that affect the interpretation and application of this Chapter.

- (2) In this Chapter, a reference to development for the purpose of port facilities, navigation and emergency response facilities or wharf or boating facilities includes a reference to the operation of such a facility and any of the following if carried out in connection with such a facility—
  - (a) construction works,
  - (b) routine maintenance works,
  - (c) environmental management works.
- (3) Words and expressions used in this Chapter have the same meaning as they have in the standard instrument set out at the end of the [Standard Instrument \(Local Environmental Plans\) Order 2006](#), unless otherwise defined in this Chapter.
- (4) Notes included in this Chapter do not form part of this Chapter.

### 5.3 Land to which Chapter applies

- (1) This Chapter applies to the land identified on the [Land Application Map](#).
- (2) (Repealed)

### 5.4 Relationship with other environmental planning instruments

- (1) Subject to this section, in the event of an inconsistency between this Chapter and another environmental planning instrument, whether made before or after the commencement of this Chapter, this Chapter prevails to the extent of the inconsistency.
- (2) If this Chapter and [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#) specify the same development as either exempt or complying development, [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#) does not apply to that development.
- (2A) The following provisions of [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#) do not apply to the Intertrade Industrial Park—
  - (a) Part 2, Division 1, Subdivision 10A,
  - (b) Parts 5A and 6.
- (3) Except as provided by subsections (2) and (2A), this Chapter does not restrict or prohibit the carrying out of any development—
  - (a) on any land to which this Chapter applies, that is permitted to be carried out with or without development consent, or that is exempt or complying development, under Chapter 2, or
  - (b) on any land to which this Chapter applies that is not within a Lease Area, that is exempt or complying development under any other environmental planning instrument.

## 5.5 Same development

- (1) For the purposes of this Chapter, 2 or more instruments are taken to specify the same development if they specify that development for the same purpose may be carried out on the same land, even though there may be some differences in the specifications or development standards for that development.

**Note.**

For example, "deck" is a development, even if the size of the deck or its location varies in different instruments.

- (2) The Planning Secretary may certify in writing, for the purpose of this Chapter, that 2 or more instruments do, or do not, specify the same development and any such certificate has effect according to its tenor.
- (3) Notice of any certification by the Planning Secretary under subsection (2) must be published in the Gazette.

## 5.6 Consent authority

The consent authority is—

- (a) for development on the following land—the Minister—
  - (i) land within the Lease Area,
  - (ii) land that is unzoned,
  - (iii) land within the Intertrade Industrial Park, and
- (b) otherwise—the Council.

## 5.7 Maps

- (1) A reference in this Chapter to a named map adopted by this Chapter is a reference to a map by that name—
  - (a) approved by the Minister when the map is adopted, and
  - (b) as amended or replaced from time to time by maps declared by environmental planning instruments to amend or replace that map, and approved by the Minister when the instruments are made.
- (2) Any 2 or more named maps may be combined into a single map. In that case, a reference in this Chapter to any such named map is a reference to the relevant part or aspect of the single map.
- (3) Any such maps are to be kept and made available for public access in accordance with arrangements approved by the Minister.
- (4) For the purposes of this Chapter, a map may be in, and may be kept and made available in, electronic or paper form, or both.

**Note.**

The maps adopted by this Chapter are to be made available on the official NSW legislation website in connection with this Chapter.

## 5.8 Suspension of covenants, agreements and instruments

- (1) For the purpose of enabling development on land in any zone to be carried out in accordance with this Chapter or with a development consent granted under the Act, any agreement, covenant or other similar instrument that restricts the carrying out of that development does not apply to the extent necessary to serve that purpose.
- (2) This section does not apply—
  - (a) to a covenant imposed by the Council or that the Council requires to be imposed, or
  - (b) to any relevant instrument within the meaning of section 13.4 of the [Crown Land Management Act 2016](#), or
  - (c) to any conservation agreement within the meaning of the [National Parks and Wildlife Act 1974](#), or

- (d) to any Trust agreement within the meaning of the [Nature Conservation Trust Act 2001](#), or
- (e) to any property vegetation plan within the meaning of the [Native Vegetation Act 2003](#), or
- (f) to any biobanking agreement within the meaning of Part 7A of the [Threatened Species Conservation Act 1995](#), or
- (g) to any planning agreement within the meaning of Division 7.1 of the Act.

(3) This section does not affect the rights or interests of any public authority under any registered instrument.

(4) Under section 28 of the Act, the Governor, before the making of this section, approved of subsections (1)–(3).

(5) This section does not apply to land within the Lease Area.

**Note.**

This section does not apply to unzoned land.

## 5.9 Savings

- (1) This Chapter does not apply to development that, immediately before the commencement of the application of this Chapter in relation to land to which this Chapter applies, was an activity to which Part 5 of the Act applied if—
  - (a) before that commencement, the activity had been considered under Part 5 of the Act and any approvals or requirements that were required under that Part before the activity could be carried out had been obtained or complied with, and
  - (b) the development is substantially commenced not later than 2 years after that commencement.
- (2) Part 20 of Schedule 3 and Schedule 7 to [State Environmental Planning Policy \(Major Development\) 2005](#), as in force immediately before that commencement, continue to apply to development specified in subsection (1).
- (3) A development application made, but not finally determined, before the commencement of [State Environmental Planning Policy Amendment \(Exceptions to Development Standards\) 2023](#) must be determined as if that policy had not commenced.

## Part 5.2 Permitted or prohibited development

### 5.10 Land use zones

The land use zones under this Chapter are as follows—

**Industrial Zones**

IN1 General Industrial

IN2 Light Industrial

IN3 Heavy Industrial

**Special Purpose Zones**

SP1 Special Activities

**Recreation Zones**

RE1 Public Recreation

### 5.11 Zoning of land to which Chapter applies

For the purposes of this Chapter, land is within the zones shown on the [Land Zoning Map](#).

### 5.12 Zone objectives and Land Use Table

- (1) The Land Use Table at the end of this Part specifies for each zone—
  - (a) the objectives for development, and
  - (b) development that may be carried out without development consent, and
  - (c) development that may be carried out only with development consent, and
  - (d) development that is prohibited.
- (2) The consent authority must have regard to the objectives for development in a zone when determining a development application in respect of land within the zone.
- (3) In the Land Use Table at the end of this Part—
  - (a) a reference to a type of building or other thing is a reference to development for the purposes of that type of building or other thing, and
  - (b) a reference to a type of building or other thing does not include (despite any definition in this Chapter) a reference to a type of building or other thing referred to separately in the Land Use Table in relation to the same zone.
- (4) This section is subject to the other provisions of this Chapter.

#### Notes.

**1** Schedule 10 sets out exempt development (which is generally exempt from both Parts 4 and 5 of the Act). Development in the land use table that may be carried out without consent is nevertheless subject to the environmental assessment and approval requirements of Part 5 of the Act.

**2** Schedule 11 sets out complying development (for which a complying development certificate may be issued as an alternative to obtaining development consent).

### 5.13 Unzoned land

- (1) Development may be carried out on unzoned land only with development consent.
- (2) Before granting development consent, the consent authority—
  - (a) must consider whether the development will impact on adjoining zoned land and, if so, consider the objectives for development in the zones of the adjoining land, and
  - (b) must be satisfied that the development is appropriate and is compatible with permissible land uses in any such adjoining land.
- (3) Despite subsection (1), development for the following purposes may be carried out by or on behalf of a public authority on unzoned land without development consent—
  - (a) maintenance dredging,
  - (b) capital dredging,
  - (c) environmental management works associated with port facilities or wharf and boating facilities,
  - (d) navigation and emergency response facilities,
  - (e) port facilities, if the development is directly related to an existing port facility.

### 5.14 Subdivision—consent requirements

- (1) Any land to which this Chapter applies may be subdivided, but only with development consent.

#### Note.

Subdivision within the Lease Area by the Port Operator or the Port Corporation is exempt development.

- (2) Development consent must not be granted for the subdivision of land that comprises, or on which there is, a State heritage item.
- (3) Before granting development consent for the subdivision of relevant land, the consent authority must consider the following—
  - (a) whether the subdivision is likely to have an adverse impact on the operations of the port concerned,
  - (b) whether the subdivision will create or increase land use conflict in the area,
  - (c) whether the subdivision is appropriate considering—
    - (i) the natural and physical constraints affecting the land, and
    - (ii) the existing uses and approved uses on land adjacent to the subdivision,
  - (d) whether the subdivision is likely to have a significant adverse impact on facilitating land uses the consent authority considers are suitable and appropriate for the land,
  - (e) the impact of the subdivision on land used for industrial purposes,
  - (f) appropriate measures proposed to avoid, minimise or mitigate the impacts of the subdivision.

- (4) In this section—

**relevant land** means the following land that is not within a Lease Area—

- (a) land at Port Botany in Zone IN1 General Industrial,
- (b) land at Port Kembla in Zone IN3 Heavy Industrial or Zone SP1 Special Activities,
- (c) land at the Port of Newcastle in Zone SP1 Special Activities.

#### 5.15 Demolition requires development consent

The demolition of a building or work may be carried out only with development consent.

**Note.**

If this Chapter identifies the demolition of a building or work as exempt development, the demolition may be carried out without development consent.

#### 5.16 Development by public authorities (including Port Operator)

- (1) Development may be carried out for the following purposes without development consent on land within Zone IN1 General Industrial, Zone IN3 Heavy Industrial, Zone SP1 Special Activities or Zone RE1 Public Recreation, but only if it is development carried out by or on behalf of a public authority—
  - (a) navigation and emergency response facilities,
  - (b) wharf or boating facilities, if the development has an estimated development cost of more than \$100 million,
  - (c) capital dredging,
  - (d) maintenance dredging,
  - (e) port facilities, if the development has an estimated development cost of more than \$100 million.
- (2) Despite any other provision of this Chapter, development for the purposes of wharf or boating facilities may be carried out on land reserved under the [National Parks and Wildlife Act 1974](#) only if the development is authorised by or under that Act.

- (3) Development may be carried out for the following purposes without development consent on land within the Lease Area, but only if it is development carried out by or on behalf of a public authority—
  - (a) environmental facilities,
  - (b) environmental protection works,
  - (c) community facilities.
- (4) Development may be carried out with development consent on land within Zone IN1 General Industrial, Zone IN3 Heavy Industrial, Zone SP1 Special Activities or Zone RE1 Public Recreation for the purposes of port facilities, or wharf or boating facilities, having an estimated development cost of \$100 million or less, but only if it is development carried out by or on behalf of a public authority.
- (5) This section does not apply to the Intertrade Industrial Park.

**Notes.**

- 1 Development that is permitted to be carried out with or without consent in land within Zone IN1 General Industrial, Zone IN3 Heavy Industrial, Zone SP1 Special Activities or Zone RE1 Public Recreation is also specified in the Land Use Table set out in this Chapter.
- 2 Development by a public authority on land within the Lease Area for the purposes of port facilities or wharf or boating facilities, having an estimated development cost of more than \$100 million, and development for the purposes of capital dredging (other than capital dredging where the volume of material excavated does not exceed 100,000 cubic metres) or that involves reclamation work is declared to be State significant infrastructure under section 5.28 of this Chapter.
- 3 Other permits or licences may be required under other Acts for development in the Lease Area.

#### **5.17 Port Operator to be notified of certain development applications**

- (1) This section applies to development on land identified on the [Referral Area Map](#).
- (2) Before determining a development application for development to which this section applies, the consent authority must give written notice of the development to the Port Operator.
- (3) Notice must be given no later than 7 days after the development application is made.
- (4) In determining a development application for the development, the consent authority must consider the following—
  - (a) submissions made to the consent authority by the Port Operator within 21 days after notice is given,
  - (b) the effect of the development on—
    - (i) the practicability, cost, structural integrity and safety of future port expansion or dredging works within navigation channels, and
    - (ii) ship movements to, from or within the port to which the development relates.

#### **5.18 Prohibition on development for the purposes of container depots on certain land in Zone IN1**

- (1) Despite any other provision of this Chapter, development consent must not be granted for development for the purpose of a container depot on land within Zone IN1 General Industrial that is shown as a Container Depots Prohibition Area on the [Land Zoning Map](#).
- (2) In this section, a **container depot** means a building or place that is used for—
  - (a) the unloading or unpacking (or both) of shipping containers for delivery to individual consignees, or
  - (b) the consolidation of goods from different consignors into full shipping container loads for despatch, or
  - (c) the repair, refitting or storage of shipping containers.

**Note.**

This section does not prevent the granting of consent to development that is permitted with consent where the use of shipping containers is ancillary to the purposes for which the consent was granted.

### **5.19 Business premises and office premises in Zone IN1**

Development consent must not be granted for development for the purposes of business premises or office premises on land within Zone IN1 General Industrial unless the consent authority is satisfied that the development is associated with, and ancillary to, port facilities or industrial uses of land.

#### **5.19A Office premises in Zone IN2**

Development consent must not be granted for development for the purposes of office premises on land within Zone IN2 Light Industrial unless the consent authority is satisfied the development is associated with, and ancillary to, port facilities or industrial uses of land.

#### **5.19B Food and drink premises in Zone SP1**

Development consent must not be granted for development for the purposes of food and drink premises on land in Zone SP1 Special Activities if the gross floor area of the food and drink premises is more than 300m<sup>2</sup>.

### **5.20 Earthworks**

- (1) The objective of this section is to ensure that earthworks for which development consent is required will not have a detrimental impact on environmental functions and processes, neighbouring uses, cultural or heritage items or features of the surrounding land.
- (2) Development consent is required for earthworks unless—
  - (a) the earthworks are exempt development under this Chapter or another applicable environmental planning instrument, or
  - (b) the earthworks are ancillary to development that is permitted without consent under this Chapter or to development for which development consent has been given.
- (3) Before granting consent to a development application for development for the purposes of earthworks (or for development involving ancillary earthworks), the consent authority must consider the following matters—
  - (a) the likely disruption of, or any detrimental effect on, drainage patterns and soil stability in the locality of the development,
  - (b) the effect of the development on the likely future use or redevelopment of the land,
  - (c) the classification of the soil to be excavated,
  - (d) the effect of the development on the existing and likely amenity of adjoining properties,
  - (e) the destination of any excavated material,
  - (f) the likelihood of disturbing relics,
  - (g) the proximity to, and potential for adverse impacts on, any waterway, drinking water catchment or environmentally sensitive area,
  - (h) any appropriate measures proposed to avoid, minimise or mitigate the impacts of the development,
  - (i) the potential impact on groundwater and groundwater dependent ecosystems,
  - (j) whether the development is likely to result in water pollution or land pollution,
  - (k) whether the development can be carried out in a way that will minimise wind-blown or traffic-generated dust emissions.

- (4) The consent authority must not grant consent to a development application under this section unless the consent authority is satisfied that fill brought to the site—
- (a) contains only virgin excavated natural material, or
  - (b) is the subject of an excavated natural material exemption in force under the [Protection of the Environment Operations \(Waste\) Regulation 2014](#), Part 9.

- (5) In this section—

*land pollution* and *water pollution* have the same meaning as in the [Protection of the Environment Operations Act 1997](#).

**Note.**

The [National Parks and Wildlife Act 1974](#), particularly section 86, deals with harming Aboriginal objects.

### 5.21 Additional permitted uses

- (1) Despite any other provision of this Chapter, development for the purposes of business premises or office premises may be carried out with development consent on land shown hatched on the [Additional Permitted Uses Map](#) or on land within a Lease Area.
- (2) Despite any other provision of this Chapter, development for the purposes of vehicle sales or hire premises may be carried out with development consent on land within a Lease Area.
- (3) Despite any other provision of this Chapter, development for the following purposes may be carried out with development consent—
- (a) (Repealed)
  - (b) on land marked “B” on the [Additional Permitted Uses Map](#)—car parks,
  - (c)–(f) (Repealed)
  - (g) on land marked “G” on the [Additional Permitted Uses Map](#)—community facilities or office premises.
- (4) (Repealed)

### 5.22 Exceptions to development standards

- (1) The objectives of this section are as follows—
- (a) to provide an appropriate degree of flexibility in applying certain development standards to particular development,
  - (b) to achieve better outcomes for and from development by allowing flexibility in particular circumstances.
- (2) Development consent may, subject to this section, be granted for development even though the development would contravene a development standard imposed by this or any other environmental planning instrument. However, this section does not apply to a development standard that is expressly excluded from the operation of this section.
- (3) Development consent must not be granted to development that contravenes a development standard unless the consent authority is satisfied the applicant for development consent has demonstrated that—
- (a) compliance with the development standard is unreasonable or unnecessary in the circumstances, and
  - (b) there are sufficient environmental planning grounds to justify the contravention of the development standard.

**Note—**

The [Environmental Planning and Assessment Regulation 2021](#) requires the development application to be accompanied by a document setting out the grounds on which the applicant seeks to demonstrate the matters in paragraphs (a) and (b).

- (4) The consent authority must keep a record of its assessment carried out under subsection (3).
- (5), (6) (Repealed)
- (7) This section does not allow development consent to be granted for development that would contravene any of the following—
  - (a) a development standard for complying development,
  - (b) a development standard that arises, under the regulations under the Act, in connection with a commitment set out in a BASIX certificate for a building to which [State Environmental Planning Policy \(Building Sustainability Index: BASIX\) 2004](#) applies or for the land on which such a building is situated.

### 5.23 Conversion of fire alarms

- (1) This section applies to a fire alarm system that can be monitored by Fire and Rescue NSW or by a private service provider.
- (2) The following development may be carried out, but only with development consent—
  - (a) converting a fire alarm system from connection with the alarm monitoring system of Fire and Rescue NSW to connection with the alarm monitoring system of a private service provider,
  - (b) converting a fire alarm system from connection with the alarm monitoring system of a private service provider to connection with the alarm monitoring system of another private service provider,
  - (c) converting a fire alarm system from connection with the alarm monitoring system of a private service provider to connection with a different alarm monitoring system of the same private service provider.
- (3) Development to which subsection (2) applies is complying development if it consists only of—
  - (a) internal alterations to a building, or
  - (b) internal alterations to a building together with the mounting of an antenna, and any support structure, on an external wall or roof of a building so as to occupy a space of not more than 450mm × 100mm × 100mm.
- (4) A complying development certificate for any such complying development is subject to a condition that any building work may only be carried out between 7.00 am and 6.00 pm on Monday to Friday and between 7.00 am and 5.00 pm on Saturday, and must not be carried out on a Sunday or a public holiday.
- (5) In this section—

*private service provider* means a person or body that has entered into an agreement that is in force with Fire and Rescue NSW to monitor fire alarm systems.

### 5.23A Canal estate development prohibited

Canal estate development is prohibited on land to which this Chapter applies.

## Land Use Table

### Zone IN1 General Industrial

#### 1 Objectives of zone

- To provide a wide range of industrial and warehouse land uses.
- To encourage employment opportunities.
- To minimise any adverse effect of industry on other land uses.

- To facilitate and encourage port related industries that will contribute to the growth and diversification of trade through the port.
- To enable development for the purposes of business premises or office premises associated with, and ancillary to, port facilities or industries.
- To encourage ecologically sustainable development.

## **2 Permitted without consent**

Environmental protection works

## **3 Permitted with consent**

Boat building and repair facilities; Business premises; Depots; Food and drink premises; Freight transport facilities; General industries; Jetties; Light industries (other than artisan food and drink industries); Neighbourhood shops; Office premises; Roads; Signage; Truck depots; Vehicle body repair workshops; Vehicle repair stations; Warehouse or distribution centres; Waste or resource management facilities

## **4 Prohibited**

Any development not specified in item 2 or 3

### **Zone IN2 Light Industrial**

#### **1 Objectives of zone**

- To provide a range of business and light industrial land uses.
- To encourage employment opportunities.
- To minimise any adverse effect of industry on other land uses.
- To support and protect industrial land for industrial land uses.
- To enable development for the purposes of office premises associated with, and ancillary to, port facilities or industries.
- To enable other land uses that provide facilities or services to meet the day-to-day needs of workers in the area.
- To minimise conflict between port-related land uses and land uses within adjoining zones.

#### **2 Permitted without consent**

Environmental protection works

#### **3 Permitted with consent**

Boat building and repair facilities; Business premises; Food and drink premises; Garden centres; General industries; Hardware and building supplies; Industrial training facilities; Landscaping material supplies; Light industries; Neighbourhood shops; Office premises; Places of public worship; Roads; Signage; Vehicle body repair workshops; Vehicle repair stations

#### **4 Prohibited**

Artisan food and drink industries; Any other development not specified in item 2 or 3

### **Zone IN3 Heavy Industrial**

## **1 Objectives of zone**

- To provide suitable areas for those industries that need to be separated from other land uses.
- To encourage employment opportunities.
- To minimise any adverse effect of heavy industry on other land uses.
- To provide transport infrastructure and intermodal facilities.
- To allow a diversity of activities that will not significantly detract from the operation of existing or proposed industries.

## **2 Permitted without consent**

Environmental protection works

## **3 Permitted with consent**

Depots; Food and drink premises; Freight transport facilities; Heavy industries; Port facilities; Roads; Transport depots; Warehouse or distribution centres; Waste or resource management facilities

## **4 Prohibited**

Any development not specified in item 2 or 3

### **Zone SP1 Special Activities**

## **1 Objectives of zone**

- To provide for special land uses that are not provided for in other zones.
- To provide for sites with special natural characteristics that are not provided for in other zones.
- To facilitate development that is in keeping with the special characteristics of the site or its existing or intended special use, and that minimises any adverse impacts on surrounding land.
- To maximise the use of waterfront areas to accommodate port facilities and industrial, maritime industrial, freight and bulk storage premises that benefit from being located close to port facilities.
- To enable the efficient movement and operation of commercial shipping and to provide for the efficient handling and distribution of freight from port areas through the provision of transport infrastructure.
- To provide for port related facilities and development that support the operations of Port Botany, Port Kembla and the Port of Newcastle.
- To facilitate development that by its nature or scale requires separation from residential areas and other sensitive land uses.
- To encourage employment opportunities.

## **2 Permitted without consent**

Jetties; Moorings; Roads

## **3 Permitted with consent**

Capital dredging; Environmental facilities; Environmental protection works; Food and drink premises; Maintenance dredging; Navigation and emergency response facilities; Neighbourhood shops; Port

facilities; Wharf or boating facilities; Any other development not specified in item 2 or 4

#### 4 Prohibited

Agriculture; Air transport facilities; Airstrips; Amusement centres; Animal boarding or training establishments; Artisan food and drink industries; Camping grounds; Caravan parks; Cemeteries; Centre-based child care facilities; Commercial premises; Community facilities; Correctional centres; Crematoria; Early education and care facilities; Eco-tourist facilities; Educational establishments; Entertainment facilities; Exhibition homes; Exhibition villages; Extractive industries; Farm buildings; Forestry; Function centres; Funeral homes; Health services facilities; Highway service centres; Home businesses; Home occupations; Home occupations (sex services); Industrial retail outlets; Mortuaries; Open cut mining; Places of public worship; Recreation facilities (indoor); Recreation facilities (major); Recreation facilities (outdoor); Registered clubs; Residential accommodation; Respite day care centres; Restricted premises; Rural industries; Sex services premises; Tourist and visitor accommodation; Veterinary hospitals; Wholesale supplies

### Zone RE1 Public Recreation

#### 1 Objectives of zone

- To enable land to be used for public open space or recreational purposes.
- To provide a range of recreational settings and activities and compatible land uses.
- To protect and enhance the natural environment for recreational purposes.
- To protect, manage and restore the Botany Bay shoreline for ecological purposes.

#### 2 Permitted without consent

Environmental protection works

#### 3 Permitted with consent

Boat launching ramps; Car parks; Community facilities; Environmental facilities; Kiosks; Recreation areas; Roads

#### 4 Prohibited

Any development not specified in item 2 or 3

## Part 5.3 Exempt and complying development

### 5.24 Exempt development

#### Note—

Under the Act, section 1.6, the carrying out of exempt development does not require—

- development consent under the Act, Part 4, or
- an environmental impact assessment under the Act, Division 5.1, or
- State significant infrastructure approval under the Act, Division 5.2, or
- a certificate under the Act, Part 6.

Exempt development is development declared to be exempt development by an environmental planning instrument because of its minor impact.

- (1) The objective of this section is to declare development of minor impact as exempt development.

- (2) Development specified in Schedule 10 on land within the Lease Area that meets the standards for the development contained in that Schedule and that complies with the requirements of this Part is exempt development.
- (3) To be exempt development, the development—
- (a) must meet the relevant deemed-to-satisfy provisions of the *Building Code of Australia* or, if there are no such relevant provisions, must be structurally adequate, and
  - (b) must not, if it relates to an existing building, cause the building to contravene the *Building Code of Australia* or compromise the fire safety of the building or affect access to any fire exit, and
  - (c) must not be development of a kind specified as designated development (other than development specified in clause 28 or 30 of Schedule 3 to the [Environmental Planning and Assessment Regulation 2000](#)), and
  - (d) if it is likely to affect a State heritage item or a heritage item or heritage conservation area specified in an environmental planning instrument, must involve no more than minimal impact on the heritage significance of the item or area, and
  - (e) must not be a potentially hazardous industry or a potentially offensive industry within the meaning of [State Environmental Planning Policy \(Resilience and Hazards\) 2021](#), Chapter 3, and
  - (f) if it is development on land containing a containment cell, must not be development that is likely to cause the cell to be breached or otherwise damaged or to reduce the effectiveness of the cell, and
  - (g) must not be carried out on land that is significantly contaminated land within the meaning of the [Contaminated Land Management Act 1997](#), and
  - (h) must not be carried out on land in an area of outstanding biodiversity value within the meaning of the [Biodiversity Conservation Act 2016](#).
- (4) Development that relates to an existing building that is classified under the *Building Code of Australia* as class 1b or class 2–9 is exempt development only if—
- (a) the building has a current fire safety certificate or fire safety statement, or
  - (b) no fire safety measures are currently implemented, required or proposed for the building.
- (5) To be exempt development, the development must be installed in accordance with the manufacturer's specifications, if applicable.
- (6) A heading to an item in Schedule 10 is part of that Schedule.

### 5.25 Complying development

- (1) The objective of this section is to identify development as complying development.
- (2) Development specified in Part 1 of Schedule 11 on land within the Lease Area that is carried out in compliance with—
- (a) the development standards specified in relation to that development, and
  - (b) the requirements of this Part,
- is complying development.
- (3) To be complying development, the development must—
- (a) be permissible, with development consent, in the zone in which it is carried out, and
  - (b) meet the relevant provisions of the *Building Code of Australia*, and

- (c) before the complying development certificate is issued, have written consent from the relevant roads authority, if required by the [Roads Act 1993](#)—
    - (i) for each opening of a public road required by the development, and
    - (ii) to operate or store machinery, materials or waste required by the development on a road or footpath reserve, and
  - (d) have an approval, if required by the [Local Government Act 1993](#), from the Council for an on-site effluent disposal system if the development is undertaken on unsewered land, and
  - (e) not be a potentially hazardous industry or a potentially offensive industry within the meaning of [State Environmental Planning Policy \(Resilience and Hazards\) 2021](#), Chapter 3, and
  - (f) if it is likely to affect a State heritage item or a heritage item or heritage conservation area specified in an environmental planning instrument, involve no more than minimal impact on the heritage significance of the item or area, and
  - (g) not be carried out on land that is significantly contaminated land within the meaning of the [Contaminated Land Management Act 1997](#).
- (3A) In Schedule 11, a reference to prepare is taken to include update in relation to a requirement to prepare the following—
- (a) an emergency plan,
  - (b) a fire safety study,
  - (c) a hazard and operability study,
  - (d) a hazard analysis,
  - (e) a safety management system.
- (4) Subsection (3)(e) does not apply to development specified in Schedule 11, sections 11–13AC.
- (5) A complying development certificate for development specified in Part 1 of Schedule 11 is subject to the conditions (if any) set out or referred to in Part 2 of that Schedule.
- (6) A heading to an item in Schedule 11 is part of that Schedule.
- (7) (Repealed)

#### **5.26 Additional exempt and complying development**

- (1) The Port Operator may propose to the Minister that additional categories of development be specified as exempt development or complying development under this Chapter.
- (2) For the purpose of considering any such amendment, the Minister may require the Planning Secretary to consider, and to report to the Minister on, any such proposal.

### **Part 5.4 State significant development and State significant infrastructure**

#### **5.27 State significant development**

- (1) Development is declared to be State significant development for the purposes of the Act if—
  - (a) it is carried out on land within the Lease Area or on unzoned land under this Chapter, and
  - (b) it is, by operation of an environmental planning instrument, not permissible without development consent under Part 4 of the Act, and

- (c) it has an estimated development cost of more than \$100 million or it is designated development (other than development specified in clause 28(c) or 30 (shipping facilities) of Schedule 3 to the [Environmental Planning and Assessment Regulation 2000](#)).
- (2) [State Environmental Planning Policy \(State and Regional Development\) 2011](#) applies to development declared by this Chapter to be State significant development as if the declaration was made under [State Environmental Planning Policy \(State and Regional Development\) 2011](#).
- (3) Despite subclause (2), clause 8(1) of [State Environmental Planning Policy \(State and Regional Development\) 2011](#) does not apply to development carried out on land within the Lease Area or on land that is unzoned land under this Chapter.
- (4) Clause 12 of [State Environmental Planning Policy \(State and Regional Development\) 2011](#) applies to development declared by this section to be State significant development in the same way it applies to development specified in Schedule 1 or 2 to [State Environmental Planning Policy \(State and Regional Development\) 2011](#).

## 5.28 State significant infrastructure

- (1) Development is declared, pursuant to section 5.12 (2) of the Act, to be State significant infrastructure for the purposes of the Act if—
  - (a) it is carried out on land within the Lease Area or on unzoned land under this Chapter, and
  - (b) the development on that land is, by the operation of a State environmental planning policy, permissible without development consent under Part 4 of the Act, and
  - (c) the development is for the purposes of port facilities or wharf or boating facilities carried out by or on behalf of a public authority, being development having an estimated development cost of more than \$100 million, or for the purposes of capital dredging (other than capital dredging where the volume of material excavated does not exceed 100,000 cubic metres) or development that involves reclamation work.
- (2) [State Environmental Planning Policy \(State and Regional Development\) 2011](#) applies to development declared by this Chapter to be State significant infrastructure as if the declaration was made under [State Environmental Planning Policy \(State and Regional Development\) 2011](#).
- (3) Despite subsection (2), clause 14(1) of [State Environmental Planning Policy \(State and Regional Development\) 2011](#) does not apply to development specified in clause 2 of Schedule 3 to that Policy if the development is carried out on land within the Lease Area or on land that is unzoned land under this Chapter.
- (4) Clause 19 of [State Environmental Planning Policy \(State and Regional Development\) 2011](#) applies to development declared by this section to be State significant infrastructure in the same way it applies to development specified in Schedule 3, 4 or 5 to [State Environmental Planning Policy \(State and Regional Development\) 2011](#).
- (5) This section does not apply to development specified in clause 3 of Schedule 3 to [State Environmental Planning Policy \(State and Regional Development\) 2011](#).

## Part 5.5 Miscellaneous

### 5.29 Preservation of trees or vegetation

- (1) The objective of this section is to preserve the amenity of the area, including biodiversity values, through the preservation of trees and other vegetation.
- (2) This section applies to species or kinds of trees or other vegetation on land to which this Chapter applies (other than the Lease Area) that are prescribed for the purposes of this section by a development control plan made by the Council of the area in which they are situated or by the Planning Secretary.

**Note.**

A development control plan may prescribe the trees or other vegetation to which this section applies by reference to species, size, location or other manner.

- (3) A person must not cut down, top, remove, injure or wilfully destroy any tree or other vegetation to which any such development control plan applies without the authority conferred by—
  - (a) development consent, or
  - (b) a permit or an approval granted by the Council of the area in which the tree or vegetation is situated.
- (4) The refusal by the Council to grant a permit or an approval to a person who has duly applied for the grant of the permit or approval is taken for the purposes of the Act to be a refusal by the Council to grant consent for the carrying out of the activity for which a permit was sought.
- (5) This section does not apply to a tree or other vegetation that the Council of the area in which the tree or vegetation is situated is satisfied is dying or dead and is not required as the habitat of native fauna.
- (6) This section does not apply to a tree or other vegetation that the Council of the area in which the tree or vegetation is situated is satisfied is a risk to human life or property.
- (7) A permit or approval must not allow cutting down, topping, pruning, removal, injuring or destruction of a tree or other vegetation—
  - (a) that is or forms part of a heritage item, or
  - (b) that is or forms part of an Aboriginal object or that is within an Aboriginal place of heritage significance, unless the Council is satisfied that the proposed activity—
  - (c) is of a minor nature or is for the maintenance of the heritage item, Aboriginal object or Aboriginal place of heritage significance, and
  - (d) would not adversely affect the heritage significance of the heritage item, Aboriginal object or Aboriginal place of heritage significance.

**Note.**

As a consequence of this subsection, the activities concerned will require development consent. The heritage provisions of section 5.31 will be applicable to any such consent.

- (8) This section does not apply to or in respect of—
  - (a) the clearing of native vegetation—
    - (i) that is authorised by a development consent or property vegetation plan under the [Native Vegetation Act 2003](#), or
    - (ii) that is otherwise permitted under Division 2 or 3 of Part 3 of that Act, or
  - (b) the clearing of vegetation on State protected land (within the meaning of clause 4 of Schedule 3 to the [Native Vegetation Act 2003](#)) that is authorised by a development consent under the provisions of the [Native Vegetation Conservation Act 1997](#) as continued in force by that clause, or
  - (c) trees or other vegetation within a State forest, or land reserved from sale as a timber or forest reserve under the [Forestry Act 1916](#), or
  - (d) action required or authorised to be done by or under the [Electricity Supply Act 1995](#), the [Roads Act 1993](#) or the [Surveying and Spatial Information Act 2002](#), or
  - (e) plants declared to be noxious weeds under the [Noxious Weeds Act 1993](#), or
  - (f) plants declared to be marine vegetation under the [Fisheries Management Act 1994](#).

**Note.**

Permissibility may be a matter that is determined by or under any of these Acts.

**5.30 Other trees or vegetation**

- (1) This section applies to any tree or other vegetation on land to which this Chapter applies that—
  - (a) is not of a species or kind prescribed for the purposes of section 5.29 by a development control plan made by the Council of the area in which the tree or vegetation is situated or by the Planning Secretary, or
  - (b) is situated within the Lease Area.
- (2) The cutting down, topping, pruning, removal, injuring or destruction of any tree or other vegetation to which this section applies is permitted without development consent.

**5.31 Heritage conservation**

- (1) **Objectives** The objectives of this section are as follows—
  - (a) to conserve the heritage significance of heritage items and heritage conservation areas, including associated fabric, settings and views,
  - (b) to conserve archaeological sites,
  - (c) to conserve Aboriginal objects and Aboriginal places of heritage significance.
- (2) **Requirement for consent** Development consent is required for any of the following—
  - (a) demolishing or moving a heritage item,
  - (b) altering a heritage item that is a building by making structural changes to its interior,
  - (c) erecting a building on land on which a heritage item is located.
- (3) **When consent not required** However, development consent under this section is not required if—
  - (a) the applicant has notified the consent authority of the proposed development and the consent authority has advised the applicant in writing before any work is carried out that it is satisfied that the proposed development—
    - (i) is of a minor nature or is for the maintenance of the heritage item, and
    - (ii) would not adversely affect the heritage significance of the heritage item, or
  - (b) the development is limited to the removal of a tree or other vegetation that the Council is satisfied is a risk to human life or property, or
  - (c) the development is making changes to the exterior of a heritage item, including in the case of a building making structural changes to the detail, fabric, finish or appearance of the building, or
  - (d) the development is exempt development.
- (4) **Effect of proposed development on heritage significance** The consent authority must, before granting consent under this section in respect of a heritage item, consider the effect of the proposed development on the heritage significance of the item concerned. This subsection applies regardless of whether a heritage management document is prepared under subsection (4) or a heritage conservation management plan is submitted under subsection (5).
- (5) **Heritage assessment** The consent authority may, before granting consent to any development—
  - (a) on land on which a heritage item is located, or

(b) on land that is within the vicinity of land referred to in paragraph (a),

require a heritage management document to be prepared that assesses the extent to which the carrying out of the proposed development would affect the heritage significance of the heritage item.

(6) **Heritage conservation management plans** The consent authority may require, after considering the heritage significance of a heritage item and the extent of change proposed to it, the submission of a heritage conservation management plan before granting consent under this section.

(7) **Demolition of nominated State heritage items** The consent authority must, before granting consent under this section for the demolition of a nominated State heritage item—

(a) notify the Heritage Council about the application, and

(b) take into consideration any response received from the Heritage Council within 28 days after the notice is sent.

(8) **Conservation incentives** The consent authority may grant consent to development for any purpose of a building that is a heritage item or of the land on which such a building is erected, even though development for that purpose would otherwise not be allowed by this Chapter, if the consent authority is satisfied that—

(a) the conservation of the heritage item is facilitated by the granting of consent, and

(b) the proposed development is in accordance with a heritage management document that has been approved by the consent authority, and

(c) the consent to the proposed development would require that all necessary conservation work identified in the heritage management document is carried out, and

(d) the proposed development would not adversely affect the heritage significance of the heritage item, including its setting, and

(e) the proposed development would not have any significant adverse effect on the amenity of the surrounding area, and

(f) the proposed development would not be carried out in the Intertrade Industrial Park.

(9) In this section—

**heritage item** means a building, work, tree or place listed in the Table to this section.

## Heritage items

| Suburb      | Item name                                               | Address                                 | Property description |
|-------------|---------------------------------------------------------|-----------------------------------------|----------------------|
| Banksmeadow | Main Administration Building—"Orica" and Mature Ficus   | Corner of Denison and Beauchamp Streets | Lot 11, DP 1039919   |
| Banksmeadow | Pier Hotel                                              | 1751 Botany Road                        | Lot 1, DP 1031248    |
| Banksmeadow | Botany Bay Hotel                                        | 1807 Botany Road                        | Lot A, DP 333268     |
| Botany      | Canary Island Date Palms ( <i>Phoenix canariensis</i> ) | 23 Byrnes Street                        | Lot 1, DP 169307     |
| Carrington  | Hydraulic Power Station                                 | 106 Bourke Street                       | Lot 30, DP 1190075   |
| Carrington  | Bullock Island Crane Bases                              | 140 Bourke Street                       | Lot 5, DP 1104199    |
| Carrington  | Former McMyler Hoist                                    | 140 Bourke Street                       | Lot 6, DP 1187086    |

|                                      |                                                                  |                            |                                                                                                           |
|--------------------------------------|------------------------------------------------------------------|----------------------------|-----------------------------------------------------------------------------------------------------------|
| Carrington                           | Armstrong & Royce Timber Mill                                    | 8 Cowper Street South      | Part Lot 100, DP 1014244                                                                                  |
| Carrington                           | Earp Woodcock Beveridge & Co (Industrial Site)                   | 8 Cowper Street South      | Part Lot 100, DP 1014244                                                                                  |
| Carrington                           | Former Morrison Bearby Warehouse (facade only)                   | 92 Hill Street             | Lot 11, DP 1023961                                                                                        |
| Kooragang                            | Palm                                                             | 2A Heron Road              | Lot 1, DP 575674                                                                                          |
| Mayfield North                       | Administration Buildings Nos 2, 3 and 4                          | 51 Industrial Drive        | Lot 225, DP 1013964                                                                                       |
| Mayfield North                       | No 1 Change House                                                | 51 Industrial Drive        | Lot 225, DP 1013964                                                                                       |
| Mayfield North                       | 1st Mill Building                                                | 51 Industrial Drive        | Lot 225, DP 1013964                                                                                       |
| Mayfield North                       | Tool Room                                                        | 133 Ingall Street          | Lot 31, DP 1116571                                                                                        |
| Mayfield North                       | Delprat's Quarters                                               | 133A Ingall Street         | Lot 32, DP 1116571                                                                                        |
| Mayfield North                       | Cycle Sheds for No 2 Rod Mill                                    | 135 Ingall Street          | Lot 2, DP 1032755                                                                                         |
| Mayfield North                       | Apprentice Training Centre                                       | 135 Ingall Street          | Lot 2, DP 1032755                                                                                         |
| Mayfield North                       | Administration Building, 1933                                    | 141 Ingall Street          | Lot 1, DP 1116571                                                                                         |
| Mayfield North                       | BHP Administration Building                                      | 99 Selwyn Street           | Part Lot 332, DP 1176879                                                                                  |
| Mayfield North                       | Quality Control Laboratory                                       | 99 Selwyn Street           | Part Lot 332, DP 1176879                                                                                  |
| Newcastle East (Coal River Precinct) | Nobbys Lighthouse, Headland and Breakwater                       | Nobbys Road                | Lots 1052, 1053 and 1055, DP 1189091; R88721                                                              |
| Newcastle East (Coal River Precinct) | Stone Boat Harbour (Relic)                                       | Wharf Road                 | Lot 100, DP 1190502                                                                                       |
| Port Kembla                          | Mobile Block Setting Steam Crane                                 | Eastern Breakwater Harbour | That part of Lot 4, DP 114693 identified as "4" on the <a href="#">Heritage Map</a>                       |
| Port Kembla                          | Hill 60, Illowra Battery (State Heritage Register listing 01492) | Gloucester Boulevard       | That part of Lot 3, DP 1146913 and Lot 1, DP 825951 identified as "5" on the <a href="#">Heritage Map</a> |
| Port Kembla                          | Brick Chimney, Port Kembla Copper                                | Military Road              | That part of Lot 21, DP 546139 identified as "3" on the <a href="#">Heritage Map</a>                      |
| Port Kembla                          | Office and House, Port Kembla Copper                             | Military Road              | That part of Lot 21, DP 546139 identified as "2" on the <a href="#">Heritage Map</a>                      |
| Port Kembla                          | Commonwealth Rolling Mill Plant and Gardens                      | Old Port Road              | That part of Lots 2 and 3, DP 190251 identified as "1" on the <a href="#">Heritage Map</a>                |

### 5.32 Application of consultation requirements

- (1) Division 1 of Part 2 of [State Environmental Planning Policy \(Infrastructure\) 2007](#) applies to development referred to in this Chapter carried out by or on behalf of a public authority within the meaning of this Chapter in

the same way that it applies to development referred to in that Policy carried out by or on behalf of a public authority within the meaning of that Policy.

- (2) For the purposes of this section, a reference in that Division to a local heritage item is a reference to a local heritage item within the meaning of this Chapter.

## Chapter 6 Moorebank Freight Intermodal Precinct

### Part 6.1 Preliminary

#### 6.1 Definitions

- (1) In this Chapter—

***appropriate fill*** means—

- (a) virgin excavated natural material within the meaning of the [Protection of the Environment Operations Act 1997](#), Schedule 1, or
- (b) fill that is re-used in accordance with an excavated natural material exemption under the [Protection of the Environment Operations \(Waste\) Regulation 2014](#), Part 9.

***freight intermodal facility*** means a building or place used in connection with the carrying of freight and persons by rail for business or commercial purposes and includes the following—

- (a) rail sidings,
- (b) facilities for the embarkation or disembarkation of passengers,
- (c) facilities for the loading or unloading of freight, receiving and processing freight, land transport and storage facilities,
- (d) administration and operations buildings and facilities,
- (e) communication, security and safety facilities,
- (f) utilities and services, road and rail infrastructure, pipelines and car parks.

***freight support facility*** means a building or place used for the purposes of commercial premises or light industry in connection with a freight intermodal facility.

***Height of Buildings Map*** means the [State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Moorebank Freight Intermodal Precinct Height of Buildings Map](#).

***heritage item*** means a heritage item identified in an environmental planning instrument applying to the land.

***Moorebank Freight Intermodal Precinct*** or ***Precinct*** means the land identified as the Moorebank Freight Intermodal Precinct on the [State Environmental Planning Policy \(Transport and Infrastructure\) 2021 Moorebank Freight Intermodal Precinct Land Application Map](#).

***Precinct facilities*** means the following in the Precinct—

- (a) freight intermodal facilities,
- (b) freight support facilities,
- (c) warehouse or distribution centres.

- (2) Words and expressions used in this Chapter have the same meaning as they have in the standard instrument set out at the end of the [Standard Instrument \(Local Environmental Plans\) Order 2006](#), unless otherwise defined in this Chapter.

## 6.2 Land to which Chapter applies

This Chapter applies to the Moorebank Freight Intermodal Precinct.

## 6.3 Relationship with other environmental planning instruments

- (1) This Chapter prevails to the extent of any inconsistency between this Chapter and [\*State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008\*](#).
- (2) This Chapter does not restrict or prohibit the carrying out of development on land to which this Chapter applies that is permitted to be carried out with or without development consent, or that is exempt or complying development, under—
  - (a) Chapter 2, or
  - (b) another environmental planning instrument.

## 6.4 Maps

- (1) A reference in this Chapter to a named map adopted by this Chapter is a reference to a map by that name—
  - (a) approved by the Minister when the map is adopted, and
  - (b) as amended or replaced from time to time by maps declared by environmental planning instruments to amend or replace that map, and approved by the persons making the instruments when the instruments are made.
- (2) Any 2 or more named maps may be combined into a single map and a reference in this Chapter to the named map is a reference to the relevant part or aspect of the single map.
- (3) The maps adopted by this Chapter must be kept electronically and made available for public access in accordance with arrangements approved by the Minister.

## Part 6.2 Exempt and complying development

### 6.5 Exempt development

- (1) Development specified in Schedule 12 is exempt development if the development complies with—
  - (a) the requirements of this Part, and
  - (b) the development standards specified in Schedule 12.
- (2) To be exempt development, the development—
  - (a) must meet the relevant deemed-to-satisfy provisions of the *Building Code of Australia*, or if there are no relevant provisions, must be structurally adequate, and
  - (b) must not, if it relates to an existing building, cause the building to contravene the *Building Code of Australia*, and
  - (c) must be installed in accordance with the manufacturer's specifications, if applicable, and
  - (d) must not involve the removal or pruning of a tree or other vegetation that requires a permit, approval or development consent, unless the removal or pruning is carried out in accordance with the permit, approval or development consent, and

#### Example—

A permit or approval may be required under [\*State Environmental Planning Policy \(Biodiversity and Conservation\) 2021\*](#), Chapter 2 or other legislation.

- (e) must not be carried out on land—

- (i) that is, or on which there is, a State Heritage item, to the extent the land is described and mapped on the State Heritage Register under the [Heritage Act 1977](#), or
  - (ii) subject to an interim heritage order under the [Heritage Act 1977](#).
- (3) Subsection (2)(e) does not apply if the development is subject to an exemption under the [Heritage Act 1977](#), section 57(2) or (3).
- (4) Development that relates to an existing building that is classified under the *Building Code of Australia* as class 1b or 2–9 is exempt development if—
- (a) the building has a current fire safety certificate or fire safety statement, or
  - (b) no fire safety measures are currently implemented, required or proposed for the building.
- (5) A heading to a section in Schedule 12 is part of the Schedule.
- (6) In this section—

**State Heritage item** means an item listed on the State Heritage Register under the [Heritage Act 1977](#).

## 6.6 Complying development

- (1) Development specified in Schedule 13 is complying development if the development complies with—
- (a) the requirements of this Part, and
  - (b) the development standards specified in Schedule 13.
- (2) To be complying development, the development must—
- (a) be permissible with development consent under an environmental planning instrument applying to the land on which the development is carried out, and
  - (b) meet the relevant provisions of the *Building Code of Australia*, and
  - (c) before the complying development certificate is issued, have written consent from the relevant roads authority, if required by the [Roads Act 1993](#)—
    - (i) for each opening of a public road required by the development, and
    - (ii) to operate or store machinery, materials or waste required by the development on a road or footpath reserve, and
  - (d) not be potentially hazardous industry or potentially offensive industry, within the meaning of the [State Environmental Planning Policy \(Resilience and Hazards\) 2021](#), Chapter 3, and
  - (e) if it is likely to affect a heritage item—involve no more than minimal impact on the heritage significance of the item, and
  - (f) not be carried out on land that is significantly contaminated land within the meaning of the [Contaminated Land Management Act 1997](#).
- (3) A complying development certificate for development specified in Schedule 13, Part 1 is subject to the conditions specified in Schedule 13, Part 2.
- (4) A heading to a section in Schedule 13 is part of the Schedule.

## 6.7 Conditions of applicable development consents

- (1) To be exempt or complying development, the development must not contravene a condition of a development consent, other than a complying development certificate, that applies to the land on which the development is

carried out relating to the following—

- (a) noise or vibration,
- (b) air, soil or water quality other than conditions relating to fill, earthworks, dust minimisation or meteorological monitoring,
- (c) road upgrades,
- (d) ecologically sustainable development,
- (e) pest and weed control,
- (f) (Repealed)
- (g) biodiversity and riparian corridors,
- (h) landscaping,
- (i) erosion and sediment control,
- (j) environmental management,
- (k) rainwater reuse and on-site stormwater detention and drainage,
- (l) bush fire risk management,
- (m) contamination and remediation,
- (n) hazards and risks,
- (o) waste management,
- (p) emergency response,
- (q) shipping container transfer or movement,
- (r) intermodal rail transport,
- (s) demolition,
- (t) telecommunications,
- (u) parking,
- (v) heritage.

(2) This section does not apply to a condition of a development consent that—

- (a) limits development on the land to the use permitted by the development consent, or
- (b) limits the time of day during which construction may be carried out.

## Part 6.3 Height of buildings

### 6.8 Height of buildings

The height of a building erected as exempt or complying development under this Chapter must not exceed the maximum height shown for the land on the [Height of Buildings Map](#).

## 6.9 Additional height for warehouse or distribution centres in “Area A”

- (1) A building erected as complying development under Schedule 13, section 2 on land identified as “Area A” on the [Height of Buildings Map](#) may have a building height of up to 45m.
- (2) Subsection (1) applies if—
  - (a) no more than 40% of the footprint of the building exceeds the maximum height shown for the land on the [Height of Buildings Map](#), and
  - (b) the part of the building with a height exceeding the maximum height shown for the land on the [Height of Buildings Map](#) is located on the eastern side of the land.

## Part 6.4 Impact of development on traffic

### 6.10 Applications for traffic certificates

- (1) A person who proposes to carry out development specified in Schedule 13, sections 1–3 on land in the Precinct may, with the consent of the owner of the land, apply to the Planning Secretary for a traffic certificate for the development.
- (2) An application must—
  - (a) be in the form approved by the Planning Secretary, and
  - (b) be submitted on the NSW planning portal, and
  - (c) be accompanied by the fee prescribed by the regulations, and
  - (d) include the following information—
    - (i) the name and address of the applicant,
    - (ii) the address, and particulars of title, of the subject land,
    - (iii) a description of the development,
    - (iv) the gross floor area of proposed warehouse or distribution centres,
    - (v) data about heavy vehicle traffic in the Precinct over the previous 6 weeks,
    - (vi) the impact of the development on heavy vehicle traffic in the Precinct.

### 6.11 Determination of applications for traffic certificates

- (1) The Planning Secretary must determine an application for a traffic certificate for development by issuing or refusing to issue a certificate.
- (2) The Planning Secretary may issue a traffic certificate for development if satisfied that the development will not have an unacceptable impact on the safe and efficient operation of the surrounding road network.
- (3) The Planning Secretary must not issue a traffic certificate for development for the purposes of warehouse or distribution centres if the development will result in the gross floor area of all buildings used for warehouse or distribution centres in the Precinct exceeding 1,220,000m<sup>2</sup>.
- (4) In deciding whether to issue a traffic certificate, the Planning Secretary must consider the number of heavy vehicles using the Precinct each day.
- (5) Before determining an application for a traffic certificate for development, the Planning Secretary may request that an applicant provide additional information about the development that the Planning Secretary considers necessary to properly consider the application.

(6) A traffic certificate remains in force for 12 months after it is issued.

## Schedule 1 Exempt development—Chapter 2

(section 2.21)

### Note.

Section 2.21 and this Schedule do not apply to development carried out by public authorities in connection with an existing educational establishment. Exempt development of that kind is provided for in Chapter 3.

| Development purpose                                                | Development standards                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|--------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>General provisions</b>                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| Access ramps for persons with a disability                         | <ul style="list-style-type: none"> <li>Ramps must provide access to public transport, outdoor recreational areas or the ground floor of buildings or car parks.</li> <li>Grade must not exceed 1:14 and must comply with AS 1428.1–2001, <i>Design for access and mobility—General requirements for access—New building work</i>.</li> <li>Ramp structures must not create a traffic or pedestrian hazard or be part of a State or local heritage item.</li> </ul>                                                                                                                                                                                                                                                                                                                                                            |
| Air conditioning units                                             | <ul style="list-style-type: none"> <li>Must have a Minimum Energy Performance Standard consistent with AS/NZS 3823.2:2013, <i>Performance of electrical appliances—Airconditioners and heat pumps, Part 2: Energy labelling and minimum energy performance standards (MEPS) requirements</i>.</li> <li>Noise level must not exceed 5dB(A) above ambient background noise level measured at property boundary.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                      |
| Awnings, canopies, pergolas and storm blinds                       | <ul style="list-style-type: none"> <li>Surface area must not exceed 20m<sup>2</sup>.</li> <li>Height must not exceed 2.4m above ground level (existing).</li> <li>Must maintain all required boundary setbacks for the associated building and no part of structure must be within 900mm of any property boundary.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| Building external alterations including re-cladding roofs or walls | <ul style="list-style-type: none"> <li>Must involve only repair or renovation, or painting, plastering or other decoration, of building.</li> <li>Must not result in enlargement or extension of building or increase in load-bearing capacity of any load-bearing component of building.</li> <li>Must not involve the use of external combustible cladding within the meaning of the <a href="#">Environmental Planning and Assessment (Development Certification and Fire Safety) Regulation 2021</a>.</li> <li>Any re-cladding must—               <ul style="list-style-type: none"> <li>(i) not involve structural alterations, and</li> <li>(ii) involve only replacing existing materials with similar materials unless the use of those materials is a breach of these development standards.</li> </ul> </li> </ul> |
| Building internal alterations                                      | <ul style="list-style-type: none"> <li>Must be non-structural alterations to existing building only, such as—               <ul style="list-style-type: none"> <li>(i) replacement of doors, wall, ceiling or floor linings or deteriorated frame members with equivalent or improved quality materials, or</li> <li>(ii) inclusion of built-in fixtures.</li> </ul> </li> <li>Must not affect load-bearing capacity of any load-bearing component of building.</li> </ul>                                                                                                                                                                                                                                                                                                                                                    |

|                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Bush regeneration works                                                                                                                                                                                         | <ul style="list-style-type: none"> <li>• May involve the installation of temporary fencing.</li> <li>• Must not involve—               <ul style="list-style-type: none"> <li>(a) the creation of access tracks, or</li> <li>(b) the use of machinery, or</li> <li>(c) works involving significant soil disturbance.</li> </ul> </li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| Car parks—at grade car parks only                                                                                                                                                                               | <ul style="list-style-type: none"> <li>• Must be open (unenclosed) car parking (but may include associated gates including security booths and boom gates).</li> <li>• Must not be carried out on land within a growth centre (within the meaning of <a href="#">State Environmental Planning Policy (Sydney Region Growth Centres) 2006</a>) that is not <b>subject land</b> within the meaning of clause 17 of Schedule 7 to the <a href="#">Threatened Species Conservation Act 1995</a>.</li> <li>• Must not exceed 200 spaces for a site with access to any road or 50 spaces for a site with access to a classified road or to a road that connects to a classified road (if the access is within 90m of that connection, measured along the alignment of the connecting road).</li> </ul> |
| Carports associated with an existing building                                                                                                                                                                   | <ul style="list-style-type: none"> <li>• Floor area must not exceed 36m<sup>2</sup>.</li> <li>• Height must not exceed 3.5m above ground level (existing) and external wall height must not exceed 3m above ground level (existing).</li> <li>• Must be located behind any relevant building setback.</li> <li>• Must be no part of structure within 500mm of any side or rear boundary.</li> <li>• Stormwater drainage or run-off must be via connection to existing stormwater system.</li> </ul>                                                                                                                                                                                                                                                                                              |
| Decks (unroofed and attached to a building that is not located on bush fire prone land)                                                                                                                         | <ul style="list-style-type: none"> <li>• Surface area must not exceed 10m<sup>2</sup>.</li> <li>• Finished surface level must not be more than 1m above ground level (existing).</li> <li>• Boundary setbacks for existing building to be maintained.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| Demolition of buildings or structures (including sheds, kiosks, ceilings, partitions, stairs, ducts, fencing, flagpoles and advertising structures) the erection of which is exempt development under Chapter 2 | <ul style="list-style-type: none"> <li>• Building or structure must not be a heritage item or within a heritage conservation area.</li> <li>• Must be carried out in accordance with AS 2601—2001, <i>Demolition of structures</i> and must not cover an area of more than 250m<sup>2</sup>.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| Fences—erection of security fences                                                                                                                                                                              | <ul style="list-style-type: none"> <li>• Must be on land owned or controlled by a public authority.</li> <li>• Height must not exceed 3m above ground level (existing).</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

- Fences (other than security fences or fences covered by the [Swimming Pools Act 1992](#))
- Must be constructed so as not to prevent natural flow of stormwater drainage or run-off.
  - Height of boundary fence must not exceed 1.8m above ground level (existing) if behind front building line, or 1.2m if forward of that line, in any of the following land use zones or a land use zone that is equivalent to any of those zones—
    - (i) Zone R1 General Residential,
    - (ii) Zone R2 Low Density Residential,
    - (iii) Zone R3 Medium Density Residential,
    - (iv) Zone R4 High Density Residential,
    - (v) Zone R5 Large Lot Residential,
    - (vi) Zone RU5 Village.
  - Must not include masonry construction to a height of more than 900mm above ground level (existing).

Fire fighting emergency equipment—construction or maintenance of emergency equipment including replacement or augmentation of fire systems and fire water tanks

- Flagpoles
- Height must not exceed 6m above ground level (existing) or above an existing building.
  - Must not display commercial advertising.
  - Flagpole structure and any attached flag must not project over public road.

- Hoardings to restrict unauthorised entry to construction sites—erection in conjunction with erection or demolition of, or carrying out of alterations or additions to, a building or carrying out of maintenance (for which, in each case, any required consent has been obtained)
- Must be in accordance with AS 4687—2007, *Temporary fencing and hoardings*.
  - Must not encroach onto footpath or public thoroughfare.
  - Must be removed immediately on completion of work if removal will not give rise to safety risk.

- Investigations (including geotechnical and other testing, surveying and the placement of survey marks, and sampling) relating to proposed development or for the purposes of system development or determining the safety or condition of infrastructure
- Must not involve any greater disturbance of the ground or vegetation than is necessary.
  - Must not result in an increase in stormwater drainage or run-off from the site concerned.

Landscaping (including paving and turfing and access tracks) carried out in conjunction with other development which is exempt under Chapter 2

- Lighting—construction or maintenance
- Construction and maintenance of external lighting if light spill is contained within site and in accordance with AS 4282–1997, *Control of the obtrusive effects of outdoor lighting*.
  - Construction and maintenance of lighting at or in vicinity of air transport facilities if consistent with *Manual of Standards (MOS)—Part 139—Aerodromes* published by the Civil Aviation Safety Authority (established under [Civil Aviation Act 1988](#) of the Commonwealth).

|                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Offices—portable                                                                                                                                                                                                                | <ul style="list-style-type: none"> <li>• Height must not exceed 1 storey.</li> <li>• Setbacks must be in accordance with any applicable setback provisions of development control plan applying to site.</li> <li>• Must not be carried out on land within a growth centre (within the meaning of <a href="#">State Environmental Planning Policy (Sydney Region Growth Centres) 2006</a>) that is not <b>subject land</b> within the meaning of clause 17 of Schedule 7 to the <a href="#">Threatened Species Conservation Act 1995</a>.</li> </ul>                                                                                                                                                                                                                                                                                                        |
| Rainwater and bore water tanks                                                                                                                                                                                                  | <ul style="list-style-type: none"> <li>• Height (including any stand) must not exceed 2.4m above ground level (existing).</li> <li>• No part of structure must be within 450mm of any property boundary or situated no closer to street than any associated building.</li> <li>• Rainwater tank must be fitted with first-flush device that causes initial run-off of any rain to bypass tank to reduce pollutants entering tank.</li> <li>• Installation must not involve excavation of more than 1m from ground level (existing), or filling of more than 1m above ground level (existing).</li> <li>• Must not be installed over any structure or fittings used by public authority to maintain water or sewer main.</li> <li>• Must be sign affixed to tank, clearly stating that water in tank is rainwater or bore water (as appropriate).</li> </ul> |
| Retaining walls                                                                                                                                                                                                                 | <ul style="list-style-type: none"> <li>• Must not provide for retaining of fill to height above ground level (existing) of more than 2m or excavation to depth below ground level (existing) of more than 1m.</li> <li>• Must not prevent the natural flow of stormwater drainage/run-off.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| Scaffolding—erection in conjunction with erection or demolition of, or carrying out of alterations or additions to, a building or carrying out of maintenance (for which, in each case, any required consent has been obtained) | <ul style="list-style-type: none"> <li>• Must not encroach onto footpath or public thoroughfare.</li> <li>• Temporary fencing must be provided to restrict unauthorised access to site if scaffolding is within 3m of any boundary.</li> <li>• Must be in accordance with AS/NZS 1576.1:2010, <i>Scaffolding, Part 1: General Requirements</i>.</li> <li>• Must be removed immediately on completion of work if removal will not give rise to safety risk.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                       |
| Security cameras—installation for security purposes                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| Sheds                                                                                                                                                                                                                           | <ul style="list-style-type: none"> <li>• Must be free-standing, prefabricated and constructed of non-reflective materials.</li> <li>• Development must not result in shed with a total floor area exceeding 30m<sup>2</sup>.</li> <li>• Height must not exceed 2.5m above ground level (existing).</li> <li>• Must be located in rear of infrastructure facility.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| Skylight or roof windows                                                                                                                                                                                                        | <ul style="list-style-type: none"> <li>• Area of skylight must not exceed 2m<sup>2</sup>.</li> <li>• Must not be located within 900mm of any property boundary or within 900mm of any wall separating attached dwellings.</li> <li>• Work must not reduce structural integrity of building or involve structural alterations.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

**General provisions: signs**

Existing signs—maintenance, replacement or change in display if existing sign is exempt under Chapter 2

- Must not involve a change in area, form or shape.

Identification, directional, community information or safety signs but not including roof-top signs or commercial advertising or signs associated with the use of road infrastructure (including signs associated with level crossings)

- Surface area must not exceed 3.5m<sup>2</sup>.
- Must be located wholly within property boundary or be attached to existing boundary fence and not projecting more than 100mm from fence.
- Obtrusive effects of outdoor lighting must be controlled in accordance with AS 4282–1997, *Control of the obtrusive effects of outdoor lighting*.

Identification, directional, community information or safety signs associated with the use of road infrastructure

- Must be consistent with road safety policies and guidelines on outdoor advertising approved by the Planning Secretary for the purpose of this provision and published in the Gazette.

Temporary signs advertising an event and associated relevant details including sponsorship of the event

- Surface area must not exceed 3.5m<sup>2</sup>.
- Must be located wholly within property boundary.
- Must not be displayed earlier than 28 days before event and must be removed within 14 days after event.
- Obtrusive effects of outdoor lighting must be controlled in accordance with AS 4282–1997 *Control of the obtrusive effects of outdoor lighting*.

**General provisions: subdivision**

Boundaries—adjustment to the boundary of a lot (including to widen a public road or create a public reserve)

- Must not result in—
  - (i) creation of any additional lot or legal right to erect dwelling, or
  - (ii) creation of lot that depends on use of services provided to, or utilities of, another lot, or
  - (iii) change in area of any lot by more than 10 per cent, or
  - (iv) increased bush fire risk to existing buildings.

**Schedule 2 Railways, roads and associated projects—Chapter 2**

(Sections 2.92, 2.110 and 2.121)

**1 Cross City Tunnel**

A tollway comprising twin 2 lane tunnels from William Street, Sydney, near the eastern end of the Kings Cross Tunnel to the Western Distributor near Harbour Street.

**2 Eastern Distributor**

A roadway linking the Cahill Expressway, Woolloomooloo, to Mill Pond Road, Botany, including associated works and facilities.

**3 Lane Cove Tunnel**

Dual road tunnels that generally follow the alignment of Epping Road from just east of the intersection of Epping Road and Mowbray Road West to the Gore Hill Freeway, east of the Pacific Highway.

**4 Liverpool—Parramatta Transitway**

A passenger transport system between Liverpool and Parramatta via Bonnyrigg, Wetherill Park, Smithfield and Wentworthville.

## **5 North-West Sydney Transitway Network**

Links of a passenger transport system between—

- (a) Blacktown and Castle Hill via Kings Park, Kings Langley, Acacia Gardens, Glenwood, Parklea, Stanhope Gardens and Kellyville, and
- (b) Parramatta and Rouse Hill (Mungerie Park) via Westmead, Wentworthville, Old Toongabbie, Toongabbie, Winston Hills, Seven Hills, Baulkham Hills, Kings Langley, Bella Vista, Glenwood, Kellyville and Stanhope Gardens.

## **6 Parramatta Rail Link**

A heavy railway from Parramatta to Chatswood. The project would commence in the general vicinity of the Main Western Railway line west of Parramatta Station and would then proceed via Parramatta, Camellia, Carlingford, Epping, the vicinity of Macquarie University, the vicinity of Delhi Road, the vicinity of the University of Technology Kuring-gai Campus to Chatswood (including a bridge over or a tunnel under the Lane Cove River).

## **7 Rail Clearways Program**

The following 10 railway system upgrade major projects within the Sydney metropolitan area, known collectively as the “Rail Clearways Program”—

### **(a) Hornsby Upgrading**

Additional rail line, station works upgrade and extension of Hornsby stabling yard.

### **(b) Cronulla Upgrading**

Upgrading of the Cronulla Line, alterations to Cronulla, Kirrawee, Woolooware and Sutherland Stations and the reconfiguration of stabling.

### **(c) Lidcombe Upgrading**

Upgrading Lidcombe Station and track changes (including a turnback line).

### **(d) Homebush Upgrading**

Upgrading Homebush Station and track changes (including a turnback line).

### **(e) Kingsgrove to Revesby Upgrading**

Upgrading Revesby Station, additional tracks between and in the vicinity of Kingsgrove to Revesby Stations and any associated station works.

### **(f) Quakers Hill to Vineyard Upgrading**

Construction of stations, upgrading of stations, relocation of stations, additional tracks between and in the vicinity of Quakers Hill to Vineyard Stations.

### **(g) Carlingford Line Upgrading**

Track changes including construction of a passing loop and the upgrading of Rydalmere Station.

### **(h) Sydenham–Erskineville Upgrading**

Track changes including construction of two additional rail lines from Sydenham to Erskineville, upgrading Sydenham, St Peters and Erskineville Stations and modifications to road bridges.

### **(i) Liverpool Upgrading**

Upgrading Liverpool Station, reconfiguration of stabling and changes to track (including a turnback line).

### **(j) Macarthur Upgrading**

Upgrading Macarthur Station, reconfiguration of stabling and changes to track (including a turnback line).

## **8 Southern Sydney Freight Line**

Development for the purposes of the Southern Sydney Freight Line, being a rail track adjacent to the Main South line between east of Sefton Park junction and south of Macarthur via Cabramatta, and all infrastructure and services that form part of the new line.

## **9 Sydney Airport Rail Link**

A railway linking the domestic and international terminals at Sydney (Kingsford Smith) Airport with the Sydney Central Business District and the East Hills railway line in the vicinity of Turrella.

## **10 Tugun Bypass**

A 4-lane dual carriageway freeway with provision to upgrade to 6 traffic lanes in the future. The bypass would run to the south and west of the Gold Coast Airport runway generally between the NSW–Queensland border (in the vicinity of Boyd Street) to join with the Pacific Highway at West Tweed Heads (in the vicinity of Kennedy Drive), a distance of approximately 4.1km.

## **11 Gore Hill Freeway**

A 3.5km long freeway consisting mainly of a 6-lane dual carriageway (2 × 3 lanes each) linking Warringah Freeway, Cammeray to Reserve Road, Artarmon.

## **12 Western Distributor**

A 2.3km long roadway consisting of a 6-lane dual carriageway (2 × 3 lanes each) linking Glebe Arterial Road, Pyrmont to Bradfield Highway at the Sydney Harbour Bridge.

## **13 Southern Cross Drive**

A 5.02km long roadway consisting mainly of a 6-lane dual carriageway (2 × 3 lanes each) linking General Holmes Drive, Mascot to Darling Street, Eastlakes.

## **14 Cahill Expressway**

A 1.68km long roadway consisting mainly of a 4-lane dual carriageway (2 × 2 lanes each) linking the Cross City Tunnel, Sydney to Bradfield Highway at the Sydney Harbour Bridge.

## **15 General Holmes Drive**

A 4.4km long roadway consisting mainly of a 6-lane dual carriageway (2 × 3 lanes each) linking Bestic Street, Brighton-Le-Sands to Botany Road, Mascot.

## **16 Hume Motorway**

A motorway from South Western Freeway, Edmondson Park via Mittagong Bypass and Berrima Bypass to Mereworth Road Interchange at Medway Rivulet via divided carriageway road, including Marulan Bypass, Goulburn Bypass, Cullerin Range deviation and Gunning Bypass, Yass Bypass, Bowning Bypass, Bookham Bypass and Jugiong Bypass, continuing via Gundagai Bypass, Tarcutta Bypass, Holbrook Bypass and the Albury-Wodonga Freeway to the Victorian State border.

## **17 M1 Pacific Motorway**

A mainly divided motorway from Pennant Hills Road, Wahroonga to John Renshaw Drive, Beresfield, including a connection to NorthConnex at Wahroonga.

## **18 M2**

A 20km motorway linking the Lane Cove Tunnel in Lane Cove to the M7 in Baulkham Hills, including a connection to NorthConnex.

**19 M4**

A transport system comprising the following—

- (a) a motorway from Russell Street, Emu Plains to the new widened motorway at Parramatta,
- (b) the new widened motorway at Parramatta to Homebush (changed from 3 to 4 lanes in each direction),
- (c) a 6.5km (of which 5.5km is underground) motorway connecting the new widened motorway at Homebush with connections to the M4–M5 link.

**20 M5**

A transport system comprising the following—

- (a) a motorway comprising twin 2-lane tunnels linking the M5 South-West at Beverly Hills to General Holmes Drive, Mascot,
- (b) duplicated M5 East from King Georges Road Interchange upgrade at Beverly Hills to a new interchange at St Peters with 9km twin underground motorway tunnels (including underground connection points for the M4–M5 link and the proposed F6 extension) from Kingsgrove to St Peters Interchange, with connections to Alexandria and Mascot and connections to the proposed Sydney Gateway and M4–M5 link,
- (c) a 20km motorway comprising twin 3-lane carriageways linking the M7 in Prestons to the M5 East at King Georges Road, Beverly Hills.

**21 M4–M5 Link**

A 9.2km underground tunnel motorway connecting from Haberfield to St Peters Interchange with connections to the Rozelle interchanges, Western Harbour Tunnel, New M4, New M5 and the future Sydney Gateway.

**22 M7**

A 40km motorway comprising twin 2-lane carriageways linking the M2 in Baulkham Hills to the M5 South-West in Prestons, including a connection to the M4.

**23 NorthConnex**

A 9km twin tunnel linking the M1 Pacific Motorway at Wahroonga to the Hills M2 at West Pennant Hills.

**24 Sydney Harbour Tunnel**

A 2.7km motorway comprising twin 2-lane carriageways beneath Sydney Harbour linking the Cahill Expressway at Sydney to the Warringah Freeway at North Sydney.

**25 King Georges Road Interchange**

The interchange between the M5 West and the M5 East at Beverly Hills.

**26 Pacific Highway**

A highway from Maitland Road, Hexham via Raymond Terrace Bypass Freeway, Karuah Bypass Freeway, Bulahdelah Freeway, Taree Bypass Freeway, Coopernook Bypass, Moorland Bypass, Kew Bypass, Telegraph Point, Kempsey, Frederickton, Clybucca, Eungai Creek, Warrell Creek, Macksville, Urunga, Bonville Bypass, Coffs Harbour, Woolgoolga, South Grafton, Ulmarra, Cowper Bypass, Tyndale Bypass, Woodburn, Wardell, Ballina, Bangalow Bypass, Brunswick-Yelgun Freeway, Yelgun-Chinderah Freeway, Chinderah Bypass, Tweed Heads Bypass and Tugun Bypass Freeway to the Queensland border.

**Schedule 3 Traffic-generating development to be referred to TfNSW—Chapter 2**

(Section 2.122)

**Note.**

The development specified in Column 1 may involve the erection of new premises or an enlargement or extension of existing premises. If the development involves an enlargement or extension of existing premises, the relevant size or capacity specified in the table is the additional (rather than the total) size or capacity of the premises as a result of the enlargement or extension.

| <b>Column 1</b>                                                                                      | <b>Column 2</b>                                                                                            | <b>Column 3</b>                                                                                                                                                                           |
|------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Purpose of development</b>                                                                        | <b>Size or capacity—site with access to a road (generally)</b>                                             | <b>Size or capacity—site with access to classified road or to road that connects to classified road (if access within 90m of connection, measured along alignment of connecting road)</b> |
| Airports or heliports                                                                                | Any size or capacity                                                                                       | Any size or capacity                                                                                                                                                                      |
| Car parks (whether or not ancillary to other development)                                            | 200 or more car parking spaces                                                                             | 50 or more car parking spaces                                                                                                                                                             |
| Commercial premises (other than premises specified elsewhere in this table)                          | 10,000m <sup>2</sup> in gross floor area                                                                   | 2,500m <sup>2</sup> in gross floor area                                                                                                                                                   |
| Food and drink premises (other than take away food and drink premises with drive-through facilities) | Car parking for 200 or more motor vehicles                                                                 | 300m <sup>2</sup> in gross floor area                                                                                                                                                     |
| Freight transport facilities                                                                         | Any size or capacity                                                                                       | Any size or capacity                                                                                                                                                                      |
| Hospitals                                                                                            | 200 or more beds                                                                                           | 100 or more beds                                                                                                                                                                          |
| Industry                                                                                             | 20,000m <sup>2</sup> in site area or (if the site area is less than the gross floor area) gross floor area | 5,000m <sup>2</sup> in site area or (if the site area is less than the gross floor area) gross floor area                                                                                 |
| Liquid fuel depots                                                                                   | 8,000m <sup>2</sup> in site area or (if the site area is less than the gross floor area) gross floor area  | 8,000m <sup>2</sup> in site area or (if the site area is less than the gross floor area) gross floor area                                                                                 |
| Residential accommodation                                                                            | 300 or more dwellings                                                                                      | 75 or more dwellings                                                                                                                                                                      |
| Service stations without heavy vehicle refuelling or maintenance services                            |                                                                                                            | Any size or capacity                                                                                                                                                                      |
| Service stations with heavy vehicle refuelling or maintenance services                               | Any size or capacity                                                                                       | Any size or capacity                                                                                                                                                                      |
| Shops                                                                                                | 2,000m <sup>2</sup> in gross floor area                                                                    | 500m <sup>2</sup> in gross floor area                                                                                                                                                     |
| Subdivision of land                                                                                  | 200 or more allotments where the subdivision includes the opening of a public road                         | 50 or more allotments                                                                                                                                                                     |
| Take away food and drink premises with drive-through facilities                                      | 200 or more motor vehicles per hour                                                                        | Any size or capacity                                                                                                                                                                      |
| Transport depots                                                                                     | 8,000m <sup>2</sup> in site area or (if the site area is less than the gross floor area) gross floor area  | 8,000m <sup>2</sup> in site area or (if the site area is less than the gross floor area) gross floor area                                                                                 |
| Warehouse or distribution centres                                                                    | 8,000m <sup>2</sup> in site area or (if the site area is less than the gross floor area) gross floor area  | 8,000m <sup>2</sup> in site area or (if the site area is less than the gross floor area) gross floor area                                                                                 |
| Waste or resource management facilities                                                              | Any size or capacity                                                                                       | Any size or capacity                                                                                                                                                                      |
| Any other purpose                                                                                    | 200 or more motor vehicles per hour                                                                        | 50 or more motor vehicles per hour                                                                                                                                                        |

## **Schedule 4 Exempt and complying development in relation to telecommunications facilities—Chapter 2**

(Sections 2.144 and 2.145(1))

## Part 1 Exempt development

|      | Column 1                                                                                                                                                     | Column 2                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Item | Development purpose                                                                                                                                          | Development standards                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 1    | Subscriber and non-subscriber connection to a telecommunications network deployed by means of radio or satellite dish (including a radiocommunications dish) | <p>1.1 If the development is carried out on land in Zone R1, R2, R3, R4, R5 or RU5 or an equivalent land use zone or on a dwelling—</p> <p>(a) in the case of a dish located on a roof—the dish must not be more than 1.2 metres in diameter and be no higher than 1.8 metres above the highest point of the roof, or</p> <p>(b) in the case of a ground mounted dish—the dish must—</p> <p>(i) be located in the rear yard, and</p> <p>(ii) be not more than 1.2 metres in diameter, and</p> <p>(iii) be no higher than 1.8 metres above the highest point of the existing ground level on the lot.</p> <p>1.2 If the development is not carried out on land in Zone R1, R2, R3, R4, R5 or RU5 or an equivalent land use zone or on a dwelling, the dish must be no more than 1.8 metres in diameter.</p> <p>1.3 The dish must be the same colour as its background or painted a neutral colour such as grey.</p> <p>1.4 If the dish is mounted on a heritage item or in a heritage conservation area, the dish must not be visible from the street at ground level from the property boundary.</p> |
| 2    | Panel antenna, yagi antenna or other directional antenna                                                                                                     | <p>2.1 The antenna—</p> <p>(a) must be flush mounted to an existing structure, or</p> <p>(b) if not flush mounted, must not be—</p> <p>(i) more than 2.8 metres long, or</p> <p>(ii) more than 5.8 metres (including support mount) in height above the building or structure to which it is attached.</p> <p>2.2 If the antenna is flush mounted, it must not project above the height of the structure on which it is mounted.</p> <p>2.3 The antenna must be the same colour as its background or painted a neutral colour such as grey.</p> <p>2.4 If the antenna is mounted on a heritage item or in a heritage conservation area other than by means of flush mounting, the antenna must not be visible from the street at ground level from the property boundary.</p>                                                                                                                                                                                                                                                                                                                        |
| 3    | Omnidirectional antenna                                                                                                                                      | <p>3.1 An antenna must not be—</p> <p>(a) more than 4.5 metres long excluding support mount, or</p> <p>(b) outriggered more than—</p> <p>(i) 500mm from the support mount, or</p> <p>(ii) if required for the NSW Government Telecommunications Network—2m from the support mount, or</p> <p>(c) more than 6.5 metres in height including support mount unless required for the NSW Government Telecommunications Network in which case must not be more than 8.0 metres in height including support mount.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

- 3.2 If an antenna is mounted on a heritage item or in a heritage conservation area, the antenna must not be visible from the street at ground level from the property boundary.
- 4 Microcell installation
- 4.1 If the installation includes a cabinet, the cabinet must be not more than 1 cubic metre in volume.
- 4.2 If the installation includes an omnidirectional antenna, the antenna must not be more than 1 metre long.
- 4.3 If the installation includes a directional antenna, the antenna must not be more than 1.2 metres long.
- 5 In-building coverage installation (picocell installation) for the purposes of improving broadband coverage to wireless technology users or the coverage of mobile phone users operating inside the building
- 5.1 All elements of the installation must be wholly located within a building, structure or tunnel, or integrated with the building, structure or tunnel in such a way as to have the general appearance of being part of the structure.
- 6 Equipment installed inside a structure
- 6.1 Equipment installed inside a structure (including an antenna and fibre-optic cable) must be concealed in the existing structure.
- 7 An extension to a tower on land other than in Zone R1, R2, R3, R4, R5 or RU5 or an equivalent land use zone
- 7.1 The extension must be—
- (a) no greater than 5 metres in height, and
  - (b) for—
    - (i) co-location purposes, or
    - (ii) the purposes of accommodating a technology upgrade for 1 or more carriers on the same tower.
- 7.2 The tower to be extended must not have previously been extended.
- 8 Replacement of a tower
- 8.1 If the original tower is located on land in Zone R1, R2, R3, R4, R5 or RU5 or an equivalent land use zone—
- (a) the height of a replacement tower (including telecommunications facilities) must not be greater than the height of the original tower (including telecommunications facilities), and
  - (b) the replacement tower must be located within 10 metres of the position of the original tower.
- 8.2 If the original tower is not located on land in Zone R1, R2, R3, R4, R5 or RU5 or an equivalent land use zone—
- (a) the height of a replacement tower (including telecommunications facilities) must not be greater than the height of the original tower (including telecommunications facilities), and
  - (b) the replacement tower must be located within 20 metres of the position of the original tower but no closer to land in Zone R1, R2, R3, R4, R5 or RU5 or an equivalent land use zone.
- 8.3 The replacement tower must be similar in appearance to the original tower, except that a lattice tower (free standing steel framework tower) may be replaced by a monopole tower (free standing mast or pole like tower).
- 8.4 The original tower must be decommissioned and removed within 12 weeks of the telecommunications equipment on the replacement tower being commissioned.

- 8.5 The location of the tower that has been removed must be restored to a condition that is similar to its condition before the original tower was installed and landscaped as appropriate.
- 9 Underground housing
- 9.1 If the housing is in the form of a pit, manhole or other underground equipment shelter or housing, the opening area for the pit, manhole, shelter or housing must be not more than 2 square metres.
- 9.2 The land on which the housing is located must be restored to a condition that is similar to its condition before the underground housing was constructed.
- 10 Above ground housing of any of the following kinds—
- (a) a pillar, cabinet or pedestal installation,
- (b) an equipment shelter,
- (c) housing within a building for subscriber connection equipment,
- (d) if on land in Zone RU1, RU2, RU3, RU4, RU5 or RU6 or an equivalent land use zone—a solar panel used to power telecommunications equipment contained in the above ground housing.
- 10.1 If the development is a pillar, cabinet or pedestal installation, it must—
- (a) not be more than 2 metres high, and
- (b) have a base area of not more than 2 square metres.
- 10.2 If the development is an equipment shelter (other than an equipment shelter used solely to house equipment associated with any antenna, radiocommunications, satellite or microwave dish, or tower or the like), it must—
- (a) not be more than 2.5 metres high, and
- (b) have a base area of not more than 5 square metres (excluding minor protrusions such as air conditioning units, steps and cable tray attachments), and
- (c) be the same colour as its background or painted a neutral colour such as grey.
- 10.3 If the development is an equipment shelter used solely to house equipment associated with any antenna, radiocommunications, satellite or microwave dish, or tower or the like, it must—
- (a) not be more than 3 metres high, and
- (b) have a base area of not more than 7.5 square metres (excluding minor protrusions such as air conditioning units, steps and cable tray attachments), and
- (c) be the same colour as its background or painted a neutral colour such as grey.
- 10.4 If the development is a solar array used to power telecommunications equipment contained in the above ground housing, the base area of the array must not be more than 12.5m<sup>2</sup>.
- 10.5 If the development is on a heritage item or in a heritage conservation area, it must not be visible from the street at ground level from the property boundary.

- |    |                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|----|-------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 11 | Underground conduit or cable including subscriber connection and fibre-optic cable for broadband                  | <p>11.1 The conduit or cable may only be—</p> <ul style="list-style-type: none"> <li>(a) laid in an existing trench, or</li> <li>(b) laid in a trench that has been lawfully created for any other purpose, or</li> <li>(c) hauled or otherwise deployed through a duct, pit, hole, tunnel or conduit, or</li> <li>(d) installed in, on or under an existing bridge.</li> </ul> <p>11.2 A marking post or sign must be erected indicating the location of the conduit or cable.</p> <p>11.3 After the conduit or cable has been laid, deployed or installed, detectable metallic tracer material or similar material must be installed in or above the conduit or cable to assist with identifying the position of the conduit or cable.</p> <p>11.4 The land under which the conduit or cable is installed must be restored to a condition that is similar to its condition before the conduit or cable was installed.</p> |
| 12 | Above ground cable for subscriber connection or fibre-optic cable for broadband for pole to premises installation | <p>12.1 The cable must—</p> <ul style="list-style-type: none"> <li>(a) be co-located with an above ground electricity supply connection, or</li> <li>(b) comply with item 12.2.</li> </ul> <p>12.2 If the cable is not co-located with an above ground electricity supply connection—</p> <ul style="list-style-type: none"> <li>(a) the installation of the cable must not disturb soil or vegetation any more than is necessary for the installation, and</li> <li>(b) the cable must not increase run-off from the site or adversely affect stormwater drainage, and</li> <li>(c) the maximum external cross section of part of a cable or a bundle of cables must not be more than 48mm, and</li> <li>(d) if the cable is located on a heritage item or within a heritage conservation area—the cable must not be visible from the street at ground level from the property boundary.</li> </ul>                        |
| 13 | Conduit or cable on or within a building for subscriber connection or fibre-optic cable for broadband             | <p>13.1 If installed on a building, the conduit or cable—</p> <ul style="list-style-type: none"> <li>(a) must not be located on a street-facing facade of the building, and</li> <li>(b) if located on a heritage item or within a heritage conservation area—must not be visible from the street at ground level from the property boundary.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 14 | Boring or directional drilling in connection with a telecommunications facility                                   | <p>14.1 The boring or directional drilling must take place at a minimum depth of 600 millimetres.</p> <p>14.2 The land on which the boring or drilling is carried out must be restored to a condition that is similar to its condition before the drilling was carried out.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

- 15 Public payphone
- 15.1 The public payphone cabinet or booth must—
- (a) be for use solely for carriage and content services, and
  - (b) not be designed for other uses (for example, as a vending machine), and
  - (c) not be fitted with devices or facilities for other uses, and
  - (d) not display commercial advertising other than advertising related to the supply of standard telephone services.
- 15.2 The public payphone instrument must—
- (a) be for use solely for carriage and content services, and
  - (b) not be designed for other uses (for example, as a vending machine), and
  - (c) not be fitted with devices or facilities for other uses, and
  - (d) not be used to display commercial advertising other than advertising related to the supply of standard telephone services or displayed as part of the supply of a content service.
- 16 Installation and use of telecommunications facilities—
- (a) for use in an emergency, or
  - (b) to provide assistance to an emergency services organisation.
- 17 Installation and use of temporary telecommunications facilities—
- (a) to provide service or coverage during either routine or emergency maintenance of an existing telecommunications facility, or
  - (b) to provide service or coverage during the construction or installation of a replacement telecommunications facility, or
  - (c) to provide additional service or coverage at events such as sporting carnivals, cultural festivals, business conventions, or the like.
- 17.1 The facility must—
- (a) not permanently alter any building or site so that, upon removal, the building or site is in a substantially different condition than it was before the establishment of the facility, and
  - (b) be removed within 28 days after the need for the facility has ceased.
- 18 Ancillary facilities to a telecommunications facility for any of the following purposes—
- (a) to ensure the protection or safety of the telecommunications facility, members of the public in close proximity to that facility or persons required to access and maintain that facility,
  - (b) to screen or shroud antennas or telecommunications equipment (or both) to minimise their visibility and improve visual outcomes,
  - (c) to ensure the proper operation and efficient functioning of the telecommunications facility.
- 18.1 If located on a heritage item or in a heritage conservation area, the facilities must not be visible from the street at ground level from the property boundary.
- 18.2 The facilities must not include a power generator.

|     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                             |
|-----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 19  | Maintenance activities in relation to a telecommunications facility for any of the following purposes—<br>(a) the maintenance or repair of the facility,<br><br>(b) to ensure the proper functioning of the facility.                                                                                                                                                                                                                                                   | 19.1 The maintenance activities must not result in any more than a minimal increase in size, area occupied by, or noise levels associated with the facility.                                                                                                                                                                                                                |
| 19A | Decommissioning of telecommunications facility                                                                                                                                                                                                                                                                                                                                                                                                                          | <p>19A.1 The decommissioning must be carried out by or on behalf of a public authority.</p> <p>19A.2 The facility must not be located on environmentally sensitive land or on land within Zone C1 or an equivalent land use zone.</p> <p>19A.3 The site must be restored to at least the same condition that it was in before the facility was constructed.</p>             |
| 20  | Installation and use of permanent transmission and power cabling (including underground cabling that meets the development standards for underground cable or boring or directional drilling under this Schedule) to enable installation and removal of temporary telecommunications facilities for the purpose of providing additional service or coverage at events such as sporting carnivals, cultural festivals or business conventions, or the like, on the site. |                                                                                                                                                                                                                                                                                                                                                                             |
| 21  | Maintenance of existing access tracks used to access base telecommunication facilities                                                                                                                                                                                                                                                                                                                                                                                  | <p>21.1 The maintenance activities must—</p> <p>(a) be restricted to operators of a Government Telecommunications Network, and</p> <p>(b) not increase the width of the track, and</p> <p>(c) not disturb soil or vegetation any more than is necessary for the maintenance, and</p> <p>(d) not increase run-off from the site or adversely affect stormwater drainage.</p> |
| 22  | The installation of a premises connection device                                                                                                                                                                                                                                                                                                                                                                                                                        | <p>22.1 The premises connection device must be—</p> <p>(a) mounted on an existing wall of the premises, and</p> <p>(b) fixed at the lowest point possible for effective operation, and</p> <p>(c) no more than 300mm by 300mm and 100mm deep.</p>                                                                                                                           |
| 23  | The installation of a riser pole on premises                                                                                                                                                                                                                                                                                                                                                                                                                            | <p>23.1 The riser pole must—</p> <p>(a) not extend more than 900mm above the premises, and</p> <p>(b) be used only in association with infrastructure that is also exempt development, and</p> <p>(c) if located on a heritage item or within a heritage conservation area—not be visible from the street at ground level at the property boundary.</p>                     |

## Part 2 Complying development

| Column 1 | Column 2              |
|----------|-----------------------|
| Item     | Development purpose   |
| Item     | Development standards |

- |   |                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|---|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1 | Subscriber and non-subscriber connection to a telecommunications network deployed by means of radio or satellite dish (including a radiocommunications dish) on land in Zone R1, R2, R3, R4, R5 or RU5 or an equivalent land use zone | <p>1.1 If the dish is located on a roof, the dish must—</p> <p>(a) not be more than 1.8 metres in diameter, and</p> <p>(b) be no higher than 2.4 metres above the highest point of the roof.</p> <p>1.2 If the dish is ground mounted, the dish must—</p> <p>(a) be located in the rear yard, and</p> <p>(b) not be more than 1.8 metres in diameter, and</p> <p>(c) be no higher than 2.4 metres above the highest point of the existing ground level on the lot.</p> <p>1.3 The dish must be the same colour as its background or painted a neutral colour such as grey.</p> <p>1.4 If located in a heritage conservation area, the dish must not be visible from the street at ground level from the property boundary.</p> |
| 2 | A panel antenna, yagi antenna or other directional antenna on land other than in Zone R1, R2, R3, R4, R5 or RU5 or an equivalent land use zone                                                                                        | <p>2.1 If the antenna is not flush mounted to an existing structure—</p> <p>(a) the antenna must not be more than 2.8 metres long, and</p> <p>(b) the antenna must not be more than 8 metres (including support mount) in height above the building or structure to which it is attached, and</p> <p>(c) if located in a heritage conservation area—the antenna must not be visible from the street at ground level from the property boundary.</p> <p>2.2 The antenna must be the same colour as its background or painted a neutral colour such as grey.</p>                                                                                                                                                                 |
| 3 | An omnidirectional antenna on land other than in Zone R1, R2, R3, R4, R5 or RU5 or an equivalent land use zone                                                                                                                        | <p>3.1 An antenna must not be—</p> <p>(a) more than 8.5 metres in height, and</p> <p>(b) outrigged more than 500 millimetres from the support mount.</p> <p>3.2 The antenna must be the same colour as its background or painted a neutral colour such as grey.</p> <p>3.3 If located in a heritage conservation area, the antenna must not be visible from the street at ground level from the property boundary.</p>                                                                                                                                                                                                                                                                                                         |
| 4 | An extension to a tower on land other than in Zone R1, R2, R3, R4, R5 or RU5 or an equivalent land use zone                                                                                                                           | <p>4.1 The extension must be—</p> <p>(a) no greater than 7.5 metres in height, and</p> <p>(b) for co-location purposes.</p> <p>4.2 The tower to be extended must not have previously been extended.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

- |   |                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|---|------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 5 | New tower on land in Zone E4, E5, IN1, IN2, IN3, RU1, RU2, RU3 or RU4 or an equivalent land use zone | <p>5.1 If the tower is located on land in Zone E4, E5, IN1, IN2 or IN3 or an equivalent land use zone, the tower must not—</p> <p>(a) be located within 100 metres of a Zone R1, R2, R3, R4, R5 or RU5 or equivalent land use zone boundary, or</p> <p>(b) exceed 25 metres in height (including telecommunications facilities) where located between 100 and 150 metres from a Zone R1, R2, R3, R4, R5 or RU5 or equivalent land use zone boundary, or</p> <p>(c) exceed 30 metres in height (including telecommunications facilities), where located more than 150 metres from a Zone R1, R2, R3, R4, R5 or RU5 or equivalent land use zone boundary.</p> <p>5.2 If the tower is located on land in Zone RU1, RU2, RU3 or RU4 or an equivalent land use zone, the tower must not—</p> <p>(a) be located within 100 metres of a Zone R1, R2, R3, R4, R5 or RU5 or equivalent land use zone boundary, and</p> <p>(b) exceed 25 metres in height (including telecommunications facilities) where located between 100 and 150 metres from a Zone R1, R2, R3, R4, R5 or RU5 or equivalent land use zone boundary, and</p> <p>(c) exceed 50 metres in height (including telecommunications facilities), where located more than 150 metres from a Zone R1, R2, R3, R4, R5 or RU5 or equivalent land use zone boundary.</p> |
| 6 | Ancillary facilities to a telecommunications facility                                                | <p>6.1 If located in a heritage conservation area, the facilities must not be visible from the street at ground level from the property boundary.</p> <p>6.2 If the facilities include a standby power generator, it must be insulated to ensure noise levels do not exceed 35dB(A) from outside the generator housing.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

## Schedule 4A Exempt and complying development in cemeteries—Chapter 2

sections 2.172, 2.174 and 2.176

### Part 1 Exempt development

#### 1 Above ground burial structures

- (1) Development for the purposes of above ground burial structures.
- (2) The burial structure must not have an area of more than 25m<sup>2</sup>.
- (3) The burial structure must not be more than 4.5m above ground level (existing).
- (4) The development must comply with—
  - (a) AS 4204:2019 *Headstones and cemetery monuments*, and
  - (b) AS 4425:2020 *Above-ground burial structures*.
- (5) The development must not be carried out on—
  - (a) a floodway within the meaning of the *Flood Risk Management Manual*, or
  - (b) a flow path identified in the council's flood study or floodplain risk management study carried out in accordance with the *Flood Risk Management Manual*.
- (6) In this section—

**burial structure** means a structure in which human remains are placed and includes a mausoleum, vault or columbarium.

## 2 Ash gardens

Development for the purposes of gardens for the burial of cremated human remains and associated works.

## 3 Grave markers, headstones and headstone beams

(1) Development for the purposes of the following—

- (a) grave markers,
- (b) headstones,
- (c) headstone beams.

(2) The development must comply with—

- (a) AS 4204:2019 *Headstones and cemetery monuments*, and
- (b) AS 4425:2020 *Above-ground burial structures*.

(3) In this section—

**headstone beam** means a platform on which a headstone or other burial marker is installed.

## 4 Demolition of buildings

Development for the purposes of demolishing buildings, if the erection of the building is exempt development under this part.

## 5 Removal or pruning of trees

(1) Development for the purposes of the removal or pruning of trees.

(2) The tree must have been assessed by a Level 5 qualified arborist as posing a risk to human health or safety or a risk of damage to infrastructure.

(3) For the removal of a tree, a replacement tree capable of achieving a mature height of at least 3m must be planted within the boundaries of the cemetery.

(4) This section applies despite section 2.20(2)(i).

(5) In this section—

**Level 5 qualified arborist** means an arborist with a minimum AQF Level 5 in Arboriculture under the Australian Qualifications Framework, within the meaning of the [Higher Education Act 2001](#), section 7.

## 6 Sheds and carports

(1) Development for the purposes of sheds and carports.

(2) The development must not be carried out on land in—

- (a) a foreshore area, or
- (b) an environmentally sensitive area within the meaning of [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#).

(3) The shed or carport must be free-standing, prefabricated and constructed of non-reflective materials.

(4) The development must not result in a shed with a gross floor area of more than 36m<sup>2</sup>.

- (5) The shed or carport must not be higher than 3.6m above ground level (existing).
- (6) If the development is carried out on land on which a State or local heritage item is located or in a heritage conservation area, the shed or carport must not be visible from a public road.
- (7) The shed or carport must be at least—
  - (a) 3m away from any boundary with land in a residential or employment zone, or
  - (b) 0.9m away from any boundary with other land.

## **7 At grade car parks, hardstand spaces, internal roads and pathways and paving**

- (1) Development for the purposes of the following—
  - (a) at grade car parks,
  - (b) hardstand spaces,
  - (c) internal roads,
  - (d) pathways and paving.
- (2) The area of all development must be no greater than 5% of the area of the cemetery.
- (3) Despite subsection (2), alterations or additions to existing development must be no greater than the area of the existing development.
- (4) Surface water or run-off must be disposed of by a drainage system connected to the existing stormwater drainage system.
- (5) Development for the purposes of internal roads and at grade car parks must comply with AS/NZS 2890.1:2004, *Parking facilities - Off-street car parking*.
- (6) For development for the purposes of at grade car parks—
  - (a) the development must not be carried out on land in—
    - (i) a foreshore area, or
    - (ii) an environmentally sensitive area within the meaning of [\*State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008\*](#), and
  - (b) if carried out on land on which a State or local heritage item is located or in a heritage conservation area—the car park must not be visible from a public road, and
  - (c) the development must not result in a sealed car park with more than 50 car spaces.

## **8 Earthworks and retaining walls**

- (1) Development for the purposes of earthworks and retaining walls.
- (2) The development must not be carried out on land—
  - (a) in a foreshore area, or
  - (b) in an environmentally sensitive area within the meaning of [\*State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008\*](#), or
  - (c) within 40m of a waterbody (natural), or
  - (d) in a flood planning area within the meaning of the *Flood Risk Management Manual*.

- (3) The earthworks or retaining wall must not be higher than 2m above ground level (existing).
- (4) If the development involves excavation, the excavation must not be deeper than 1m below ground level (existing).
- (5) If the development involves the use of fill, the fill must be virgin excavated natural material within the meaning of the [Protection of the Environment Operations Act 1997](#), Schedule 1.

## 9 Fencing

- (1) Development for the purposes of fencing.
- (2) The fencing must not be higher than 1.8m above ground level (existing).
- (3) If the development is located in a core koala habitat or potential koala habitat within the meaning of [State Environmental Planning Policy \(Biodiversity and Conservation\) 2021](#), Chapter 3 or in a movement corridor used by koalas, the fencing must be constructed or installed in accordance with any relevant council policy or guideline under that policy, Chapter 3 or 4.
- (4) For development carried out on non-urban land, the portion of the fence that is further than 3m away from an entrance to the cemetery must be constructed using the following materials—
  - (a) post and wire,
  - (b) post and rail.
- (5) For development carried out on land other than non-urban land, the portion of the fence that is further than 3m away from an entrance to the cemetery facing a primary road must comply with the following—
  - (a) the part of the fence that is more than 1.2m above ground level (existing) must not be constructed of masonry,
  - (b) for development on land on the boundary of a road, or on land within a setback area of a road—at least 75% of the part of the fence that is more than 1.2m above ground level (existing) must have an open design.

## 10 Decks, terraces and pergolas

- (1) Development for the purposes of decks, terraces and pergolas.
- (2) The deck, terrace or pergola must—
  - (a) have an area of no more than 25m<sup>2</sup>, and
  - (b) not be higher than 4.5m above ground level (existing), and
  - (c) not have a floor higher than 1m above ground level (existing), and
  - (d) not cause the total floor area of decks, terraces or pergolas to exceed 200m<sup>2</sup>, and
  - (e) be at least 3m away from land in a residential or employment zone.
- (3) If the development is for the purposes of replacing an existing deck, terrace or pergola the deck, terrace or pergola must—
  - (a) be constructed from equivalent or improved quality materials, and
  - (b) not increase the gross floor area or height of the existing structure by more than 5%.

## 11 Landscaping and landscape structures

- (1) Development for the purposes of landscaping and landscape structures.
- (2) The development must not be carried out—

- (a) in a foreshore area, or
  - (b) within 900m of the boundary of the cemetery.
- (3) If the development is carried out on land on which a State or local heritage item is located or in a heritage conservation area, the landscaping or landscape structure must not be visible from a public road.
- (4) A landscaping structure must not—
- (a) be higher than 2.7m above ground level (existing), or
  - (b) be wider than 1.5m.
- (5) If the development includes a water feature or pond, the water feature or pond must not—
- (a) have a water depth of more than 300mm, or
  - (b) have a surface area of more than 50m<sup>2</sup>.
- (6) Despite subsection (5)(a), a pond sump may be placed in a water feature or pond below a water depth of 300mm if the sump is covered with a bolted or anchored grate capable of supporting a weight of 150kg.

## 12 Monuments, sculptures and art works

- (1) Development for the purposes of monuments, sculptures and artworks.
- (2) The monument, sculpture or artwork must not—
- (a) be higher than 6m above ground level (existing), or
  - (b) include masonry higher than 1m above ground level (existing), or
  - (c) have a footprint greater than 7m<sup>2</sup>, or
  - (d) cause nuisance to premises on adjoining land.

## 13 Signage

- (1) Development for the purposes of signage.
- (2) The signage must not—
- (a) be higher than 5m above ground level (existing), or
  - (b) have an area greater than 3.5m<sup>2</sup>, or
  - (c) be electronic, or
  - (d) obstruct or interfere with a traffic sign, or
  - (e) include the advertising of goods, products or services that are not related to the operations of the cemetery.
- (3) If the development is carried out on the following land, the development must be able to be removed without causing damage to the heritage item—
- (a) land on which a State or local heritage item is located,
  - (b) land subject to an interim heritage order under the [Heritage Act 1977](#).
- (4) If the development comprises the alteration of an existing sign, the development must not result in a change to the size or form of the existing sign.
- (5) The development must comply with AS 4282–1997, *Control of the obtrusive effects of outdoor lighting*.

**14 Minor internal alterations to existing buildings**

- (1) Development for the purposes of internal alterations to existing buildings.
- (2) The development must not involve an alteration to the following—
  - (a) a food preparation area,
  - (b) a structural component of a building,
  - (c) a load-bearing component of a building.

**15 Minor external alterations to existing buildings**

- (1) Development for the purposes of external alterations to existing buildings.
- (2) The development must not—
  - (a) involve the making of, or an alteration to the size of, an opening in a wall or roof, such as a doorway, window or skylight, or
  - (b) reduce the existing fire resistance level of a wall or roof, or
  - (c) involve the use of external combustible cladding, or
  - (d) affect the means of egress from the building in an emergency, or
  - (e) reduce the structural integrity of the building, or
  - (f) cause the building to be located within 1m of a registered easement, or
  - (g) result in plant or equipment being visible from a public road or reserve.
- (3) If the building is located on bush fire prone land—
  - (a) the part of the building comprising the alteration must—
    - (i) be adequately sealed or protected to prevent the entry of embers, and
    - (ii) be constructed of equivalent or improved quality materials, and
  - (b) the development must not involve an alteration to the fire resisting components of the building.

**16 Access and mobility structures**

- (1) Development for the purposes of access and mobility structures.
- (2) The structure must not create a pedestrian or traffic hazard.
- (3) The development must comply with AS 1428.1–2021, *Design for access and mobility, Part 1: General requirements for access—New building work*.

**17 Rainwater and bore water tanks**

- (1) Development for the purposes of rainwater and bore water tanks.
- (2) The development must not be carried out on land—
  - (a) in a foreshore area, or
  - (b) in an environmentally sensitive area within the meaning of [\*State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008\*](#).

- (3) If the development is carried out on land on which a State or local heritage item is located or in a heritage conservation area, the tank must not be visible from a public road.
- (4) The tank must—
- (a) for a tank on land in a relevant zone—be located at least 1m from the boundary of the cemetery, and
  - (b) for a tank on other land—be located at least 10m from the boundary of the cemetery, and
  - (c) if the development is for an underground tank—not be located on land identified on an [\*Acid Sulfate Soils Map\*](#) as “Class 1”, “Class 2”, “Class 3”, “Class 4” or “Class 5”, and
  - (d) be fitted with a first-flush device incorporating an automatic resetting valve that causes initial run-off rainwater to bypass the tank, and
  - (e) be affixed with a sign that identifies the source of the water, and
  - (f) if reticulated water is provided to the lot—not be interconnected with a system supplying drinking water to the lot, unless it complies with the relevant water authority’s requirements.
- (5) If the development is for an above ground tank, the development must not involve—
- (a) the placement of fill more than 1m above ground level (existing), or
  - (b) excavation deeper than 1m below ground level (existing).

- (6) In this section—

**relevant zone** means the following—

- (a) Zone E1 Local Centre,
- (b) Zone E2 Commercial Centre,
- (c) Zone E3 Productivity Support,
- (d) Zone R1 General Residential,
- (e) Zone R2 Low Density Residential,
- (f) Zone R3 Medium Density Residential,
- (g) Zone R4 High Density Residential,
- (h) Zone RU5 Village.

## 18 Infill burials

- (1) Development for the purposes of the burial of human remains.
- (2) The development must be carried out in an existing burial area in a cemetery.

## Part 2 Complying development

### 19 Above ground burial structures

- (1) Development for the purposes of above ground burial structures.
- (2) The burial structure must not have an area of more than 100m<sup>2</sup>.
- (3) The burial structure must not be more than 5.5m above ground level (existing).
- (4) The development must comply with—

(a) AS 4204:2019 *Headstones and cemetery monuments*, and

(b) AS 4425:2020 *Above-ground burial structures*.

(5) The burial structure must not be located within 10m of land in a residential or employment zone.

(6) The development must not involve earthworks more than 1m above or below ground level (existing).

(7) In this section—

***burial structure*** means a structure in which human remains, other than cremated human remains, are placed and includes a mausoleum, vault or columbarium.

## 20 Burial areas

(1) Development for the purposes of burial areas.

(2) A burial must not result in a grave floor that is less than 1m above the highest seasonal water table.

(3) The land on which the development is carried out—

(a) must have at least 2m of soil below ground level, and

(b) must have a soil permeability of 0.001-0.5m/d measured in accordance with methods outlined in AS/NZS 1547: 2012 *On-site domestic wastewater management*, and

(c) must have a gradient of less than 10%, and

(d) must be land that will not be inundated by the discharge of a 1:100 ARI (average recurrent interval) flood event.

(4) The development must not increase an existing burial area by more than 10%.

(5) The burial area must be at least—

(a) 100m from a wetland, and

(b) 3m from the boundary of the cemetery, and

(c) 10m from land in the following—

(i) Zone R1 General Residential,

(ii) Zone R2 Low Density Residential,

(iii) Zone R3 Medium Density Residential,

(iv) Zone R4 High Density Residential,

(v) Zone R5 Large Lot Residential, and

(d) 40m from an intermittent waterbody or watercourse, and

(e) 100m from a permanent waterbody or watercourse, and

(f) 10m from the following—

(i) a path of overland flow water within the meaning of the [Water Management Act 2000](#),

(ii) a drain that is less than less than 30cm below ground level (existing).

(6) A geotechnical engineer must certify that the development complies with subsections (2) and (3)(a) and (b).

(7) A civil engineer must certify that the development complies with subsections (3)(c) and (d) and (5)(d)–(f).

## 21 Ancillary buildings

- (1) Development for the purposes of ancillary buildings.
- (2) The building must not have a gross floor area greater than the maximum gross floor area.
- (3) The building must not have a height greater than the maximum building height.
- (4) If the development is for alterations or additions to an existing building that has a gross floor area greater than the maximum gross floor area, the gross floor area of the resulting building must not be increased by more than 10%.
- (5) If the development is for alterations or additions to an existing building that has a height greater than the maximum building height, the height of the resulting building must not be greater than the height of the existing building.
- (6) For development on land in Zone RU1, RU2, RU4, SP1, SP2, RE1 or RE2, the building must not be located within—
  - (a) 10m of land in a residential or employment zone, or
  - (b) 5m of land in another zone.
- (7) For development on land in a zone other than Zone RU1, RU2, RU4, SP1, SP2, RE1 or RE2, the building must not be located within 3m of the boundary of the cemetery.
- (8) The development must not increase the gross floor area used for the following—
  - (a) commercial premises,
  - (b) function centres,
  - (c) places of public worship.
- (9) If the building is within a flood planning area, the building must have a minimum floor level no lower than the floor levels set by the council for the land.
- (10) The development must not be carried out on land in bush fire attack level-40 (BAL-40) or the flame zone (BAL-FZ).
- (11) For subsection (10), land is not in bush fire attack level-40 (BAL-40) or the flame zone (BAL-FZ) if—
  - (a) the council or a person who is recognised by the NSW Rural Fire Service as a suitably qualified consultant in bush fire risk assessment determines, in accordance with the methodology specified in *Planning for Bush Fire Protection*, that the land is not in bush fire attack level-40 (BAL-40) or the flame zone (BAL-FZ), or
  - (b) for development carried out on grasslands—the development conforms to the specifications and requirements of Table 7.9a of *Planning for Bush Fire Protection* that are relevant to the development.
- (12) Subsections (10) and (11) do not prevent complying development being carried out on part of a lot that is not on land referred to in subsection (10), even if other parts of the lot are on land referred to in subsection (10).
- (13) In this section—

**bush fire attack level-40 (BAL-40)** has the same meaning as in AS 3959:2018, *Construction of buildings in bushfire-prone areas*.

**flame zone (BAL-FZ)** has the same meaning as in AS 3959:2018, *Construction of buildings in bushfire-prone areas*.

***flood planning area*** has the same meaning as in the *Flood Risk Management Manual*.

***maximum building height*** means a building height of—

- (a) if the building is on land in Zone RU1, RU2, RU4, SP1, SP2, RE1 or RE2—7m, or
- (b) otherwise—5.5m.

***maximum gross floor area*** means a gross floor area of—

- (a) if the building is on land in Zone RU1, RU2, RU4, SP1, SP2, RE1 or RE2—200m<sup>2</sup>, or
- (b) otherwise—100m<sup>2</sup>.

## 22 External and internal alterations to existing buildings

- (1) Development for the purposes of external and internal alterations to an existing building.
- (2) The development must not increase—
  - (a) the gross floor area of the building, or
  - (b) the gross floor area used for the purposes of commercial premises, or
  - (c) the footprint of the building.
- (3) The development must not result in the building being higher than—
  - (a) the height limit specified in an environmental planning instrument applying to the land, or
  - (b) if there is no applicable limit—the existing building.
- (4) If the development relates to food and drink premises, the development must comply with AS 4674–2004, *Design, construction and fit-out of food premises*.

## Part 3 General development standards for complying development

### 23 Drainage

All stormwater drainage collected as a result of the carrying out of development must be conveyed by a gravity fed or charged system to—

- (a) a public drainage system, or
- (b) an inter-allotment drainage system, or
- (c) an on-site disposal system.

#### **Note—**

All stormwater drainage systems and connections to public drainage systems or inter-allotment drainage systems must be approved under the [Local Government Act 1993](#), section 68 or comply with the requirements for the disposal of stormwater in the development control plan that applies to the land.

### 24 Flood control lots

- (1) This section applies to complying development carried out on a flood control lot.
- (2) The development must not be carried out on part of a flood control lot unless that part of the lot has been certified by the council or a professional engineer who specialises in hydraulic engineering as not being the following—
  - (a) a flood storage area,
  - (b) a floodway,

- (c) a flow path, high hazard area or high risk area identified in the council's flood study or floodplain risk management study carried out in accordance with the *Flood Risk Management Manual*.

(3) The development must, to the extent it is within a flood planning area—

- (a) for the materials used in the part of the development at or below the flood planning level—be flood compatible, and
- (b) be able to withstand the forces of floodwater, debris and buoyancy up to the flood planning level, or, if on-site refuge is proposed, the probable maximum flood level, and
- (c) not increase flood affectation elsewhere in the floodplain.

(4) A standard specified in subsection (3)(b) or (c) is satisfied if a joint report by a professional engineer who specialises in hydraulic engineering and a professional engineer who specialises in civil engineering confirms that the development will satisfy the standard.

(5) A word or expression used in this section has the same meaning as in the *Flood Risk Management Manual*.

(6) In this section—

***flood compatible material*** means building materials and surface finishes capable of withstanding prolonged immersion in water.

***flood control lot*** means a lot located within or partly within an area identified in a local environmental plan as a flood planning area.

## 25 Earthworks

(1) Excavation must be structurally sound.

(2) Excavation must not be carried out—

- (a) more than 1m below ground level (existing), for land identified as “Class 3” or “Class 4” on an [Acid Sulfate Soils Map](#), or
- (b) more than 3m below ground level (existing), for other land.

(3) Excavation on land not specified in subsection (2) must not be more than 3m below ground level (existing).

(4) Excavation must be—

- (a) carried out at least 40m from a waterbody (natural), and
- (b) if carried out on a lot adjacent to a rail corridor—set back at least 3m from the corridor.

(5) Fill must—

- (a) not raise the ground level (existing) more than 2m, and
- (b) be structurally sound, and
- (c) be located at least 40m from a waterbody (natural).

(6) Excavation and fill are structurally sound for subsections (1) and (5)(b) if the earthworks have structural support that—

- (a) has been certified as structurally sound by a professional engineer, including in relation to the ability to withstand the forces of lateral soil load, and
- (b) has adequate drainage lines connected to an existing stormwater drainage system for the site, and
- (c) does not redirect the flow of water or cause sediment to be transported onto an adjoining property, and

(d) is not higher than 3m.

## 26 Garbage and waste

- (1) This section applies to complying development involving the erection of a building, if the building does not have an existing garbage and waste storage area.
- (2) A garbage and waste storage area must be provided as part of the development.
- (3) The garbage and waste storage area must comply with the document entitled *Better Practice Guidelines for Waste Management and Recycling in Commercial and Industrial Facilities*, ISBN 978-1-74293-944-5, published by the NSW Environment Protection Authority in December 2012.

## Part 4 Complying development certificate conditions

### 27 Excavated material

A complying development certificate is subject to the condition that material excavated from an area containing saline soil or acid sulfate soil must be managed in accordance with the *Waste Classification Guidelines, Part 4: Acid sulfate soils*, published by the NSW Environment Protection Authority in November 2014.

### 28 Stockpiled soil

A complying development certificate is subject to the condition that temporarily excavated and stockpiled soil must be stored so that it is separated from the flow of surface water and is covered to prevent the transportation of sediment.

### 29 Burial in burial areas

A complying development certificate for development specified in section 20 is subject to the condition that a burial

- (a) must not occur at a depth greater than 2.8m below ground level, and
- (b) must allow for at least 900mm of soil to be placed above the remains.

## Schedule 5 Exempt development—Chapter 3

(Sections 3.17, 3.39(3), 3.49(3) and 3.56(3))

### Development purpose

### Development standards

#### General provisions

Access ramps and any associated chair hoist for persons with a disability

- Ramps must provide access to public transport, outdoor recreational areas or the ground floor of buildings or car parks.
- Grade must not exceed 1:14 and must comply with AS 1428.1–2009, *Design for access and mobility—General requirements for access—New building work*.
- Ramp structures must not create a traffic or pedestrian hazard or be part of a State or local heritage item.

|                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|-----------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Air conditioning units                                                | <ul style="list-style-type: none"> <li>• Must have a Minimum Energy Performance Standard consistent with AS/NZS 3823.2:2013, <i>Performance of electrical appliances—Airconditioners and heat pumps—Energy labelling and minimum energy performance standard (MEPS) requirements</i>.</li> <li>• Noise level must not exceed 5dB above the rating background noise level when measured at the boundary of the most affected residential premises (or potentially most affected residential premises), determined in accordance with the Noise Policy.</li> <li>• Source noise must not exhibit tonal noise, as defined in the Noise Policy (being noise containing a prominent frequency and characterised by a definite pitch).<br/>In these standards, <b>the Noise Policy</b> means the document entitled <i>NSW Industrial Noise Policy</i> (ISBN 0 7313 2715 2) published in January 2000 by the Environment Protection Authority.</li> </ul>                                                                                                                     |
| Building external alterations including re-cladding roofs or walls    | <ul style="list-style-type: none"> <li>• Must involve only repair or renovation, or painting, plastering or other decoration, of building.</li> <li>• Must not result in enlargement or extension of building or increase in load-bearing capacity of any load-bearing component of building.</li> <li>• Must not involve the use of external combustible cladding within the meaning of the <a href="#">Environmental Planning and Assessment (Development Certification and Fire Safety) Regulation 2021</a>.</li> <li>• Any re-cladding must— <ul style="list-style-type: none"> <li>(i) not involve structural alterations, and</li> <li>(ii) involve only replacing existing materials with similar materials unless the use of those materials is a breach of these development standards.</li> </ul> </li> </ul>                                                                                                                                                                                                                                                |
| Building external alterations—the enclosure of balconies and walkways | <ul style="list-style-type: none"> <li>• Must not increase the building envelope.</li> <li>• Must not result in an enlargement or extension of the building or an increase in the load bearing capacity of any load-bearing component of the building.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| Building internal alterations                                         | <ul style="list-style-type: none"> <li>• Must be non-structural alterations to existing building only, such as— <ul style="list-style-type: none"> <li>(i) replacement of doors, wall, ceiling or floor linings or deteriorated frame members with equivalent or improved quality materials, or</li> <li>(ii) inclusion of built-in fixtures.</li> </ul> </li> <li>• Must not affect load-bearing capacity of any load-bearing component of building.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| Car parks—at grade car parks only                                     | <ul style="list-style-type: none"> <li>• Must be open (unenclosed) car parking (but may include associated gates including security booths and boom gates).</li> <li>• Must not reduce car parking spaces.</li> <li>• Must be constructed or installed so that any surface water or run-off is disposed of by a drainage system that is connected to the existing stormwater drainage system.</li> <li>• Must be constructed in accordance with AS/NZS 2890.1:2004, <i>Parking facilities, Part 1: Off-street car parking</i> or AS 2890.2—2002, <i>Parking facilities, Part 2: Off-street commercial vehicle facilities</i>.</li> <li>• Must not require cut or fill more than 1m below or above ground level (existing).</li> <li>• Must not be carried out on land within a growth centre (within the meaning of <a href="#">State Environmental Planning Policy (Sydney Region Growth Centres) 2006</a>) that is not <b>subject land</b> within the meaning of clause 17 of Schedule 7 to the <a href="#">Threatened Species Conservation Act 1995</a>.</li> </ul> |

|                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Carports associated with an existing building                                                                                                                                                                                                                                                 | <ul style="list-style-type: none"> <li>• Surface area must not exceed 36m<sup>2</sup>.</li> <li>• Height must not exceed 3.5m above ground level (existing) and external wall height must not exceed 3m above ground level (existing).</li> <li>• Must be located behind any relevant building setback.</li> <li>• Must be no part of structure within 500mm of any side or rear boundary.</li> <li>• Stormwater drainage or run-off must be via connection to existing stormwater system.</li> </ul> |
| Decks (unroofed and attached to a building that is not located on bush fire prone land)                                                                                                                                                                                                       | <ul style="list-style-type: none"> <li>• Surface area must not exceed 10m<sup>2</sup>.</li> <li>• Finished surface level must not be more than 1m above ground level (existing).</li> <li>• Boundary setbacks for existing building to be maintained.</li> </ul>                                                                                                                                                                                                                                      |
| Demolition of buildings or structures that are not a heritage item or within a heritage conservation area                                                                                                                                                                                     | <ul style="list-style-type: none"> <li>• Must be carried out in accordance with AS 2601–2001, <i>Demolition of structures</i>.</li> <li>• Must not cover an area of more than 250m<sup>2</sup>.</li> </ul>                                                                                                                                                                                                                                                                                            |
| Fences—erection of security fences                                                                                                                                                                                                                                                            | <ul style="list-style-type: none"> <li>• Height must not exceed 3m above ground level (existing).</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                          |
| Fences (other than security fences or fences covered by the <a href="#">Swimming Pools Act 1992</a> )                                                                                                                                                                                         | <ul style="list-style-type: none"> <li>• Must be constructed so as not to prevent natural flow of stormwater drainage or run-off.</li> <li>• If in a residential zone, height of boundary fence must not exceed 1.8m above ground level (existing) if behind front building line and 1.2m if forward of that line.</li> <li>• Must not include masonry construction to a height of more than 900mm above ground level (existing).</li> </ul>                                                          |
| Fire fighting emergency equipment—construction or maintenance of emergency equipment including replacement or augmentation of fire systems and fire water tanks                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| Flagpoles                                                                                                                                                                                                                                                                                     | <ul style="list-style-type: none"> <li>• Height must not exceed 6m above ground level (existing) or above an existing building.</li> <li>• Must not display commercial advertising.</li> <li>• Flagpole structure and any attached flag must not project over public road.</li> </ul>                                                                                                                                                                                                                 |
| Geotechnical investigations and other testing, surveying and sampling for the purposes of the design or assessment of proposed development or for the purposes of system development or determining the safety or condition of infrastructure                                                 | <ul style="list-style-type: none"> <li>• Must not involve greater disturbance of the ground or vegetation than is necessary.</li> <li>• Must not result in an increase in stormwater drainage or run-off from the site concerned.</li> </ul>                                                                                                                                                                                                                                                          |
| Hoardings to restrict unauthorised entry to construction sites—erection in conjunction with erection or demolition of, or carrying out of alterations or additions to, a building or carrying out of maintenance or repairs (for which, in each case, any required consent has been obtained) | <ul style="list-style-type: none"> <li>• Must not encroach onto footpath or public thoroughfare.</li> <li>• Must be removed immediately on completion of work if removal will not give rise to safety risk.</li> </ul>                                                                                                                                                                                                                                                                                |
| Landscaping (including paving and turfing and access tracks) carried out in conjunction with other development which is exempt under Chapter 3                                                                                                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

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|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Lighting—installation, construction, maintenance or operation                                                                                                                                                                              | <ul style="list-style-type: none"> <li>• Construction and maintenance of external lighting if light spill is contained within site and in accordance with AS 4282–1997, <i>Control of the obtrusive effects of outdoor lighting</i> and AS/NZS 1158.4:2015, <i>Lighting for Roads and Public Spaces</i>.</li> <li>• Construction and maintenance of lighting at or in vicinity of air transport facilities if consistent with <i>Manual of Standards (MOS)—Part 139—Aerodromes</i> published by the Civil Aviation Safety Authority (established under <a href="#">Civil Aviation Act 1988</a> of the Commonwealth).</li> </ul>                                                                                                                                                                                                                             |
| Offices—portable                                                                                                                                                                                                                           | <ul style="list-style-type: none"> <li>• Height must not exceed 1 storey.</li> <li>• Setbacks must be in accordance with any applicable setback provisions of development control plan applying to site.</li> <li>• Must not be carried out on land within a growth centre (within the meaning of <a href="#">State Environmental Planning Policy (Sydney Region Growth Centres) 2006</a>) that is not <b>subject land</b> within the meaning of clause 17 of Schedule 7 to the <a href="#">Threatened Species Conservation Act 1995</a>.</li> </ul>                                                                                                                                                                                                                                                                                                        |
| Pergolas and storm blinds                                                                                                                                                                                                                  | <ul style="list-style-type: none"> <li>• Surface area must not exceed 20m<sup>2</sup>.</li> <li>• Height must not exceed 2.4m above ground level (existing).</li> <li>• Must maintain all required boundary setbacks for the associated building and no part of structure must be within 900mm of any property boundary.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| Rainwater and bore water tanks                                                                                                                                                                                                             | <ul style="list-style-type: none"> <li>• Height (including any stand) must not exceed 2.4m above ground level (existing).</li> <li>• No part of structure must be within 450mm of any property boundary or situated no closer to street than any associated building.</li> <li>• Rainwater tank must be fitted with first-flush device that causes initial run-off of any rain to bypass tank to reduce pollutants entering tank.</li> <li>• Installation must not involve excavation of more than 1m from ground level (existing), or filling of more than 1m above ground level (existing).</li> <li>• Must not be installed over any structure or fittings used by public authority to maintain water or sewer main.</li> <li>• Must be sign affixed to tank, clearly stating that water in tank is rainwater or bore water (as appropriate).</li> </ul> |
| Retaining walls                                                                                                                                                                                                                            | <ul style="list-style-type: none"> <li>• Must not provide for retaining of fill to height above ground level (existing) of more than 2m or excavation to depth below ground level (existing) of more than 1m.</li> <li>• Must not prevent the natural flow of stormwater drainage/run-off.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| Scaffolding—erection in conjunction with erection or demolition of, or carrying out of alterations or additions to, a building or carrying out of maintenance or repairs (for which, in each case, any required consent has been obtained) | <ul style="list-style-type: none"> <li>• Must not encroach onto footpath or public thoroughfare.</li> <li>• Temporary fencing must be provided to restrict unauthorised access to site if scaffolding is within 3m of any boundary.</li> <li>• Must be removed immediately on completion of work if removal will not give rise to safety risk.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| Security cameras—installation for security purposes                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| Sheds                                                                                                                                                                                                                                      | <ul style="list-style-type: none"> <li>• Must be free-standing, prefabricated and constructed of non-reflective materials.</li> <li>• Development must not result in shed with a total floor area exceeding 30m<sup>2</sup>.</li> <li>• Height must not exceed 2.5m above ground level (existing).</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

Skylight or roof windows

- Area of skylight must not exceed 2m<sup>2</sup>.
- Must not be located within 900mm of any property boundary or within 900mm of any wall separating attached dwellings.
- Work must not reduce structural integrity of building or involve structural alterations.

## Signs

Existing signs—maintenance, replacement or change in display if existing sign is exempt development under Chapter 3

- Must not involve a change in area, form or shape.
- Distance between ground level (existing) and top edge of sign must not be more than 6m.

Identification, directional, community information or safety signs but not including roof-top signs or commercial advertising or signs associated with the use of road infrastructure (including signs associated with level crossings)

- Surface area must not exceed 8m<sup>2</sup>.
- Must be located wholly within property boundary or be attached to existing boundary fence and not projecting more than 100mm from fence.
- Obtrusive effects of outdoor lighting must be controlled in accordance with AS 4282–1997, *Control of the obtrusive effects of outdoor lighting*.
- Distance between ground level (existing) and bottom edge of sign must not be more than 6m.
- Must not involve electronic signage or moving displays.

Identification, directional, community information or safety signs associated with the use of road infrastructure

- Distance between ground level (existing) and bottom edge of sign must not be more than 6m.
- Must not involve electronic signage or moving displays.

Temporary signs advertising an event and associated relevant details including sponsorship of the event

- Surface area must not exceed 8m<sup>2</sup>.
- Must be located wholly within property boundary.
- Must not be displayed earlier than 28 days before event and must be removed within 14 days after event.
- Obtrusive effects of outdoor lighting must be controlled in accordance with AS 4282–1997 *Control of the obtrusive effects of outdoor lighting*.
- Distance between ground level (existing) and bottom edge of sign must not be more than 6m.
- Must not involve electronic signage or moving displays.

## Schedule 6 Complying development in schools—Chapter 3

sections 3.40(5) and 3.41(2)(e)

### 1 Definitions

(1) A word or expression used in this Schedule has the same meaning as it has in [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#) unless it is otherwise defined in this Schedule.

(2) In this Schedule—

**ground level (finished)** means, for any point on a site, the ground surface after completion of any earthworks (excluding any excavation for a basement, footings or the like) for which consent has been granted or that is exempt development.

**ground level (mean)** means, for any site on which a building is situated or proposed, one half of the sum of the highest and lowest levels at ground level (finished) of the outer surface of the external walls of the building.

## 2 Building height

The building height of a building (whether a new building, or an existing building as a result of an addition or alteration)—

- (a) must not exceed 4 storeys, and
- (b) must not exceed 22m from ground level (mean).

## 3 Side and rear setback

A building (whether a new building, or an existing building as a result of an addition or alteration) or any part of a building (including a basement or any other part of a building that is constructed below ground)—

- (a) that is 12m or less in height—must be located more than 5m from any side or rear property boundary with land in a residential or conservation zone or more than 1m from any side or rear property boundary with land in any other zone, or
- (b) that is more than 12m but less than 15m in height—must be located more than 8m from any side or rear property boundary with land in a residential or conservation zone or more than 2.5m from any side or rear property boundary with land in any other zone, or
- (c) that is more than 15m but no more than 22m in height—must be located more than 10m from any side or rear property boundary with land in a residential or conservation zone or more than 4m from any side or rear property boundary with land in any other zone.

## 4 Front setback

(1) A new building must have a front setback—

- (a) that is not less than the average distance of the front setbacks of all existing development that is located within 70m of the building, or
- (b) if there is no development located within 70m of the building—of at least 5m.

(2) Alterations or additions to an existing building must not result in the building having a front setback—

- (a) that is less than the average distance of the front setbacks of all existing development that is located within 70m of the building, or
- (b) if there is no development located within 70m of the building—of less than 5m.

## 5 Design and materials

A new building or an alteration or addition to an existing building must comply with the following—

- (a) any new external walls or roof of the building must be constructed of non-reflective material,
- (b) any external walls of the building that face a public road or reserve must contain windows.

## 6 Noise

A new building or (if the development is an alteration or addition to an existing building for the purpose of changing its use) an existing building that is to be used for the purpose of a school or school-based child care must be designed so as not to emit noise exceeding an LAeq of 5 dB(A) above background noise when measured at any property boundary.

## 7 Overshadowing

A new building or an alteration or addition to an existing building must not overshadow any adjoining residential accommodation so that solar access to any habitable room or principal private open space on the adjoining property —

- (a) is reduced to less than 3 hours of solar access between 9:00 am and 3:00 pm at the winter solstice, or
- (b) is reduced in any manner if solar access to any habitable room on the adjoining property is already less than 3 hours.

## 8 Privacy

A window in a new building, or a new window in any alteration or addition to an existing building, must have a privacy screen for any part of the window that is less than 1.5m above finished floor level if—

- (a) the finished floor level is more than 1.5m above ground level (mean), and
- (b) the window faces a building used for residential accommodation on an adjoining lot, and
- (c) the wall in which the window is located has a setback of less than 5m from the boundary of that adjoining lot.

## 9 Landscape

Landscaping must be provided for a new building constructed adjacent to the boundary of land in Zone R1 General Residential, Zone R2 Low Density Residential, Zone R3 Medium Density Residential or Zone R4 High Density Residential, as follows—

- (a) the landscaped area located along the part of the common boundary adjacent to the new building must be 3m wide,
- (b) the landscaped area must contain trees or shrubs (that grow to a mature height of 3m or more) that are—
  - (i) suitable for screening, and
  - (ii) not likely to pose a safety or health risk, and
  - (iii) listed on the council's preferred tree species list (if one exists).

## 10 Waste

- (1) A garbage and waste storage area for recyclable and non-recyclable waste materials and receptacles for those materials must—
  - (a) be provided as part of the development, and
  - (b) be located entirely within the lot on which the development is being carried out and not on a road or road reserve, and
  - (c) comply with the following appendices in the document titled *Better Practice Guidelines for Waste Management and Recycling in Commercial and Industrial Facilities* (ISBN 978 1 74293 944 5), published by the NSW Environment Protection Authority in December 2012—
    - (i) Appendices A and B, for the size and location of garbage and storage areas and the size of waste receptacles,
    - (ii) Appendices C and D, for the design of openings of waste storage areas and loading bay turning circles for waste removal vehicles,
    - (iii) Appendix E, for standard signs for waste storage areas,
    - (iv) Appendix F, for the design and operational capacity of waste storage areas.

- (2) The waste storage area must—
  - (a) be screened, and
  - (b) be located behind the primary road frontage building line, and
  - (c) not be located in any car parking, loading or landscaped area, and
  - (d) not be located on any side of the building that faces an adjoining lot on which there is residential accommodation.
- (3) This section does not apply if the development uses an existing garbage and waste storage area, whether or not the area complies with this section, that has capacity.

## 11 Earthworks

- (1) Earthworks for the purposes of the development must—
  - (a) be structurally supported in accordance with subsection (2), and
  - (b) if the land is not identified as Class 3 or Class 4 on an Acid Sulfate Soils Map—not be more than 3m below ground level (existing), and
  - (c) if the land is identified as Class 3 or Class 4 on an Acid Sulfate Soils Map—not be more than 1m below ground level (existing), and
  - (d) be carried out at least 40m from any waterbody (natural), and
  - (e) if the works are on a lot adjacent to a rail corridor—have a setback at least 3m from the corridor.
- (2) Structural support for earthworks more than 1m above or below ground level (existing) must take the form of a retaining wall or other form of structural support that—
  - (a) has been certified by a professional engineer, and
  - (b) has adequate drainage lines connected to an existing stormwater drainage system for the site, and
  - (c) does not redirect the flow of any water or cause sediment to be transported onto an adjoining property, and
  - (d) is not higher than 3m, and
  - (e) is separated from any other structural support on the site by at least 2m, measured horizontally.
- (3) Fill, for the purpose of the development, must—
  - (a) not raise the ground level (existing) more than 2m, and
  - (b) be wholly contained by structural support in accordance with subsection (2), and
  - (c) be located at least 40m from any waterbody (natural).

## 12 Drainage

- (1) All stormwater drainage collecting as a result of the development must be conveyed by a gravity fed or charged system to—
  - (a) a public drainage system, or
  - (b) an inter-allotment drainage system, or
  - (c) an on-site disposal system.

- (2) All stormwater drainage systems within a lot and the connection to a public or an inter-allotment drainage system must—
- (a) if an approval is required under section 68 of the [Local Government Act 1993](#), be approved under that Act, or
  - (b) if an approval is not required under section 68 of the [Local Government Act 1993](#), comply with any requirements for the disposal of stormwater drainage contained in a development control plan that is applicable to the land.

### 13 Flood control lots

- (1) This section applies—
- (a) to all development that is to be carried out on a flood control lot, and
  - (b) in addition to all other development standards specified for complying development under Chapter 2.
- (2) The development must not be on any part of a flood control lot unless that part of the lot has been certified, for the purposes of the issue of the relevant complying development certificate, by the council or a professional engineer who specialises in hydraulic engineering, as not being any of the following—
- (a) a flood storage area,
  - (b) a floodway,
  - (c) a flow path,
  - (d) a high hazard area,
  - (e) a high risk area.
- (3) The development must, to the extent it is within a flood planning area—
- (a) have a minimum floor level no lower than the floor levels set by the council for that lot, and
  - (b) have the part of the development at or below the flood planning level constructed of flood compatible material, and
  - (c) be able to withstand the forces of floodwater, debris and buoyancy up to the flood planning level (or, if on-site refuge is proposed, the probable maximum flood level), and
  - (d) not increase flood affectation elsewhere in the floodplain, and
  - (e) have reliable access for pedestrians and vehicles from the development, at a minimum level equal to the lowest floor level of the development, to a safe refuge, and
  - (f) have open car parking spaces or carports that are no lower than the 20-year flood level, and
  - (g) have driveways between car parking spaces and the connecting public roadway that will not be inundated by a depth of water greater than 0.3m during a 1:100 ARI (average recurrent interval) flood event.
- (4) A standard specified in subsection (3)(c) or (d) is satisfied if a joint report by a professional engineer who specialises in hydraulic engineering and a professional engineer who specialises in civil engineering confirms that the development—
- (a) can withstand the forces of floodwater, debris and buoyancy up to the flood planning level (or, if on-site refuge is proposed, the probable maximum flood level), or
  - (b) will not increase flood affectation elsewhere in the floodplain.

(5) If a word or expression used in this section is defined in the *Flood Risk Management Manual*, the word or expression has the same meaning as it has in that Manual unless it is otherwise defined in this section.

(6) In this section—

***flood compatible material*** means building materials and surface finishes capable of withstanding prolonged immersion in water.

***flood control lot*** means a lot located within or partly within an area identified in a local environmental plan as a flood planning area.

***flow path*** means a flow path identified in the council's flood study or floodplain risk management study carried out in accordance with the *Flood Risk Management Manual*.

***high hazard area*** means a high hazard area identified in the council's flood study or floodplain risk management study carried out in accordance with the *Flood Risk Management Manual*.

***high risk area*** means a high risk area identified in the council's flood study or floodplain risk management study carried out in accordance with the *Flood Risk Management Manual*.

## Schedule 7 Complying development in universities and TAFEs—Chapter 3

(Sections 3.50(3) and 3.57(5))

### 1 Definitions

(1) A word or expression used in this Schedule has the same meaning as it has in [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#) unless it is otherwise defined in this Schedule.

(2) In this Schedule—

***ground level (finished)*** means, for any point on a site, the ground surface after completion of any earthworks (excluding any excavation for a basement, footings or the like) for which consent has been granted or that is exempt development.

***ground level (mean)*** means, for any site on which a building is situated or proposed, one half of the sum of the highest and lowest levels at ground level (finished) of the outer surface of the external walls of the building.

### 2 Building height

The building height of a building (whether a new building, or an existing building as a result of an addition or alteration) must not exceed 15m from ground level (mean).

### 3 Maximum gross floor area

(1) The maximum gross floor area of a new building is—

- (a) the maximum gross floor area for a building on the land, imposed by an environmental planning instrument, or
- (b) if no environmental planning instrument imposes a development standard referred to in paragraph (a)—2,000m<sup>2</sup>.

(2) If the development is an alteration or addition to an existing building, the maximum gross floor area of the building as altered or added to is—

- (a) the maximum gross floor area for a building on the land, imposed by an environmental planning instrument, or
- (b) if no environmental planning instrument imposes a development standard referred to in paragraph (a)—the lesser of—

- (i) 2,000m<sup>2</sup>, or
- (ii) 50% of the gross floor area of the existing building.

#### **4 Side and rear setback**

- (1) A new building must be located at least 5m from any side or rear property boundary with land in a residential or conservation zone or at least 1m from any side or rear property boundary with land in any other zone.
- (2) Alterations or additions to an existing building must not—
  - (a) if the existing setback is less than 5m from a side or rear boundary—result in any decrease in the existing set back of the building from that boundary, or
  - (b) if the existing setback is 5m or more from a side or rear boundary—result in the building being located less than 5m from any side or rear property boundary with land in a residential or conservation zone or less than 1m from any side or rear property boundary with land in any other zone.

#### **5 Front setback**

- (1) A new building must have a front setback—
  - (a) that is not less than the average distance of the front setbacks of all existing development that is located within 70m of the building, or
  - (b) if there is no development located within 70m of the building—of at least 5m.
- (2) Alterations or additions to an existing building must not result in the building having a front setback—
  - (a) that is less than the average distance of the front setbacks of all existing development that is located within 70m of the building, or
  - (b) if there is no development located within 70m of the building—of less than 5m.

#### **6 Design and materials**

A new building or an alteration or addition to an existing building must comply with the following—

- (a) any new external walls or roof of the building must be constructed of non-reflective material,
- (b) any external walls of the building that face a public road or reserve must contain windows.

#### **7 Noise**

A new building or (if the development is an alteration or addition to an existing building for the purpose of changing its use) an existing building that is to be used for the purpose of a recreation facility (indoor) or a community facility must—

- (a) if the building adjoins land used for residential accommodation—be located at least 20m from any boundary of the land, and
- (b) be designed so as not to emit noise exceeding an LAeq of 5 dB(A) above background noise when measured at any property boundary.

#### **8 Overshadowing**

A new building or an alteration or addition to an existing building must not overshadow any adjoining residential accommodation so that solar access to any habitable room or principal private open space on the adjoining property —

- (a) is reduced to less than 3 hours of solar access between 9:00 am and 3:00 pm at the winter solstice, or

- (b) is reduced in any manner if solar access to any habitable room on the adjoining property is already less than 3 hours.

## 9 Privacy

A window in a new building, or a new window in any alteration or addition to an existing building, must have a privacy screen for any part of the window that is less than 1.5m above finished floor level if—

- (a) the finished floor level is more than 1.5m above ground level (mean), and
- (b) the window faces a building used for residential accommodation on an adjoining lot, and
- (c) the wall in which the window is located has a setback of less than 10m from the boundary of that adjoining lot.

## 10 Landscape

Landscaping must be provided for a new building constructed adjacent to the boundary of land in Zone R1 General Residential, Zone R2 Low Density Residential, Zone R3 Medium Density Residential or Zone R4 High Density Residential, as follows—

- (a) the landscaped area located along the part of the common boundary adjacent to the new building must be 3m wide,
- (b) the landscaped area must contain trees or shrubs (that grow to a mature height of 3m or more) that are—
  - (i) suitable for screening, and
  - (ii) not likely to pose a safety or health risk.

## 11 Waste

- (1) A garbage and waste storage area for recyclable and non-recyclable waste materials and receptacles for those materials must—
  - (a) be provided as part of the development, and
  - (b) be located entirely within the lot on which the development is being carried out and not on a road or road reserve, and
  - (c) comply with the following appendices in the document titled *Better Practice Guidelines for Waste Management and Recycling in Commercial and Industrial Facilities* (ISBN 978 1 74293 944 5), published by the NSW Environment Protection Authority in December 2012—
    - (i) Appendices A and B, for the size and location of garbage and storage areas and the size of waste receptacles,
    - (ii) Appendices C and D, for the design of openings of waste storage areas and loading bay turning circles for waste removal vehicles,
    - (iii) Appendix E, for standard signs for waste storage areas,
    - (iv) Appendix F, for the design and operational capacity of waste storage areas.
- (2) The waste storage area must—
  - (a) be screened, and
  - (b) be located behind the primary road frontage building line, and
  - (c) not be located in any car parking, loading or landscaped area, and
  - (d) not be located on any side of the building that faces an adjoining lot on which there is residential accommodation.

- (3) This section does not apply if the development uses an existing garbage and waste storage area, whether or not the area complies with this section, that has capacity.

## 12 Earthworks

- (1) Earthworks for the purposes of the development must—
- (a) be structurally supported in accordance with subsection (2), and
  - (b) if the land is not identified as Class 3 or Class 4 on an Acid Sulfate Soils Map—not be more than 3m below ground level (existing), and
  - (c) if the land is identified as Class 3 or Class 4 on an Acid Sulfate Soils Map—not be more than 1m below ground level (existing), and
  - (d) be carried out at least 40m from any waterbody (natural), and
  - (e) if the works are on a lot adjacent to a rail corridor—have a setback at least 3m from the corridor.
- (2) Structural support for earthworks more than 1m above or below ground level (existing) must take the form of a retaining wall or other form of structural support that—
- (a) has been certified by a professional engineer, and
  - (b) has adequate drainage lines connected to an existing stormwater drainage system for the site, and
  - (c) does not redirect the flow of any water or cause sediment to be transported onto an adjoining property, and
  - (d) is not higher than 3m, and
  - (e) is separated from any other structural support on the site by at least 2m, measured horizontally.
- (3) Fill, for the purpose of the development, must—
- (a) not raise the ground level (existing) more than 2m, and
  - (b) be wholly contained by structural support in accordance with subsection (2), and
  - (c) be located at least 40m from any waterbody (natural).

## 13 Drainage

- (1) All stormwater drainage collecting as a result of the development must be conveyed by a gravity fed or charged system to—
- (a) a public drainage system, or
  - (b) an inter-allotment drainage system, or
  - (c) an on-site disposal system.
- (2) All stormwater drainage systems within a lot and the connection to a public or an inter-allotment drainage system must—
- (a) if an approval is required under section 68 of the [Local Government Act 1993](#), be approved under that Act, or
  - (b) if an approval is not required under section 68 of the [Local Government Act 1993](#), comply with any requirements for the disposal of stormwater drainage contained in a development control plan that is applicable to the land.

## 14 Bush fire prone land

- (1) This section applies—
  - (a) to all development on bush fire prone land, and
  - (b) in addition to all other development standards specified for complying development under Chapter 2.
- (2) The development may be carried out only if—
  - (a) the development conforms to the specifications and requirements of *Planning for Bush Fire Protection* that are relevant to the development, and
  - (b) the lot on which the development is carried out (the **relevant lot**) has direct access to a public road or a road vested in or maintained by the council, and
  - (c) a reticulated water supply is connected to the relevant lot, and
  - (d) a fire hydrant is located within 70m of the part of the development carried out on bush fire prone land, and
  - (e) mains electricity is connected to the relevant lot, and
  - (f) reticulated or bottled gas on the relevant lot is installed and maintained in accordance with AS/NZS 1596:2014, *The storage and handling of LP Gas* and the requirements of relevant authorities, for example, the requirement that metal piping must be used, and
  - (g) gas cylinders on the relevant lot that are within 10m of a dwelling—
    - (i) have the release valves directed away from the dwelling, and
    - (ii) are enclosed on the hazard side of the installation, and
    - (iii) have metal connections to and from the cylinders, and
  - (h) there are no polymer sheathed flexible gas supply lines to gas meters adjacent to a dwelling on the relevant lot or an adjoining lot.

### Note—

The requirements relating to the construction of buildings in bush fire prone areas set out in the *Building Code of Australia* also apply.

## 15 Flood control lots

- (1) This section applies—
  - (a) to all development that is to be carried out on a flood control lot, and
  - (b) in addition to all other development standards specified for complying development under Chapter 2.
- (2) The development must not be on any part of a flood control lot unless that part of the lot has been certified, for the purposes of the issue of the relevant complying development certificate, by the council or a professional engineer who specialises in hydraulic engineering, as not being any of the following—
  - (a) a flood storage area,
  - (b) a floodway,
  - (c) a flow path,
  - (d) a high hazard area,
  - (e) a high risk area.

- (3) The development must, to the extent it is within a flood planning area—
- (a) have a minimum floor level no lower than the floor levels set by the council for that lot, and
  - (b) have the part of the development at or below the flood planning level constructed of flood compatible material, and
  - (c) be able to withstand the forces of floodwater, debris and buoyancy up to the flood planning level (or, if on-site refuge is proposed, the probable maximum flood level), and
  - (d) not increase flood affectation elsewhere in the floodplain, and
  - (e) have reliable access for pedestrians and vehicles from the development, at a minimum level equal to the lowest floor level of the development, to a safe refuge, and
  - (f) have open car parking spaces or carports that are no lower than the 20-year flood level, and
  - (g) have driveways between car parking spaces and the connecting public roadway that will not be inundated by a depth of water greater than 0.3m during a 1:100 ARI (average recurrent interval) flood event.
- (4) A standard specified in subsection (3)(c) or (d) is satisfied if a joint report by a professional engineer who specialises in hydraulic engineering and a professional engineer who specialises in civil engineering confirms that the development—
- (a) can withstand the forces of floodwater, debris and buoyancy up to the flood planning level (or, if on-site refuge is proposed, the probable maximum flood level), or
  - (b) will not increase flood affectation elsewhere in the floodplain.
- (5) If a word or expression used in this section is defined in the *Flood Risk Management Manual*, the word or expression has the same meaning as it has in that Manual unless it is otherwise defined in this section.

- (6) In this section—

***flood compatible material*** means building materials and surface finishes capable of withstanding prolonged immersion in water.

***flood control lot*** means a lot located within or partly within an area identified in a local environmental plan as a flood planning area.

***flow path*** means a flow path identified in the council's flood study or floodplain risk management study carried out in accordance with the *Flood Risk Management Manual*.

***high hazard area*** means a high hazard area identified in the council's flood study or floodplain risk management study carried out in accordance with the *Flood Risk Management Manual*.

***high risk area*** means a high risk area identified in the council's flood study or floodplain risk management study carried out in accordance with the *Flood Risk Management Manual*.

## Schedule 8 Design quality principles in schools—Chapter 3

sections 3.35(3), 3.36(6)(a), 3.37(5A)(a), 3.37A(3), 3.45(3)(b)(i) and 3.52(3)

### 1 Responsive to context

Schools should be designed to respond to and enhance the positive qualities of their surroundings.

In designing built forms and landscapes, consideration should be given to a Country-centred approach and respond to site conditions such as orientation, topography, natural systems, Aboriginal and European cultural heritage and the impacts of climate change.

Landscapes should be integrated into the overall design to improve amenity and to help mitigate negative impacts on the streetscape and neighbouring sites.

## **2 Sustainable, efficient and resilient**

Good school design combines positive environmental, social and economic outcomes and should align with the principles of caring for Country.

Schools should be designed to be durable and resilient in an evolving climate.

Schools and their grounds should be designed to minimise the consumption of energy, water and other natural resources and reduce waste.

## **3 Accessible and inclusive**

School buildings and grounds should be welcoming, easy to navigate and accessible and inclusive for people with differing needs and abilities.

Schools should be designed to respond to the needs of children of different ages and developmental stages, foster a sense of belonging and seek to reflect the cultural diversity of the student body and community.

Schools should be designed to enable sharing of facilities with the community and to cater for activities outside of school hours.

## **4 Healthy and safe**

Good school design should support wellbeing by creating healthy internal and external environments.

The design should ensure safety and security within the school boundaries, while maintaining a welcoming address and accessible environment.

In designing schools, consideration should be given to connections, transport networks and safe routes for travel to and from school.

## **5 Functional and comfortable**

Schools should have comfortable and engaging spaces that are accessible for a wide range of formal and informal educational and community activities.

In designing schools, consideration should be given to the amenity of adjacent development, access to sunlight, natural ventilation, proximity to vegetation and landscape, outlook and visual and acoustic privacy.

Schools should include appropriate indoor and outdoor learning and play spaces, access to services and adequate storage.

## **6 Flexible and adaptable**

In designing schools, consideration should be given to future needs and take a long-term approach that is informed by site-wide strategic and spatial planning.

Good design for schools should deliver high environmental performance and ease of adaptation, and maximise multi-use facilities.

Schools should be adaptable to evolving teaching methods, future growth and changes in climate, and should minimise the environmental impact of the school across its life cycle.

## **7 Visually appealing**

School buildings and their landscape settings should be aesthetically pleasing by achieving good proportions and a balanced composition of built and natural elements.

Schools should be designed to respond to and have a positive impact on streetscape amenity and the quality and character of the neighbourhood.

The identity and street presence of schools should respond to the existing or desired future character of their locations.

The design of schools should reflect the school's civic role and community significance.

## Schedule 9 Savings and transitional provisions—Chapter 3

### 1 Savings provision

- (1) Chapter 3 does not apply to or in respect of the determination of a development application made under Part 4 of the Act, but not finally determined before the commencement of Chapter 3.
- (2) Despite subsection (1), before determining a development application referred to in that subsection for development for the purpose of a centre-based child care facility, the consent authority must take into consideration the regulatory requirements and the National Quality Framework Assessment Checklist set out in Part 4 of the *Child Care Planning Guideline*, in relation to the proposed development.
- (3) Chapter 3 does not apply to or in respect of the determination of an application for a complying development certificate made under Part 4 of the Act before 1 September 2017 but not finally determined before the commencement of *State Environmental Planning Policy (Educational Establishments and Child Care Facilities) Amendment 2017*.
- (4) Chapter 3 does not apply to or in respect of the determination of an application for an approval for an activity made by a proponent to a determining authority under Part 5 of the Act within 2 years before the commencement of Chapter 3 but not finally determined before that commencement.
- (5) Subject to subsection (2), an application to which subsection (1), (3) or (4) applies is to be determined as if Chapter 3 had not been made.
- (6) A reference in this section to Chapter 3 includes a reference to the amendments made by Schedule 6.
- (7) The following are taken not to be development to which Chapter 3 applies (to the extent that they would otherwise comprise development to which Chapter 3 applies)—
  - (a) the carrying out of an activity for which an approval was granted by a determining authority under Part 5 of the Act before the commencement of Chapter 3, if the carrying out of the activity under that approval begins within 2 years after that commencement,
  - (b) the carrying out of an activity for which an approval was granted by a determining authority in response to an application referred to in subsection (3) if the carrying out of the activity under that approval begins within 2 years after the grant of the approval,
  - (c) the carrying out of an activity for which the proponent is also the determining authority and in relation to which an environmental assessment under Part 5 of the Act has been completed if the carrying out of the activity is commenced within 2 years after the completion of the assessment.
- (8) In this section—

*activity* and *approval* have the same meanings as they have in Part 5 of the Act.

### 2 Complying development applications—bush fire prone land

If an application for a complying development certificate has been made before the commencement of [State Environmental Planning Policy Amendment \(Planning for Bush Fire Protection\) 2020](#) in relation to land to which Chapter 3 applies and the application has not been finally determined before that commencement, the application must be determined as if that Policy had not commenced.

**3 [State Environmental Planning Policy \(Educational Establishments and Child Care Facilities\) Amendment 2021](#)**

An amendment to Chapter 3 made by the [State Environmental Planning Policy \(Educational Establishments and Child Care Facilities\) Amendment 2021](#) does not apply to the following applications made but not finally determined before the commencement of that Policy—

- (a) a development application,
- (b) an application for a complying development certificate,
- (c) an application by a proponent for a determining authority's approval of an activity under the Act, Part 5.

**4 [State Environmental Planning Policy Amendment \(National Construction Code\) 2023](#)**

An application for a complying development certificate lodged before 1 May 2023 must be determined as if [State Environmental Planning Policy Amendment \(National Construction Code\) 2023](#) had not commenced.

**5 State Environmental Planning Policy Amendment (Flood Planning) 2023**

An application for a complying development certificate made, but not finally determined, before the commencement of *State Environmental Planning Policy Amendment (Flood Planning) 2023* must be determined as if that policy had not commenced.

**Schedule 10 Exempt development—Chapter 5**

(Section 5.24)

**Note.**

Exempt development may be carried out without the need for development consent under the Act. Such development is not exempt from any approval, licence, permit or authority that is required under any other Act and adjoining owners' property rights and the common law still apply.

**1 Building alterations**

(1) Building alterations consisting of any of the following—

- (a) non-structural alterations to the exteriors of buildings (such as painting, plastering, cement rendering, cladding, attaching fittings and decorative work), where the work does not involve the use of external combustible cladding within the meaning of the [Environmental Planning and Assessment \(Development Certification and Fire Safety\) Regulation 2021](#),
- (b) any work involving the removal of lead, or the removal of asbestos or asbestos cement if the removal complies with the *Code of practice: How to safely remove asbestos* published by SafeWork NSW in December 2022,
- (c) construction or installation of mechanical plant or an air conditioning unit.

(2) Interior alterations to a building that do not—

- (a) result in the load bearing capacity of any component of the building being exceeded, or
- (b) result in a change to the configuration of a room in a building that interferes with the operational effectiveness of any fire safety measures for the building, or
- (c) result in a change that detrimentally affects the operational effectiveness of the fire safety measures for the building.

**2 Bulk liquid storage tanks**

- (1) Bulk liquid storage tanks used to store liquids, and the storage of such liquids in the tanks, other than an excluded liquid.
- (2) The height of the bulk liquid storage tank must not exceed 32.5m above ground level (existing).

(2A) In addition, if the liquid is a combustible liquid—

- (a) the bulk liquid storage tank must only be used for the storage of combustible liquids, and
- (b) the total quantity of combustible liquid stored in a tank must be less than 2,000 tonnes, and
- (c) the combustible liquid must have a flash point above 60°C, and
- (d) the combustible liquid must not be stored at a temperature above its flash point, and
- (e) the development must comply with AS 1940:2017, *The storage and handling of flammable and combustible liquids*, and
- (f) the development must not share a bund with a bulk liquid storage tank containing an excluded liquid.

(3) For the purposes of this section, **excluded liquid** means a combustible liquid, a liquid that is dangerous goods of class 1, 2, 3, 4, 5, 6, 7, 8 or 9 under Part 2 of the Australian Dangerous Goods Code, liquefied petroleum gas or liquefied natural gas.

## **2A Storage of certain “gas-free” liquefied petroleum gas storage tanks and cylinders**

Storage of “gas-free” liquefied petroleum gas storage tanks and cylinders free from dangerous goods.

## **3 Bulk liquid storage tanks—change of stored liquid**

- (1) Change in kind of liquid stored in a bulk liquid storage tank, other than a change where the previous liquid stored or the new liquid consists of an excluded liquid.
- (2) For the purposes of this section, **excluded liquid** means a combustible liquid, a liquid that is dangerous goods of class 1, 2, 3, 4, 5, 6, 7, 8 or 9 under Part 2 of the Australian Dangerous Goods Code, liquefied petroleum gas or liquefied natural gas.

## **3A Bulk liquid storage tanks—change of stored liquid from Class 3 to combustible**

Change in kind of liquid stored in a bulk liquid storage tank from a liquid that is dangerous goods of class 3 under the *Australian Dangerous Goods Code*, Part 2, to a combustible liquid, or from a combustible liquid to another combustible liquid.

## **4 Bulk liquid storage and handling facilities—fittings, fixtures, pipelines and other fixed plant, equipment and dispensing facilities—maintenance, repair and replacement**

- (1) The following associated with bulk liquid storage and handling facilities—
  - (a) the maintenance, repair and replacement of fittings, fixtures, pipelines and other fixed plant and equipment,
  - (b) the maintenance and repair of dispensing facilities.
- (2) A replacement of fittings, fixtures, pipelines and other fixed plant and equipment involving an excluded liquid must be like-for-like.
- (3) This section does not apply to the following—
  - (a) modification to enlarge an existing pipeline for loading or unloading a bulk liquid storage tank containing an excluded liquid,
  - (b) modification to increase the flow rate of a pipeline for loading or unloading a bulk liquid storage tank containing an excluded liquid,
  - (c) installation of a new pipeline for loading or unloading a bulk liquid storage tank containing an excluded liquid,
  - (d) installation of a new dispensing facility to a bulk liquid storage tank containing an excluded liquid.

(4) In this section—

*excluded liquid* means the following—

- (a) a combustible liquid,
- (b) a liquid that is dangerous goods of class 1, 2, 3, 4, 5, 6, 7, 8 or 9 under the *Australian Dangerous Goods Code*, Part 2,
- (c) liquefied petroleum gas,
- (d) liquefied natural gas.

#### **4A Storage of non-flammable non-toxic gases**

- (1) Gas storage tanks used to store gases of Division 2.2 under the *Australian Dangerous Goods Code*, Part 2, including the storage of the gases.
- (2) A gas storage tank must not have a capacity to store more than 3 tonnes of gas.
- (3) The gas—
  - (a) must not be a gas of subsidiary hazard under the Australian Dangerous Goods Code, and
  - (b) must be stored in compliance with AS 1894—1997, *The storage and handling of non-flammable cryogenic and refrigerated liquids*.

#### **5 Car parks (at-grade)**

- (1) The construction or installation of an at-grade car park.
- (2) The car park must—
  - (a) be designed in accordance with AS 1428.1—2009, *Design for access and mobility Part 1: General requirements for access—New building work*, AS 1428.2—1992, *Design for access and mobility Part 2: Enhanced and additional requirements—Buildings and facilities*, AS 1428.3—1992, *Design for access and mobility Part 3: Requirements for children and adolescents with physical disabilities*, AS/NZS 1428.4.1:2009, *Design for access and mobility Part 4.1: Means to assist the orientation of people with vision impairment—Tactile ground surface indicators*, AS/NZS 2890.1:2004, *Parking facilities—Part 1: Off-street car parking* or AS 2890.2 2002, *Parking facilities Part 2: Off-street commercial vehicle facilities*, and
  - (b) be paved with concrete or bituminous surfaces, and
  - (c) be designed and constructed so that any surface water run-off drains to a stormwater drainage system or to a landscaped area.

#### **6 Demolition**

Demolition of a building or work in accordance with AS 2601—2001, *The demolition of structures*, other than—

- (a) demolition of bulk liquid storage tanks that have been used to store dangerous goods, or
- (b) demolition of pipelines that have been used to carry dangerous goods, or
- (c) demolition of liquefied petroleum gas storage tanks that together have a capacity to store, at any one time, a total of more than 3 tonnes of gas, or
- (d) demolition of a heritage item.

## 7 Driveways

- (1) The construction or installation of a driveway that is ancillary or incidental to a lawful use on the land on which the development is carried out.
- (2) The driveway must be designed in accordance with AS 2890.2—2002, *Parking facilities Part 2: Off-street commercial vehicle activities*.

### Note.

Approval is required under the [Roads Act 1993](#) for work done on public roads and under the [Road Transport Act 2013](#).

## 8 Emergency works

- (1) Works for the purpose of maintaining or restoring port facilities or emergency services equipment in order to ensure public safety or to protect buildings or the environment as a result of—
  - (a) a sudden natural event, including a storm, flood, tree fall, bush fire, land slip or coastal inundation, or
  - (b) an accident, equipment failure or structural collapse, or
  - (c) damage caused by vandalism or arson.
- (2) The works must not disturb soil or vegetation any more than is necessary to carry out the works.
- (3) The works must not affect the heritage value of any heritage item any more than is necessary to carry out the works.

## 9 Fences or gates (including security boom gates)

- (1) The construction or installation of a fence or gate (including a security boom gate).
- (2) Any security fence must not exceed 5m in height.

## 10 Flagpoles

- (1) The construction or installation of a flagpole.
- (2) The flagpole must—
  - (a) have a height above ground level (existing) of not more than 30m or, if erected on or attached to a building, extend not more than 10m above the highest point of the building, and
  - (b) not be located within 20m of any boundary of a property that is used for residential purposes, and
  - (c) not display any commercial advertisements for or about anything other than the Port Operator or a business located on the site.

## 11 Fuel storage tanks

- (1) Fuel storage tanks and dispensing facilities, if the development will not result in the total capacity of fuel storage tanks for a business exceeding 50,000 litres of fuel.
- (2) The tanks must—
  - (a) comply with the Australian Dangerous Goods Code, and
  - (b) comply with AS 1940:2017, *The storage and handling of flammable and combustible liquids*.

## 12 Hail netting

- (1) The construction or installation of hail netting.
- (2) The netting must—

- (a) have a height above ground level (existing) of not more than 12m, and
- (b) be dark in colour.

## 12A Investigations

- (1) Surveying works and works for the purpose of investigating the physical properties of soil, rock or seabed, including geotechnical investigation, and sediment sampling.
- (2) The development must disturb soil or vegetation only to the extent necessary to carry out the development.

## 12B Hardstand area for open-air storage facilities

- (1) The construction, installation and use of a hardstand area for the purpose of open-air storage facilities.
- (2) The hardstand area must—
  - (a) have a gross floor area of no more than 5,000m<sup>2</sup>, and
  - (b) only be used to store products that are bulk solids, and
  - (c) entirely contain the products during their storage, and
  - (d) be designed and constructed to withstand the loads for which it will be used, and
  - (e) be paved with concrete or bituminous surfaces.
- (3) The hardstand area must not—
  - (a) be used to store dangerous goods, or
  - (b) adversely impact on adjoining land or the amenity of the neighbourhood, including as a result of dust, odour or noise created by the development, or
  - (c) be located in, or in a way that impedes access to, parking or loading bays or spaces, vehicle turnaround areas or docks, or
  - (d) redirect the flow of surface water, or cause sediment to be transported, onto an adjoining property or into a waterway, or
  - (e) adversely affect access into, across or out of the Lease Area for the purpose of an evacuation or attendance by emergency services.
- (4) The development must not be inconsistent with, or contravene, a provision or condition of a development consent applying to the land.
- (5) The land on which the development is carried out must be suitable for the use of the hardstand area for the purpose of open-air storage facilities.

## 13 Landscaping

The construction or installation of landscaping works and landscaping structures, including landscaping works and landscaping structures used for drainage.

## 14 Lighting

- (1) The construction or installation of lighting, including structures for external lighting.
- (2) All new external lighting must—
  - (a) comply with AS/NZS 4282:2019, *Control of the obtrusive effects of outdoor lighting*, and

- (b) comply with sections 9.1.3 (Lighting in the Vicinity of an Aerodrome) and 9.21 (Lighting in the Vicinity of Aerodromes) of the *Manual of Standards Part 139—Aerodromes* made under the [Civil Aviation Safety Regulations 1998](#) of the Commonwealth, and
  - (c) if constructed or installed on land at Port Botany—be mounted, screened and directed in such manner that it does not create a nuisance or light spill onto land outside the Lease Area or into Penrhyn Estuary or its flushing channel, or shine into the Estuary.
- (3) The lighting or structures must not exceed a height of 35m above ground level (existing) or, if erected on or attached to a building, must not extend more than 10m above the highest point of the building.

## **15 Liquefied petroleum gas storage tanks**

- (1) Liquefied petroleum gas storage tanks, if the development will not result in the total capacity of liquefied petroleum gas storage tanks for a business exceeding 3 tonnes of gas.
- (2) The containers must comply with the following—
  - (a) the Australian Dangerous Goods Code,
  - (b) AS 1940:2017, *The storage and handling of flammable and combustible liquids*,
  - (c) AS/NZS 1596:2014, *The storage and handling of LP Gas*.

### **15A Maintenance and repair**

- (1) The maintenance, repair or replacement of fittings, fixtures and infrastructure in relation to development for the purpose of port facilities.
- (2) The work may involve excavation works, but only to the extent necessary to carry out the maintenance, repair or replacement.

## **16 Minor works for securing, accessing or protecting wharves or vessels**

The construction or installation, and the removal, of minor works for securing, accessing or protecting wharves or vessels, including ladders, railings, catwalks, ramps, fenders, mooring infrastructure and cathodic protection systems.

## **17 Paving**

- (1) The construction or installation of paving, including the replacement and maintenance or repair of paving.
- (2) The paving must be designed and constructed—
  - (a) so as to withstand the loads for which it is to be used, and
  - (b) so that any surface water run-off drains to a stormwater drainage system or to a landscaped area.

## **18 Pedestrian ramps, paths and mechanical and non-mechanical stairways**

The construction or installation of pedestrian ramps, paths and mechanical and non-mechanical stairways.

### **18A Preloading works**

- (1) Preloading works for compression of soil before construction.
- (2) The development must—
  - (a) disturb soil or vegetation only to the extent necessary to carry out the development, and
  - (b) not damage any adjoining buildings or structures on the land or an adjoining lot, and
  - (c) not redirect the flow of surface water onto an adjoining lot, and

(d) not use fill other than—

(i) virgin excavated natural material, or

(ii) fill that is re-used in accordance with a resource recovery exemption in force under the [\*Protection of the Environment Operations \(Waste\) Regulation 2014\*](#).

## 19 Movable plant and equipment

The installation and maintenance of movable plant and equipment.

## 20 Pollution control facilities, work health and safety measures and environmental protection works

- (1) The construction and installation of facilities and works for the purposes of environmental protection works and the implementation of mitigation measures for pollution control and work, health and safety measures.
- (2) The development must—
  - (a) satisfy any applicable pollution control provisions and guidelines, and
  - (b) not be inconsistent with, or contravene, an existing development consent or an approval for a transitional Part 3A project that is an approved project applicable to the land or be undertaken for the purpose of remediating contaminated land.
- (3) Subsection (2)(b) does not apply to any provision or condition of an existing development consent or an approval for a transitional Part 3A project that is an approved project that limits development on the land to the use permitted by that consent.

## 21 Port facilities—change of use

- (1) Port facilities, if the development involves a change of use from a lawful use for the purposes of port facilities to another kind of use for the purposes of port facilities and the land on which the development is carried out is the subject of a contamination statement.
- (2) The new use must not be inconsistent with, or contravene, an existing development consent or an approval for a transitional Part 3A project that is an approved project applicable to the land. This subsection does not apply to any provision or condition of an existing development consent that limits development on the land to the use permitted by that consent.
- (3) The land on which the development is carried out must be suitable for the new use.
- (4) The new use—
  - (a) must not result in a change of classification of a building under the *Building Code of Australia*, and
  - (b) must not increase the level of fire hazard arising from the use of a building, and
  - (c) must not involve alterations to a building classified under the *Building Code of Australia*, other than alterations that are exempt development under Chapter 5.
- (5) In this section—

***certified contaminated land consultant*** means a person who holds either or both of the following certifications—

- (a) a Certified Professional Soil Scientist Contaminated Site Assessment and Management certification from Soil Science Australia,
- (b) a Certified Environmental Practitioner—Site Contamination certification from the Environment Institute of Australia and New Zealand.

***contamination statement*** means a statement—

- (a) prepared or endorsed by a certified contaminated land consultant, after considering applicable guidelines made under the [Contaminated Land Management Act 1997](#), section 105, and
- (b) stating the land is suitable for the intended purpose of the development.

## 22 Railway tracks

The construction or installation of railway tracks, including signals and sidings, and maintenance and replacement works.

### 22A Reefer points

The construction or installation of facilities for refrigerated containers.

## 23 Retaining walls (not including sea walls)

- (1) The construction or installation of a retaining wall (not including a sea wall).
- (2) The wall must—
  - (a) provide for the retaining of fill to a height above ground level (existing) of not more than 2m and excavation to a depth below ground level (existing) of not more than 1m, and
  - (b) comply with—
    - (i) AS 3700—2011, *Masonry structures* and AS 3700 Supp 1—2012, *Masonry structures—Commentary (Supplement 1 to AS 3700—2011)*, and
    - (ii) AS/NZS 1170.1:2002, *Structural design actions Part 1: Permanent, imposed and other actions* and AS/NZS 1170.1 Supp 1:2002, *Structural design actions—Permanent, imposed and other actions—Commentary (Supplement to AS/NZS 1170.1:2002)*, and
    - (iii) if the structure is made of timber, AS 1720:1—2010, *Timber structures Part 1: Design methods*, and
  - (c) be designed so as to manage the natural flow of stormwater or surface water run-off.

## 24 Road and rail infrastructure—minor maintenance, repairs and works

The carrying out of minor maintenance, minor repairs and other minor works to roads and rail infrastructure.

## 25 Roads—marking out

The marking out of roads, including the marking out of parking areas, queuing areas and pedestrian crossings.

### Note.

Approval is required under the [Roads Act 1993](#) for work done on public roads and under the [Road Transport \(Safety and Traffic Management\) Act 1999](#).

## 26 Safety or security barriers

The construction or installation, and removal, of safety or security barriers, including jersey barriers, earth berms and bollards.

## 27 Satellite dishes

The erection or installation of radio or satellite communication dishes for the purpose of receiving television or radio signals or for use in connection with community band or two-way radio.

## 28 Scaffolding

- (1) The construction, installation and removal of a scaffold or hoarding.
- (2) The development must—

- (a) comply with AS/NZS 1576.1:2010, *Scaffolding—General requirements*, and
- (b) be removed as soon as is practicable without compromising public health or safety.

## **29 Security and monitoring cameras and other devices**

- (1) The construction or installation of security cameras and other devices, including radar, communication devices and microwave receivers for the purposes of monitoring traffic, port navigation, tracking vessels or tracking trucks or for security purposes.
- (2) The development must not involve the erection of a new structure having a height exceeding 35m above ground level (existing).

## **30 Signage**

- (1) Signage (other than advertising structures).
- (2) A sign must comply with AS 1319—1994, *Safety signs for the occupational environment* and AS/NZS 4282:2019, *Control of the obtrusive effects of outdoor lighting*.

## **31 Signage—changes and maintenance and repair**

A change to the display on an existing sign, or the maintenance or repair of an existing sign.

## **32 Subdivision by Port Operator or Port Corporation**

The subdivision of land by the Port Operator or a Port Corporation.

## **33 Switch rooms and security booths**

- (1) The erection of a switch room or security booth.
- (2) The building must not have a gross floor area of more than 500m<sup>2</sup>.

## **34 Temporary structures**

- (1) The construction or installation, and removal, of a temporary structure, if the structure is used for a period totalling not more than 12 months.
- (2) Arrangements for disposal of waste associated with use of the structure must be lawful.

## **35 Temporary uses of land**

- (1) The temporary use of land for a maximum period of 182 days (whether or not consecutive days) in any period of 12 months.
- (2) The use must not prejudice the subsequent carrying out of development on the land in accordance with Chapter 5.
- (3) The use must not adversely impact on any adjoining land or the amenity of the neighbourhood.
- (4) The use must not adversely impact on environmental attributes or features of the land, or increase the risk of natural hazards that may affect the land.
- (5) This section does not apply to the use of land for the purposes of—
  - (a) bulk liquid storage, or
  - (b) the storage of dangerous goods.

## **36 Truck marshalling area**

- (1) The construction or installation of a truck marshalling area.

(2) The area must—

- (a) be paved with concrete or bituminous surfaces, and
  - (b) be designed and constructed to contain and collect leaks and spillages to ensure leaks and spillages do not contaminate the land or enter the stormwater system, and
  - (c) comply with AS 2890.2:2018, *Parking facilities, Part 2: Off-street commercial vehicle facilities*.
- (3) The development must not cause the contravention of a condition of a development consent applying to the land, which relates to car parking, loading, vehicular movement, waste management or landscaping.

### **37 Truck weighbridges and train weighbridges**

The construction and installation of a truck weighbridge or a train weighbridge.

### **38 Utilities and service facilities**

- (1) The construction or installation of a utility or service facility, including pipelines (other than pipelines used to carry dangerous goods or pipelines that are the subject of a licence under the [Pipelines Act 1967](#)) and stormwater drainage.
- (2) An overhead structure used to support a pipeline must be at a height that provides adequate clearance for road or rail traffic below the structure.

### **39 Washbays**

The construction and installation of washbays.

### **40 Water tanks**

The erection of one or more rainwater, grey water or bilge water tanks, having a capacity to store not more than 20,000 tonnes of water per tank, and the removal of such tanks.

## **Schedule 11 Complying development—Chapter 5**

(Section 5.25)

### **Part 1 Complying Development**

#### **Division 1 New port facility or wharf or boating facility buildings or alterations or additions to such buildings**

##### **Subdivision 1 Development specified**

###### **1 New port facility or wharf or boating facility buildings or alterations or additions to such buildings**

- (1) Erection and use of a new building for the purposes of port facilities or wharf or boating facilities, if the land on which the development is carried out is subject to a contamination statement.
- (2) An external or internal alteration of, or addition to, an existing building that is used for the purposes of port facilities or wharf or boating facilities, if the land on which the development is carried out is subject to a contamination statement or the development does not involve any disturbance of soil.

**Note.**

Some buildings or structures for the purposes of port facilities are exempt development specified in Schedule 10.

- (3) This section does not apply to a new building erected or used for the purposes of development of a kind specified as designated development, other than development specified in clause 28 or 30 of Schedule 3 to the [Environmental Planning and Assessment Regulation 2000](#).

- (4) Despite subsection (3), this section applies to development for the purposes of buildings that are ancillary to bulk liquid storage tanks.
- (5) This section does not apply to the erection and use of a building of a kind that is not within a classification of building under the *Building Code of Australia*.
- (6) In this section—

***certified contaminated land consultant*** means a person who holds either or both of the following certifications—

- (a) a Certified Professional Soil Scientist Contaminated Site Assessment and Management certification from Soil Science Australia,
- (b) a Certified Environmental Practitioner—Site Contamination certification from the Environment Institute of Australia and New Zealand.

***contamination statement*** means a statement—

- (a) prepared or endorsed by a certified contaminated land consultant, after considering applicable guidelines made under the [Contaminated Land Management Act 1997](#), section 105, and
- (b) stating the land is suitable for the intended purpose of the development.

## Subdivision 2 Development standards

### 2 Application of development standards

This Subdivision sets out the development standards that apply to development specified in Subdivision 1.

### 3 General standards

The development must not be inconsistent with, or contravene, any condition of an existing development consent or an approval for a transitional Part 3A project that is an approved project that applies to the land on which the development is to be carried out. This section does not apply to any provision or condition of an existing development consent that limits development on the land to the use permitted by that consent.

### 4 Building heights

The height of a new building, or building as altered or added to, must not exceed the maximum height specified on the [Height of Buildings Map](#).

**Note.**

All the land shown on the [Height of Buildings Map](#) is at Port Botany.

### 5 Gross floor area

- (1) The gross floor area of a new building must not exceed 30,000m<sup>2</sup>.
- (2) The gross floor area of any building, including any addition to the existing building, must not exceed 30,000m<sup>2</sup>.

### 6 Visual amenity

Air conditioning units and mechanical plant must be screened or positioned so as to minimise visibility from frontages to main roads within Port Botany, Port Kembla and the Port of Newcastle (other than private roads).

### 7 Materials, finishes and colour

Glazing must have a reflectivity coefficient of less than 20%.

## 8 Earthworks

- (1) Excavation works (other than excavation associated with piling) for the purposes of the development must not be more than 5m below ground level (existing) and the excavation must be structurally supported in accordance with subsection (2).
- (2) The structural support must take the form of a structural retaining system that—
  - (a) has been designed by a qualified engineer, and
  - (b) has a drainage system, and
  - (c) does not redirect the flow of surface water onto adjoining property, and
  - (d) is not higher than 5m, and
  - (e) in the case of works other than works required for an extension to an existing building, is separated from any other structural retaining system on the site by at least 2m measured horizontally.

## 9 Lighting

All new external lighting must—

- (a) comply with AS/NZS 4282:2019, *Control of the obtrusive effects of outdoor lighting*, and
- (b) comply with sections 9.1.3 (Lighting in the Vicinity of an Aerodrome) and 9.21 (Lighting in the Vicinity of Aerodromes) of the *Manual of Standards Part 139—Aerodromes* made under the [Civil Aviation Safety Regulations 1998](#) of the Commonwealth, and
- (c) if constructed or installed on land at Port Botany—be mounted, screened and directed in such manner that it does not create a nuisance or light spill onto land outside the Lease Area or into Penrhyn Estuary or its flushing channel, or shine into the Estuary.

## Division 2 Other development

### 10 Awnings or canopies

- (1) The construction or installation of an awning or canopy.
- (2) The development must not—
  - (a) result in an increase to the gross floor area of the building, or
  - (b) reduce the existing level of access to the building by people with a disability.
- (3) The development must be—
  - (a) (Repealed)
  - (b) not more than 3m in depth measured horizontally from the facade of the building, and
  - (c) no closer than 450mm to the edge of any kerb or alignment of a path or road on which vehicles travel.
- (4) The awning or canopy must be certified by a qualified engineer as having a satisfactory design.

### 10A Bridges used for purposes other than roads

- (1) The construction or installation of a bridge used for a purpose other than a road.
- (2) The bridge must be certified by a qualified engineer as having a satisfactory design and structural integrity.

## 11 Bulk liquid storage tanks

- (1) The construction and installation of bulk liquid storage tanks, including bunding, pipes and other associated infrastructure, on land in Port Botany and the Mayfield Bulk Liquid Storage Tanks Area.
- (2) The development must—
  - (a) not be, and not result in, a workplace that constitutes a major hazard facility, and
  - (b) have an estimated development cost of \$30 million or less, and
  - (c) comply with—
    - (i) AS 1940:2017, *The storage and handling of flammable and combustible liquids*, and
    - (ii) AS 3846—2005, *The handling and transport of dangerous cargoes in port areas*, and
  - (d) for development on land in Port Botany—comply with—
    - (i) AS/NZS 1596:2014, *The storage and handling of LP Gas*, and
    - (ii) AS 3961:2017, *The storage and handling of liquefied natural gas*.
- (3) The tanks must be used to store—
  - (a) for development on land in Port Botany—
    - (i) combustible liquids, or
    - (ii) dangerous goods classified as class 3, 8 or 9 under the *Australian Dangerous Goods Code*, Part 2, or
    - (iii) liquefied petroleum gas, or
    - (iv) liquefied natural gas, or
  - (b) for development on land in the Mayfield Bulk Liquid Storage Tanks Area—diesel fuel or dangerous goods classified as class 3 under the *Australian Dangerous Goods Code*, Part 2 in a way and volume assessed for the substance under the Newcastle LUSS.
- (4) The height of the tanks must not exceed 32.5m above ground level (existing).
- (5) The tanks must be certified by a qualified engineer as having a satisfactory design and structural integrity.
- (6) A hazard analysis, prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 6: Hazard Analysis*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary for the most hazardous substance proposed to be stored in the tanks, must demonstrate that—
  - (a) the development meets the applicable risk criteria set out in the *Hazardous Industry Planning Advisory Paper No 4: Risk Criteria for Land Use Safety Planning*, dated January 2011 and published on the Department's website, and
  - (b) if constructed or installed on land at Port Botany—the development will not cause—
    - (i) an increase in the individual risk levels shown in the Port Botany LUSS, Figure 2, or
    - (ii) societal risk to exceed the ALARP band shown in the Port Botany LUSS, Figure 9, and
  - (c) if constructed or installed on land in the Mayfield Bulk Liquid Storage Tanks Area—the development will not cause—
    - (i) an increase in the individual risk levels shown in the Newcastle LUSS, Figure 3, or

- (ii) societal risk to exceed the ALARP band shown in the Newcastle LUSS, Appendix C, page 25, Figure 4-25.

- (7) A fire safety study must be prepared, in accordance with the *Hazardous Industry Planning Advisory Paper No 2: Fire Safety Study Guidelines*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary.
- (8) A hazard and operability study must be prepared, in accordance with the *Hazardous Industry Planning Advisory Paper No 8: HAZOP Guidelines*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary.
- (9) The development must comply with the recommendations, if any, made by the studies prepared under this section in relation to the development.

**Note—**

Approvals for cranes and other structures may need to be obtained under the [Airports Act 1996](#) of the Commonwealth.

**12 Bulk liquid storage tanks—change of stored liquid at Port Botany**

- (1) Change in kind of liquid stored in a bulk liquid storage tank on land in Port Botany if the previous liquid stored or the new liquid consist of—
- (a) a combustible liquid, or
  - (b) dangerous goods of class 3, 8 or 9 under the *Australian Dangerous Goods Code*, Part 2.
- (2) A hazard analysis prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 6: Hazard Analysis*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary must demonstrate that—
- (a) the development meets the applicable risk criteria set out in the *Hazardous Industry Planning Advisory Paper No 4, Risk Criteria for Land Use Safety Planning*, dated January 2011 and published on the Department's website, and
  - (b) the development will not cause—
    - (i) an increase in the individual risk levels shown in the Port Botany LUSS, Figure 2, or
    - (ii) societal risk to exceed the ALARP band shown in the Port Botany LUSS, Figure 9.
- (3) A hazard analysis is not required to be prepared under subsection (2) if—
- (a) a hazard analysis that complies with subsection (2) has been prepared for the storage of a liquid that has the same or a higher level of hazard than the liquid proposed to be stored in the tank, and
  - (b) the change is not to or from a liquid consisting of dangerous goods of class 8 or 9 under the *Australian Dangerous Goods Code*, Part 2.
- (4) A hazard and operability study must be prepared, in accordance with the *Hazardous Industry Planning Advisory Paper No 8: HAZOP Guidelines*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary.
- (5) The development must comply with—
- (a) AS 1940:2017, *The storage and handling of flammable and combustible liquids*, and
  - (b) AS 3846—2005, *The handling and transport of dangerous cargoes in port areas*, and
  - (c) the recommendations, if any, made by the studies prepared under this section in relation to the development.

**12A Bulk liquid storage tanks—change of stored liquid in Mayfield Bulk Liquid Storage Tanks Area**

- (1) Change in kind of liquid stored in a bulk liquid storage tank on land in the Mayfield Bulk Liquid Storage Tanks Area if the previous liquid stored or the new liquid consist of—
  - (a) diesel fuel, or
  - (b) dangerous goods of class 3 under the *Australian Dangerous Goods Code*, Part 2.
- (2) The new liquid must be stored in a way and volume assessed for the substance under the Newcastle LUSS.
- (3) A hazard analysis prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 6: Hazard Analysis*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary must demonstrate that—
  - (a) the development meets the applicable risk criteria set out in the *Hazardous Industry Planning Advisory Paper No 4: Risk Criteria for Land Use Safety Planning*, dated January 2011 and published on the Department's website, and
  - (b) the development will not cause—
    - (i) an increase in the individual risk levels shown in the Newcastle LUSS, Figure 3, or
    - (ii) societal risk to exceed the ALARP band shown in the Newcastle LUSS, Appendix C, page 25, Figure 4-25.
- (4) A hazard analysis is not required to be prepared under subsection (3) if a hazard analysis that complies with subsection (3) has been prepared for the storage of a liquid that has the same or a higher level of hazard than the liquid proposed to be stored in the tank.
- (5) A hazard and operability study must be prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 8: HAZOP Guidelines*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary.
- (6) The development must comply with—
  - (a) AS 1940:2017, *The storage and handling of flammable and combustible liquids*, and
  - (b) AS 3846—2005, *The handling and transport of dangerous cargoes in port areas*, and
  - (c) the recommendations, if any, made by the studies prepared under this section in relation to the development.

**13 Bulk liquid storage tanks—modifications to pipelines and flow rates**

- (1) For a bulk liquid storage tank used to store dangerous goods of class 2, including liquefied petroleum gas or liquefied natural gas, 3, 5, 6, 8 or 9 under the *Australian Dangerous Goods Code*, Part 2—
  - (a) modifications to enlarge an existing pipeline for loading or unloading to the bulk liquid storage tank, or
  - (b) modifications to increase the flow rate of a pipeline for loading or unloading to or from the bulk liquid storage tank, or
  - (c) installation of a new pipeline or dispensing facilities for loading or unloading to the bulk liquid storage tank.
- (2) A hazard analysis prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 6: Hazard Analysis*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary must demonstrate that—
  - (a) the development meets the applicable risk criteria set out in the *Hazardous Industry Planning Advisory Paper No 4: Risk Criteria for Land Use Safety Planning*, dated January 2011 and published on the Department's website, and

- (b) for development on land in the Mayfield Bulk Liquid Storage Tanks Area—the development will not cause—
  - (i) an increase in the individual risk levels shown in the Newcastle LUSS, Figure 3, or
  - (ii) societal risk to exceed the ALARP band shown in the Newcastle LUSS, Appendix C, page 25, Figure 4-25, and
- (c) for development on land at Port Botany—the development will not cause—
  - (i) an increase in the individual risk levels shown in the Port Botany LUSS, Figure 2, or
  - (ii) societal risk to exceed the ALARP band shown in the Port Botany LUSS, Figure 9.
- (3) A hazard analysis is not required to be prepared under subsection (2) if a hazard analysis that complies with subsection (2) has been prepared for the storage of a liquid that has the same or a higher level of hazard than the liquid proposed to be stored in the tank.
- (4) A fire safety study must be prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 2: Fire Safety Study Guidelines*, dated January 2011 and published on the Department’s website, by a person approved by the Planning Secretary if the tank is used to store the following liquids—
  - (a) liquids of dangerous goods class 2, including liquefied petroleum gas or liquefied natural gas, 3 or 5 under the *Australian Dangerous Goods Code*, Part 2,
  - (b) high temperature liquids of dangerous goods class 9 under the *Australian Dangerous Goods Code*, Part 2.
- (5) A hazard and operability study must be prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 8: HAZOP Guidelines*, dated January 2011 and published on the Department’s website, by a person approved by the Planning Secretary.
- (6) The development must comply with the recommendations, if any, made by the studies in relation to the development.

### **13AA Storage of “liquid empty” LPG storage tanks, road tankers, storage vessels and cylinders at Port Botany**

- (1) The storage at Port Botany of “liquid empty” storage tanks, road tankers and gas cylinders and other storage vessels used for storing or transporting liquefied petroleum gas (the *relevant items*).
- (2) The relevant items must be stored on a dedicated area paved with concrete or bituminous surfaces.
- (3) A hazard analysis prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 6: Hazard Analysis*, dated January 2011 and published on the Department’s website, by a person approved by the Planning Secretary must demonstrate that—
  - (a) the development meets the applicable risk criteria set out in the *Hazardous Industry Planning Advisory Paper No 4: Risk Criteria for Land Use Safety Planning*, dated January 2011 and published on the Department’s website, and
  - (b) the development will not cause—
    - (i) an increase in the individual risk levels shown in the Port Botany LUSS, Figure 2, or
    - (ii) societal risk to exceed the ALARP band shown in the Port Botany LUSS, Figure 9.
- (4) The hazard analysis must be prepared in relation to the most hazardous substance proposed to be stored in the tanks.
- (5) A fire safety study must be prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 2: Fire Safety Study Guidelines*, dated January 2011 and published on the Department’s website, by a person approved by the Planning Secretary.

- (6) The storage of the relevant items must—
- (a) be ancillary to an existing facility for the bulk storage of liquefied petroleum gas at Port Botany, and
  - (b) not adversely affect access into, across or out of the Lease Area for the purpose of an evacuation or attendance by emergency services, and
  - (c) comply with—
    - (i) AS/NZS 1596:2014, *The storage and handling of LP Gas*, and
    - (ii) the recommendations, if any, set out in the studies.
- (7) The development—
- (a) must be carried out on the site of a bulk liquid storage facility, and
  - (b) must not have previously been carried out on the site, whether or not as complying development.

### **13AB Filling and storage of LPG cylinders at Port Botany**

- (1) The filling of gas cylinders with liquefied petroleum gas and the storage of the filled gas cylinders at Port Botany.
- (2) The cylinders must be filled and stored on a dedicated area paved with concrete or bituminous surfaces.
- (3) A hazard analysis prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 6: Hazard Analysis*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary must demonstrate that—
- (a) the development meets the applicable risk criteria set out in the *Hazardous Industry Planning Advisory Paper No 4: Risk Criteria for Land Use Safety Planning*, dated January 2011 and published on the Department's website, and
  - (b) the development will not cause—
    - (i) an increase in the individual risk levels shown in the Port Botany LUSS, Figure 2, or
    - (ii) societal risk to exceed the ALARP band shown in the Port Botany LUSS, Figure 9.
- (4) The hazard analysis must be prepared in relation to the most hazardous substance proposed to be stored in the tanks.
- (5) A fire safety study must be prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 2: Fire Safety Study Guidelines*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary.
- (6) A hazard and operability study must be prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 8: HAZOP Guidelines*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary.
- (7) The development must—
- (a) be ancillary to an existing facility for bulk storage of liquefied petroleum gas at Port Botany, and
  - (b) not operate as a gas bottle exchange for the public, and
  - (c) comply with—
    - (i) AS/NZS 1596:2014, *The storage and handling of LP Gas*, and
    - (ii) AS 4332—2004, *The storage and handling of gases in cylinders*, and

- (iii) the recommendations, if any, made by the studies in relation to the development, and
- (d) be carried out on the site of a bulk liquid storage facility, and
- (e) not have previously been carried out on the site, whether or not as complying development.

**13AC Temporary parking of road tankers in dedicated parking areas in Mayfield Bulk Liquid Storage Tanks Area**

- (1) The construction, installation and use of a parking area for the purposes of providing temporary parking for road tankers (the *temporary parking*) on land within the Mayfield Bulk Liquid Storage Tanks Area.
- (2) The tankers must, while parked in the parking area, only store dangerous goods of class 3 under the *Australian Dangerous Goods Code*, Part 2.
- (3) A hazard analysis prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 6: Hazard Analysis*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary must demonstrate that—
  - (a) the development meets the applicable risk criteria set out in the *Hazardous Industry Planning Advisory Paper No 4: Risk Criteria for Land Use Safety Planning*, dated January 2011 and published on the Department's website, and
  - (b) the development will not cause—
    - (i) an increase in the individual risk levels shown in the Newcastle LUSS, Figure 3, or
    - (ii) societal risk to exceed the ALARP band shown in the Newcastle LUSS, Appendix C, page 25, Figure 4-25.
- (4) The hazard analysis must be prepared in relation to the most hazardous substance proposed to be stored in the tanks.
- (5) A fire safety study must be prepared in accordance with the *Hazardous Industry Planning Advisory Paper No 2: Fire Safety Study Guidelines*, dated January 2011 and published on the Department's website, by a person approved by the Planning Secretary.
- (6) The temporary parking must—
  - (a) not be located—
    - (i) on a road or road related area within the meaning of the [Road Transport Act 2013](#), or
    - (ii) in, or in a way that impedes access to, other parking or loading bays or spaces, vehicle turnaround areas, or docks, or
    - (iii) on the site of a petrol station, and
  - (b) be located on a dedicated area paved with concrete or bituminous surfaces, and
  - (c) be ancillary to an existing facility used for handling the material stored in the tanker, and
  - (e) be designed and constructed to contain and collect leaks and spillages to ensure they do not contaminate the land or enter the stormwater system, and
  - (f) not adversely affect access into, across or out of the Lease Area for the purpose of an evacuation or attendance by emergency services, and
  - (g) not adversely impact on adjoining land or the amenity of the neighbourhood, including as a result of dust, odour or noise created by the temporary parking, and
  - (h) comply with—

- (i) AS 1940:2017, *The storage and handling of flammable and combustible liquids*, and
- (ii) AS 3846—2005, *The handling and transport of dangerous cargoes in port areas*, and
- (iii) the *Australian Dangerous Goods Code*, and
- (iv) the recommendations, if any, made by the studies in relation to the development.

(7) The development—

- (a) must be carried out on the site of a bulk liquid storage facility, and
- (b) must not have previously been carried out on the site, whether or not as complying development.

### 13A Conveyor systems

- (1) The construction or installation of a conveyor system, including chutes, holding bins, hoppers, sampling stations and transfer buildings.
- (2) The conveyor system must be certified by a qualified engineer as having a satisfactory design and structural integrity.
- (3) An overhead structure that supports a conveyor must be constructed so as to provide adequate clearance for traffic below the structure.

### 14 Cranes

- (1) The installation of a new rail mounted crane, crane rails for a rail mounted crane or a fixed crane or the replacement of an existing rail mounted crane, crane rails for a rail mounted crane or a fixed crane.
- (2) The crane, crane rails for a rail mounted crane or a fixed crane must be certified by a qualified engineer as having a satisfactory design.

**Note.**

Approvals for cranes and other structures may need to be obtained under the [Airports Act 1996](#) of the Commonwealth.

### 15 Demolition of certain structures

- (1) The demolition of any of the following—
  - (a) one or more liquefied petroleum gas storage tanks having a total capacity of more than 3 tonnes of gas,
  - (b) bulk liquid storage tanks that have been used to store dangerous goods,
  - (c) pipelines that have been used to carry dangerous goods.
- (2) The demolition must comply with AS 2601—2001, *The demolition of structures*.

**Note.**

Demolition work must also be carried out in accordance with the [Work Health and Safety Regulation 2017](#).

### 15A Dry bulk storage silos

- (1) The construction or installation of a dry bulk storage silo that is not to be used for the storage of dangerous goods.
- (2) The dry bulk storage silo must be certified by a qualified engineer as having a satisfactory design and structural integrity.

### 16 Emergency services equipment

- (1) The construction or installation, including upgrading and replacing, of emergency services equipment (including fire systems, pumphouses, fire water tanks and other essential fire safety facilities).

(2) The development must not—

- (a) reduce the level of fire safety of a building, or
- (b) detrimentally affect the structural integrity of a building, or
- (c) alter or extend an existing fire sprinkler system of a building that is unsuitable for the level of fire hazard arising from the use of the building unless the alteration or extension is for the purpose of or includes upgrading the fire sprinkler system so that it is suitable for that level of fire hazard.

## 17 Food and drink premises

(1) Food and drink premises.

(2) The food and drink premises must—

- (a) not have a gross floor area of more than 1,250m<sup>2</sup>, and
- (b) have food preparation areas that comply with AS 4674–2004, *Design, construction and fit-out of food premises*.

## 17A Road and rail terminal facilities

- (1) The erection of terminal facilities for the unloading, loading or discharge of freight, other than dangerous goods, carried by road or rail, including a dump station or rail loading gantry crane.
- (2) The facility must be certified by a qualified engineer as having a satisfactory design and structural integrity.
- (3) (Repealed)

## 18 Port facilities—change of use (change of building classification or increased fire hazard level)

- (1) Port facilities, if the development involves a change of use from a lawful use for the purposes of port facilities to another kind of use for the purposes of port facilities and the land on which the development is carried out is the subject of a contamination statement.
- (2) The new use must not be inconsistent with, or contravene, an existing development consent applicable to the land. This subsection does not apply to any provision or condition of an existing development consent that limits development on the land to the use permitted by that consent.
- (3) The land on which the development is carried out must be suitable for the new use.
- (4) If the new use results in an increase in the level of fire hazard arising from the use of a building, appropriate fire safety measures for that increased level of fire hazard must be provided.
- (5) In this section—

***certified contaminated land consultant*** means a person who holds either or both of the following certifications—

- (a) a Certified Professional Soil Scientist Contaminated Site Assessment and Management certification from Soil Science Australia,
- (b) a Certified Environmental Practitioner—Site Contamination certification from the Environment Institute of Australia and New Zealand.

***contamination statement*** means a statement—

- (a) prepared or endorsed by a certified contaminated land consultant, after considering applicable guidelines made under the [Contaminated Land Management Act 1997](#), section 105, and
- (b) stating the land is suitable for the intended purpose of the development.

**Note.**

A change of use that does not result in a change of building classification or an increase in the fire hazard level of the building is exempt development under Chapter 5.

**18A Ship loaders, unloaders and cargo handling facilities**

- (1) The construction or installation of a new ship loader or unloader, or associated cargo handling facilities.
- (2) The ship loader, unloader or cargo handling facility must be certified by a qualified engineer as having a satisfactory design and structural integrity.

**18B Stacker-reclaimers, stackers and reclaimers**

- (1) The construction or installation of a stacker-reclaimer, stacker or reclaimer and facilities for their operation.
- (2) The stacker-reclaimer, stacker or reclaimer must be certified by a qualified engineer as having a satisfactory design and structural integrity.

**18C Hardstand area for open-air storage facilities**

- (1) The construction, installation and use of a hardstand area for the purpose of open-air storage facilities.
- (2) The hardstand area must—
  - (a) only be used to store products that are bulk solids, and
  - (b) entirely contain the products during their storage, and
  - (c) be designed and constructed to withstand the loads for which it will be used, and
  - (d) be paved with concrete or bituminous surfaces.
- (3) The hardstand area must not—
  - (a) be used to store dangerous goods, or
  - (b) adversely impact on adjoining land or the amenity of the neighbourhood, including as a result of dust, odour or noise created by the development, or
  - (c) be located in, or in a way that impedes access to, parking or loading bays or spaces, vehicle turnaround areas or docks, or
  - (d) redirect the flow of surface water, or cause sediment to be transported, onto an adjoining property or into a waterway, or
  - (e) adversely affect access into, across or out of the Lease Area for the purpose of an evacuation or attendance by emergency services.
- (4) The development must not be inconsistent with, or contravene, a provision or condition of a development consent applying to the land.
- (5) The land on which the development is carried out must be suitable for the use of the hardstand area for the purpose of open-air storage facilities.

**19 Retaining walls**

- (1) The construction of a retaining wall having a height of not more than 6m above ground level (existing).
- (2) The design of the wall must—
  - (a) if it has a height of more than 1m, be certified by a structural engineer as having a satisfactory design and structure, and

(b) comply with—

- (i) AS 3700—2011, *Masonry structures* and AS 3700 Supp 1—2012, *Masonry structures—Commentary (Supplement to AS 3700—2011)*, and
- (ii) AS/NZS 1170.1:2002, *Structural design actions Part 1: Permanent, imposed and other actions* and AS/NZS 1170.1 Supp 1:2002, *Structural design actions—Permanent, imposed and other actions—Commentary (Supplement to AS/NZS 1170.1:2002)*, and
- (iii) if the structure is made of timber, AS 1720.1—2010, *Timber structures Part 1: Design methods*.

#### 19AA Shipping container storage and stacking

- (1) The storage and stacking of shipping containers on land shown edged in red and identified as “Port Botany Lease Area” on the [Lease Area Map](#).
- (2) The shipping containers must—
  - (a) not be stored or stacked at a height of more than—
    - (i) if the shipping containers are empty—7 shipping containers, or
    - (ii) otherwise—5 shipping containers, and
  - (b) not contain dangerous goods, and
  - (c) be located on the site so that surface water run-off drains to a stormwater drainage system or to a landscaped area.
- (2A) The development must comply with AS 2419.1:2021, *Fire hydrant installations, Part 1: System design, installation and commissioning*.
- (3) A container stacking management plan must be prepared in relation to the development and kept at the site.
- (4) The land on which the development is carried out must be sufficiently firm and level to safely support the shipping containers.
- (5) Before the development is carried out, the person carrying out the development must give written notice of the development to the owners of adjoining land.
- (6) This section does not apply to the loading or unloading, delivery or distribution of goods into or out of shipping containers.
- (7) In this section—

**container stacking management plan** means a plan of management for the stacking of shipping containers, which includes the following information—

- (a) a risk assessment of the site to identify potential issues and strategies or procedures to mitigate the issues identified in relation to the development,
- (b) options for the ongoing management of the development on the site, including procedures for carrying out the development safely and allowing appropriate space for the movement and use of operational equipment and vehicles,
- (c) an assessment of the requirements for the monitoring of weather at the site in relation to the development.

#### 19A Wharves and berthing infrastructure

- (1) The erection of, or alterations to, a wharf, working platform or infrastructure, including dolphins, for the purpose of berthing or mooring a vessel.

(2) The design of the wharf or infrastructure must—

- (a) be certified by a structural engineer as having a satisfactory design and structure, and
- (b) comply with the following standards—
  - (i) AS 4997—2005, *Guidelines for the design of maritime structures*,
  - (ii) AS/NZS 1170.1:2002, *Structural design actions, Part 1: Permanent, imposed and other actions*,
  - (iii) AS 3600—2009, *Concrete structures*,
  - (iv) AS 4100—1998, *Steel structures*.

## Part 2 Complying development certificate conditions

### Note.

Complying development must comply with the requirements of the Act, the regulations under the Act and Chapter 5.

### 19B Definition of “final inspection”

In this Part—

**final inspection** means the inspection referred to in clause 162AB(3)(c) of the [Environmental Planning and Assessment Regulation 2000](#).

### 20 General conditions

Any development specified in Part 1 is subject to the same conditions set out in Schedule 8 to the [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#), other than the following—

- (a) clauses 3, 6, 7, 11 and 15,
- (b) Part 4.

### 21 Further general conditions

(1) Any development specified in Part 1 is subject to the following conditions—

- (a) construction may be carried out only between 7.00am and 5.00pm Monday to Saturday, unless construction cannot be heard at the nearest residence,
- (b) to control dust emissions from the site, suitable measures must be taken to suppress dust or mitigate the effect of dust emissions prior to any demolition, excavation or building work,
- (c) any earthworks, including any structural retaining system or other related structure for the purposes of the development must comply with the following—
  - (i) must not cause a danger to life or property or damage to any adjoining buildings or structures on the land comprising the lot on which the earthworks are carried out or to any building or structure on land comprising an adjoining lot,
  - (ii) must not redirect the flow of any surface or ground water, or cause sediment to be transported, onto an adjoining property,
  - (iia) any excavated material must be classified in accordance with the *Waste Classification Guidelines, Part 1: Classifying waste*, published by the NSW Environment Protection Authority in November 2014,

#### Note—

The *Waste Classification Guidelines* are available on the Environment Protection Authority's website.

- (iii) any excavated soil found to be contaminated as classified under guidelines made under the [Contaminated Land Management Act 1997](#) must be removed from the site in accordance with any requirements of the [Protection of the Environment Operations Act 1997](#), or appropriately remediated or managed on site,
- (iv) for fill brought to the site—must use fill containing only virgin excavated natural material or fill re-used in accordance with an excavated natural material exemption under the [Protection of the Environment Operations \(Waste\) Regulation 2014](#), Part 9.

- (2) Any excavation must be carried out in accordance with *Excavation Work: Code of Practice* (ISBN 978-0-642-785442), published in July 2012 by Safe Work Australia.

#### **21A Survey certificate required where proposed building close to lot boundary**

- (1) This section applies to development that consists of the erection of a new building (or any alteration of, or addition to, an existing building) if the new building (or altered part, or addition to, an existing building) is proposed to be located less than 3m from any lot boundary.
- (2) Development to which this section applies is subject to the condition that a survey certificate must be provided to the principal certifying authority—
  - (a) before any form work below any ground floor slab is completed, or
  - (b) if there is to be no such form work—before any concrete is poured for any ground floor slab or for any foundations.
- (3) The survey certificate must be prepared by a registered land surveyor and show the location of the new building (or the existing building as altered or added to) relative to the boundaries of the lot concerned.

#### **22 Additional condition—awnings and canopies**

Development that consists of the construction or installation of an awning or canopy is subject to the condition that a certificate by a qualified engineer certifying that the awning or canopy has been constructed or installed in accordance with the specifications for the design certified by a qualified engineer must be provided to the principal certifying authority.

#### **23 Additional conditions—bridges, cranes, ship loaders, unloaders and bridges, conveyor systems, cranes, dry bulk storage silos, road and rail terminal facilities, ship loaders and unloaders, stacker-reclaimers, stackers, reclaimers, wharves and berthing infrastructure**

- (1) This section applies to development that consists of the construction or installation of any of the following items —
  - (a) a bridge used for a purpose other than a road,
  - (b) a rail-mounted crane, crane rails for a rail mounted crane or a fixed crane,
  - (c) a ship loader, unloader, or cargo handling facilities,
  - (d) a dry bulk storage silo,
  - (e) road and rail terminal facilities,
  - (f) a stacker-reclaimer, stacker or reclaimer,
  - (g) wharves and berthing infrastructure,
  - (h) a conveyor system.
- (2) The development is subject to the condition that a certificate by a qualified engineer must be provided to the principal certifying authority, before the principal certifying authority carries out the final inspection, certifying

that—

- (a) the item has been installed in accordance with the specifications for the design certified by a qualified engineer, and
- (b) the item is structurally adequate.

#### **24 Additional condition—demolition of certain tanks and pipelines**

Development that consists of the demolition of structures referred to in section 15 is subject to the condition that the demolition is carried out in accordance with a demolition plan prepared by a person authorised to carry out such demolitions under the [Work Health and Safety Regulation 2017](#).

#### **25 Additional condition—emergency facilities**

Fire watch measures must be implemented during any period when development that consists of work on existing alarm signalling equipment results in a loss of a monitoring service.

#### **26 Additional condition—retaining walls over 1m**

Development that consists of a retaining wall having a height of more than 1m is subject to the condition that a certificate by a structural engineer certifying that the wall has been constructed in accordance with the specifications for the design certified by a structural engineer must be provided to the principal certifying authority.

#### **27 Additional conditions—bulk liquid storage tanks**

(1) Development that consists of bulk liquid storage tanks referred to in section 11 is subject to the following conditions—

- (a) an emergency plan that is developed in accordance with the *Hazardous Industry Planning Advisory Paper No 1, Emergency Planning*, dated January 2011 and published by the Department on its website, must be prepared and implemented in relation to the development,
- (b) a safety management system that is developed in accordance with the *Hazardous Industry Planning Advisory Paper No 9, Safety Management*, dated January 2011 and published by the Department on its website, must be prepared and implemented in relation to the development,
- (c) the commissioning and operation of the tanks must comply with the relevant recommendations of the studies prepared under section 11,
- (d) a certificate issued by a person approved by the Planning Secretary must be provided to the principal certifying authority stating that the commissioning of the tanks complies with the studies,
- (e) a hazard audit of the development must be carried out by a person approved by the Planning Secretary—
  - (i) 1 year after the commencement of the use of the tanks, and
  - (ii) otherwise—at least once every 3 years,
- (f) the operation of the tanks must comply with the relevant recommendations of a hazard audit.

(2) The hazard audit must comply with the *Hazardous Industry Planning Advisory Paper No 5, Hazard Audit Guidelines*, dated January 2011 and published by the Department on its website and include an implementation schedule for recommendations.

(3) The development is subject to the condition that a certificate by a qualified engineer must be provided to the principal certifying authority, before the principal certifying authority carries out the final inspection, certifying that—

- (a) the item has been installed in accordance with the specifications for the design certified by a qualified engineer, and

- (b) the item is structurally adequate.

## **28 Additional condition—bulk liquid storage tanks (change of stored liquid)**

Development that consists of a change in the kind of liquid stored in a bulk liquid storage tank is subject to the condition that, if any building work has been carried out, the principal certifying authority must be satisfied that the tank is structurally adequate for the liquid that is intended to be stored in the tank on completion of the building work.

## **29 Additional conditions—bulk liquid storage tanks (modifications to pipelines and flow rates)**

Development that consists of modifications referred to in section 13(1)(a) or (b), or the installation of a new pipeline or dispensing facility referred to in section 13(1)(c), is subject to the following conditions—

- (a) a certificate by a qualified engineer must be provided to the principal certifying authority, before the principal certifying authority carries out the final inspection, certifying that—
  - (i) the item has been modified or installed in accordance with the specifications for the design certified by a qualified engineer, and
  - (ii) the item is structurally adequate,
- (b) the commissioning and operation of the tank, as modified or after the installation of the new pipeline or dispensing facility or after the modification of an existing pipeline or dispensing facility, must comply with the applicable recommendations of the studies referred to in section 13(2).

## **29A Additional condition—storage of “liquid empty” LPG storage tanks, road tankers, storage vessels and cylinders at Port Botany**

- (1) Development specified in this Schedule, section 13AA is subject to the following conditions—
  - (a) the total quantity of liquefied petroleum gas contained in all “liquid empty” storage tanks, road tankers, storage vessels and cylinders stored at the storage site at the same time must not exceed 20 tonnes,
  - (b) a safety management system developed in accordance with the *Hazardous Industry Planning Advisory Paper No 9: Safety Management*, dated January 2011 and published on the Department’s website, must be prepared and implemented in relation to the development,
  - (c) an emergency plan developed in accordance with the *Hazardous Industry Planning Advisory Paper No 1: Emergency Planning*, dated January 2011 and published on the Department’s website, must be prepared and implemented in relation to the development,
  - (d) a hazard audit of the development must be carried out by a person approved by the Planning Secretary—
    - (i) 1 year after the commencement of the development, and
    - (ii) otherwise—at least once every 3 years.
- (2) The hazard audit must—
  - (a) comply with the *Hazardous Industry Planning Advisory Paper No 5: Hazard Audit Guidelines*, dated January 2011 and published on the Department’s website, and
  - (b) include an implementation schedule for recommendations made by the audit.

## **29B Additional condition—filling and storage of LPG cylinders at Port Botany**

- (1) Development specified in this Schedule, section 13AB is subject to the following conditions—
  - (a) the total quantity of liquefied petroleum gas contained in all gas cylinders stored at the storage site at the same time must not exceed 20 tonnes,

- (b) a safety management system developed in accordance with the *Hazardous Industry Planning Advisory Paper No 9: Safety Management*, dated January 2011 and published on the Department's website, must be prepared and implemented in relation to the development,
  - (c) an emergency plan developed in accordance with the *Hazardous Industry Planning Advisory Paper No 1: Emergency Planning*, dated January 2011 and published on the Department's website, must be prepared and implemented in relation to the development,
  - (d) a hazard audit of the development must be carried out by a person approved by the Planning Secretary—
    - (i) 1 year after the commencement of the development, and
    - (ii) otherwise—at least once every 3 years.
- (2) The hazard audit must—
- (a) comply with the *Hazardous Industry Planning Advisory Paper No 5: Hazard Audit Guidelines*, dated January 2011 and published on the Department's website, and
  - (b) include an implementation schedule for recommendations made by the audit.

**29C Additional condition—temporary parking of road tankers in dedicated parking areas in Mayfield Bulk Liquid Storage Tanks Area**

- (1) Development specified in this Schedule, section 13AC is subject to the following conditions—
- (a) a road tanker must not be continuously parked in the parking area for more than 24 hours in a 48-hour period,
  - (b) the total quantity of dangerous goods of class 3 under the *Australian Dangerous Goods Code*, Part 2 stored in all road tankers parked in the parking area at the same time must not exceed 200 tonnes,
  - (c) an emergency plan developed in accordance with the *Hazardous Industry Planning Advisory Paper No 1: Emergency Planning*, dated January 2011 and published on the Department's website, must be prepared and implemented in relation to the development,
  - (d) a safety management system developed in accordance with the *Hazardous Industry Planning Advisory Paper No 9: Safety Management*, dated January 2011 and published on the Department's website, must be prepared and implemented in relation to the development,
  - (e) a hazard audit of the development must be carried out by a person approved by the Planning Secretary—
    - (i) 1 year after the commencement of the use of the temporary parking, and
    - (ii) otherwise—at least once every 3 years.
- (2) The hazard audit must—
- (a) comply with the *Hazardous Industry Planning Advisory Paper No 5: Hazard Audit Guidelines*, dated January 2011 and published on the Department's website, and
  - (b) include an implementation schedule for recommendations made by the audit.

**30 Additional condition—port facilities (change of use—change of building classification or increased fire hazard level)**

Development that involves a change of use referred to in section 18 is subject to the condition that, if the new use involves a structure that is not within a classification of building under the *Building Code of Australia*, the principal certifying authority must be satisfied that fire safety measures appropriate to the level of fire hazard have been provided on completion of any building work.

**31 Additional condition—development on land containing containment cell**

- (1) This section applies to development on land containing a containment cell if the development is likely to cause the cell to be breached or otherwise damaged or to reduce the effectiveness of the cell.
- (2) The development is subject to the condition that an environmental management plan that provides for the following matters is prepared and approved by a site auditor before the development is commenced—
  - (a) the management of the construction process relating to any breach of or damage to the containment cell, including how exposed contaminated material is to be dealt with,
  - (b) the process for reinstating the cell before completion of the development.
- (3) The development is also subject to the condition that—
  - (a) the environmental management plan (including the reinstatement of the containment cell) is complied with, and
  - (b) the land on which the development is carried out must not be used for the purpose of the development unless a site audit report and statement are obtained from a site auditor on or before the completion of the development indicating that the site is suitable for its intended use.
- (4) In this section, *site auditor*, *site audit report* and *site audit statement* have the same meanings as they have in the [Contaminated Land Management Act 1997](#).

**32 Development on land in Outer Harbour Area**

- (1) This section applies to land identified as “Outer Harbour Area” on the [Outer Harbour Map](#).
- (2) Complying development carried out on land to which this section applies must be consistent with the terms of a concept plan approved by the Minister for a project on that land.

**33** (Renumbered as section 19AA)**Schedule 12 Savings and transitional provisions—Chapter 5****1** [State Environmental Planning Policy \(Transport and Infrastructure\) Amendment \(Three Ports\) 2022](#)

- (1) An amendment to Chapter 5 made by the amending Policy does not apply to a relevant application.
- (2) Chapter 5, as in force immediately before the commencement of the amending Policy, continues to apply to a relevant application.
- (3) In this section—

**amending Policy** means [State Environmental Planning Policy \(Transport and Infrastructure\) Amendment \(Three Ports\) 2022](#).

**relevant application** means the following applications made, but not finally determined, before the commencement of the amending Policy—

- (a) a development application,
- (b) an application for a complying development certificate,
- (c) an application made by a proponent to a determining authority for approval of an activity under the Act, Part 5.

**Schedule 12 Exempt development—Chapter 6**

Exempt development may be carried out without the need for development consent under the Act. Exempt development is not exempt from an approval, licence, permit or authority that is required under another Act. Adjoining owners' property rights and the common law still apply.

## 1 Alterations to buildings

(1) Building alterations consisting of any of the following—

- (a) non-structural alterations to the exteriors of buildings, if the work does not involve the use of external combustible cladding,

**Example—**

Painting, plastering, cement rendering, cladding, attaching fittings and decorative work.

- (b) work involving the removal of lead,
- (c) work involving the removal of asbestos or asbestos cement if the removal complies with *Code of practice: How to safely remove asbestos* published by SafeWork NSW in December 2022,
- (d) the construction or installation of mechanical plant or an air conditioning unit.

(2) Interior alterations to a building that do not—

- (a) cause the load bearing capacity of a component of the building to be exceeded, or
- (b) detrimentally affect the operational effectiveness of the fire safety measures for the building.

(3) In this section—

**external combustible cladding** has the same meaning as in the [\*Environmental Planning and Assessment \(Development Certification and Fire Safety\) Regulation 2021\*](#).

## 2 At-grade car parks

(1) The construction or installation of an at-grade car park.

(2) The car park must be designed in accordance with one of the following—

- (a) AS 1428.1:2021, *Design for access and mobility, Part 1: General requirements for access—New building work*,
- (b) AS 1428.2—1992, *Design for access and mobility, Part 2: Enhanced and additional requirements—Buildings and facilities*,
- (c) AS 1428.3—1992, *Design for access and mobility, Part 3: Requirements for children and adolescents with physical disabilities*,
- (d) AS/NZS 1428.4.1:2009, *Design for access and mobility, Part 4.1: Means to assist the orientation of people with vision impairment—Tactile ground surface indicators*,
- (e) AS/NZS 2890.1:2004, *Parking facilities, Part 1: Off-street car parking*,
- (f) AS 2890.2:2018, *Parking facilities, Part 2: Off-street commercial vehicle facilities*.

(3) The car park must be—

- (a) paved with concrete or bituminous surfaces, and
- (b) designed and constructed to drain surface water run-off to—
  - (i) a stormwater drainage system, or
  - (ii) a landscaped area.

- (4) If the car park requires the removal of a tree with a diameter of more than 40cm at a height of 1.5m above ground level (existing), the tree must be replaced by at least 2 new trees of a local native species with a pot size of at least 200L.

### 3 Change of use for freight support facilities

- (1) The change of use from a lawful use for the purposes of a freight support facility to another kind of use for the purposes of a freight support facility.
- (2) The land on which the development is carried out must—
  - (a) be suitable for the new use, and
  - (b) not be on contaminated land within the meaning of the Act, Schedule 6.
- (3) The new use must not—
  - (a) result in a change of building classification under the *Building Code of Australia*, or
  - (b) increase the level of fire hazard arising from the use of a building, or
  - (c) involve alterations to a building classified under the *Building Code of Australia*, other than alterations that are exempt development under this Schedule.

### 4 Demolition

- (1) Demolition of a building or work in accordance with AS 2601—2001, *The demolition of structures*.
- (2) This section does not apply to demolition of the following—
  - (a) bulk liquid storage tanks that have been used to store dangerous goods or combustible liquids,
  - (b) pipelines that have been used to carry dangerous goods or combustible liquids,
  - (c) liquefied petroleum gas storage tanks that together have a capacity to store more than 3 tonnes of gas at the same time, or
  - (d) a heritage item.

### 5 Driveways

- (1) The construction or installation of a driveway that is ancillary or incidental to a lawful use on the land on which the development is carried out.
- (2) The driveway must be designed in accordance with AS 2890.2:2018, *Parking facilities, Part 2: Off-street commercial vehicle activities*.

### 6 Emergency works

- (1) Maintenance or restoration of Precinct facilities and emergency services equipment for the purposes of ensuring public safety or protecting buildings or the environment as a result of—
  - (a) a sudden natural event, including a storm, flood, tree fall, bush fire or land slip, or
  - (b) an accident, equipment failure or structural collapse, or
  - (c) damage caused by vandalism or arson.
- (2) The development must not, except to the extent necessary to carry out the development—
  - (a) disturb soil or vegetation, or
  - (b) affect the heritage value of a heritage item.

**7 Fences or gates**

- (1) The construction or installation of a fence or gate, including a security boom gate.
- (2) The fence or gate must be constructed of low reflective, factory pre-coloured materials.
- (3) The fence or gate must not have a height of more than 5m.

**8 Flagpoles**

- (1) The construction or installation of a flagpole.
- (2) The flagpole must not be located within 20m of a boundary of a property that is used for residential purposes.
- (3) The flagpole must not display a commercial advertisement for anything other than a business located on the site.

**9 Hail netting**

- (1) The construction or installation of hail netting.
- (2) The netting must—
  - (a) not have a height above ground level (existing) of more than 12m, and
  - (b) be dark in colour.

**10 Investigations**

- (1) Surveying works and works for the purposes of investigating the physical properties of soil or rock, including geotechnical investigations and sediment sampling.
- (2) The development must not disturb soil or vegetation, except to the extent necessary to carry out the development.

**11 Landscaping**

The construction or installation of landscaping works and landscaping structures, including landscaping works and landscaping structures used for drainage.

**12 Lighting**

- (1) The construction or installation of lighting, including structures for external lighting.
- (2) All new external lighting must—
  - (a) comply with AS/NZS 4282:2019, *Control of the obtrusive effects of outdoor lighting*, and
  - (b) be mounted, screened and directed to not create a nuisance or light spill onto land outside the Precinct.

**13 Maintenance and repair**

- (1) The maintenance, repair or replacement of fittings, fixtures and infrastructure in relation to development for the purposes of Precinct facilities.
- (2) The development must not involve excavation works, except to the extent necessary to carry out the maintenance, repair or replacement.

**14 Moveable plant and equipment**

The installation and maintenance of moveable plant and equipment.

**15 Paving**

- (1) The construction or installation of paving, including maintenance and repair of paving.

- (2) The paving must be designed and constructed—
  - (a) to withstand the loads for which it will be used, and
  - (b) to drain surface water run-off to—
    - (i) a stormwater drainage system, or
    - (ii) a landscaped area.

## **16 Pedestrian ramps, paths and mechanical and non-mechanical stairways**

The construction or installation of pedestrian ramps, paths and mechanical and non-mechanical stairways.

## **17 Preloading works**

- (1) Preloading works for compression of soil before construction.
- (2) The development must not—
  - (a) disturb soil or vegetation, except to the extent necessary to carry out the development, or
  - (b) damage adjoining buildings or structures on the land or an adjoining lot, or
  - (c) redirect the flow of surface water onto an adjoining lot.
- (3) Fill brought to the site must be appropriate fill.

## **18 Pollution control facilities, work health and safety measures and environmental protection works**

The construction or installation of facilities and works for the purposes of pollution control, work health and safety measures and environmental protection works, including facilities and works associated with the following—

- (a) liquefied petroleum gas storage tanks or fuel storage tanks,
- (b) noise walls,
- (c) environmental monitoring stations,
- (d) stormwater treatment.

## **19 Railway tracks**

The construction or installation of railway tracks, including signals and sidings, and maintenance and replacement works.

## **20 Reefer points**

The construction or installation of reefer points for refrigerated containers.

## **21 Retaining walls**

- (1) The construction or installation of a retaining wall.
- (2) The wall must not retain fill of a height more than 2m above ground level (existing).
- (3) The excavation must not exceed a depth below ground level (existing) of 1m.
- (4) The wall must comply with the following—
  - (a) AS 3700:2018, *Masonry structures* and AS 3700:2018 Sup 1:2020, *Masonry structures—Commentary (Supplement 1 to AS 3700:2018)*,

(b) AS/NZS 1170.1:2002, *Structural design actions, Part 1: Permanent, imposed and other actions*, and AS/NZS 1170.1 Supp 1:2002, *Structural design actions—Permanent, imposed and other actions—Commentary (Supplement to AS/NZS 1170.1:2002)*,

(c) if the structure is made of timber—AS 1720.1—2010, *Timber structures, Part 1: Design methods*.

(5) The wall must be designed to manage the natural flow of stormwater or surface water run-off.

## **22 Road and rail infrastructure—minor maintenance, repairs and works**

Minor maintenance, minor repairs and other minor works to roads and rail infrastructure.

## **23 Roads—marking out**

The marking out of roads, including the marking out of parking areas, queuing areas and pedestrian crossings.

## **24 Safety or security barriers**

The construction, installation or removal of safety or security barriers, including jersey barriers, earth berms and bollards.

## **25 Satellite dishes**

The construction or installation of radio or satellite communication dishes for the purposes of—

- (a) receiving television or radio signals, or
- (b) use in connection with community band or two-way radio.

## **26 Scaffolding**

- (1) The construction, installation or removal of a scaffold or hoarding.
- (2) The development must—
  - (a) comply with AS/NZS 1576.1:2019, *Scaffolding, Part 1: General requirements*, and
  - (b) be removed as soon as practicable without compromising public health or safety.

## **27 Security and monitoring cameras and other devices**

The construction or installation of security cameras and other devices, including radar, communication devices and microwave receivers for the purposes of monitoring traffic or tracking trucks or for security purposes.

## **28 Signage**

- (1) Signage other than advertising structures.
- (2) A sign must comply with—
  - (a) AS 1319—1994, *Safety signs for the occupational environment*, and
  - (b) AS/NZS 4282:2019, *Control of the obtrusive effects of outdoor lighting*.

## **29 Signage—changes and maintenance and repair**

A change to the display on an existing sign or the maintenance or repair of an existing sign.

## **30 Subdivision**

The subdivision of land if the size of each resulting lot is not less than 2,000m<sup>2</sup>.

**31 Switch rooms and security booths**

- (1) The erection of a switch room or security booth.
- (2) The building must not have a gross floor area of more than 500m<sup>2</sup>.

**32 Temporary structures**

The construction, installation or removal of a temporary structure, if the structure is used for a period of not more than 12 months in total.

**33 Temporary uses of land**

- (1) The temporary use of land in connection with a freight intermodal facility for a maximum period of 182 days, whether or not consecutive, in any period of 12 months.
- (2) The use must not—
  - (a) prejudice the subsequent carrying out of development on land in the Precinct, or
  - (b) adversely impact on adjoining land or the amenity of the neighbourhood, or
  - (c) adversely impact on environmental attributes or features of the land, or
  - (d) increase the risk of natural hazards that may affect the land.

**34 Truck marshalling area**

- (1) The construction or installation of a truck marshalling area.
- (2) The truck marshalling area must—
  - (a) be paved with concrete or bituminous surfaces, and
  - (b) be designed and constructed to contain leaks and spillages so they do not enter a stormwater drainage system or contaminate land, and
  - (c) comply with AS 2890.2:2018, *Parking facilities, Part 2: Off-street commercial vehicle facilities*.

**35 Truck and train weighbridges**

The construction or installation of a truck or train weighbridge.

**36 Utilities and service facilities**

- (1) The construction or installation of a utility or service facility, including—
  - (a) pipelines, other than pipelines used to carry dangerous goods or pipelines that are the subject of a licence under the [\*Pipelines Act 1967\*](#), and
  - (b) stormwater drainage.
- (2) An overhead structure used to support a pipeline must be at a height that provides adequate clearance for road or rail traffic below the structure.

**37 Vegetation management**

- (1) Minor vegetation management for the purposes of maintaining the security or safety of the Precinct
- (2) The development must not disturb vegetation more than is necessary for those purposes.

**38 Washbays**

The construction or installation of washbays for cleaning vehicles and equipment.

### 39 Water tanks

- (1) The construction, installation or removal of a rainwater tank or grey water tank.
- (2) The tank must—
  - (a) not have a capacity of more than 20,000 tonnes of water, and
  - (b) be the same colour as the surrounding development or a neutral colour.

## Schedule 13 Complying development—Chapter 6

section 6.6

### Part 1 Complying development

#### 1 Freight intermodal facilities and freight support facilities

Erection or use of a building for the following purposes—

- (a) freight intermodal facilities,
- (b) freight support facilities, other than—
  - (i) the erection or use of a building of a kind that is not within a building classification under the *Building Code of Australia*, or
  - (ii) designated development.

#### 2 Warehouse or distribution centres

- (1) Erection or use of warehouse or distribution centres, if the gross floor area of all buildings used for warehouse or distribution centres in the Precinct does not exceed 1,220,000m<sup>2</sup>.
- (2) If a building used for a warehouse or distribution centre has a height of more than 21m, the following apply—
  - (a) the visual impact of the building must be minimised,
  - (b) the building must be oriented to the street and the principal form must follow the boundary orientation,
  - (c) the design of the building must add visual interest through the building structure, facade design and signage integration,
  - (d) existing native trees within the setback of the building must be retained as an integral component of the site's landscaping, to protect local flora habitats,
  - (e) landscaping must—
    - (i) be included around the building or on the site boundaries, and
    - (ii) establish a distinctive entry to the site,
  - (f) native species of trees must be planted at 3m intervals along the landscaped areas at the side and rear boundaries,
  - (g) the trees in paragraph (f) must be capable of achieving—
    - (i) a height of at least 8m and a crown of 4m at maturity, and
    - (ii) a crown of at least 2m within 2 years of the occupation of the development,
  - (h) construction materials must be robust and durable,
  - (i) light coloured materials with a high total solar reflectance must be used for roofing to reduce heat loading,

- (j) the colour and materials used in the building must provide a continuity along frontages,
- (k) the reflectivity of the glazing of the building must not exceed 20%,
- (l) the signage on the building must be designed to avoid clutter.

### **3 Change of use for freight support facilities**

- (1) The change of use from a lawful use for the purposes of freight support facilities to another kind of use for the purposes of freight support facilities.
- (2) The land on which the development is carried out must be suitable for the new use.
- (3) If the new use results in an increase in the level of fire hazard arising from the use of a building, appropriate fire safety measures for the increased level of fire hazard must be implemented.

#### **Note—**

Certain changes of use for freight support facilities are exempt development under this Policy, Chapter 6 and Schedule 12.

### **4 Awnings or canopies**

- (1) The construction or installation of an awning or canopy.
- (2) The development must not—
  - (a) result in an increase to the gross floor area of a building, or
  - (b) reduce the existing level of access to a building by people with a disability.
- (3) The awning or canopy must not be—
  - (a) less than 2.7m above ground level (existing) at any point, or
  - (b) more than 3m in depth measured horizontally from the facade of the building, or
  - (c) closer than 450mm to the edge of a kerb or alignment of a path or road on which vehicles travel.

### **5 Bridges used for purposes other than roads**

The construction or installation of a bridge used for a purpose other than a road.

### **6 Conveyor systems**

- (1) The construction or installation of a conveyor system.
- (2) An overhead structure that supports a conveyor system must be constructed to provide adequate clearance for traffic below the structure.

### **7 Cranes**

The installation of a rail-mounted crane, fixed crane or crane rails for a rail-mounted crane.

### **8 Dry bulk storage silos**

The construction or installation of a dry bulk storage silo that is not used for the storage of dangerous goods.

### **9 Emergency services equipment**

- (1) The construction or installation, including upgrading and replacing, of emergency services equipment, including the following—
  - (a) fire systems,
  - (b) pumphouses,

- (c) fire water tanks,
- (d) other essential fire safety facilities.

(2) The development must not—

- (a) reduce the level of fire safety of a building, or
- (b) detrimentally affect the structural integrity of a building, or
- (c) alter or extend an existing fire sprinkler system of a building that is unsuitable for the level of fire hazard arising from the use of the building.

(3) Subsection (2)(c) does not apply to an alteration or extension that is for the purposes of, or includes, upgrading the fire sprinkler system so that it is suitable for the level of fire hazard arising from the use of the building.

## 10 Importation and placement of fill

- (1) The use of up to 2,300,000m<sup>3</sup> of fill that is compacted.
- (2) The fill must be appropriate fill.
- (3) No more than 22,000 tonnes of fill may be delivered to land in the Precinct in a 24-hour period.
- (4) The fill must not be stored on contaminated land within the meaning of the Act, Schedule 6.
- (5) Despite subsection (4), the fill may be stored on land referred to in the [Environmental Planning and Assessment Regulation 2021](#), section 129(2) if the remediation works specified in a statement under that Regulation, section 129(5) have been carried out.

## 11 Food and drink premises

Food and drink premises to provide for persons working in the Precinct with—

- (a) a gross floor area of not more than 1,250m<sup>2</sup>, and
- (b) food preparation areas that comply with AS 4674—2004, *Design, construction and fit-out of food premises*.

## 12 Loaders, unloaders and cargo handling facilities

The construction or installation of a loader or unloader and associated cargo handling facilities.

## 13 Retaining walls

- (1) The construction of a retaining wall with a height of not more than 6m above ground level (existing).
- (2) The wall must comply with the following—
  - (a) AS 3700:2018, *Masonry structures* and AS 3700:2018 Sup 1:2020, *Masonry structures—Commentary (Supplement 1 to AS 3700:2018)*,
  - (b) AS/NZS 1170.1:2002, *Structural design actions, Part 1: Permanent, imposed and other actions*, and AS/NZS 1170.1 Supp 1:2002, *Structural design actions—Permanent, imposed and other actions—Commentary (Supplement to AS/NZS 1170.1:2002)*,
  - (c) if the structure is made of timber—AS 1720.1—2010, *Timber structures, Part 1: Design methods*.

# Part 2 Complying development certificate conditions

## 14 Hours of construction work

Construction may be carried out only between 7.00am and 5.00pm Monday to Saturday, unless construction cannot be heard at the nearest residence.

## 15 Dust emissions

To control dust emissions from the site, suitable measures must be taken to suppress dust or mitigate the effect of dust emissions prior to demolition, excavation or building work.

## 16 Earthworks

- (1) Earthworks, including a structural retaining system or other related structure, must not—
  - (a) cause a danger to life or property or damage to any adjoining buildings or structures on the land comprising the lot on which the earthworks are carried out or to any building or structure on land comprising an adjoining lot, or
  - (b) redirect the flow of any surface or ground water, or cause sediment to be transported, onto an adjoining property.
- (2) Excavated soil found to be contaminated, as classified under guidelines made under the [Contaminated Land Management Act 1997](#), must be—
  - (a) removed from the site in accordance with any requirements of the [Protection of the Environment Operations Act 1997](#), or
  - (b) appropriately remediated or managed on site.
- (3) Fill brought to the site must be appropriate fill.
- (4) Excavation must be carried out in accordance with *Excavation Work: Code of Practice*, published by SafeWork NSW in January 2020.

## 17 Development on land containing containment cell

- (1) This section applies to complying development carried out on land containing a containment cell if the development is likely to—
  - (a) cause the cell to be breached or otherwise damaged, or
  - (b) reduce the effectiveness of the cell.
- (2) A plan that provides for the following must be prepared and approved by a site auditor before the development commences—
  - (a) the management of the construction process relating to a breach of or damage to the containment cell, including how exposed contaminated material will be dealt with,
  - (b) the process for reinstating the containment cell before the development is completed.
- (3) The plan, including the reinstatement of the containment cell, must be complied with.
- (4) The land on which the development is carried out must not be used for the purpose of the development unless—
  - (a) a site audit report and site audit statement are obtained from a site auditor before the development is completed, and
  - (b) the report and statement indicate that the site is suitable for the intended use.
- (5) In this section—

*site audit report*, *site audit statement* and *site auditor* have the same meaning as in the [Contaminated Land Management Act 1997](#).

**18 Survey certificate required if building close to lot boundary**

- (1) This section applies to complying development that consists of the erection of a building that will be located less than 3m from a lot boundary.
- (2) A survey certificate must be provided to the principal certifying authority—
  - (a) before form work below a ground floor slab is carried out, or
  - (b) if there is no form work below a ground floor slab—before concrete is poured for a ground floor slab or foundations.
- (3) The survey certificate must—
  - (a) be prepared by a registered land surveyor under the [Surveying and Spatial Information Act 2002](#), and
  - (b) show the location of the building relative to the boundaries of the lot.

**19 Engineering certificate required for certain development**

- (1) This section applies to development specified in sections 1, 2, 4–9, 12 and 13.
- (2) A certificate by a qualified engineer must be provided to the principal certifying authority, before the principal certifying authority carries out the final inspection, certifying that the development has satisfactory design and structural integrity.

**20 Emergency facilities**

Fire watch measures must be implemented during a period in which work on existing alarm signalling equipment results in a loss of a monitoring service.